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COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Mroso and Nsekela, JJ.A.)

CIVIL APPEAL No. 91 OF 2003

(Appeal from the decision of the High Court of Tanzania (Commercial Division), at Dar es Salaam, Kalegeya, J., dated 6 November 2003, in Commercial Case No. 85 of 2003)

Civil Practice and Procedure – Appeals – Appeals to the Court of Appeal – Lodging the Record and Memorandum of Appeal– Record and Memorandum of Appeal not endorsed by the Registrar to signify their lodgment – Effect thereof – Rules 15, 83(1) and 86(3) of the Court of Appeal Rules 1979.

During the hearing of the appeal, a preliminary point was raised to the effect that the appeal was incompetent on the ground that the Record of Appeal and the Memorandum of Appeal contravened rule 86(3) and Form "F" of the First Schedule to the Court of Appeal Rules 1979, in that the documents lodged were not endorsed by the Registrar to signify that they were so lodged. In so submitting, learned counsel for the respondent relied on the decision of the court in *Atlantic Electric Ltd v. Morogoro Region Cooperative Union (1984) Ltd* (1). The Memorandum of Appeal had otherwise been filed in accordance with rules 83(1) and 86 as well as Form "F" in the appropriate registry, but it had been signed or endorsed by a person who was not the Registrar.

Held: (i) Rule 86(3) of the Court of Appeal Rules 1979 dealing with Memorandum of Appeal is, *mutatis mutandis*, a replica of rule 76(6) of those rules, dealing with a Notice of Appeal; thus rule 86 and Form "F" are to a Memorandum of Appeal what rule 76 and Form "F" are to a Notice of Appeal ;

(ii) In the *Atlantic Electric* the Notice of Appeal was neither signed nor dated and it was struck out for violating rule 15 and not rule 76 and Form "D" of the Court of Appeal Rules 1979;

(iii) "The court" in the rules means the "Court of Appeal" and not the High Court; so, the signature block in Form "D" ought to be "Registrar of the High Court" and for the avoidance of doubt Form "D" needs to be amended accordingly;

(iv) The use of the word "cause" in rule 15 of the Court Rules means that a person upon whom the duty is cast must see to it that the work specified is done; it is thus the duty of the Registrar or the Registrar of the High Court to see to it that the dating and endorsement are done as required by the rules and failure to do so attracts the blame on those authorities and not on the appellantor whoever lodges the document;

(v) If a provision imposes a duty on an authority to cause something to be done, it is upon that authority to see to it that the obligation is performed as required; as rule 15 of the Court of Appeal Rules 1979 imposes a duty on the Registrar or the Registrar of the High Court to see to it that documents lodged in their respective registries are endorsed as appropriate, if that duty is not carried out properly, then it is the Registrar or the Registrar of the High Court, as the case may be, who is to blame and not the parties lodging the documents;

(vi) As (1) rules 76 and 86 deal with how a Notice of Appeal and a Memorandum of Appeal, respectively, should be and should contain (2) the lodging of a document is distinct from the endorsement of a document, though the two are closely related, and (3) the lodging of a Notice of Appeal is dealt with by tule 76(1) while that of a Memorandum of Appeal is dealt with by rule 83(1), the endorsement of such documents that are lodged under the respective rules is done under tule 15 by the Registrar or the Registrar of the High Court, as the case may be; therefore, any transgression against rule 15 is committed by those authorities and cannot be imputed on an advocate or on an appellant;

(vii) All previous decisions which treated notices of appeal or memoranda of appeals as invalid simply because they were not signed or endorsed by the Registrar or the Registrar of the High Court under rules 76 and 86 of the Court of Appeal Rules 1979 are departed from because in those cases, had rule 15 been cited to the court, the cases would have been decided differently;

(viii) It was erroneous to treat rule15 as imposing a duty on the Registrar to "cause" a document "to be lodged" while the rule only requires the Registrar to "cause" a document "to be endorsed"; lodging and endorsing are not one and the same thing;

(ix) There is no reason why the functions of the Registrar [under rule 15] should be performed personally by him or her; they can be delegated unless specifically prevented from doing so by the rule concerned.

Preliminary objection overruled

Cases referred to:

(1) *Atlantic Electric Ltd. v. Mrorgoro Region Cooperative Union (1984),* [1993] T.L.R. 12

(2) *William Loitiame v. Asheri Naftali,* [2003] T.L.R.

(3) *Jacksom Reuben Maro v. Hubert Sebastian*, CAT, Civil Appeal Number 8 of 2002 (unreported)

(4) *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd.*, Civil Appeal Number 29 of 2002 (unreported)

(5) *Kelly's Directories Ltd. v. Gavin and Lloyds*, [1902] 1 Ch 631

(6) *Nokes and another v. Corporation of Islington*, [1904] 1 KB 615

(7) *Sopp v. Long*, [1970] 1 QB 518

(8) *Remat Nanji Ahmed v. R.* [1959] EA 804

(9) *Shave v. Rosner*, [1959] EA 810

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rules 15, 83(1), 76(6), 76, 86 and 86(3)

(2) Weights and Measures Act 1963, section 24(1)

(3) Traffic Ordinance Chapter 168

(4) Banking and Financial Institutions Act 1991

Dr Lamwai, for the Appellant

Ms Jessie Mnguto, for the Respondents

RULING

(Dated 25 February 2004)

Ramadhani, J.A.: The first respondent, Tanzania Sugar Producers Association, raised a preliminary objection through their learned advocate, Ms Jessie Mnguto, saying that the appellant's Record of Appeal and the Memorandum of Appeal contravene rule 86(3) and Form "F" of the First Schedule of the Court of Appeal Rules 1979.

Dr Masumbuko Lamwai, learned counsel for the appellant, readily conceded that shortcoming and informally applied to be allowed to file fresh documents since the sixty days prescribed by rule 83 have not expired. Ms Mnguto wanted to have her piece of cake and eat it at the same time. She did not object to that application. However, she would not withdraw her objection because she was instructed by her client to raise it. As the court could not pretend that the preliminary objection does not exist, it had to hear the parties so as to determine the preliminary objection one way or the other.

Ms Mnguto submitted that the Memorandum of Appeal contravenes rule 86 and Form 'F' in that it was not endorsed by the Registrar to signify that it was lodged. The learned advocate relied on the decision of this Court in *Atlantic Electric Ltd. v. Morogoro Region Cooperative Union* (1). Ms Mnguto asked the court to strike out the appeal with costs.

In reply Dr Lamwai said that the Memorandum of Appeal is exactly as prescribed by rule 86 and Form 'F' and, so, it is in order. He went on to say that the appellant has also complied with rule 83(1) which requires an appeal to be instituted by lodging the Memorandum of Appeal and the other documents in the appropriate registry. Dr Lamwai pointed out that the endorsement of documents lodged with the Registry, including a Memorandum of Appeal, is a distinct requirement under rule 15.

Dr Lamwai conceded that the Memorandum of Appeal has been signed by a person who is not the Registrar. But that violation, he argued, has nothing to do with the appellant whose sole obligation was to lodge the document in the appropriate registry. Dr Lamwai prayed that the preliminary objection be dismissed with costs.

On behalf of respondents second and third was Ms. Sahel, learned State Attorney, who had nothing to add.

In *Atlantic,* cited by Ms Mnguto, a single Justice of Appeal struck out a Notice of Appeal because, *inter alia,* it was not signed by the Registrar of the High Court as required by rule 15. There are two observations we want to make regarding that authority. One, our understanding of that ruling is that the Notice of Appeal was not dated and was not signed at all. It was not the case that it was signed by a wrong person. We say so because the learned Justice of Appeal said in paragraph 'E' on page 19:

> Then the date when the Notice of Appeal was lodged is not shown and lastly there is no signature of the Registrar.

Two, the Notice of Appeal was struck out for violating rule 15, that is, the rule regarding lodging of a Notice of Appeal and not for violating rule 76 and Form 'D' which provide how a Notice of Appeal should be, and that it should be signed by or on behalf of the appellant. Suffice it is to say here that we are satisfied that *Atlantic* does not support the contention by Ms Mnguto.

Nevertheless, the contention of Ms Mnguto is that the Memorandum of Appeal contravenes rule 86 and Form 'F' because it was not signed by the Registrar to indicate that it was lodged. Now, rule 86(3), dealing with Memorandum of Appeal is, *mutatis mutandis,* a replica of rule 76(6) dealing with Notice of Appeal. Thus rule 86 and Form 'F' are to a Memorandum of Appeal what rule 76 and Form 'D' are to a Notice of Appeal.

Rule 76(6) provides as follows:

A Notice of Appeal shall be substantially in the Form D in the First Schedule to these rules and shall be signed by or on behalf of the appellant.

Rule 86(3), on the other hand, provides:

A Memorandum of Appeal shall be substantially in the Form F in the First Schedule to these rules and signed by or on behalf of the appellant.

Form D to rule 76, among other details, indicates who should receive and acknowledge receipt of a Notice of Appeal :

To: The Registrar of the High Court of Tanzania at...

Lodged in the High Court of Tanzania at ...

This ... day of ..., 19...

...

Registrar

The above quoted is the portion which is required by rule 15 to be dated and signed by the Registrar of the High Court when a Notice of Appeal is lodged. This is what was not done in *Atlantic* and, as already said, the Notice of Appeal was struck out.

The end of Form F, too, like Form D, mutatis mutandis:

To: The Honourable the judges of the Court of Appeal of Tanzania.

Copies to be served on ...

Lodged in the Registry/Sub-Registry at ...

On the ... day of ..., 19...

...

Registrar

Let us digress a bit. Form D is properly addressed to The Registrar of the High Court. However, the signature block is simply titled "Registrar". That, in our opinion, is wrong. The title "Registrar" is defined in rule 2 as follows:

"Registrar" means the registrar of the court, and includes a deputy registrar of the court;

"The Court" in the rules means "The Court of Appeal" and not the High Court. So, the signature block in Form D ought to be: "The Registrar of the High Court". For the avoidance of doubt, we recommend to the Honourable the Chief Justice to have Form D amended.

To go back to the matter at hand, these two sub-rules are practically dealing with similar situations and so, the decisions on rule 76(6) on Notices of Appeal can, *mutatis mutandis,* be used in dealing with rule 86(3) on Memorandam of Appeal. Probably Ms Mnguto should have sought to rely on these decisions on lodging of a Notice of Appeal under rule 76 to support her contention that a Memorandum of Appeal can only be validly lodged under rule 86 if a Memorandum of Appeal is endorsed by the Registrar as defined under rule 2.

This court has made a number of decisions to the effect that a Notice of Appeal which has been signed on behalf of the Registrar of the High Court, contravenes rule 76(6) and Form D and is, therefore, invalid. Such decisions include *William Loitiame v. Asheri Naftali* (2) and also *Jackson Reuben Maro v. Hubert Sebastian* (3).

This court reiterated those decisions in *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd.* (4) and went a step further. In that decision sub-rule (1) of rule 76 was cited (this is like rule 83(1) dealing with institution of appeal). That sub-rule provides as follows:

Any person who desires to appeal to the court shall lodge a written notice in duplicate with the Registrar of the High Court.

The court said:

The rule provides a specific requirement lodging a notice with the Registrar of the High Court. A document is said to have been lodged when it has been paid for and endorsed. The endorsement, from the clear words of this sub-rule, has to be done by the Registrar of the High Court, which expression, per rule 2(1), includes, "a district and a deputy registrar of the court". There is no room for any one else to sign.

Dr Lamwai, on the other hand, contends that rule 86, and by necessary implication, rule 76 deals with the form and the lodging of a Memorandum of Appeal and a Notice of Appeal , respectively. He argues that the endorsement on a Notice of Appeal and a Memorandum of Appeal is the subject of rule 15 which provides:

> Whenever any document is lodged in the Registry or in a sub-registry or the registry of the High Court under or in accordance with these rules, the Registrar or deputy registrar or the Registrar of the High Court, as the case may be, shall forthwith cause it to be endorsed, showing the date and the time when it was lodged.

It is obvious to us that rule 15 deals with all documents, including notices of Appeal and Memoranda of Appeal. Apart from that, a close reading and analysis of this rule reveal that there are two scenarios: One, there is the lodging of a document, and Dr Lamwai submits that is done under rule 86(1) [or 76(1) for a Notice of Appeal]. Two, there is the endorsement stage of a document which is done under rule 15. The two scenarios are distinct, though related.

In *Tanzania Revenue Authority v. All Naeem Enterprises Ltd.* (4) as already seen above, this court rolled the two scenarios in one when it said:

> The rule [rule 76] provides a specific requirement of lodging a notice with the registrar of the High Court. *A document is said to have been lodged when it has been paid for and endorsed.* The endorsement, from the clear words of this sub-rule, has to be done by the Registrar of the High Court ... [emphasis supplied]

If it is correct that "[a] document is said to have been lodged when it has been paid for and endorsed" why does rule 15 talk of "*whenever any document is lodged* in the Registry or .... in High Court, as the case may be, *shall forthwith cause it to be endorsed,* showing the date and the time when it was lodged" [Emphasis Supplied]. Surely, the two rules cannot co-exist unless the two functions are distinct and separate. If both roles are performed under rule 76 (or rule 86) then rule 15 is superfluous and ought to be deleted.

As already said, Dr Lamwai submits that rules 76 and 86 deal with the lodging of a Notice of Appeal and a Memorandum of Appeal respectively and that rule 15 is concerned with the endorsement of all documents lodged with the Registrar of the High Court and the Registrar as the case may be. Rule 15, as already seen, requires the Registrar or the Registrar of the High Court to "cause [a document] to be endorsed, showing the date and the time when it was lodged".

In ordinary English language "to lodge", according to **Chambers 20th Century Dictionary,** Edited by E.M. Kirkpatrick, is "to place: to deposit: to infix: to vest: to settle:" To "lodge" a document is defined (2 ed), at page 1115, as "to file or leave them with the appropriate official". As pointed out by Dr Lamwai the lodging of a document is the duty of an appellant. What happens after the lodging is the concern of rule 15 and is the responsibility of the appropriate official.

Rule 15 demands the Registrar to "forthwith cause [the document] to be endorsed, showing the date and the time when it was lodged". But what is to "cause" something to be done?

Our research has revealed a number of statutes using that phraseology and equally a number of decisions on whether someone has caused something to be done.

In *Kelly's Directories Ltd. v. Gavin and Lloyds* (5) Gavin published a book and contracted with Lloyds to print it. Due to pressure of work, Lloyds partly performed the contract but consented that Gavin finds another printer to finish the work. However, the finished book bore on the title-page the statement "Printed at Lloyds". Unknown to Lloyds, piracy occurred in the portion not printed by them. Some passages were copied from a book of Kelly's and so infringed their copyright. The court was satisfied that Gavin and Lloyds were not partners or co-adventurers in the publication of the book and that the printers of the pirated matter were agents of Gavin and not of Lloyds and so, Lloyds could not be said to have "caused" the pirated portion of the book to be printed within the meaning of section 15 of the Copyright Act 1842. Vaughan Williams L.J. opined at page 635 that:

> If a man who has a right to print a book stands back and allows some one else to do the printing, I do not think it can be said that he "causes" the book to be printed.

The argument that Lloyds by allowing their name to appear on the title-page adopted the printing of the whole book was rejected. There was a separate contractual relationship between Gavin and the subsequent printer. Lloyds did not have a duty under which they could have been said to have caused the pirated work to be written.

In *Nokes and another v. Corporation of Islington* (6) a by-law of a borough required every landlord of a lodging-house to "cause" every part of the premises to be cleaned, and ceiling and interior walls to be lime-washed, in the first week of April of every year. Nokes and another were sued for not complying with the by-law. At 622 Lord Alverstone, C.J. said:

> The use of the word 'cause' partly creates the difficulty, if the word could be construed to mean "take reasonable steps" the same difficulty will not arise; but I think it means more than that – it means that a person upon whom the duty is cast must see that the work specified is done.

It would follow then that it is the duty of the Registrar or the Registrar of the High Court to see to it that the dating and the endorsement are done as required by the rules. If that is not done, it is the Registrar or the Registrar of the High Court, as the case may be, who is to bear the blame. The appellantor whoever lodges the document cannot be made a scapegoat.

In *Sopp v. Long* (7) "L" was a licensee of a number of railway station refreshment rooms. A barmaid in one of the rooms sold a short measure of whisky to a customer. "L" was convicted of "causing" to be delivered a short measure contrary to the Weights and Measures Act 1963. His appeal was allowed but his conviction was restored by the Queen's Bench Division. The relevant parts of section 24(1) provide:

> ...any person who, in selling or purporting to sell any goods by... measurement..., delivers or causes to be delivered to the buyer a lesser quantity than that purported to be sold or than corresponds with the price charged shall be guilty of an offence ...

Lord Edmund Davies, L.J. then posed a question at page 525:

> It is the law, then, that under section 24 of the Act of 1963 there can be no causing to deliver a short measure pursuant to an act of sale unless the person charged with such an offence has knowledge, or has previously authorized, that a short measure is to be sold?

He went on to say:

> ... it is necessary to have in mind the words of the particular statute when one is dealing with the exact connotation of such a phrase as 'causing' this, that, or the other to be done.

It was observed at page 526 that "Only the licensee can sell-that is common ground-and he alone sold. Being absent from the premises he sold through his servant, the barmaid; by every sale he 'conduced through her, he thereby 'caused' to be delivered that which was sold; that that he did, whether that which was delivered was a short measure or a full measure".

It appears to us that the decision sets the principle that if a provision imposes a duty on an authority to cause something to be done, it is up to that authority to see to it that the obligation is performed as required and the blame is squarely on that authority and no one else. Thus rule 15 imposes a duty on the Registrar or the Registrar of the High Court. If the duty is not carried out properly then it is the Registrar or the Registrar of the High Court who is to blame and not, in our opinion, the appellant.

Coming home there is *Remat Nanji Ahmed v. R.* (8) an appeal from a magistrate's court where the appellant was convicted with four counts of "causing a motor vehicle to be used" with defective steering, defective brakes, defective tyres, and when not in proper

mechanical repair contrary to diverse sections of the Traffic Ordinance (Chapter 168) (Tanganyika Laws.) The appellant was the sole owner of a firm which was run by her husband. The appellant's son normally used the firm's vehicle on the firm's business. At the material time the vehicle was being driven by the son. The appellant denied causing the defective vehicle to be on the road.

Biron, Ag. J. said at page 810:

> Leaving aside the question of authorities, I fail to see why, when a defective vehicle is driven by a servant in the contravention of the law in the ordinary course of his employment and duties, the liability of his master, in so far as the knowledge of the defects is concerned, should be affected by the form of the charge preferred against the master and owner of the vehicle, that is to say, if he were charged with "using" or "permitting" the use of the vehicle, he would be liable, but not if he were charged with "causing" the vehicle to be so used. In fact in the case of master and servant or an employee, the expression "cause" is more appropriate than "permit". As indicated by Lord Godddard, C.J. in *Shave v. Rosner* (9) at page 281:
>
> I think that, when one finds those two expressions 'causes' or 'permits' in contrast or in juxtaposition, 'permit' means giving leave and license to somebody to use the vehicle, and 'cause' involves a person, who has authority to do so, ordering or directing another person to use it. If I allow a friend of mine to use my motor-car, I am permitting him to use it. If I tell my chauffeur to bring my car round and drive me to the courts, I am causing the car to be used.
>
> On due consideration of the authorities I do not consider myself precluded from holding that where an employee uses or drives his master's vehicle in a defective state in contravention of some regulation, in so far as the knowledge of the master of such defect is concerned, no distinction need be, or should be made between "permitting" and "causing".

Thus whether the Registrar or the Registrar of the High Court is or is not aware that the documents have been signed on his behalf, he has "caused" them to be signed. He/she is liable of the accusation

of whether or not the documents have been properly endorsed. The liability is not of the person lodging the documents. An advocate or an appellant could not insist on the registrar to sign a document.

We find, therefore: one, rules 76 and 86 basically deal with how a Notice of Appeal and a Memorandum of Appeal, respectively, should be and what they should contain. Two, the lodging of a document is distinct from the endorsement of a document though the two are closely related. Three, the lodging of a Notice of Appeal is dealt with by rule 76(1) while that of a Memorandum of Appeal is the subject matter of rule 83(1). Four, the endorsement of documents that have been lodged under the respective rules is done under rule 15 by the Registrar or the Registrar of the High Court, as the case may be. So, any transgression against rule 15 is committed by those authorities and cannot be imputed on an advocate or an appellant.

We therefore, are of the considered opinion that we ought to depart, and we so do, from all the previous decisions treating Notices of Appeal or Memoranda of Appeal as invalid because they were not signed by the Registrar or the Registrar or the High Court under rules 76 and 86. We do so because, we believe, that had rule 15 been cited to them, our learned brothers would have decided as we hereby do.

It is equally clear to us from the authorities we have cited that to "cause" something to be done, does not mean that a statutory authority must do that thing personally. On the contrary, as Lord Goddard, C.J. in *Shave v. Rosner* (9) said to "cause" involves a person, who has authority to do so, ordering or directing another person to use it. This, again, is a departure from the previous decisions of this court that the endorsement has to be personally by the Registrar or the Registrar of the High Court as defined in rule 2.

Besides the cited authorities, can we honestly expect that endorsements could always be done personally by the Registrar or the Registrar of the High Court? In the case of the seat of this court, for instance, are the documents only to be signed by one of three

persons: the Registrar or the Senior Deputy Registrar or the Deputy Registrar? Are we not going to choke and bog down the process of appeal?

The Honourable Chief Justice, for example, has many powers in the appellate jurisdiction. However, the rules in their wisdom have foreseen the impossibility of the Chief Justice to be in a position to act personally in all instances. Hence rule 2(1) defines the Chief Justice in these terms:

> ...means the Chief Justice of the Court of Appeal of the United Republic of Tanzania and, in relation to the hearing of any appeal or to the delivery of judgment on an appeal, includes the presiding judge of the court as constituted for the appeal.

It is our considered opinion that if the function's of the Chief Justice do not always have to be performed personally by the Chief Justice, there is no reason why the functions of the Registrar must always be executed personally by the Registrar or his deputies unless it is provided so explicitly by the rule concerned. We are of the considered opinion that the Registrar should indicate by administrative directions which of the Registry Officers would act under rule 15, and possibly other rules which have not been dealt with in this ruling.

However, we must hasten to point out, and as we have indicated above, that the previous decisions of this court on the points discussed here were made without the court being directed to rule 15. Admittedly, the rule was cited by Mr Aggrey Teemba, learned advocate for the appellant, in *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd.* (4).

> We agree with Mr Teemba that the rule requires the Registrar or the Registrar of the High Court presented with a document to *"cause it to be lodged"*. We agree again that the clause *"cause it to be lodged"* does not mean that *the document has to be lodged by the Registrar himself or herself.* It is our considered opinion that rule 15 is a general rule for lodging any document. However, as for the lodging of a Notice of Appeal , there is a specific rule, that is, rule 76. Sub-rule (1) provides as follows.
>
> The rule provides a specific requirement of lodging a notice with the Registrar of the High Court. A document is said to have been lodged when it has been paid for and endorsed. The endorsement, from the clear words of this sub-rule, has to be done by the Registrar of the High Court, which expression, per rule 2(1), includes, "a district and a deputy registrar of that court". There is no room for any one else to sign [emphasis supplied].

This court made an oversight in treating rule 15 as imposing a duty on the Registrar to "cause" a document "to be lodged". Rule 15 requires the Registrar to "cause" a document "to be endorsed". That oversight caused this court to come to the conclusion it did and continued the mixing up of the lodging function of the appellant with the endorsement role of the Registrar and treating them as one and the same thing.

We, therefore, dismiss the preliminary objection with costs.

NATIONAL BANK OF COMMERCE LTD *v.* EMPIRE ULANDA LTD AND DAN O'BAMBE IKO

HIGH COURT OF TANZANIA
(*Commercial Divison*)
AT DAR ES SALAAM
(Kimaro, J)

COMMERCIAL CASE No. 260 OF 2002

Banking – Banking facility – Loan advanced to the first defendant secured by a guarantee and a mortgage, both executed by the second defendant – Second defendant denies the extent of the loan he guaranteed and executed a mortgage for – Whether the second defendant is liable..

Banking – Banking facility – Second defendant is shareholder and Managing Director of first defendant who is given a loan by the Plaintiff – The second defendant, also an employee of the Plaintiff blames the Plaintiff for acting negligently and unprofessionally in disbursing loan to the first defendant – Whether the blames by the second defendant are sustainable in law.

The second defendant is a shareholder and Managing Director of the first defendant. He was also an employee of the plaintiff until 1995 when he was retrenched. At the time of retrenchment he was a Resident Director of the plaintiff at Arusha. It was averred by the plaintiff that the second defendant secured an overdraft facility of TZS. 6 000 000 which the plaintiff granted to the first defendant. There was a default in repayment of the facility. The Plaintiff claimed from both defendants jointly and severally TZS. 49 171 702 being the principal amount and accrued interest. The second defendant admitted being a guarantor and mortgagor to the banking facility granted to the first defendant but denied the extent of the loan he guaranteed and secured. He blamed the plaintiff for acting negligently and unprofessionally in disbursing the loan to the first defendant before the mortgage was up-stamped.

Held: (i) Considering the position held by the second defendant in the plaintiff when the facility was granted to the first defendant, the second defendant must be held liable by his own submission as it is a demonstration of negligence of highest degree on his side;

(ii) Instead of exercising diligence in performance of his duties for the benefit of the plaintiff, the second defendant abused his powers by his involvement in the first defendant to his advantage and to the disadvantage of the plaintiff;

(iii) Since the second defendant stood as guarantor and executed a legal mortgage over his property for the loan, he cannot be heard to complain over the loss he is to suffer on account of the first Defendant's failure to repay the loan; he is liable to the extent which the first defendant is liable.

Judgment for the plaintiff

Cases referred to:

(1) *Vidyrthi v. Ram Rakha* [1957] EA 527

(2) *Hotel Pan Africa Ltd v. N.B.C.*, High Court, Civil Case Number 52 of 2002 (unreported)

Statutory provisions referred to:

(1) Banking and Financial Institutions Act 1991, section 37

(2) Land Act 1999, section 119(2), (4) and (5)

(3) Evidence Act 1967, section 112

Mr Mtafya, for the Plaintiff

JUDGMENT

(Delivered 26 February 2004)

Kimaro, J.: The second defendant in this case is a shareholder and a Managing Director of the first defendant. He holds 40 shares in the first defendant. There are two other shareholders, his spouse and one Willy Maneno. The second defendant was an employee of the plaintiff until 1995 when he left the employment by retrenchment. At the time of his retrenchment, he was a Resident Director of Arusha.

The pleadings and the evidence in court show that the plaintiff granted a banking facility to the first defendant. The banking facility was secured by the second defendant in two capacities; one as a guarantor and the second as a mortgagor.

The parties are now at variance on the extent of the facility which the second defendant secured. It is the only main issue in this case. The plaintiff averred that the second defendant secured an overdraft facility of TZS. 6 000 000 which the plaintiff granted to the first defendant. (Paragraphs 6, 8 and 9 of the plaint refer). There is a default in repayment of the facility. The plaintiff is now claiming from both defendants jointly and severally TZS. 49 171 702; TZS. 6 011 718 being the principal amount and TZS. 43 159 984 being the accrued interest.

The second defendant on the other hand admitted being a guarantor and mortgagor to the banking facility granted to the first defendant. However, he claimed that the extent of the loan he guaranteed and

secured was TZS. 2 000 000 only. He denied being jointly and severally responsible for repayment of TZS. 49 171 702. He also denied guaranteeing and securing by a mortgage the overdraft facility of TZS. 6 000 000 which the plaintiff claimed to have granted to the first defendant on 22 September, 1995. (paragraph 3, 5 and 6 of the written statement of defence of the second defendant).

Mr Micah Mrindoko, the only witness for the plaintiff testified that the second defendant guaranteed TZS. 12 000 000 together with interest and costs. In addition, he executed a mortgage in respect of his property with Right of Occupancy Title Number 6415 on Plot Number 37. Block G. Tarime Urban Area as security for the credit facility. The Mortgage Deed was tendered and admitted in court as Exhibit P2. The letter of offer which the plaintiff claimed to have granted the first defendant an overdraft facility of TZS. 6 000 000 was tendered and admitted in court as Exhibit P1. The Demand Notice issued to the second defendant was admitted as Exhibit P4.

The defendant's testimony was that although he signed the guarantee for TZS. 12 000 000 to guarantee the loan which was granted to the first defendant, it was rejected by the bank because it was not a security as it had no tangible security. According to him, it only stood as a temporary security while the mortgage was in the registration process. It was after the bank received the mortgage (after registration) that the loan was granted to the first defendant. The second defendant's further evidence was that he offered security to the bank for only TZS. 2 000 000 which is witnessed by the Mortgage Deed itself, the last page, the stamp showing the amount of stamp duty paid. He denied joint responsibility with the first defendant on the amount of TZS. 6 000 000 which the plaintiff claimed to have loaned the first defendant. His contention was that the amount of TZS. 6 000 000 was unlawfully granted to the first defendant because the Mortgage Deed was not even upstamped to cover the amount of TZS. 6 000 000. The second defendant challenged the validity of Exhibit P1 arguing that it does not contain acknowledgment of receipt of the loan by the first defendant. He prayed for the dismissal of the suit.

In his final submissions the second defendant said that this court did not receive any documentary proof that the first defendant is indebted to the plaintiff and therefore there is no cause of action. Let me comment outrightly that this submission by the second defendant is a misconception. He did not plead this in his written statement of defence and nor was the matter addressed by the court at all. Final submission must be confined to pleadings and the evidence. The case of *Vidyrthy v. Ram Rakha* (1) is an authority on this point. The court held that evidence and arguments should be confined to the pleadings. Moreover, judgment against that first defendant has already been pronounced. The judgment against the first defendant was pronounced after the first defendant defaulted appearance. This happened, much as the second defendant who is a shareholder and Managing Director of the first defendant was always appearing in court but refrained from representing the first defendant.

The second defendant repeatedly said he only guaranteed a loan of TZS. 2 000 000 million in 1994 and not TZS. 6 000 000 which the plaintiff granted the first defendant in 1995. He blamed the plaintiff for negligence in disbursing the loan to the first defendant before the mortgage was up-stamped. He argued that the plaintiff acted fraudulently and unilaterally and violated the agreement in existence between the plaintiff and the second defendant. His observation was that this should be a sufficient reason to relieve him of any encumbrances arising from the legal mortgage. He said:

> The unilateral action taken by the plaintiff (NBC) as a mortgagee to upstamp the respective deed of mortgage as he insists in his letter to second defendant dated 23 May 2002 in order to secure additional debts to the first defendant is void and fraudulent. I was neither consulted nor gave my consent to further or increased upstamping on the Deed of Mortgage. Common sense and law demand that since I was consulted and consented to the loan facility by NBC not exceeding TZS. 2.0 million only to the first defendant, I should have been equally consulted again and give consent to any subsequent loan increases to the first defendant if at all the Plaintiff intended to make me a party to the enhanced liability of the first defendant.

It was further submitted by the second defendant that the action taken by the plaintiff to vary the Mortgage Deed contravened section 119 of the Land Act 1999, sub-sections (2), (4) and (5).

He said in law and practice of banking, the real security is not the land and the fixtures but it is the stability of the business itself. A prudent banker will determine at any point in time whether the customer's borrowing account is being conducted properly or not. In case a banker senses a misdirection by the borrower, immediate steps to protect its position and others should be taken. The second defendant accused the plaintiff for acting unprofessionally when it encumbered the second defendant's legal mortgage with facility approval of TZS. 6.0 million instead of limiting itself to TZS. 2.0 million. The court was referred to the rule in *Clayton's Case* 1816 where the presiding judge Sir W. Grant said that:

> In the case of a running or current account, provided that there has been no specific appropriation by the debtors or the creditor then the law appropriates the payment and according to the law it is the first item on debit side that is discharged or reduced by the first item on the credit side. In other words, it is the sum first paid in that is first paid out.

His views were that the normal practice which is also found in the International Code of Banking Practice is that every borrower is required by law to accept a letter of offer of any banking facility offered to him by signing the duplicate copy to signify his acceptance to the conditions therein before any disbursements are made to him by the Bank. Failure to accept implies refusal and invalidates the offer.

He also said that even if the offer of TZS. 6.0 million had been accepted, the same was bad in law because an approval of unsecured overdraft of TZS. 6.0 million was illegal and beyond lending authority of the plaintiff because it was prohibited by the Banking and Financial Institutions Act 1991, section 37.

The second defendant submitted further that the plaintiff acted negligently against its own conditions in the letter of offer. That in

turn resulted in placing the second defendant in a situation described as follows:

He is trapped in now, on his hard earned property.

It is the second defendant's contention that the plaintiff failed to supervise the carrying out of the conditions stipulated in the letter of offer; e.g. quarterly inspection over the first defendant's business, allowing the first defendant to continue borrowing without restrictions and allowing the first defendant to utilize fully the overdraft of TZS. 6.0 million before upstamping of the Deed of Mortgage. He prayed that the plaintiffs suit be dismissed with costs.

Mr Mtafya in his submissions requested the court to consider the respective positions occupied by the second defendant in the plaintiff before retrenchment as well as the first defendant. He said the evidence on record proves that the second defendant guaranteed repayment of TZS. 12 000 000 plus interest and costs. The Mortgage Deed (Exhibit P2) executed by the second defendant in favour of the plaintiff for the security of the loan granted to the first defendant, does not spell anywhere that it was to cover only TZS. 2 000 000. According to Mr Mrindoko (PW1) the mortgage covered all the amounts of money that would be due to and payable to the plaintiff on the amount of the overdraft facility that was granted to the first defendant.

Regarding the second defendant's claim that he guaranteed only TZS. 2 000 000 and not TZS. 6 000 000 and his reliance on the Clayton's rule and section 119 of the Land Act 1999, Mr Mtafya cited section 112 of the Evidence Act 1967 arguing that the burden was on him to prove this version but he did not do so.

As regards whether the facility was supported by a security which was tangible or not, Mr Mtafya observed that it was not necessary for the facility to be supported by any security for it to become a banking facility. What was important was proof of grant of the facility and default in repayment which will enable the lender to exercise the right to sue and get appropriate remedy. He said the provisions of the Banking and Financial Institutions Act 1991 relied upon by

the second defendant are not applicable and that the section was deleted by Act Number 6 of 2003 which is indeed what took place. It was Mr Mtafya's contention that the validity of the facility could only be challenged by the first defendant but the second defendant who was its Managing Director remained silent giving way to a default judgment being entered against the first defendant. That the chapter having been closed, it is not appropriate for the second defendant to reopen the same.

As regards the position occupied by the second defendant in the first defendant, Mr Mtafya said it was one which enabled him to have full knowledge of all the transactions that took place between the first defendant and the plaintiff either expressly of by implication. He cannot now deny liability. He has to suffer the consequences. He cited the case of *Hotel Pan Africa Ltd v. NBC* (2) (unreported) where this court held that it is important for the borrowers to repay the loans, otherwise they will have to suffer the consequences.

The remarks by this court are that the closing submission by the second defendant is a reflection of the seriousness which he has taken to deny liability. He had made very good submissions, blaming the plaintiff for negligence and exonerated himself from liability. If the second defendant's position in the plaintiff when the first defendant was granted the loan, was not relevant here, his arguments would be classified as first class demonstration of the negligence displayed by the plaintiff.

However, considering the position held by him in the plaintiff when the facility was granted to the first defendant, he must be held liable by his own submission as it is a demonstration of negligence of highest degree on his side. He was a Resident Director who was supposed to ensure that due diligence was exercised in performance of his duties. Instead of exercising that diligence in performance of his duties for the benefit of the plaintiff, he abused his powers by his involvement in the first defendant to his advantage and at a disadvantage of the plaintiff.

As a Resident Director of the plaintiff, he was supposed to ensure that he did all that which he is blaming the plaintiff for not doing. It is ridiculous for him to point an accusing figure at the plaintiff at this time. He was the one who was entrusted to act for the plaintiff at that very time. So he is accusing himself. What the second defendant did was to take advantage of his position as a Resident Director at his benefit for creation of the first defendant. He then used the first defendant to get a loan from the plaintiff and using his position, he never cared to ensure that protective measures which would safeguard the plaintiff from suffering loss were taken. Since he stood as a guarantor and executed a legal mortgage in respect of his property, he cannot be heard to complain over the loss he is going to suffer now because of the first defendant's failure to repay the loan. As its Managing Director, he had to be on the forefront to ensure that the first defendant fulfilled its obligation under exhibit P1. The first defendant was granted a loan which had to be repaid.

The plaintiff's pleadings and evidence, particularly documentary evidence show that the loan which was granted to the first defendant (Exhibit P1) was TZS. 6 000 000 and not TZS. 2 000 000. The second defendant gave a personal guarantee of TZS. 12 000 000 (Exhibit P3). The Mortgage Deed (Exhibit P2) does not show that it was only TZS. 2 000 000 which was secured as the second defendant purported to show. It shows that what was secured was all moneys which may become due. The second defendant is liable to the extent of which the first defendant is liable. The court takes this particular position not only because of the documents which were tendered in court but also consideration has been given to the position held by the second defendant in the plaintiff. He was at an influential position where he could direct anything to be done. If he himself did not exercise diligence which he was supposed to, he cannot turn around and point an accusing figure on the plaintiff now. It is himself who should pay for not exercising due diligence at the time he was supposed to.

With the above exposure, this court makes a finding that the plaintiff proved its case on a balance of probabilities. I enter judgment for the plaintiff as prayed for in the plaint.

S.S. MAKORONGO *v.* SEVERINO CONSIGILIO

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Munuo and Nsekela, J.A.)

CIVIL APPEAL No. 6 OF 2003

(Appeal from the decision of the High Court of Tanzania at Dar es Salaam, Kalegeya, J., dated 19 July 1998 in Civil Appeal No. 105 of 1998)

Statute – Retrospective Effect – Statute is amended to take away right of appeal – Whether the amendment has effect on an appeal that was already pending – Section 5(2)(d) of the Appellate Jurisdiction Act 1979, as amended by Act Number 25 of 2002.

Appeal – Court of Appeal Rules – Notice of Appeal signed for and on behalf of the Registrar.

Whether the notice is valid – Rules 15 and 76 of the Tanzania Court of Appeal Rules 1979.

This was an appeal against the decision of the High Court, a decision which did not finally determine the matter. In this appeal to the Court of Appeal the issue was whether the appeal was competent in view of the amendment to section 5(2)(d) prohibiting appeals against preliminary of interlocutory decisions that do not render a case finally determined; the amendment prohibiting such appeals was made after the Notice of Appeal against the High Court decision had been lodged. Another issue concerned the validity of the Notice of Appeal signed not by the Registrar but signed for and on behalf of the Registrar.

Held: (i) An Act of Parliament should not be given restrospective construction unless the subject matter or the wording of the Act clearly indicates that intention;

(ii) The right to appeal which the appellant had at the time of instituting the appeal was not taken away by Act Number 25 of 2002 which was passed subsequently;

(iii) A Notice of Appeal not signed by the Registrar but signed "for the Registrar" is not invalid;

Orders accordingly

Cases referred to:

(1) *Municipality of Mombasa v. Nyali Ltd* [1963] EA 371

(2) *Yew Bon Tew v. Kendaraan Bas Mara* [1983] 1 AC 553

(3) *Garikapati Veeraya v. Subbiah Choudhry* AIR 1957 SC 540

(4) *Societe General de Surveillance S.A. v. VIP Engineering and Marketing Ltd,*[2004] T.L.R. 120

(5) *William Loitiame v. Asheri Naftali,* [2003] T.L.R.

(6) *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd,* Civil Appeal Number 8 of 2001 (unreported)

(7) *21st Century Food and Packaging Ltd v. Tanzania Sugar Producers Association and two others* [2005] T.L.R. 1

Statutory provisions referred to:

(1) Appellate Jurisdiction Act 1979, sections 5, 5(2)(d)

(2) Interpretation of Laws and General Clauses Act 1972 Chapter 1, sections 10(2), 14(c)

(3) Companies Ordinance, section 331

(4) Tanzania Court of Appeal Rules 1979, rules 15, 8391), 86 and 76

(5) Written Laws (Miscellaneous amendments) Act Number 25 of 2002

Mr El-Maamry, for the Respondent

RULING OF THE COURT

(Dated 11 March 2004)

Nsekela, J.A.: This is an appeal against the decision of Kalegeya, J. in Civil Appeal Number 105 of 1998. the court *suo moto* invited the parties to address the court on the effect on the appeal of section 5(2)(d) of the appellate Jurisdiction Act 1979 (the Act) as amended by the Written Laws (Miscellaneous Amendments) Act Number 25 of 2002 which now provides:

> No appeal or application for revision shall lie against or be made in respect of any preliminary or interlocutory decision or order of the High Court unless such decision or order has the effect of finally determining the criminal charge or suit.

The appellant, Mr S.S. Makorongo appeared in person and unrepresented. He did not have anything useful to contribute on this legal point. Mr El-Maamry, who advocated for the respondent, very briefly submitted that the decision of Kalegeya, J. did not finalize the suit and that no evidence had been adduced in the Lower Courts. As such the appeal before the court was premature in terms of section 5(2)(d) of the Act as amended by Act Number 25 of 2002.

The decision of the High Court (Kalegeya, J.) that is being appealed against was delivered on the 19 July 1999 and the appellant filed Notice of Appeal on the 26 July 1999. Act Number 25 of 2002 came into force on the 20 December 2002, the day it was published in the Gazette. In his decision, the learned judge concluded as under:

> The case to be heard and determined on merits before another Magistrate.

It is clear to us that the appeal before the learned judge was not finally determined and was remitted to the Lower Court to be determined on the merits. The question which now arises is, did the amendment to section 5(2)(d) of the Act cover this appeal? Put differently, did the amendment have retrospective effect? The amendment came into

force during the pendency of the appeal section 10(2) of the Interpretation of Laws and General Clauses Act 1972 Chapter 1 provides as follows:

> Subject to the provisions of subsection (1) every Act shall come into operation on the date of its publication in the Gazette or, if it is provided either in such Act or any other written law that it shall come into operation on some other date, on that date.

Act Number 25 of 2002 came into force on 20 December 2002. Before that date the appellant had a right to appeal against such decisions of the High Court and the appellant had indeed exercised that right by filing the Notice of Appeal on the 26 July 1999. This takes us to section 14(c) of Chapter 1 which provides:

> 14. Where an Act repeals any provision of another Act, then unless the contrary intention appears, the repeal shall not:
>
> (c) affect any right, privilege, obligation or liability acquired, accrued, or incurred under the provision so repealed.

The general rule of law is that unless there is a clear indication either from the subject matter or from the wording of an Act of Parliament, that Act should not be given a retrospective construction. In the case of *Municipality of Mombasa v. Nyali Ltd.* (1), Newbold, J.A., had this to say at page 374:

> Whether or not legislation operates retrospectively depends on the intention of the enacting body as manifested by legislation. In seeking to ascertain the intention behind the legislation the courts are guided by certain rules of construction. One of these rules is that if the legislation affects substantive rights it will not be construed to have retrospective operation unless a clear intention to that effect is manifested; whereas if it affects procedure only, *prima facie* it operates retrospectively unless there is good reason to the contrary. But in the last resort it is the intention behind the legislation which has to be ascertained and a rule of construction is only one of the factors to which regard must be had in order to ascertain that intention.

Some twenty years later, the Privy Council, speaking through Lord Brightman, in *Yew Bon Tew v. Kendaraan Bas Mara* (2) articulated this principle in the following terms, at page 558 F-G:

> Apart from the provisions of the interpretation statutes, there is at common law a *prima facie* rule of construction that a statute should not be interpreted retrospectively so as to impair an existing right or obligation unless that result is unavoidable on the language used. A statute is retrospective if it takes away or impairs a vested right acquired under existing laws, or creates a new obligation, or imposes a new duty, or attaches a new disability in regard to events already past. There is, however, said to be an exception in the case of a statute which is purely procedural, because no person has a vested right in any particular course of procedure, but only a right to prosecute or defend a suit according to the rules for the conduct of an action for the time being prescribed.

Appeals in civil proceedings to this court are governed by section 5 of the Appellate Jurisdiction Act 1979 and rules of court regulating appeals to the court are governed by the Tanzania Court of Appeal Rules 1979 made under the Act. The appellant's right to appeal was in existence at the passing of Act Number 25 of 2002. It was not an amendment to a course of procedure for this would have entailed an amendment to the Court Rules. It did not alter the form of procedure. The amendment affected the appellant's substantive right to appeal which was vested in him when he instituted the suit. The question for our consideration and determination is whether or not section 5(2)(d) of the Act, as amended by Act Number 25 of 2002 takes away the vested right of appeal which the appellant had at the time of the institution of the suit. This vested right of appeal can be taken away only by a subsequent enactment if it so provides expressly or by necessary intendment and not otherwise; see: *Garikapati Veeraya v. Subbiah Choudhry* (3), at page 553. If Parliament intended to bar appeals from decisions of the High Court that did not finally determine the suit, there was an opportunity to do so when enacting the now amended section 5(2)(d). By virtue of Act Number 10 of 1999, subsection 2(d) prohibited appeals against any preliminary

or interlocutory orders of the Commercial Division unless such decision or order had the effect of finally determining the suit; see; Civil Application Number 84 of 2000 between *SGS Societe Generale De Surveillance S.A. and VIP Engineering and Marketing Ltd.* (4). Second, Act Number 25 of 2002 has amended about sixteen (16) different laws including the Appellate Jurisdiction Act 1979. In the same Act however, section 331 of the Companies Ordinance has been amended so as to have retrospective effect. It provides as under:

> The amendment of subsection (3) shall be read as one with the Written Laws (Miscellaneous Amendments) Act 1998 and shall be deemed to have come into force on the 27 March 1998.

Act Number 25 of 2002 came into force on the 20 December 2002, but in the same Act the amendment to the Companies Ordinance has retrospective effect. This is a clear manifestation that the amendment to the Appellate Jurisdiction Act was not intended to have retrospective effect.

There is however another matter which has caused concern to us namely the validity of the Notice of Appeal which is to be found on page 132 of the record. In a number of cases decided by this Court including *William Loitiame v. Asheri Naftali* (5) and *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd.* (6), we have consistently held that a Notice of Appeal which has been signed on behalf of the Registrar of the High Court offends rule 76(6) and Form D of the first Schedule to the Court Rules and is, therefore, invalid. Recently, a panel of this court revisited this stand in *21st Century Food and Packing Ltd. v. Tanznaia Sugar Producers Association, The Minsitry of Finance and The Hon. Attorney General* (7), and after taking into account rule 15 of the Court Rules as well which had not previously been subjected to close scrutiny, concluded, *inter alia*, as follows:

> We find, therefore: One, rules 76 and 86 basically deal with how a Notice of Appeal and a memorandum of appeal, respectively, should be and what they should contain. Two, the lodging of a document is distinct from the endorsement of a document though the two are closely related. Three,

the lodging of a Notice of Appeal is dealt with rule 76(1) while that of a Memorandum of Appeal is the subject matter of rule 83(1). Four, the endorsement of documents that have been lodged under the respective rules is done under rule 15 by the Registrar or the Registrar of the High Court, as the case may be. So, any transgression against rule 15 is committed by those authorities and cannot be imputed on an advocate or an appellant.

We therefore, are of the considered opinion that we ought to depart, and we so do, from all the previous decisions treating notices of appeal or memoranda of appeal as invalid because they were not signed by the Registrar or the Registrar of the High Court under rules 76 and 86. We do so because, we believe, that had rule 15 been cited to them, our learned brothers would have decided as we hereby do.

Admittedly, the Notice of Appeal dated 26 July 1999 was signed "for Registrar," but as explained above, this does not invalidate the Notice of Appeal.

In the result, the appeal is properly before the court and should proceed on to hearing as soon as it is practicable. Costs to be in the cause.

ZUBERI BAKARI v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT TANGA

(Lubuva, Nsekela and Kaji, JJ.A.)

CRIMINAL APPEAL No. 109 OF 2003

(From the judgment of the High Court of Tanzania at Tanga, Longway, J., dated 14 April 2003, in Criminal Case No. 49 of 2001)

Criminal Law – Robbery with violence – Evidence of use or threat of actual use of violence to steal or retain stolen property is essential – Section 285 of the Penal Code.

Criminal Practice and Procedure – Conviction – Substitution of conviction – Charge of robbery with violence but evidence supports assault occasioning bodily harm and no theft – Power of court to substitute conviction for lesser offence.

On 4 February 2000 the complainant had gone to the shop of the appellant to purchase maize flour in the company of a friend. The complainant entered the shop and found the appellant in the shop which was lit by a hurricane lamp. The complainant had TZS. 25 000. As he took out the money the appellant cut him with a *sime* on the left hand as a result of which the complainant dropped the money and ran away. On being asked by his companion who had been standing outside why he was running the complainant replied that the appellant had wounded him. The matter was first reported to the chairman of the village but there was no mention of the money. Later it was reported to the police who arrested the accused and charged him with robbery with violence for which he was tried in the District Court but was convicted of armed robbery. He was sentenced to thirty years' imprisonment with corporal punishment. Aggrieved he appealed against both conviction and sentence to the High Court where he lost. He then appealed to the Court of Appeal on the ground that the ingredients of the offence of robbery had not been proved. The Senior State Attorney did not support the conviction stating that the evidence did not establish that the appellant stole the

money or any property of the complainant. The evidence supported a conviction of assault causing actual bodily harm.

Held: (i) To constitute the offence of robbery there must be evidence that violence was used for the purpose of taking the property or retaining it;

(ii) In the present case there was no evidence that any money had been stolen or taken by the appellant but only established that the appellant had assaulted the complainant.

Appeal allowed

Mr Mulokozi, for the Respondent

Cases referred to:

(1) *Leonard Raphael v. Republic,* Court of Appeal, Criminal Appeal Number 4 of 1992 (unreported)

(2) *Waziri Amani v. Republic* [1980] T.L.R. 250

(3) *Omari Masunguru and others v. Republic* [1970] HCD n. 213

Statutory provision referred to:

(1) Penal Code Chapter 16, sections 285, 286 and 241

JUDGMENT OF THE COURT

(Dated 23 March 2004)

Nsekela, J.A.: This is a second appeal by the appellant Zuberi Bakari. In the District Court of Lushoto District, the appellant was charged with the offence of robbery with violence contrary to sections 285 and 286 of the Penal Code but was convicted of armed robbery and was sentenced to thirty years imprisonment with corporal punishment. The appellant was aggrieved by both the conviction and sentence imposed upon him and appealed to the High Court where the appeal was dismissed in its entirety, hence the appeal to this court. Before us, the appellant appeared in person, unrepresented whereas Mr J. Mulokozi, learned Senior State Attorney appeared for the respondent Republic.

The appellant filed six grounds of appeal which can conveniently be grouped into two categories although they are closely related. In grounds of appeal 1, 5 and 6 the appellant is challenging both the lower court's findings that the ingredients of the offence of robbery had been proved beyond all reasonable doubt. The complaint in the remaining grounds of appeal is to the effect that there was no theft of TZS. 25 000 from PW1, Emmanuel s/o Faustin.

The appellant was the owner of a shop selling various commodities including maize flour. On the 4 February 2000, at about 7.30 pm., PW1, Emmanuel s/o Faustin, was sent by his father, PW4, to purchase maize flour from the appellant's shop. He was accompanied by Guga Mndolwa, PW2. PW1 alleged that he had with him TZS. 25 000 in bank notes. The appellant was in the shop which was lit by a hurricane lamp. PW2 stayed outside about five paces away while PW1 entered the shop. As PW1 was taking out the money, strangely enough, the appellant pounced on him and cut him on the left hand with a "sime". The money he had dropped to the ground and PW1 ran away. He was followed by PW2, who all this time was outside the shop. On being asked by PW2 as to why he was running away, PW1 replied that the appellant had wounded him. They proceeded on to report the matter to the village Chairman (PW3) and PW1's parents. PW1 then went to Soni dispensary where he received medical treatment as per exhibit P1. PW3, Amiri Hassani, confirmed in his evidence that PW1 accompanied by PW2 reported the incident to him on the 4 February 2000 at about 7.40 pm. He saw the cut wound and applied some kerosene oil to it.

The appellant in his defence did not say anything at all on the events that happened on the 4 February 2000. Instead he narrated what had happened to him on the 13 February 2000 which is of course irrelevant to this appeal. Equally, the appellant's wife, Sabitina w/o Zuberi could not recall any event happening at the shop on the 4 February 2000.

Mr Mulokozi, learned Senior Attorney, declined to support the conviction and sentence meted out to the appellant. He submitted that the evidence of PW1, PW2, PW3 and exhibit P1 indicated that PW1 had been wounded. The evidence did not establish that the appellant stole any money or property belonging to PW1. The learned Senior State Attorney was of the view that the available evidence supported a conviction for assault causing actual bodily harm.

It will be recalled that the charge laid against the appellant alleged robbery with violence contrary to sections 285 and 286 of the Penal Code. Section 285 provides as follows:

> 285. Any person who steals anything, and, at or immediately before or immediately after the time of stealing it, uses or threatens to use actual violence to any person or property in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained, is guilty of the felony termed "robbery".

Section 285 above gives the basic definition of the offence of robbery. The offence is not committed unless it is established that the appellant used or threatened to use any actual violence to obtain or retain the stolen property or to resist its being stolen or retained. This important element of the offence was underscored by this court *Leonard Raphael Richard Mohamed v. Republic* (1). There must be evidence that violence was used for the purpose of taking the property or retaining it. Unfortunately, both courts below did not address themselves to this vital ingredient of the offence. They concentrated on the question of the identification of the appellant, omitting in the process, to discuss whether or not the appellant stole TZS. 25 000 from PW1 by use of violence. The first appellate judge in the course of her considered judgment had this to say:

> As to linking the appellant with the offence charged, firstly it is the unfaulting identification of the appellant who had been observed to have been alone in the shop when PW1 entered the shop. Soon after the incidence the appellant was missing when he reappeared he exhibited worry...

> In all, I agree with the respondents argument that the conviction was supported by evidence and therefore properly entered for the offence of armed robbery.

On our part, we have no quarrel with the identification of the appellant as the culprit who injured PW1 that evening. There was ample evidence to justify that finding and the guidelines in *Waziri Amani v. R.* (2) T.L.R. 250 at page 252 were observed by the trial magistrate. Robbery is an aggravated form of theft or stealing and therefore the elements of theft must be present in order to make out a charge of robbery. PW1 testified that after the appellant had attacked him, the money dropped down and he ran away. PW2, who had accompanied PW1 to the shop followed him and asked him what had happened to him. In reply, PW1 did not say anything about the money he had having been stolen. When both of them reported the incident to PW3, the village chairman, there was no reference to any money being stolen during the incident. There is therefore a vital missing link of theft of TZS. 25 000 by the appellant– a necessary ingredient in the offence of robbery. The conviction was also unsatisfactory for another reason. To constitute the offence of robbery, there must be evidence that violence was used for the purpose of taking the property or retaining it. (See: *Omari s/o Masunguru and others v. R.* (3). Both the courts below did not examine this aspect. Needless to say, there is no such evidence on the record. There is however sufficient evidence that the appellant inflicted the injuries sustained by PW1 as shown in Exhibit P1, the medical examination report.

From our discussion of the evidence it is therefore apparent that the prosecution did not establish the offence with which the appellant was charged with, namely, robbery with violence. We are of the settled view that both the courts below erred in finding that such an offence was established beyond all reasonable doubt. It is our considered view that the offence which was proved was the letter offence of assault occasioning actual bodily harm.

We therefore allow the appeal and quash the conviction for armed robbery for which the appellant was ultimately convicted of and substitute thereof a conviction for the offence of assault occasioning actual bodily harm contrary to section 241 of the Penal Code. The sentence of thirty years imprisonment is quashed and set aside. The offence of assault occasioning actual bodily harm attracts a maximum sentence of five years imprisonment. The appellant was convicted by the District Court on the 20 June 2000 and by now he has served close to four years. We are of the view that this period is sufficient punishment for the offence he committed.

We therefore reduce the sentence to such term as will result to his immediate release unless otherwise held for some other lawful cause. The compensation order against him is also quashed and set aside.

SION GABRIEL JONES *v.* MINISTER OF HOME AFFAIRS AND TWO OTHERS

HIGH COURT OF TANZANIA
AT ARUSHA
(Shangwa, J)

MISCELLANEOS CIVIL CAUSE No. 13/2002

Constitutional Law – Basic Rights and Duties – Petition for enforcement of basic right – Petition against the Government – Whether Notice to Government is necessary before instituting Petition – Basic Rights and Duties Enforcement Act 1994 and section 6(2) of the Government Proceedings Act 1967.

In a petition brought under the Basic Rights and Duties Enforcement Act 1994, the respondents raised preliminary points of objection one of which was that the Petition

was bad in law as it contravened the provisions of section 6(2) of the Government Proceedings Act requiring the issuance of a ninety days' notice to the Government.

Held: There is no provision under the Basic Rights and Duties Enforcement Act 1994 which requires a petitioner to submit to the Government any notice before institution of the petition.

Objection dismissed

Statutory provisions referred to:

(1) Tanzania Court of Appeal Rules 1979, rules 15 and 76(6)

(2) Constitution of the United Republic of Tanzania, article 30(3)

(3) Basic Rights and Duties Enforcement Act 1994, sections 4 and 5

(4) Executive Agencies Act 1997, section 3(6)(b)

(5) Government Proceedings Act 1967, section 6(2)

Mr Merinyo, for the Petitioner

Mr Mzikila, for the Respondents

RULING

(Delivered 30 March 2004)

Shangwa, J.: This is preliminary objection raised by the first, second and third respondents against the petition filed by Sion Gabriel Jones in the matter of the Constitution of the United Republic of Tanzania 1977, as amended, and in the matter of the Basic Rights and Duties Enforcement Act 1994, and in the matter of the Tanzania Citizenship Act 1995 and in the matter of the Immigration Act 1995, read together with the Tanzania Citizenship Regulations 1997 (G.N. 658 of 26 September 1997) and the Immigration Regulations 1997 (G.N. 657 of 26 September 1997).

The respondent raised two grounds of objection involving two points of law. The first point is that the petition is bad in law as it

contravenes the provisions of section 6(2) of the Government Proceedings Act 1967, as amended by Act Number 30 of 1994. The second one is that the petitioner has no *locus* to sue on behalf of Clive Michael Jones.

In his written submission for the respondents, learned State Attorney, Mr Mzikila, submitted on the first point that before one sues the Government, he has to issue a notice of not less than ninety days. He referred the court to the provisions of section 6(2) of the Government Proceedings Act 1967, as amended by Act Number 30 of 1994, which provides as follows:

> No suit against the Government shall be instituted, and heard unless the claimant previously submits to the Government Minister, Department or Officer concerned a notice of not less than ninety days of his intention to sue the Government, and he shall send a copy of his claim to the Attorney General.

He contended that the petitioner was supposed to comply with the said provision before filing her suit. He stated that according to what is provided in a **Concise Law Dictionary** (5 ed), a suit is any legal proceeding of a civil kind brought by one person against another. He referred the court to Miscellaneous Civil Cause Number 81 of 2002, High Court of Tanzania, Dar es Salaam Main Registry (unreported).

On the second point Mr Mzikila submitted that the petitioner has no *locus standi* to sue on behalf of Clive Michael Jones and she has no cause of action against the respondents because the one who was refused a dependant's pass to stay with his family is Clive Michael Jones.

In his reply, learned counsel for the petitioner, Mr Merinyo, submitted on the first point that the State Attorney, for the respondents, misconceived the nature of the matter between the petitioner and the respondents. He contended that this matter is not a suit so as to be governed by the provisions of the Government Proceeding Act 1967, as amended, and those of the Civil Procedure Code 1966. He said it is a petition

brought under the Basic Rights and Duties Enforcement Act 1994 in which it is alleged that the petitioner's basic rights under the Constitution have been or are being or are in danger of being violated. Also he contended that had this been a suit, he would have presented a plaint instead of an application made by petition. On the second point, Mr Merinyo submitted that the reliefs sought in the petition are applied for by the petitioner on her own behalf and not on behalf of her husband, and that therefore she has *locus* to proceed against the respondents in search of her constitutional right of social equality between men and women.

In my considered view the petition brought by Sion Gabriel Jones wife of Clive Michael Jones is not bad in law. It is good in law. Sion Gabriel Jones who is the petitioner was not in law obliged to submit to a Government Minister, or any officer concerned, a Notice of Intention to file a petition in the High Court for the relief sought by her prior to filing the same. She was not so obliged because there is no provision under the Basic Rights and Duties Enforcement Act 1994 which requires a petitioner to submit to the Government Minister, Department or officer concerned, any notice before institution of the petition. A notice of this kind is required by law only where a person intends to file a suit against the Government in respect of any actionable civil wrong as stipulated under section 6(2) of the Government Proceedings Act 1967, as amended by Act Number 30 of 1994.

I agree with the learned State Attorney that the meaning of a suit as given in the **Concise Law Dictionary** (5 ed) is "any legal proceeding of a civil kind brought by one person against another" which meaning was quoted and followed by the late Kyando, J., in High Court, Dar es Salaam Main Registry, Miscellaneous Civil Cause Number 81 of 2002 (unreported) whereby he held that a civil proceeding by way of a petition is a suit. It is important to note, however, that the proceedings between the parties in that case were ordinary in nature. It is important to note also that the proceedings in that case were lodged as a petition under section 3(6)(b) of the Executive Agencies Act 1997 instead

of being lodged as a suit under the said Act. The proceedings in this case are special. They involve matters pertaining to basic legal rights which are alleged to have been contravened by the respondents and of whose redress the petitioner is seeking from this court. There is a special procedure under our law through which such redress can be sought from this court. It is not by way of institution of a suit by presentation of a plaint. It is by way of application made by petition as the law provides under sections 4 and 5 of the Basic Rights and Duties Enforcement Act 1994. An application made by petition is not a suit. So, there lies the distinction.

I am of the considered view that fetching and stretching the word petition to mean a suit in this particular case will lead into unwarrantable importation of the requirement of submitting a prior notice of intention to sue the Government laid down under section 6(2) of the Government Proceedings Act 1967 as amended by Act Number 30 of 1994, into the Basic Rights and Duties Enforcement Act 1994, wherein such a requirement is not provided for upon lodging a petition to the High Court for redress in cases where one's constitutional right or legal right under any law has, or is being, or is likely to be, contravened. I find therefore that the first point of preliminary objection raised by the respondents was indeed misconceived.

On the second point of preliminary objection, I am of the opinion that the petitioner has *locus standi* in the matter. She is not petitioning on behalf of her husband, Clive Michael Jones. She is petitioning on her own behalf as a Tanzanian woman who is married to a non citizen for enforcement of her basic right in the High Court, relying on article 30(3) of the Constitution of the United Republic of Tanzania 1977. Quoting from paragraph 13 of her petition, she is praying among other things for, "a declaration that the Citizenship Act Number 6 and Immigration Act Number 7 both of 1995 are unconstitutional so far as they segregate women's rights to have their husbands stay in the country depending on them as women do in case they are foreigners". From the above quotation, it can be found that the second point of preliminary objection raised by the respondents that the petitioner has no *locus standi* in the matter is as well misconceived. For these reasons, I hereby dismiss both points of preliminary objection with costs to be taxed in the main cause.

TANZANIA UNION OF INDUSTRIAL AND COMMERCIAL WORKERS (TUICO) at MBEYA CEMENT COMPANY LTD *v.* MBEYA CEMENT COMPANY LTD AND NATIONAL INSURANCE CORPORATION (T) LIMITED

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Massati, J.)

CIVIL CASE No. 315 OF 2000

Labour law – Suit instituted by a trade union branch of TUICO which is not a legal entity – Whether union branch has locus standi – Whether union branch can represent dead, retrenched or retired members.

Contract law – Privity of Contract – Action is based on trust deed – Whether plaintiff can sue on trust deed to which he is not a party – Whether trust rules applicable.

Arbitration – Parties agree to submit matter to arbitration – Whether court bound to refer matter to arbitration in case of dispute – Whether submission of a suit to arbitration can be taken and decided as a preliminary objection.

Civil Practice and Procedure – Written submissions – Annexures attached to written submissions – Whether documents constituting evidence of facts may be attached to written submissions.

The plaintiff, a branch of TUICO trade union at Mbeya Cement Company Ltd filed a suit against the defendants jointly for, among other reliefs, a specific performance of

a Trust Deed. The basis of the suit was the Trust Deed Rules and Regulations for Mbeya Cement Company Group Staff Endowment Assurance Scheme which was annexed to the plaint. Counsel for the defendants raised preliminary objections that the Plaintiff had no *locus standi* to institute the suit either for lack of legal status or based on the Trust Deed and that the suit was instituted prematurely since the matter was supposed to be referred to arbitration in the first instance. The preliminary objections were argued by way of written submissions.

Held: (i) It is now settled that a submission is a summary of arguments. It is not evidence and cannot be used to introduce evidence. In principle all annexures, except extracts of judicial decisions or textbooks, have been regarded as evidence of facts and, where there are such annexures to written submissions, they should be expunged from the submission and totally disregarded;

(ii) The point that the suit was prematurely instituted because it was not referred to arbitration is a matter sought in the exercise of judicial discretion and cannot properly be taken and decided as a preliminary objection;

(iii) Although the plaintiff union is capable of suing and being sued, it can only do so if the alleged wrongful acts were committed against it; it is for each of the individual employees to sue the defendants for their rights under the Trust Deed and Group Endowment Scheme;

(iv) The trade union TUICO, let alone branch of it, has no *locus standi* to sue on behalf of employees or ex-employees of Mbeya Cement Company Ltd for breach of or enforcement of the Trust Deed and Group Staff Endowment Scheme.

Suit dismissed

Cases referred to:

(1) *African Store Consumer Cooperative Society v. Said Lupinda*, Court of Appeal of Tanzania, Civil Appeal Number 16 of 1989 (unreported)

(2) *John M. Byombalirwa v. Agency Maritime International (T) Ltd* [1983] T.L.R 1

(3) *Tarlock Singh Nayar v. Sterling General Insurance Company Ltd* [1966] EA 44

(4) *Ballonzi v. Chama cha Mapinduzi* [1996] T.L.R 203

(5) *Merarji and Sons v. General Tyre E.A. Ltd* [1983] T.L.R 129

(6) *Christopher Gasper Rukizangabo and others v. Tanzania Harbours Authority*, High Court, Dar es Salaam Civil Case Number 209 of 1998 (unreported)

(7) *VETA v. Ghana Building Contractors,* High Court, Dar es Salaam, Civil Case Number 198 of 1995 (unreported)

(8) *M. Rutakyamura v. Peter Joseph* [1996] T.L.R 49

(9) *Mukisa Biscuit Manufacturing Company Ltd v. East End Distributors Ltd* [1969] EA 696

(10) *Fort Hall Bakery Supply Company v. Fredrick Mukai Wangope* [1959] EA 474

(11) *National Distributors Limited v. National Union of Tanganyika Workers* [1971] HCD 12

(12) *National Union of General and Municipal Workers v. Gillan and others* [1945] 2 All ER 593

(13) *British Motor Trade Association v. Salvadori and others* [1949] 1 All ER 208

(14) *National Union of Clerical Commercial and Technical Employees v. Drapers Ltd* [1969] EA 63

(15) *Robbey v. W.M. Croshil and Company Ltd* (1915) LJ KB 856

Statuttory provisions referred to

(1) Security of Employment Act 1964, Chapter 574 section 6(1)(a) – (h)

(2) Trade Unions Act 1998, section 51(1)

(3) Civil Procedure Code 1966, Order1, rule 5 and 10 and Order VII, rule 1, Second Schedule

(4) Arbitration Ordinance, section 6

(5) Law of Contract Ordinance Chapter 433 sections 2(1)(d) and 10

(6) Trade Union Act (Uganda), sections 13(d) and 51(1)

(7) Industrial Court of Tanzania Act 1967

Mr K.M. Nyangarika, for the Plaintiff

Dr Sinare and *Mr Mwandambo,* for the first Defendant

Mr Msemwa, for the second and third Defendants

RULING

(20 April 2004)

Massati, J.: Through the services of Mr K.M. Nyangarika, learned counsel, the Plaintiff, a Branch of TUICO Trade Union at Mbeya Cement Company Ltd, the first defendant herein, has filed a suit against the defendants jointly for, among other reliefs, a specific performance of the Trust Deed, for orders for the first defendant to contribute/pay to the second defendant a total sum of TZS. 365 625 835-10; and for contributions in favour of retrenched, retired and dead members, and for general damages, interests and costs. The basis of the suit is the Trust Deed, Rules and Regulations for Mbeya Cement Company Group Staff Endowment Assurance Scheme which is annexed as part of the plaint. By leave of the court the plaintiff was allowed to amend his plaint on 13 September 2001. Indeed a new suit was filed on 26 October 2001 as ordered. In the new suit the third defendant PSRC was added.

The first defendant employed the services of M/s Sinare, Shiyo and Mwandambo learned counsel. The second and third defendants engaged the services of M/s Msemwa and Company Advocates, learned counsel. In their written statements of defence, the defendants have raised some preliminary objections on points of law.

The first defendant has raised the following objections:

(a) That the plaintiff has no *locus standi*

(b) That the plaint does not disclose any cause of action known in law against the first defendant.

On the other hand, the second and third defendants have raised that:

(a) the plaintiff has no *locus standi* to sue the second and third defendants on the basis of the Trust Deed.

(b) the suit has been prematurely preferred against the defendants before the matter was referred to arbitration as provided in section 12 of the NIC Master Policy.

On 9 September 2002, Luanda, J. ordered that the preliminary objections be argued by way of written submissions. Fortunately, all the parties have filed their submissions. In his submission the first defendant argues that as a trade union branch of TUICO it is not a legal entity, it is not empowered nor is it capable of instituting the suit. A decision of the Tanzania Court of Appeal of *African Store Consumer Cooperative Society v. Said Lupinda* (1) was cited. And, in case, it is found that the plaintiff has a locus standi, it cannot represent dead, retrenched or retired members since they have ceased to be members.

On the second objection the first defendant submitted that the plaint does not disclose any cause of action against the first defendant. The decision of the Court of Appeal in *John M. Byombalirwa v. Agency Maritime International (T) Ltd* (2) T.L.R. 1 was cited to illustrate what a cause of action meant. It was submitted that since the cause of action was based on a Trust Deed of which the plaintiff could not sue on it, even if some of its members were paid out of the scheme in the past. Some passages from Sir P.C. Mogha **The Principles of Pleadings in India** (14 ed), were quoted to solidify counsel's arguments. On the premises, the first defendant prayed that the plaint be rejected and struck out or be dismissed for want of *locus standi.*

On the other hand, Mr Msemwa, learned counsel for the second and third defendants submitted that since the plaintiff's cause of action was based on the Trust Deed, and since the Plaintiff was not a party to the Deed, it was not privy to the contract, and so had no *locus standi* to sue. A decision of *Tarlock Singh Nayar v. Sterling General Insurance Company Ltd* (3) was cited in support of an argument

that a stranger to a contract cannot sue on the contract. In his second objection, Mr Msemwa submitted that there is a clause in the NIC Master Policy and as the defendants are willing to submit to arbitration, the suit was instituted prematurely. It was therefore the learned counsel's humble prayers that either the suit be dismissed for want of jurisdiction or be stayed pending arbitration.

In reply, Mr Nyangarika learned counsel for the Plaintiff attacked the preliminary objections on the following grounds. He said the plaintiff has the necessary *locus standi* by virtue of the provisions of section 6(1)(a)-(h) of the Security of Employment Act Chapter 574, and paragraph 6.0 of the Voluntary Agreement between the plaintiff and the defendants, which was duly registered as an award by the Industrial Court on 18 August 2000. He attached a long list of documents to be part of his submission. He said claiming for members' benefits was part of the union's branch's functions as defined under section 6(1)(a)-(h) of Chapter 574. He said TUICO is a trade union, registered under the Trade Union Act Number 10 of 1998 and therefore it had legal capacity to commence the suit on behalf of its members. He submitted also that the Trust Deed was duly signed by the first defendant and the principal officers of TUICO. He said the question of the number of members who are dead or retrenched is a matter of evidence which has to be determined on a full trial not in a preliminary objection. He said since the Plaintiff is a party to the Trust Deed and the Voluntary Agreement duly registered it had the requisite *locus standi* to sue. To further clarify on the point of *locus standi*, the learned counsel cited the decision of this court in *Ballonzi v. Chama cha Mapinduzi* (4) and **Halsbury's Laws of England** (4 ed) paragraph 49 on page 52 that to establish *locus standi*, it was enough for a party to show that there is an interference with or a deprivation of a right of which the law takes cognizance.

Mr Nyangarika, learned counsel admits that to maintain an action on contract a person must be privy to the contract, but submits that TUICO was privy to the Trust Deed and Voluntary Agreement which was endorsed by the Industrial Court. He distinguished the *African*

Store case cited by the first defendant because the said case dealt with an unregistered company whereas here, the plaintiff is registered under the Trade Union Act 1998 and the powers derived under the Security of Employment Act 1964. He therefore said it was not true that the Plaintiff was non existent in law. He invited this court to invoke the doctrine of estoppel because no such arguments were raised at the Industrial Court.

Mr Nyangarika further argued that under rule 2 of the rules of the Assurance Scheme, the rules were also binding on the members and trustees, and the Plaintiff is representative of the workers.

Mr Nyangarika learned counsel reminded the court of its powers under Order 1, rule 10 of the Civil Procedure Code to add or delete parties as may be necessary. He cited **Sarkar's Law of Civil Procedure** Volume1 (9 ed) to illustrate the principle behind this rule.

Mr Nyangarika submitted that the amended plaint disclosed a cause of action in terms of Order VII, rule 1 of the CPC. He said, according to **Sarkar**, it was not necessary that every legal ground of challenge should be stated in the plaint. He called in aid the decision of *Merarji Hirji And Sons v. General Tyre E.A. Ltd* (5) to demonstrate that a contract could be implied by conduct of the parties. So could the parties in the present case. He therefore prayed that the first defendant's preliminary objections be dismissed with costs.

With regard to the second and third defendants' preliminary objections Mr Nyangarika, learned counsel essentially repeated his arguments on *locus standi*. He went on to submit that the Insurance Master Policy came into play when the accrued benefits under the scheme are computed for payment, and this was only possible if the first defendant had remitted the premiums. He reminded the court that under Order 1, rules 5 and 10 of the Civil Procedure Code 1966 it was not necessary that all parties should be interested in the same relief, and that the court had power to add or strike out the names of the parties who are not necessary. He said therefore the second and third defendants were necessary parties and were properly joined.

He submitted as in his argument against the first Defendant's objection that the plaintiff had the necessary *locus standi*. He even called to his aid the unreported decision of this court in *Christopher Gasper Rukizangabo and others v. Tanzania Harbours Authority* (6) where it was held in questions of redundancies the employees were entitled to claim damages for breach of contract. He also distinguished the case of *Tarlock Singh Nayar* cited by Mr Msemwa, Learned Counsel. He also submitted that the suit was instituted maturely and that this court had granted leave to sue the third defendant as a necessary party on 9 October 2001. At the end of the day Mr Nyangarika submitted that these objections too, be dismissed with costs as they are devoid of merit. This marked the end of counsels' submissions.

Before I embark on the preliminary objections, I will, however, have to make a few pertinent observations regarding the contents of Mr Nyangarika's written submission. Mr Nyangarika learned counsel, has attached numerous annexures to his submissions. It is now settled, that a submission is a summary of arguments. It is not evidence and cannot be used to introduce evidence. In principle all annexures, except extracts of judicial decisions or textbooks, have been regarded as evidence of facts. Their annexure to submissions has been condemned by several decisions of this court. (See: *Veta v. Ghana Building Contractors* (7); *M. Rutakyamura v. Peter Joseph* (8).

Those decisions have held that where there are such annextures, they have to be expunged from the submission and totally disregarded. I will do the same in respect to the annexures attached to Mr Nyagarika's written submissions. All the documents annexed to his submissions are accordingly expunged; and shall be ignored.

Gathering from the submissions of counsel there are in the main, I think three distinct preliminary objections. First it is argued that the Plaintiff has no *locus standi* in the suit. Second, that no cause of action is disclosed against the defendants. Third, that the suit has been instituted prematurely, before referring the dispute to arbitration contrary to the Arbitration Ordinance, and the second schedule to the Civil Procedure Code, 1966. I will begin with the third objection.

It is certainly true that where the parties have agreed to submit to an arbitration process, this court has power under section 6 of the Arbitration Ordinance to stay proceedings; and to refer the matter in difference to an arbitrator under the Second Schedule to the Civil Procedure Code 1966. But this power is not exercised until the court is moved by a party to the proceeding, and it is in the discretion of the court to grant the same. It is to be done in the exercise of a judicial discretion of the court to grant the same. In *Mukisa Biscuit Manufacturing Company Ltd v. East End Distributors Ltd* (9) at page 701, Newbold P. (as he then was) defined what is a preliminary objection:

> A preliminary objection is in the nature of what used to be a demurrer, it raises a pure point of law which is argued on the assumption that all the facts pleaded by the other side are correct. It cannot be raised if any fact has to be ascertained or if *what is sought is the exercise of judicial discretion.* [emphasis supplied]

The point that the suit was prematurely instituted because it was not referred to arbitration is in my view a matter which is sought in the exercise of judicial discretion. It cannot therefore properly be taken and decided as a preliminary objection. I will accordingly reject the same and dismiss it.

The next objections i.e. on the *locus standi* of the plaintiff and whether the plaint discloses a cause of action may, I think conveniently be disposed of together as they are interrelated. The argument on the *locus standi* of the Plaintiff is two pronged. The first is that it is not a legal person, and therefore not capable of suing or being sued. In support of that the decision of the Court of Appeal in *African Store Consumer Cooperative Society v. Said Lupinda* (1) where the Court of Appeal quoted with approval a passage from *Fort Hall Bakery Supply Company v. Fredrick Mukai Wangope* (10) was cited. I have had the advantage of reading the two cases. With respect I agree with Mr Nyangarika that those two cases related to unregistered bodies of persons and are thus distinguishable from the present case,

where the Plaintiff union is a registered body, under the Trade Union Act Number 10 of 1998. Under section 51(1) of the Act, it is provided:

> A registered trade union may sue, be sued and be prosecuted under its registered name.

Even before the enactment of the current Act the position was also the same under the repealed Trade Union Ordinance as illustrated in the decision of this court in *National Distributors Limited v. National Union of Tanganyika Workers* (11) HCD n. 12.

But to the question whether it can sue on behalf of its members, I will turn later. At this juncture it suffices, if I find as I hereby do that TUICO, as a registered trade union, on which assertion, I find no dispute, is a body that can legally sue or be sued on its own name. To me it matters little whether or not it is a branch.

The second prong on the question of the Plaintiff's *locus standi* is that since the action is based on the Trust Deed it cannot sue on it as it is not a party to it. Two cases were cited to marshall this argument; namely *John Byombalirwa v. Agency Marine International (Tanzania) Ltd* (2), which defines what a cause of action is; and *Tarlock Singh Nayar v. Sterling General Insurance Company Ltd* (3). I have also read the two decisions and I quite agree with what they hold and that they are the correct positions of the law.

In addition to the *Tarlock Singh Nayar* case I have also had the advantage of consulting **Chitty on Contracts – General Principles,(23 ed)** Volume I9 paragraph 978:

> The doctrine of privity means and means only that a stranger cannot acquire rights or incur obligations arising under the contract.

However according to the learned authors, there are exceptions, such as in trusts: At paragraph 984:

> It has long been established that where A makes a promise to B for the benefit of C, C enforce the promise, if B has constituted himself trustee for C ...

This equitable doctrine has, I think, found its way in section 2(1)(d) of the Law of Contract Ordinance Chapter 433 which reads:

> 2(1)(d) When, at the desire of the promises, the promisor or any other person has done or abstained from doing or does or abstains from doing something such act or abstinence or promise is called a consideration for the promise.

In terms of section 10 of the Contract Ordinance such agreements, in my view are enforceable at law.

In the present case, I have looked at the Trust Deed and Regulations for Mbeya Cement Company Group Staff Endowment Assurance Scheme, which is Annexture A of the original plaint, and is in the list of documents to be relied upon by the plaintiff in their Amended Plaint. I have no doubt that the Plaintiffs were not parties to the Trust Deed, which is between *Mbeya Cement Company Ltd* as the employer and

1. The Chairman, Mbeya Cement Company Ltd.
2. General Manager, Mbeya Cement Company Ltd as the trustees.

Going by the illustration given in **Chitty on Contracts**; and section 2(1)(d) the beneficiaries who are employees of the first defendant (C) and trustees as B where the first defendant (Employer) is A, the employees can enforce the promise against A, since C has expressly constituted themselves as trustees for the employees. On the premises I would reject the argument that TUICO could not sue merely because it is a third party. I find and hold that as beneficiaries of the Trust Deed and Group Staff Endowment Scheme the employees could sue to enforce the provisions of the Trust Deed. I will therefore reject the decisions cited by learned counsel for the defendants as being of little relevance to the situation at hand.

Having so held, the next question is, could TUICO sue on behalf of the employees as presented in the present case? To that question, I will now turn.

As I held a registered trade union is capable of suing and being sued on its own name. In *National Union of General and Municipal Workers v. Gillan and others* (12), it was held that a trade union duly registered under the Act, was a lawful body entitled to sue in actions affecting its functions and business as a trade union, in tort. This was followed in *British Motor Trade Association v. Salvadory and others* (13). The two cases were quoted with approval and followed in an Ugandan case of *National Union of Clerical Commercial and Technical Employees v. Drapers Ltd* (14) where Sheridan, J. had occasion to comment on section 13(d) of the Uganda, Trade Union Act, which is in *parimeteria* with section 51(1) of the Trade Union Act Number 10 of 1998; The head note reads:

Held: (i) In principle a Trade Union may sue in its own name for wrongful acts against itself;

(ii) The plaintiff Union had no cause of action on behalf of the employees whether members of the Union or otherwise.

I think, I entirely agree with the above holding, which in effect, is that although the plaintiff union is capable of suing and being sued, it can only do so if the alleged wrongful acts were committed against it. It is for each of the individual employees to sue the defendants for their rights under the Trust Deed and Group Staff Endownment Scheme.

Mr Nyangarika learned counsel referred to the provisions of section 61(a)-(h), of the Security of Employment Act 1964. With due respect I do not see any provision there which expressly empowers a trade union to represent its members in court in a case like the present one. The powers of a trade union to negotiate and sign a voluntary agreement is governed by the Tanzania Industrial Court Act 1967 as amended. It is therefore quite true that as a result of negotiations a Voluntary Agreement may have been reached and the same registered as an award by the Industrial Court. But the fact that the award was registered by the Industrial Court does not give the Trade Union *locus standi* or the right to sue on behalf of its members to enforce

the award. I quite agree with Sheridan J., in the *National Union of Clericals v. Drapers Ltd* that the Trade Union cannot take it upon itself to enforce, an award. On page 66, the learned judge observed:

> In *Robbey v. W.M. Croshil and Company Ltd* (15) It was held that a workman's trade union is entitled to assist him in taking proceedings under the Workman's Compensation Act, 1906, but it may not take proceedings in his name...
>
> This does not detract from the union's right to represent its members in negotiations and in the Industrial Court.

For the foregoing reason, I will hold and find that the Trade Union (TUICO) has (let alone as a branch) no *locus standi* to sue on behalf of employees or ex employees of Mbeya Cement Company Ltd for breach of or enforcement of the Trust Deed and Group Staff Endowment Scheme. The suit is accordingly dismissed with costs.

KEVIN HAULE *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT MBEYA

(Ramadhani, Nsekela and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 44 OF 2004

(From the decision of the High Court of Tanzania at Mbinga, Manento, J., dated 6 November 2003, in Criminal Sessions Case No. 41 of 2002)

Criminal Law – Murder – Defence of provocation – Killing occurring in a quarrel following rude and abusive utterances by the deceased – Whether the accused may be convicted of murder – Section 202 of the Penal Code Chapter 16.

Criminal Practice and Procedure – Conviction – Conviction for Murder – Appellant killed the deceased in reaction to rude utterances by the deceased – Whether the court may convict of murder without requiring the assessors to make a finding whether the words uttered were provocative.

The appellant had been hospitalized for more than two months and upon his discharge he went home to his wife and his daughter, and found four chicken which he had not left there at home when he left for hospitalization. He asked his wife, the deceased, where the birds had come from. The deceased gave a rude reply, and the two quarreled; the deceased asked the appellant if he inquired about everything he ate at home. It was after that utterance that the appellant picked up a piece of wood and struck the deceased on the head with it, causing her death.

Held: (i) Once the judge decided to sum up the evidence to the assessors he then had to charge the assessors with the duty to make finding whether the words uttered by the deceased were provocative to an ordinary person of the community to which the accused belonged;

(ii) Killing on provocation is murder which is reduced to manslaughter because of provocation;

(iii) The appellant killed on provocation and thus could not be convicted of murder;

Appellant convicted of manslaughter

Cases referred to:

(1) *Richard Venance Tarimo v. R* [1993] T.L.R. 142

(2) *Hatibu Gandhi and others v.R* [1996] T.L.R. 12

(3) *Moses Michael alias Tall v. R* [1994] T.L.R. 195

(4) *Herman Nyingo v. R* [1995] T.L.R. 178

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections 201, 202

(2) Criminal Procedure Act 1985, sections 283, 283(1) 298

Mr V. Mkumbe, for the Appellant

Mr Manyanda, for the Republic

JUDGMENT OF THE COURT

(Dated 02 May 2004)

Ramadhani, J.A.: The appellant had been hospitalized for more than two months and upon his discharge he went home where he found his wife, Gerwalda d/o Joseph Henjewele, the deceased, and his daughter Felista Kevin Haule (PW3). The appellant saw four chicken which he had not left behind when he went to hospital and so he asked the deceased where the birds had come from. The deceased replied "rudely", according to the investigator DC Michael (PW2). Their daughter, PW3, the only eyewitness, said that after that enquiry by the appellant. "They quarreled, father and mother. They were abusing each other". The appellant himself said "... and she asked me if I could ask for everything I ate at home".

It was after that altercation that the appellant picked up a piece of wood measuring 75cm long by 20 cm diameter, according to the investigator, PW2, and struck the deceased on the head.

That story satisfied the learned trial judge who found the appellant guilty of murder as charged and sentenced him to death. The appellant is aggrieved and hence this appeal in which he was represented by Mr V. Mkumbe, learned counsel, and the respondent/Republic was advocated for by Mr Manyanda, learned State Attorney.

Mr Mkumbe presented a sole ground of appeal: "In the circumstances of this case, the appellant should have been convicted of manslaughter and not of murder". The learned advocate pointed out that the sole eyewitness, PW3, said that "They were abusing each other" and that the investigator, PW2, said that he was told by the appellant that there was an exchange of harsh words. The learned advocate said that these harsh words or abuses were not mentioned in court. He pointed out further that words could be provocative as was decided by this court in *Richard Venance Tarimo v. R* (1). He asked us to find that there was provocation.

In reply Mr Manyanda submitted that there was no provocation. He submitted that the only words spoken were those which the appellant himself said that the deceased asked him why he did not ask about everything he ate at home. The learned State Attorney went further to point out that PW2 merely repeated what he was told by the appellant himself.

The only issue here is whether or not there was provocation. But first of all what is provocation in law?

Section 202 of the Penal Code (Chapter 16) provides:

> 202. The "term provocation" means and includes, except as hereinafter stated, any wrongful act or insult of such a nature as to be likely, when done to an ordinary person, or in the presence of an ordinary person to another person who is under his immediate care, or to whom he stands in conjugal, parental, filial or fraternal relation, or in the relation of master or servant, to deprive him of the power of self-control and to induce him to commit an assault of the kind which the person charged committed upon the person by whom the act or insult is done or offered.
>
> When such an act or insult is done or offered by one person to another, or in the presence of another to a person who is under the immediate care of that other, or to whom the latter stands in any such relation as aforesaid, the former is said to give the latter provocation for an assault.

In this case there were utterances which the appellant claims to have provoked him. As already said, we have two versions: one, of the daughter, PW3, which does not say much but that her parents abused each other. Then we have the account of the appellant that after he had asked the deceased where she got the four chicken, the deceased retorted whether he, the appellant, that is, had always asked where the food he ate came from. This reply is what made the appellant lose his self-control and hit the deceased. Was such a reply an insult under section 202 quoted above?

According to **Oxford Advanced Learner's Dictionary,** (6 ed), 2000, an "insult" is "a remark or an action that is said or done in order to offend somebody". If that is so, then we have no difficulty to consider as "insults" under the provisions of section 202 the so called "harsh words" or "abuses". The question is if the insults are of such a nature likely to deprive the appellant the power of self-control and to induce him to commit such assault on the deceased? In short, were the insults provocative?

The litmus test of whether or not an insult was provocative, according to section 202, is the ordinary person who is defined as follows:

> For the purposes of this section the expression "an ordinary person" shall mean an ordinary person of the community to which the accused belongs.

What an ordinary person of the community of the appellant would or would not do is the province of the assessors. So, that question had to be put to the assessors for a specific determination. Was that done in this case? We are aware of what this court said in *Hatibu Gandhi and others v. R* (2):

> The word 'may' in section 283(1) of the Criminal Procedure Code (now section 298(1) of the Criminal Procedure Act 1985) is unambiguous and crystal clear; and thus the trial judge's summing of the case to his assessors is not mandatory, but is prudent as a matter of practice.

It is our opinion that, apart from summing up being prudent, once the learned judge has decided to sum up then it should be thorough. In the present case the learned judge summed up as follows in relevant places:

> ...The accused said that he was provoked by the sight of 4 chicken... Having previous knowledge that his late wife had sexual affairs with one Beatus he reasonably believed that those 4 chicken might have been given to the deceased by the said Beatus. Besides that he was more angered by the reply of the deceased when asked as to where the chicken were from and the answer he got that "you have been eating many other things without asking where they came from, why today ask about the chicken"....

Likewise, the learned counsel for the accused have submitted that this court should admit the defence of provocation so that it could find the accused guilty of a lesser offence that is manslaughter and not murder...

It is now your duty to give me your independent opinion, as to whether you believe from the evidence that the accused maliciously killed the deceased or it was by bad luck as he said, so that he is found guilty of manslaughter...

From the summing up it does not appear to us that the assessors were told what constitutes provocation in law as provided by section 202 of the Penal Code. Again the last paragraph did not charge the assessors with the specific duty of making a finding of whether or not there was provocation, that is, whether that reply by the deceased would have made an ordinary person in the community to lose his self-control and do what the appellant did. Then, the directive of the learned judge that the assessors were to make a finding of whether the appellant killed "by bad luck as he said", was, in our opinion, misleading.

The misdirection is clearly manifested, for example, in the muddled opinion of the first assessor, Ms Akwinatha Hyera:

My Lord, from the evidence, there is no dispute as to the death of the deceased. The accused, by bad luck, he was hospitalized for over 2 months and might have been affected by the drugs, he got at the hospital, on being angered, he could without reasoning cause the death of deceased. Finally, I leave it to the court for its decision.

The assessor talks of "being angered", did she find that there was legal provocation and if so, what decision was she leaving to the court to make? The second assessor, on the other hand, considered the presence of the chicken and he then said "[the appellant] should not have taken the club and beat his wife, he was to refer the matter to the authority". Is that the same as saying that there was no provocation? It would appear that the learned trial judge took it to mean so when he said:

I agree with the opinion of the gentleman assessor that these words spoken by the deceased could not amount into provocation, but were fair comments by the deceased.

If the words spoken by the deceased "were fair comments", as the learned judge understood the gentleman assessor to have said, we ask: Why did the gentleman assessor find it necessary for the appellant "to refer the matter to the authority"? Why do you refer a fair comment to authorities?

Besides that the learned judge did not at all discuss the opinion of the first assessor who, as we have said, found that the appellant was "angered".

It is our opinion that had the learned judge properly addressed the assessors on what is provocation and then charged them specifically to make a finding of whether or not there was provocation, the assessors would have come out more clearly. It is clear to us that there was a great probability that the appellant was provoked from the evidence of PW3 that her parents quarreled and abused each other and from what the appellant said that the deceased answered him. So, we find that there was provocation.

Mr Manyanda referred us to the decision of this court in *Moses Michael alias Tall v. R* (3) where it was said that malice aforethought may be inferred from the amount of force which an offender employs in inflicting fatal injury. He used that decision as authority for his contention that because of the weapon used by the appellant, the number of times he used it and the fact that he struck the head, the most vulnerable part of the body, then, even if there was provocation, the appellant used excessive force and, so it was murder.

What this court said in *Moses Michael* is valid. In fact malice aforethought can be inferred not only from the amount of force used but also from the weapon used, and the vulnerability of the part of the body attacked. However, those factors do not negate the defence of provocation. We said so in *Herman Nyingo v. Republic* (4):

Normally the defence of provocation is available in circumstances which would otherwise constitute murder except for the sudden loss of control of oneself as a result of some act which provokes the accused person.

We may add here that by definition killing on provocation is murder which is reduced to manslaughter because of provocation. Section 201 provides:

> 201 When a person who unlawfully kills another under circumstances which, *but for the provisions of this section would constitute murder,* does the act which causes death in the heat of passion caused by the sudden provocation as hereinafter defined, and before there is time for his passion to cool, he is guilty of manslaughter only. [emphasis supplied]

We can put it in mathematical terms that: killing on provocation is manslaughter and is equal to murder plus provocation.

We find that the appellant killed on provocation and we, therefore, convict him of manslaughter. Taking into account the time he has already spent in custody, it is our opinion that a sentence of a term of imprisonment for five years will meet the justice of the case. It is so ordered.

SHEIKH AHMED SAID *v.* THE REGISTERED TRUSTEES OF MANYEMA MASJID

COURT OF APPEAL OF TANZANIA AT DODOMA

(Lubuva, Munuo and Kaji, JJ.A.)

CIVIL APPEAL No. 33 OF 2004

(From the decision of the High Court of Tanzania at Dodoma, Kileo J., dated 30 August 2000, in Civil Appeal No. 29 of 1999)

Trust – Powers of trustees – Masjid constructed and an imam employed and Committee selected to supervise affairs of the masjid – Committee suspends the imam – Trustees incorporated to take over functions of Committee before the fate of the imam is resolved – Whether trustees had power to take disciplinary measures against the imam for acts which took place before their incorporation.

Civil Practice and Procedure – Trial – Issues framed – Whether trial court must make a specific finding on each and every issue framed.

A masjid was constructed in Dodoma and its activities were supervised by a committee known as *Kamati ya Ujenzi*. The appellant was employed as *Imam* of *Masjid*. Trustees were later incorporated to replace the Kamati. This was after the Kamati had suspended the appellant. The trustees made a final decision regarding the fate of the appellant, namely, terminating his service. Next, the trustees instituted a suit against him in the District Court, probably to vindicate their action. Accepting the appellant's contention that the trustees had no power to terminate his service for acts committed prior to their incorporation, the District Court dismissed the suit. This decision was reversed by the High Court on appeal, the judge also faulting the trial court for failure to make a specific finding on one of the issues framed. The appellant then appealed to the Court of Appeal.

Held: (i) Where trustees are incorporated to supervise the affairs of a property, replacing an unincorporated body of persons, they have power to make decisions regarding the affairs of the property that were pending at the time of the incorporation:

(ii) It is necessary for a trial court to make a specific finding on each and every issue framed in a case, even where some of the issues cover the same aspect.

Appeal dismissed

Case referred to:

(1) *James B. Kumonywa v. Mara Co-operative Union (1984) Ltd and Attorney General*, Civil Appeal Number 22 of 1995 (unreported)

Statututory provision referred to:

(1) Constitution of Manyema, articles 7, and 7(a)

Mr Mpoki, for the Appellant

Mr Nyabiri, for the Respondent

JUDGEMENT OF THE COURT

(Dated 03 May 2004)

Lubuva, J.A.: This is an appeal from the decision of the High Court (Kileo, J.) in (DC) Civil Appeal Number 29 of 1999. The matter originated from the District Court of Dodoma where the respondents, the Registered Trustees of Manyema Masjid had filed a suit against the appellant, Sheikh Ahmed Said. The trial District Court dismissed the suit. Dissatisfied, the respondents successfully appealed to the High Court. The appellant has now come on appeal to this court.

The background of the matter is straightforward, it may be stated briefly as follows: From the documents laid before the court at the trial, it is not disputed that since, 1996, the appellant has been employed as an Imam at the Manyema Masjid. He has since been conducting prayers and other religious sermons at the Masjid for which it appears he was remunerated from money realized by way of collections "Sadak" from the worshipers, the details of which are, we think not necessary for the determination of the appeal.

It is also common ground that the respondents, the Registered Trustees of Manyema Masjid, were registered and incorporated on 6 February 1998. It is also apparent that prior to the incorporation of the respondents on 6 February 1998, there was a Committee, known as "Kamati ya Ujenzi" which was responsible for the construction of Manyema Masjid and other related activities.

From Exhibit P.7 and Exh. P.8, it is also apparent that the appellant's conduct discharging his functions as Imam of Manyema Masjid, was found to be unsatisfactory by the Committee. Consequently, by letter of 24 Novembe 1997, the appellant was warned by the Secretary of the Committee. Furthermore, the minutes of the meeting of the Committee members on 9 December 1997 also indicate grave concern shown on the appellant's conduct in managing the affairs of the Masjid.

It is also to be observed that the members of the Committee, that is Kamati ya Ujenzi, namely, Omari Selemani, Hassani Mlonja, Haruna Taratibu, Abdalla Yusuf, Abdalla Mkamba and Khatibu Kakungu, were, except for one or two, the Registered trustees of Manyema Masjid which, as stated earlier, was incorporated on 6 February 1998. Article 7(a) of the Constitution of Manyema Masjid provides for the responsibilities of the Trustees. It is clearly stated under paragraph (a) of article 7 that the trustees shall, collectively or individually, be responsible for planning and coordinating the daily activities of the Masjid. It would appear that as the conduct of the appellant regarding the management of the Masjid had not, in the view of the Committee, changed, by letter of 10 December 1997, signed by Hassan L. Mlonja, the Secretary of the Committee the appellant was suspended from his function as Imam and any other functions connected with the construction work at Manyema Masjid. On 3 July 1998 by letter of same date (Exhibit P.10) the appellant was called upon by the Secretary of the Registered trustees of Manyema Masjid, to show cause why disciplinary measures should not be taken against him on account of his unsatisfactory conduct as Imam of the Masjid. Following this, the appellant's service as Imam was terminated on 13 July 1998 (Exhibit P 10-3).

The termination of service of the appellant is the centre of contention in this case. When served with the letter of termination and payment of terminal benefits, the appellant defiantly declined. He challenged that the respondents had no power to terminate his service as Imam of the Masjid because the incident leading to the termination took place before the Registered Trustees of Manyema Masjid, the respondents, were incorporated on 2 June 1998. At the trial the suit instituted by the respondents was decided infavour of the appellant. The Trial District Magistrate dismissed the suit holding that the respondents had no power to terminate the appellant as Imam of Manyema Masjid for acts committed before the date of incorporation.

The respondents were dissatisfied with the decision of the District Court. They appealed to the High Court where the appeal was allowed. The learned judge was of the view that the Registered Trustees had the power to terminate the service of the appellantas Imam because the trustees were carrying on with the activities which had be started by the "*Kamati ya Ujenzi*" Committee pertaining to the Masjid.

Undaunted, the appellant has preferred this appeal. He was represented by Mr Mpoki, learned counsel. The thrust of his argument before us was more or less a repeat of what he had submitted in the courts below. He firmly urged that the respondents were incorporated on 6 June 1998, they had no power to take disciplinary measures against the appellant for actions which took place in 1997. He said there was no evidence to show that the Trustees had taken over from the "Kamati ya Ujenzi" In his view, the Trustees were a creation of the constitution (Exhibit P3) which does not provide for the taking over of activities of the Committee by the Trustees.

Mr Mpoki, also criticized the learned judge for holding that it was erroneous on the part of the trial magistrate in failing to make a specific finding on issue two as framed. The learned advocate further submitted that as issues one and two had to be taken together, it was unnecessary for the trial magistrate to make a specific finding on issue two.

Responding to these submissions, Mr Nyabiri, learned counsel for the respondents, submitted that the decision of the High Court was correct in law, it cannot be faulted. First, he said the constitution of Manyema Masjid as incorporated, provides that the trustees were responsible for coordinating the daily activities of the Manyema Masjid. So, he further stated, as the appellant had been carrying on the activities for the same Masjid since 1996, the appellant was carrying on the same activities for the same Masjid under the Trustees after the incorporation. Second, that from the evidence on record, the appellant accepts in clear terms that he was appointed as Imam by the respondents who had raised his salary from TZS. 15 000 to TZS. 30 000 a month. For these reasons, Mr Nyabiri urged that the respondents as correctly held by the learned judge had power to terminate the service of the appellant as Imam of Manyema Masjid. With regard to the failure by the trial magistrate to make a specific finding on issue two, Mr Nyabiri, submitted that the learned judge correctly stated the position of the law. It is common knowledge that it is a rule of procedure that specific finding has to be made in respect of each issue raised, he emphasized.

As already indicated, the issue is whether the respondents had power to terminate the service of the appellant as Imam of Manyema Masjid. In resolving this issue the following factors among others, have to be taken into account. First, that the Manyema Masjid has been in existence for years before the incorporation of the Trustees on 6 February 1998. Second, the objective of the Masjid was the same prior and after the incorporation. Third, prior to the incorporation, the daily activities and allied activities of the Masjid was supervised by a Committee known as "*Kamati ya Ujenzi*". Fourth, the same activities and objectives of the Masjid were still carried on after the incorporation on 6 February 1998.

Against this background, it cannot be gainsaid that the appellant who had started working at the Masjid as Imam prior to 6 February 1998, continued serving at the Masjid as Imam for the same purpose

and objective. With the incorporation of the Masjid, the Trustees, the respondents, carried on the activities for the Masjid which were started prior to the incorporation on 6 February 1998. With respect, we are in agreement with Mr Nyabiri, learned counsel in his submission that the learned judge cannot be faulted in her finding when she stated:

> Having been incorporated, I think it was their responsibility to see to the proper management of the Masjid, and seeing to proper management of the Masjid would involve taking care of unfinished business if, any.... I think in my considered opinion that it is not proper to say that the trustees could not fire the Imam for something done while they were not lawfully constituted.

In our view, it would be ridiculous and absurd if, as urged by Mr Mpoki, the respondents, the Registered Trustees, whose objective was to manage the Masjid were held to have no power to discipline the appellant on the ground raised. In that situation, who else, in the absence of the previous Committee, would deal with the appellant, who was being paid by the Trustees. Furthermore, according to the evidence on record, the appellant, as pointed out by Mr Nyabiri, does not dispute that he was answerable to the trustees who had even raised his salary from TZS. 15 000 to TZS. 30 000 a month. The appellant cannot accept and enjoy the benefits awarded by the Trustees by way of salary and other terms while at the same time he does not recognize the trustees' authority to take disciplinary measures against him.

Furthermore, it is to be observed that what was in issue before the court was whether the Trustees had the power to terminate the appellant's service as Imam on 13 July 1998. The issue was not whether what the appellant did in 1997 was properly founded to warrant the disciplinary measure taken by the Trustees resulting in the termination. At this juncture, it should also be noted that the termination was a follow up action after the appellant had previously been suspended by the committee on 10 December 1997, and on 3 July 1998 was called upon to show cause why disciplinary measures should not be

taken against him. He did not respond. In the circumstances, we are of the settled view that the learned judge was correct in the decision that the registered trustees of Manyema Masjid had the power to effect the termination of the appellant's service as Imam.

With regard to Mr Mpoki's complaint that it was erroneous for the learned judge to hold that the trial magistrate erred in not making a specific finding on issue two, we need not be delayed in this point. It is an elementary principle of pleading that each issue framed should be definitely resolved one way or the other. This aspect was touched on by the court in *James B. Kumonywa v. Mara Cooperative Union (1984) Ltd and the Attorney General* (1). The fact that the two issues covered the same aspect, does not, with respect, detract from the legal requirement under the rules of procedure. The learned judge, was therefore correct in her observation on this point.

All in all therefore, we find no merit in this appeal. It is accordingly, dismissed with costs.

BUILDING HARDWARE AND ELECTRICAL SUPPLIES CO. LTD *v.* HEADTEACHER, KURASINI PRIMARY SCHOOL AND MADOSHI MANONI

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Shangwa, J)

CIVIL REVISION No. 52 OF 2004

Courts – Constitution of a court – Case filed in a Court of Resident Magistrate but assigned to and presided over by a district magistrate – Whether the court is duly constituted.

Civil Practice and Procedure – Reference – Reference to the High Court – Matter referred to the High Court by resident magistrate without any opinion by the magistrate on any doubtful question of law – Whether the matter is correctly referred to the High Court – Section 77 and Order XLI of the Civil Procedure Code 1966.

The plaintiff filed a case in the court of resident magistrate. The case was assigned and tried by a district magistrate. On defendant's failure to appear the said magistrate ordered *ex-parte* proof of the suit by affidavit. After compliance with the said order an *ex-parte* judgment was entered. A Resident Magistrate referred the matter to the Senior Resident Magistrate in-charge for examining and satisfying himself as to the validity or legality of the order for *ex-parte* proof and the *ex-parte* judgment made by the district magistrate. The Senior Resident Magistrate in-charge, in turn, sent the matter to the High Court by way of reference without his opinion on any point of law for the decision of the court.

Held: (i) It was wrong to bring this matter as a reference under section 77 and Order XLI of the Civil Procedure Code, 1966 since it was not referred on a case stated by the presiding magistrate for the opinion of this court or for this court's decision on any doubtful question of law;

(ii) As this case was filed in the court of resident magistrate and the magistrate who made an order for *ex-parte* proof and entered ex-parte judgment against the defendant was not a resident magistrate but a district magistrate, the said court was not duly constituted, and the said order and *ex-parte* judgment were made without jurisdiction.

Order accordingly

Statutory provisions referred to:

(1) Civil Procedure Code 196, sSection 77 and Order XLI

(2) Magistrates' Courts Act 1984, sections 30(2) and 30(2)

REVISIONAL ORDER

(Delivered 10 May 2004)

Shangwa, J.: This reference originates from the proceedings in RM Civil Case Number 81 of 2000 at Kisutu. It has been brought by the Senior Resident Magistrate in-charge under section 77 and Order XLI of the Civil Procedure Code 1966. Strictly speaking, this matter has neither been referred to this court on a case stated by the court of the Resident Magistrate for the opinion of this court nor has it been referred to it by the said court with its opinion on any point of law for the decision of this court after entertaining doubt on it.

The record shows that it was referred to this court by the Senior Resident Magistrate in-charge at Kisutu who was not presiding over the court. The one who was presiding over it is Mr Mbaga, RM who referred it to him on 8 March 2004 for examining and satisfying himself as to the validity or legality of the order for *exparte* judgment made in the case by the Senior District Magistrate Mr M.T. Mwankenja on 20 October 2000 so that he may take action under. section 30(2) of the Magistrates' Courts Act 1984. In taking action, the Senior Resident Magistrate in charge decided to bring the matter to the attention of this court by way of reference.

I wish to state here that as this matter was not referred to this court on a case stated by the presiding Magistrate for the opinion of this court or for this court's decision on any doubtful question of law, it was wrong to bring it as a reference under section 77 and Order XLI of the Civil Procedure Code 1966.

In the circumstances of this case, the record containing the *exparte* order and the *exparte* judgment made by the Senior District Magistrate was supposed to be brought by the Senior Resident Magistrate in-charge with a report to this court under section 30(2)(a) of the Magistrates' Courts Act 1984 so that it may consider whether or not to exercise its powers of revision.

Notwithstanding this anomaly, it would be of no practical importance to return the reference to the Senior Resident Magistrate in-charge for its amendment. I will therefore proceed to examine the record of proceedings in Resident Magistrate Civil Case Number 81 of 2000 which was dispatched by him to this court for revision of the Senior District Magistrate's order for *exparte* proof and the *exparte* judgment.

The record shows that Civil Case Number 81 of 2000 was filed by the plaintiff in the court of the Resident Magistrate at Kisutu on 24 March 2000. On the same date, the then Principal Resident Magistrate in-charge incidentally assigned it to Mr Mwankenja, SDM for trial. On 1 September 2000, the said magistrate ordered for *ex parte* proof of the suit by affidavit as the defendant failed to appear. The plaintiff complied with the said order and *exparte* judgment was entered by the said magistrate in his favour on 20 October 2000. The defendant was required to pay the plaintiff TZS. 4 989 365 plus interest and costs.

Due to the fact that the magistrate who made an order for *exparte* proof and entered *exparte* judgment against the defendant in this case which was filed in the court of the Resident Magistrate was not a Resident Magistrate but a District Magistrate, I find that the said court was not duly constituted, and that the said order and *exparte* judgment were made without jurisdiction. As such, both the said order and *exparte* judgment are null and void. I hereby quash them and set aside the decree which was passed following the said *exparte* judgment.

Consequently, I order that the case file should be dispatched to the Senior Resident Magistrate in-charge at Kisutu for trial of the suit between the parties by the Resident Magistrate.

USANGU SUGAR PROCESSING ESTATES LTD *v.* MBARALI DISTRICT EXECUTIVE DIRECTOR

COURT OF APPEAL OF TANZANIA AT MBEYA

(Ramadhani, Nsekela and Msoffe, JJ.A.)

CIVIL APPEAL No. 8 OF 2004

(From the Ruling of the High Court of Tanzania at Mbeya, Mrema, J., dated 30 April 2003, in Civil Case No. 26 of 2000)

Local Government – Establishment of local government authorities – Whether establishment of district council and appointment of district executive director may be clandestine or merely implied – Law and procedure of establishing district council and appointment of executive director – Sections 5, 6, 7, 8 and 9 of the Local Government (District Authorities) Act 1982, and section 5 of the Public Service Act 2002.

Local Government – Suits against local government authorities – Whether a district council or its executive director may be sued upon transactions that occurred before the district council came into existence.

The appellant sued the Mbarali District Executive Director in the High Court in respect of claims relating to the period 1997 to 1999. The respondent raised a preliminary point of objection to the effect that during the "transactions, acts or omissions" leading to the appellants's claims the Mbarali Executive Director, the respondent, did not exist. The appellant argued that the respondent was in existence then as the Notice of Proceedings was duly served on the respondent on 12 June 2000, that the Council's employees had given evidence in a criminal case against the appellant; and that the Council was operating and using headed papers of the Council at the time. The respondent argued that the Council was created by G.N. Number 260 of 2000 and published on 7 July 2000, well after the periods covered by the appellant's claims. The High Court upheld the objection. The appellant appealed.

Held: (i) The establishment of a district council is an elaborate statutory function surrounded with pomp and ceremony and pomp that does not admit any clandestine operation; Mbarali District Council was established under section 5 of the Local Government (District Authorities) Act 1982, by Government Notice Number 260 of 2000 published on 7 July 2000, which is the date it came into operation and, accordingly, the council was not in existence before that date;

(ii) The issue is not whether at the time the suit was filed the Council existed or not but whether the Council existed during the period from which the claims arose, that is, between 1997 and 1999; the answer is that the Council was not in existence then;

(iii) The respondent was not the Mbarali District Council but its Executive Director, then appointed under section 22 of the Local Government Service Act 1982 and now under section 5 of the Public Service Act 2002, Act Number 8 of 2002;

(iv) As Mbarali District Council was not in existence during the period in question, so there could not have been a Mbarali District Executive Director; therefore, the respondent was not in existence during the period in question and the suit ought to have been struck out.

Appeal dismissed

Statutory provisions referred to:

(1) Sections 3(1), 5, 6, 7, 8, 9 and 22 of the Local Government (District Authorities) Act 1982, and section 5 of the Public Service Act 2002

Mr Augustino Naali, for Appellant

Mr Allan Ndomba, for Appellant

JUDGMENT

(Dated 02 June 2004)

Ramadhani, J.A.: The appellant, Usangu Sugar Processing Estates Ltd., sued the respondent, the Mbarali District Executive Director who raised a preliminary objection containing three grounds. The first ground was dismissed but the other two grounds were upheld and the plaint was struck out.

Mrema, J., held that the appellants' claims cover a period before the respondent had been established. Then the learned judge was of the opinion that the verification of the plaint was improperly done. The appellant, aggrieved by those two findings and the consequent striking out of the plaint, has come to this court with this appeal being represented by Mr Augustino R.M. Naali, learned advocate.

Before we go to the merits of the appeal we have to point out two things: One, at the High Court the defendant was titled: "The Mbarali District Executive Director". In the appeal the respondent is titled: "The District Executive Director, Mbarali". Admittedly, there might be no substantive difference in the two title-styles but it is not purely semantics either. So, we order that the name of the respondent be exactly the same as that of the defendant in the High Court.

Two, we are of the opinion that there has been a misconception from the time this matter was in the High Court to the hearing of this appeal. The respondent is, and the defendant was at the High Court, the Mbarali District Executive Director. Throughout the proceedings, however, the subject has been the Mbarali District Council. Now, these two, that is, the Mbarali District Executive Director and the Mbarali District Council are not synonymous though organically connected. We shall have this point in mind and revert to it right at the end.

Mr Naali submitted that the learned judge "reached a wrong conclusion that the Mbarali District Council (hereinafter the Council) did not exist during the transactions, acts and omissions" leading to the appellants' claims. The learned advocate had three reasons for saying so. One, he said that the learned judge conceded that the Notice for the Proceedings was duly and properly served on the respondent on 12 June 2000. If so, the learned advocate argued, the learned judge conceded that the Council was in existence then. Two, the learned advocate pointed out that the Council was at the time operating and using headed papers titled as the Council. Lastly, Mr Naali submitted that the Office of

the Council existed and had employees who gave evidence in a criminal proceeding by the Council against the appellants. Therefore, according to Mr Naali, the Council was in existence.

Mr Allan Ndomba, the Legal Officer of the Council, submitted that the Council was sued for claims made at a time when it had not been in existence. Mr Ndomba pointed out that the Council was created by GN 260 of 2000 published on 7 July 2000, while the claims are for the years 1997 to 1999. Mr Ndomba conceded that the notice for the suit was received but pointed out that did not mean that the Council was in existence. Equally, Mr Ndomba contended that the use of headed papers is not evidence of establishment.

A District Council, like the Mbarali District Council, is a creature of the Local Government (District Authorities) Act 1982, Act Number 7 of 1982 (hereinafter referred to as the Act). Section 5 of the Act empowers the Minister responsible for local government "after consultation with the President, by order published in the *Gazette*" to establish "such district councils as he may deem necessary for the purposes of local government". Such order, according to section 6, prescribes the name of the council and the date on which it shall be established; defines the area to be covered by the council; and prescribes the device and the official seal of the council.

Two months before making the order under section 5 the Minister is required to publish in the *Gazette* his intention to establish a district council, according to section 7, which prescribes an elaborate procedure to be followed. It is not necessary, in our opinion, to go into the nitty-gritty of section 7 but it suffices to say that a copy of such intention and a copy of the order of the Minister under section 5 have to be laid before the National Assembly. As soon as that is done, and in any case not later than the date specified for the establishment of the district council, the Clerk of the National Assembly issues a certificate under section 8 containing particulars enumerated in section 9. Again we do not need to go into the nuts and bolts of that except to point out that the certificate issued by the Clerk to the National

Assembly is "conclusive proof and final authority for the establishment" of a district council which then becomes 'a body corporate... capable of suing or being sued" (section 12).

Thus the establishment of a district council is an elaborate statutory function surrounded with ceremony and pomp. It does not admit clandestine and by-the-way operation suggested by Mr Naali. The Mbarali District Council was established by an order under section 5 in Government Notice Number 260 published on 7 July 2000, which, according to paragraph 1(2), is the date when the order came into operation. It is glaringly evident to us that Mr Naali was scrapping the barrels of argument when he submitted that the Mbarali District Council was in existence before 7 July 2000.

The issue is not whether at the time the suit was filed and, therefore, when the notice was served, the Council existed or not. The issue is whether the Council existed during the time covered by the claims, that is, between 1997 and 1999. The answer is loud and clear that the Council was not in existence then. So much for the Council.

As we have pointed out, the respondent is the Mbarali District Executive Director not the Council. Now, "Director" is defined by section 3(1) of the Act as "the District Executive Director appointed for that district council under section 22 of the Local Government Service Act" (hereinafter referred to as Act Number 10 of 1982). Section 22 of that Act provides as follows: "There shall be a District Executive Director for each district" who shall be "the Chief Executive Officer of the Council and shall be answerable to the council for the discharge and exercise of his functions and powers".

We have to point out that Act Number 10 of 1982 has been repealed by the Public Service Act 2002 (Act Number 8 of 2002). The change now is in the title section 5 of Act Number 8 of 2002 provides for the appointment of a Director of a Local Government Authority who is defined as the Executive Director of any Local Government Authority other than Director of City Council or Commission. So, the office of Executive Director exists.

It is abundantly clear to us that if Mbarali District Council was not in existence during the period forming the subject matter of the dispute, then there could not have possibly been a Mbarali District Executive Director. So, the respondent was not in existence during the period in question. Therefore, the suit did not disclose any cause of action and we agree with Mrema, J., that it ought to have been struck out. We do not think that the other ground of appeal regarding the verification of the plaint need detain us.

We must say that the counsel for the respondent at the trial should have produced the certificate issued by the Clerk to the National Assembly which is "conclusive proof and final authority for the establishment" of the Council. That should have delivered a *coup de grace* to the issue. Anyway, the GN 260 of 2000 suffices. So, the appeal is dismissed with costs. It is so ordered.

AIDAN CHALE *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Mroso, Nsekela and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 130 of 2003

(From the ruling of the High Court of Tanzania at Songea, Manento, J., dated 12 June 2002, in Criminal Appeal No. 60 of 2000)

Criminal Practice and Procedure – Appeals – Appeal by the Director of Public Prosecutions – Appeal to the High Court filed out of the prescribed limitation period – Discretion of High Court to admit such appeal – Whether the High Court can invoke its discretion suo motu – Section 379(b)(iii) of the Criminal Procedure Act 1985.

The High Court agreed that the appeal lodged by the Director of Public Prosecutions against the decision of the District Court was time-barred. But, of his own motion, the judge invoked the discretion given under section 379(b)(iii) of the Criminal Procedure Act 1985 and thereby admitted the appeal. On appeal, the Court of Appeal considered the question whether the High Court could, *suo motu*, exercise the discretion given under that provision.

Held: (i) The discretion given under section 379(b)(iii) to the High Court can only be exercised upon an application by the intending appellant.

Appeal allowed

Cased referred to:

(1) *R. v. Central Criminal Court, ex-parte Abu Wardeh* [1997] 1 All ER 159

(2) *R. v. Governor of Winchester Prison, ex-parte Raddin* [1991] 2 All ER 931

Statutory provisions referred to:

(1) Criminal Procedure Act 1985, sections 379(a)(b) and (c) and 379(b)(ii)(iii)

(2) Prosecution of Offences (Custody Time Limits) Regulations 1987, section 22(3)(a), reg. 5

Mr Mbogoro, for the Appellant

Mr Manyanda, for the Respondent

JUDGEMENT

(Dated 10 June 2004)

Mroso, J.A.: This is an appeal against a ruling of the High Court at Songea, Manento, J., dated 12 June 2002. That ruling related to an objection by the appellant against an appeal by the respondent Director of Public Prosecutions to the High Court, who had been dissatisfied by a decision of the District Court of Songea which was delivered on the 31 December 1999. The present appellant's objection was that the appeal to the High Court by the Director of Public Prosecutions

was time-barred and ought to have been dismissed. In its ruling the High Court agreed that the Director of Public Prosecutions (DPP) was late to file his appeal in the High Court. Even so, the High Court, of its own motion, sought and found "good cause" within the meaning of section 379(b)(ii) of the Criminal Procedure Act 1985 to justify the admission of the DPP's appeal notwithstanding that the period of limitation prescribed by section 379(b) of the Criminal Procedure Act 1985 had elapsed. It was that decision which prompted the appellant to come to this court, arguing that the High Court erred in law in extending the time to appeal *suo motu*.

At the hearing of the appeal Mr Mbogoro, learned advocate, who appeared for the appellant in the High Court, also represented him in this court. Similarly, Mr Manyanda, learned State Attorney, also represented the respondent DPP both in the High Court and in this court.

In the High Court the following facts were undisputed. It was common ground that the decision of the District Court was delivered on 31 December 1999. The Director of Public Prosecutions who was dissatisfied with the decision of the District Court filed a Notice of Intention to appeal to the High Court within 30 days of the date of the decision of the District Court as required under section 379(a) of the Criminal Procedure Act 1985. Copies of judgment and proceedings for appeal purposes were ready for collection and were in fact collected by one Assistant Inspector of Police Lugome on 10 May 2000. The petition of appeal was filed on 14 September 2000.

Section 379(b) of the Criminal Procedure Act 1985 requires the DPP to lodge his petition of appeal within 45 days from the date of the acquittal, finding, sentence or order against which the appeal is intended. However, in reckoning the 45 days within which to lodge an appeal, the time requisite for obtaining a copy of the judgment and proceedings will be excluded. So, on the facts, the period between 31 December 1999 and 10 May 2000 would be excluded. It would follow, therefore, that 45 days would be reckoned from 10 May 2000, meaning that the DPP was expected to have filed his appeal by 24 of June 2000.

Mr Manyanda, however, argued before the High Court that although Assistant Inspector Lugome collected the document from the District Court on 10 May 2000, they were not taken to the Chambers of the Attorney General for the preparation of the petition of appeal until on 13 September 2000. According to Mr Manyanda, the 45 days would be reckoned from that date and when the petition of appeal was lodged on 14 September 2000, it was in time.

The High Court quite rightly rejected that argument and found that there had been negligence on the part of the office of the DPP. Since the DPP's contention was that its appeal to the High Court had been lodged within the period of limitation he did not advance any reasons for delay and did not seek extension of time within which to lodge his appeal. It was in those circumstances that the High Court took it upon itself to look for and find reasons for admitting the appeal, even though the period of limitation had elapsed, by purporting to act under section 379 (b)(ii) of the Criminal Procedure Act 1985.

In trying to find justification to extend, *suo motu,* the period for lodging the appeal by the DPP the High Court said:

> Under section 379(b)(ii) of the Criminal Procedure Act 1985, the High Court may, for good cause admit an appeal notwithstanding that the periods of limitation prescribed in this section have elapsed. I am afraid that the learned State Attorney did not make any submissions as to whether, in the alternative, without prejudice to his earlier submission, were good cause to admit the appeal out of time. On reading the petition of appeal, I see two grounds which I consider good cause. That is the non failure (*sic*) by the Subordinate Court to make an order in regard to TZS. 160 000 produced as exhibit. To whom should the money be given or it should stay in court's (*sic*) indefinitely. Its owner must be known. Secondly, there was an issue of the sentence imposed, if the court was entitled to impose the sentence it imposed, or it was to impose any other sentence provided by the law. Those two reasons are really good cause to admit the appeal out of time in order that those legal issues are cleared by this court.

Mr Mbogoro has argued strongly before us that the learned High Court judge erred in so construing the meaning of the phrase "good cause" as it appears in section 379(b)(ii) of the Criminal Procedure Act 1985. He contends that the phrase "good cause" as it appears in the section implies that the court has been presented by the intending appellant with reasons for their failure to lodge the appeal within the prescribed time and after hearing what the prospective respondent has to say about the reasons advanced by the intending appellant, finds that good, convincing excuse has been disclosed. Such good, convincing excuse is what is envisaged in section 379(b)(ii) to be "good cause" for admitting the appeal out of time. Mr Mbogoro continued to argue that since the respondent DPP had wrongly contended that his appeal was in time and, therefore, gave no excuse for the delay in lodging the appeal, it was not the business of the court to invent an application to it for extension of time and provide to itself reasons which it judged amounted to "good cause", and admit the appeal which was time barred.

Mr Manyanda, on the other hand, defended the judge's approach and argued that the phrase "good cause" had a broader meaning than that which was suggested by Mr Mbogoro. He argued that "good cause" within the context also includes the need for an appeal to be heard because, for example, the interests of justice require that an appeal be admitted so as to correct certain legal anomalies. In such a situation an appellate court may take it upon itself to admit an appeal by the DPP where it was time-barred, even in the absence of an application for enlargement of time. He said that the question raised by the High Court regarding the disposal of the cash exhibit of TZS. 160 000 was one of the DPP's grounds of appeal and, therefore, it was proper for the High Court to consider it as good reason (good cause) for admitting the appeal out of time even though there was no application for enlargement of time. He prayed that the court dismiss the appeal.

Neither counsel was able to cite to us any case in which the phrase "good cause" was judicially considered. Our own research, however,

brought us to a case outside the jurisdiction in which the phrase was considered as having a similar meaning to the words:

"good and sufficient cause".

In *R. v. Central Criminal Court, ex parte Abu Wardeh* (1) an applicant was committed in custody for trial at the Central Criminal Court before a High Court judge, together with three co-defendants, charged with conspiracy to cause explosions.

After an initial postponement, the trial date was eventually fixed for 1 October 1996, the judge originally designated to try the case having withdrawn and the new judge assigned in his place being unable to start the trial then. Thereafter, the recorder extended the custody time limit to a new trial date giving the following reasons:- that no other suitable judge would be available before then; that protection of the public might be at risk and that it was desirable that all the defendants should be tried together. The applicant applied for judicial review of the recorder's decision, contending that none of the reasons relied on by the recorder amounted to "good and sufficient cause" within the meaning in section 22(3) of the Prosecution of Offences (Custody Time Limits) Regulations, 1987, regulation 5.

Regulation 5, so far as material, provided: "... the maximum period of custody between the preferment of the bill and the accused's arraignment shall be 112 days..." section 22(3), so far as material read:- "The appropriate court may, at any time before the expiry of a time limit imposed by the regulations, extend, or further extend, that limit if it is satisfied – (a) that there is good and sufficient cause for doing so..."

Auld, L.J. of the Queens Bench Division held that for purposes of section 22(3) of the 1985 Act, "good cause" consisted of some good reason for the sought postponement of the trial carrying with it the need to extend the custody limit time. Since the many defendants facing serious charges were remanded in custody for the protection of others, Parliament could not have intended that the original reason for custody could in itself be a good cause for extending the custody

time limit. It followed that the protection of the public could not be good and sufficient cause for doing so. However, the unavailability of a judge or court to try a defendant in custody could in law amount to a "good and sufficient cause", as could also the interest of justice that jointly charged defendants be tried together. Accordingly as the recorder had taken into account all the relevant circumstances, his conclusion that there was "good and sufficient cause" to justify extending the custody limits could not be held to be perverse.

In the case cited the prosecution had applied to the recorder for the further extension beyond the custody time limit and the only issue before the recorder was whether there was "good and sufficient cause" for extending the time limit. There was no suggestion that the Prosecution had not acted with all due expedition. In his ruling the recorder found there was good and sufficient cause for granting the prosecutions' application, and the High Court upheld that decision.

As indicated above, the recorder in the case cited was able to find the existence of "good and sufficient cause" upon application by the prosecution for extension of custody time limit. In the case before us no application was made to the High Court by the DPP for extension of the time limit to appeal. We are constrained to agree with Mr Mbogoro, therefore, that it was not proper for the High Court, in the absence of any application to it, to imagine the existence of an application, to create reasons for the application and then agree that those reasons amounted to "good cause" within the meaning of section 379(b)(ii) of the Criminal Procedures Act 1985 for admitting the DPP's appeal out of time.

The next point we wish to consider is whether, assuming the High Court could act *suo motu* by resorting to section 379(b)(ii) the reasons it gave amounted to "good cause" within the meaning of the section 379 which reads:

> 379. No appeal under section 379 shall be entertained unless the Director of Public Prosecutions:
>
> (a) ...
>
> (b) shall have lodged his petition of appeal within forty-five days from the date of such acquittal, finding, sentence or order; save that:
>
> (i) ...
>
> (ii) the High Court may for good cause admit an appeal notwithstanding that the periods of limitation prescribed in this section has elapsed.

In *R v. Governor of Winchester Prison, ex parte Roddie* (2), at page 934 Lloyd, L.J.said "good cause" will usually consist of some good reasons why that which is sought should be granted. It does not have to be something exceptional. "To amount to "good cause" there must be some good reasons for what is sought." It was considered that it was undesirable to define "good cause" and that it should be left to the good sense of the tribunal, which has to decide whether good cause, has been disclosed. We would accept that reason as correct in law. Would a ground or the grounds of the intended appeal constitute "good cause" for admitting an appeal out of time? Mr Manyanda argued that in the interest of justice that the appeal should be admitted.

We think that there is nothing inherently wrong in a court to which an application has been made to consider all or any of those matters as "good cause" for admitting an appeal out of time. But we have to come back to the same point, that a court should not act *suo motu* in favour of a party by assuming the existence of request to extend the period limited by statute for bringing an appeal to it. To do so could lead to a subversion of the very purpose for which a limitation period to appeal was statutorily fixed for both the private individual and Director of Public Prosecutions. We hold that the learned High Court judge erred in assuming the role of an applicant and in finding that "good cause" existed for admitting the appeal out of time. We allow the appeal.

GEORGINA VENANCE v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Lubuva, Mroso and Kaji, JJ.A.)

CRIMINAL APPEAL No. 77 OF 2002

(From the decision of the High Court of Tanzania at Bukoba, Lugakingira, J., dated 9 August 1995 in Criminal Sessions Case No. 135 of 1990

Criminal Law – Murder – Plea of provocation – When a plea of provocation may be sustained – Section 202 of the Penal Code.

Criminal Law – Provocation – Appellant enraged by husband and kills co-wife – Whether the defence of provocation is available to the appellant.

The appellant was convicted of murder for killing her co-wife, Theonestina, inherited by her husband after his brother died. The husband had spent the night at the home of Theonestina. In the morning he asked the appellant to prepare tea for him to which the appellant replied that he should have taken his tea where he had spent the night. There was an exchange of words during which Venant, the husband, told the appellant that she would know her fate later that day. When Venant later told her to go and harvest coffee she adamantly refused at first but later went to the shamba where she found Theonestina with Venancia and two other people whom the appellant told to leave the shamba. Her proffered greetings were responded to by only Venancia whereupon the appellant produced a panga she had been hiding behind her back and hacked Theonestina to death. Upon her arrest she was found in a poor state of health after having swallowed vermicide to kill herself. In a statement to the Justice of the Peace and in a cautioned statement she admitted killing the deceased, saying she had done so because of an earlier altercation she had with the deceased. In court she cited her confusion after her husband had told her about knowing her fate later. She added that she had not intended to kill the deceased. The trial judge rejected her plea of provocation as a defence.

Held: (i) For a plea of provocation to succeed the insult or act complained of must be wrongful, said or done by the person assaulted in the presence of, and directed to the person committing the offence charged;

(ii) The conduct of the appellant prior to the killing of the deceased of taking with her a bottle of vermicide in order to kill herself and hiding the panga behind her back before hacking the deceased showed that she had premeditated the death of the deceased and her act was not caused by her loss of self control.

Appeal dismissed

Mr Muna, for the Appellant

Mr Rwabuhanga, for the Respondent

Cases referred to:

(1) *Republic v. Alexander*, 9 Cr. App. R. 139

(2) *Republic v. Simpson*, 11 Cr. App. R. 128

Statutory provision referred to:

Penal Code Chapter 16, section 202

JUDGMENT OF THE COURT

(Dated 28 June 2004)

Mroso, J.A.: The appellant, Georgina w/o Venance, was convicted by the High Court, late Lugakingira, J., as he then was, of the murder of one Theonestina w/o Venance, a co-wife, and was sentenced to the usual statutory punishment of death by hanging. She was aggrieved by the conviction and sentence. Through Mr Muna, learned advocate, she appealed to this court, filing one ground of appeal. The complaint is that the learned trial judge in convicting her had erred in law in holding that a defence of provocation was not proved. At the hearing of the appeal the respondent Republic was represented by Mr Rwabuhanga, learned State Attorney.

The appellant had been married to Venant Tinkamanyire (PW1) in 1981. The deceased used to be the wife of a brother of PW1. In 1987 the brother died and his wife was inherited as a wife by PW 1 in 1988. The deceased continued to live in the same house in which she used to live with her late previous husband. She also continued to look after the coffee shamba of the late husband. PW1 spent his nights alternately in the houses of the appellant and the deceased.

On 24 August, 1989 PW1 spent the night in the house of the deceased. On the following morning he went to the house of the appellant and asked her to get milk and make tea for him. The appellant refused to do so, arguing that he should have taken his tea in the house where he had spent the night. There was an exchange of words between the two. Then PW1 required the appellant to proceed to a coffee shamba to pluck coffee. That is the shamba which had belonged to the late previous husband of the deceased and the deceased was there at the time plucking coffee. The appellant adamantly refused to do the work and said that as from that day she would no longer work. However, she eventually proceeded to the shamba but was sobbing and grumbling. When the appellant got to where the deceased together with Venancia Vincent (PW2) were plucking coffee, she said to them "pole na kazi". PW2 responded but the deceased did not. It was then the appellant used a panga she had been holding behind her back to hack the deceased on the head several times and elsewhere on her body, killing her on the spot. She then fled from the scene but was later, on the same day, arrested by villagers. When arrested she was in a poor condition because she had swallowed a poisonous vermicide. Subsequently, she made an elaborate statement to a Justice of the Peace and, thereafter, a caution statement to the police. In both statements she admitted attacking the deceased viciously with a panga she was carrying, killing her instantly, and that she only fled from the scene after she was sure the deceased had died.

Mr Muna attempted to argue that the trial judge should have found that the defence of provocation was available to the appellant. He said there was evidence of accumulated instances of provocative

incidents earlier and immediately before the appellant killed the deceased. He said that the day before the fateful day the appellant and the deceased had a verbal exchange. The deceased, according to appellant's extra-judicial statement to a Justice of the Peace, told the appellant– "tutauana sitakuachia kula mali yangu hujui kwa nini nilivumilia kukaa na kurithiwa", to which the appellant retorted – "sitakuachia mume wangu na mali zangu", PW1 intervened and the exchange stopped.

Another incident, according to Mr Muna, was when, on the morning of the fateful day, PW1 required the appellant to pluck coffee in the shamba which was looked after by the deceased. When she refused to do so, PW1 threatened that at 2 pm on that day she would know her fate – "*saa nane utakuwa umepata uamuzi*". Suggesting he would take a decision to expel her from the home at 2 pm. Those words gave her a lot of anxiety. She could not contemplate being driven back to her parents. Earlier on that same morning, according to the appellant, the deceased had told her – "Leo wewe na mimi tutaonana".

Although the appellant did not say so, Mr Muna suggested that the conduct of the deceased in refusing to respond to the greeting "Pole na kazi" enraged the appellant because such conduct was an insult in the Haya community and that it provided the immediate cause for the provocation on the part of the appellant.

With respect, like the trial judge, we are unable to appreciate that any, or a combination, of all those instances constituted provocation within the meaning of the law. section 202 of the Penal Code, Chapter 16 of the Laws defines provocation as meaning and including:

> any wrongful act or insult of such a nature as to be likely, when done to an ordinary person, or in the presence of an ordinary person to another person who is under his immediate care, or to whom he stands in conjugal, parental, filial or fraternal relation, or in relation to a master or servant, to deprive him of the power of self-control and to induce him to commit an assault of the kind which the person charged committed upon the person by whom the act or insult was done or offered.

A lawful act is not provocation to any person for an assault.

From the provision it is clear that for an act or insult or conduct to constitute provocation in law, at least the following conditions must be satisfied. First, the act or insult causing provocation must be wrongful. A lawful act or conduct cannot provide provocation. Second, the person assaulted because of the provocation must be the one who offered the provocative act, insult or conduct. Third, the provocative act, insult or conduct must have been directed to the person committing the assault or a person who stands to him in the relationship as explained in the section. Fourth, the provocative act or insult must have been done or offered in the presence of the person committing the assault. Fifth, the test is the ordinary person in society. That is to say, peculiar or eccentric qualities of the person committing the assault are not relevant when considering whether a person would be provoked by the act or insult. Seventh, the person provoked must have been deprived of the power of self control.

If we apply those conditions to the appellant we find that the words or conduct of PW1 to the appellant could not constitute provocation for the assault which the appellant committed on the deceased. Furthermore, the fact that the deceased refused or failed to respond to the appellant's greetings may have offended the appellant but since there was nothing unlawful about that conduct by the deceased, there could be no basis for provocation in law. The words "tutauana" or that "leo wewe na mimi tutaonana" which appellant claims were uttered to her by the deceased on the day before the day of killing and on the morning of the day of the fatal assault respectively were probably threats, if they were actually uttered. But the question would be whether an ordinary person in the Tanzanian society would be so enraged by them as to deprive him of the power of self control and induce him to commit the kind of brutal assault which the appellant inflicted on the deceased.

The appellant herself in fact did not, in her defence in court, blame the deceased so much as being the cause for the killing that occurred. She attributed her conduct to her husband, PW1. She said.

I agree, I killed the deceased, but I was confused at the material time I did not know what I was doing. I was driven into a state of rage by my husband's threats. I did not intend the death of the deceased.

As we said earlier, if it was the husband who drove her into a rage, the defence of provocation would not be available to her for killing the deceased who was not the person who drove her into a rage.

We are satisfied that the trial judge very adequately dealt with the question of provocation and came to a correct conclusion that the defence of provocation was not available to the appellant. He cited various cases of persuasive value like *R. v. Alexander* (1) where it was held that the test on whether a particular act or insult was provocative was the ordinary person. The other was *R. v. Simpson* (2) where it was stipulated that provocation in order to be available to an accused person it must be shown that it was offered by the person murdered.

The conduct of the appellant prior to killing the deceased suggested that she had premeditated it well before she committed the act. Quite early, at the time she left home to go to the coffee shamba where she killed the deceased, she had made up her mind to go and dispose of the deceased and, thereafter, kill herself as well. That was the reason she took with her the bottle into which she had put the poisonous vermicide. She was to use the vermicide after killing the deceased, as she indeed did, in order to cause her own death. On the way to the shamba she collected the panga, hid it on her back so as not to alarm the deceased or PW2 who was with her. She sent away Fikiri and Mbekeize from the shamba so that they would not provide resistance. It was then she hacked deceased several times on the head and elsewhere on her body until she died. So, there was no question of the appellant being so enraged as to lose her power of self-control when she killed the deceased. We noted that even Mr Muna was in great difficulty when he was trying to argue a case of provocation for the appellant.

We dismiss the appeal in its entirety as it has no merit at all.

CHARLES MASHIMBA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Ramadhani, Munuo and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 86 OF 2002

(From the decision of the High Court of Tanzania at Tabora, Lukelelwa, J., dated 31May 2002, in Criminal Sessions Case No. 156 of 2001)

Criminal Practice and Procedure – Sentence – Sentence of twenty years imprisonment where accused pleaded guilty to the offence of manslaughter, was outrageously provoked by misconduct of his infidel spouse – Whether sentence imposed was excessive.

Criminal Practice and Procedure – Sentencing – Whether appellate court may alter a sentence imposed by trial court.

The appellant, charged with the offence of murder, pleaded guilty to the lesser offence of manslaughter after conviction the court sentenced him to imprisonment for twenty years. The appellant appealed against the sentence on the grounds that it was excessive regard being had to circumstances under which the offence was committed.

Held: (i) An appellate court may interfere with the sentence imposed by the trial court where there is a cause to do so.

(ii) The learned trial judge overlooked the fact that the appellant was outrageously provoked by the misconduct of his infidel spouse that the appellant had saved time and expense by pleading guilty and that he had shown contrition for the unlawful killing of his spouse.

Appeal allowed

Case referred to:

(1) *Silvanus Leonard Nguruwe v. Republic* [1981] T.L.R. 66

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections 195

Mr Muna, for the Appellant

Mr Rwebahanga, for the Respondent

JUDGMENT OF THE COURT

(Dated 16 July 2004)

Munuo, J.A.: The appellant, Charles Mashimba, through the services of Mr Muna, learned advocate, is appealing against the sentence in Criminal Sessions Case Number 156 of 2001 in the High Court of Tanzania at Tabora, before Lukelelwa. J. In the case the appellant pleaded guilty to the offence of manslaughter contrary to section 195 of the Penal Code Chapter 16 of the Revised Laws of Tanzania. Upon conviction on his plea of guilty, the learned judge sentenced him to a term of twenty years imprisonment. Aggrieved, the appellant lodged the present appeal against the sentence.

In his single ground of appeal, Mr Muna, learned advocate, complained:

> That the sentence of twenty (20) years imprisonment was excessive regard being had to the circumstances under which the offence was committed.

Contending that the sentence of twenty years imprisonment was manifestly excessive, counsel for the appellant faulted the learned trial judge for not considering the fact that the appellant was a first offender and that he had been in custody for about 1½ years, and furthermore that he had pleaded guilty to the offence thereby showing contrition. Had the learned judge considered all these factors and judiciously exercised his discretion, Mr Muna contended, he would have imposed a lenient sentence on the appellant. Stressing that the appellant had admitted the killing before the police, a Justice of the Peace and the learned judge, which admissions saved time and costs on the part of the law enforcers and the court, over and above showing contrition

for the offence, Mr Muna urged us to reduce the sentence and give the appellant a fair sentence.

Mr Mwampoma, learned State Attorney, supported the sentence meted out by the High Court on the ground that it was lawful and adequate. He argued that the learned judge did not invoke a wrong principle so we should refrain from interfering with the sentence. The learned State Attorney observed that the sentence was not excessive because the learned judge considered the multiple cut-wounds and fire-brand burning of the deceased's private parts by the appellant which aggravating factors caused the learned judge to impose a stiff sentence of twenty years imprisonment. Mr Mwampoma urged us to dismiss the appeal in its entirety.

The issue is whether there is cause to interfere with the sentence imposed on the appellant by the learned judge. We had the advantage of referring to **A Handbook on Sentencing** with a particular reference to Tanzania by Brian Slattery at page 14 where the learned author comments on sentencing by stating:

> The grounds on which an appeal court will alter a sentence are relatively few, but are actually more numerous than is generally realized or stated in the cases. Perhaps the most common ground is that a sentence is "manifestly excessive". Or as it is sometimes put, so excessive as to shock. It should be emphasized that "manifestly" is not mere decoration, and a court will not alter a sentence on appeal simply because it thinks it severe. A closely related ground is when a sentence is "manifestly inadequate". A sentence will also be overturned when it is based upon a wrong principle of sentencing... An appeal court will also alter a sentence when the trial court overlooked a material factor, such as that the accused is a... first offender, or that he has committed the offence while under the influence of drink. In the same way, it will quash a sentence which has obviously been based on irrelevant considerations... Finally an appeal court will alter a sentence which is plainly illegal, as when corporal punishment is imposed for the offence of receiving stolen property.

The record shows that the learned judge found the appellant's infliction of 6-7 cut-wound on the neck, thighs and lower limbs and the burning her private parts "very brutal indeed" which was why he imposed a twenty year imprisonment sentence on the appellant. The learned judge also admonished victims of infidel spouses to exercise emotional restraint when they encounter adultery instead of taking the law into their own hands as the appellant did by killing his adulterous spouse.

All in all, we think the learned judge overlooked the fact that the appellant was outrageously provoked by the misconduct of his infidel spouse, and, or that the appellant had saved time and expense by pleading guilty over and above showing contrition for the unlawful killing of his spouse. We find support in the case of *Silvanus Leonard Nguruwe v. Republic* (1) in which the Court of Appeal of Tanzania held that:

> Before the court can interfere with the trial High Court's sentence, it must be satisfied either that, the sentence imposed was manifestly excessive, or that the trial judge in passing the sentence ignored to consider an important matter or circumstances which he ought to have considered, or that the sentence imposed was wrong in principle.

We have already observed that the trial judge overlooked the fact that the appellant was gravely provoked by the adulterous conduct of his late wife and that he also ought to have considered the fact that the appellant was a first offender who deserved some leniency particularly because he pleaded guilty to the offence of manslaughter and by so doing saved the court's time and expense of conducting a full trial.

For the reasons stated above, we reduce the manifestly excessive sentence of twenty years imprisonment to five years imprisonment which shall take effect from today. We accordingly allow the appeal.

SWALEHE NDUNGAJILUNGU v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Ramadhani, Munuo and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 84 OF 2002

(From the conviction of the High Court of Tanzania at Tabora, Lukelelwa, J., dated the 30 May 2002, in Criminal Sessions Case No.80 of 2001)

Criminal Practice and Procedure – Sentence – Sentence of thirty years imprisonment where the accused pleaded guilty to the offence of manslaughter – Whether the sentence imposed was excessive.

Criminal Practice and Procedure – Sentenceing – Whether the Appellate Court may alter a sentence imposed by the trial court.

The appellant was charged with murder contrary to section 196 of the Penal Code but pleaded guilty to the lesser offence of manslaughter contraty to section195 of the Penal Code. Following his plea the court convicted him and sentenced him to thirty years imprisonment on the ground that the offence charged was separated from murder by only a thin thread. The appellant appealed against the sentence.

Held: (i) It is trite law that the Court of Appeal cannot alter a sentence imposed by the High Court unless there are good grounds upon which to alter or interfere with such sentence.

(ii) The sentence of thirty years imprisonment is excessive taking into account, among other factors, that the appellant was gravely provoked.

Appeal allowed

Cases referred to:

(1) *Silvanus Leonard Nguruwe v. R* [1981] T.L.R. 66

(2) *Ogalo s/o Owoura v. R* (1954) 21 E.A.C.A. 270

(3) *Hadija d/o Omari v. R* [1970] HCD n.158

(4) *MacDonald v. R* (1959) 2 R and N 157

(5) *R v. Ratilal Amarshi Lakhani* [1958] E.A. 140

(6) *James v. R* (1950) 18 E.A.C.A. 147

(7) *Mohamed Ali v. R* [1969] HCD n.54

(8) *R v. Khamis Suleiman* [1969] HCD n.117

Statutory provision referred to:

(1) Penal Code Chapter 16 section 195,196

Mr Magongo for the appellant

Mr Feleshi for the republic

JUDGMENT OF THE COURT

(Dated 16 July 2004)

Msoffe, JA: The appellant was charged with murder contrary to section 196 of the Penal Code. In the information filed against him at the High Court of Tanzania at Tabora and dated 17 July 2001, it was alleged that on 17 April 2000 he murdered one Amina Athumani. On 30 May 2002 he offered a plea of guilty to a lesser offence of manslaughter contrary to section 195 of the above Code. The plea was accepted by the Republic. The facts were then read out, and he readily admitted them. He was accordingly convicted of the lesser offence and sentenced to thirty years imprisonment. This is an appeal against sentence.

At the hearing of the appeal, Mr Magongo, learned advocate, advocated for him while Mr Feleshi, learned State Attorney, appeared and resisted the appeal on behalf of the respondent Republic.

In brief, the facts, which were read out and accepted by the appellant, were that the deceased and one Khadija Hamisi were his wives. On 17 April 2000 at around 6:00 p.m. the two wives were sorting groundnuts in the presence of the appellant. In the meantime, two young men passed along, riding a bicycle. One of the two men gave a "signal"

to the appellant's wives. The signal, which was in the form of "clearing his throat", was quickly responded to by the deceased who followed them immediately thereafter. The appellant also followed behind. Shortly, the deceased ran back home, picked up a pail and went out to a well to fetch water. The appellant also went back home whereupon he began beating Khadija on a belief that the two men were their (i.e. his wives) lovers. When the deceased returned from the well the appellant also roughed her up. Indeed, the appellant tied her to a tree stump with her "Kitenge" cloth and beat her up to around 19:00 hours when he set her free. When she was released, the said deceased went back home to feed her baby. The appellant followed her and demanded to be told her relationship with the two men. In the process, the deceased admitted that one of the two men was her lover. The appellant then beat her again till she died. Upon realizing that the deceased had died, the appellant went out to inform neighbours.

In sentencing the appellant, the learned trial judge took into account the following factors:

(i) That he was provoked,

(ii) That he was a first offender, and

(iii) That he was a young man with an extended family of eight people.

However, in the end, the said judge was of the view that this was a case calling for a severe sentence because the appellant's actions amounted to a very serious manslaughter where "only a thin thread separates his offence from that of murder".

Mr Magongo filed one ground of appeal which reads:

1. That had the learned trial judge fully considered the mitigating factors and properly applied the sentencing principles, he would not have imposed a sentence of 30 years against the appellant.

In arguing the above ground of appeal, Mr Magongo submitted mainly that there were other factors, which the judge ought to have considered i.e. that the appellant did not use any weapon, he was remorseful for

what he did and hence his offer of a plea of guilty to manslaughter, the period he had spent in prison, and that by admitting the offence the appellant actually assisted in the administration of justice in that time and expense were saved. Mr Magongo also went on to fault the judge who said somewhere in the Judgment that the deceased was beaten for a period of over one hour. According to Mr Magongo, the beating did not take more than one hour.

In response, Mr Feleshi was of the view that since the maximum sentence provided for the offence is life imprisonment, the sentence of thirty years imprisonment meted to the appellant was well within the judge's discretion. He went on to urge, therefore, that the sentence should not be disturbed. He also submitted that it was true that the judge did not consider the other factors mentioned above by Mr Magongo. He was quick, however, to say that even if the judge had taken into account the other factors, the sentence would not have changed. Otherwise, Mr Feleshi agreed with Mr Magongo that the deceased's beating did not last more than one hour.

As observed by this court in the case of *Silvanus Leonard Nguruwe v. Republic* (1) it is trite law that the Court of Appeal cannot alter a sentence imposed by the High Court on the mere ground that if it was sitting as a trial court it would have imposed a different sentence. There have to be good grounds upon which this court could alter or interfere with a sentence passed by the High Court. The opportune question for us to ask ourselves at this juncture will then be this: Which are those grounds?

In answering the above question, it will be instructive for us to cite with approval a few examples which are mentioned by Brian Slattery in his **Handbook on Sentencing** at page 14 thus:

(i) Where the sentence is manifestly excessive – *Ogalo s/o Owoura v. Republic* (2); *Hadija d/o Omari v. Republic* (3) or where the sentence is so excessive as to shock – *MacDonald v. Republic* (4) at 169.

(ii) Where the sentence is manifestly inadequate – *R. v. Ratilal Amarshi Lakhani* (5).

(iii) Where the sentence is based upon a wrong principle of sentencing – *Ogalo s/o Owoura v. Republic* (2).

(iv) Where the trial court overlooked a material factor – *James v. Republic* (6).

(v) Where the sentence has been based on irrelevant considerations, such as the race or religion of the offender – *Mohamed Ali v. Republic* (7).

(vi) Where the sentence is plainly illegal, as when, for example, corporal punishment is imposed for the offence of receiving stolen property – *Republic v. Khamis Suleiman* (8).

In relation to (i) above, we may emphasize here that the use of the word "manifestly" is not without significance. For this court to interfere, the sentence has to be really "manifestly" excessive. The sentence cannot be altered simply because the court thinks it is severe.

In the light of the above general principles, it will now be quite in order to see whether in the instant case any of the above principles was violated. Without much ado, we are of the view that the trial judge overlooked the other factors mentioned by Mr Magongo, which, we think, were material in the justice of the case. We think that further to the appellant being a first offender etc., the judge ought also to have taken into account the other factors i.e. that the appellant did not use any weapon, he was remorseful for what he did and hence his readiness to plead guilty to the lesser offence of manslaughter, the two year period he had spent in prison as a remandee, and that by his plea of guilty he saved the court's (and other parties) time and expense. If the judge had considered these other factors, we think, he would have imposed a lesser sentence. For this reason, we believe, we are entitled to interfere with the sentence imposed in this case.

We accordingly allow the appeal and set aside the sentence of thirty (30) years imprisonment. Taking into account the fact that the appellant was gravely provoked as the above facts show, and that he has so far spent around four years in prison i.e. two years as a remand prisoner and two years and a month or so as a convict, we hereby sentence him to five (5) years imprisonment. The five (5) year term of imprisonment will be effective from the date of this Judgment. It is so ordered.

We wish to mention, albeit in passing, that once the appellant pleaded guilty to manslaughter, it was unnecessary for the judge to remark that the offence was separated from murder by only a thin thread. Having so pleaded as aforesaid, that should have been the end of the matter; and in that regard the remark was uncalled for.

GREGORY RAPHAEL v. PASTORY RWEHABULA

HIGH COURT TANZANIA
AT BUKOBA

(Luanda, J.)

(PC) CIVIL APPEAL NO. 30 OF 2000

(From the District Court of Karagwe, Civil Appeal No. 2 of 2000, J. P. Ishengoma, esq., District Magistrate, on appeal from original Civil Case No. 5 of 1997, Nkwenda Primary Court)

Limitation of time – Computation of time for appeals to the High Court in matters originating in Primary Courts – Running of time – Whether time begins to run from the date of the decision or from the date of getting a certified copy of the decision.

Limitation of time – Limitation of time for appeals to the High Court in matters originating in Primary Courts – Law applicable – Whether section 25(1) and (3) of the Magistrates' Courts Act 1984 or sections 2, 19(2), 43(f) and 46 of the Law of Limitation Act 1971 are applicable.

Civil Practice and Procedure – Appeals – Appeals to the High Court in matters originating in Primary Courts – Computation of time – Law applicable.

This is a second appeal from a case that originated in the Primary Court of Nkwenda. The first appeal was lodged in the District Court of Karagwe whose judgment was delivered on 6 July 2000, but the Memorandum of Appeal to the High Court was lodged in the District Court on 15 August 2000 vide section 25(3) of the Magistrates' Courts Act 1984. In admitting the appeal the judge doubted whether the appeal was filed in time. The advocate for the appellant contended that the appeal was filed within time in view of the provisions of sections 2, 19(2), 43(f) and 46 of the Law of Limitation Act 1971 which, he argued, was the law applicable and not the Magistrates' Courts Act 1984.

Held: (i) The combined effect of sections 46 and 43(f) of the Law of Limitation Act 1971 is that the Act is not applicable where there is a clear time limit in other written laws and that such other time limits in other written laws are deemed to have been made by this law; accordingly, as section 25(1)(b) of the Magistrates' Courts Act 1984 clearly states the time limit for one to appeal to be 30 days, that time is deemed to be provided for by the Law of Limitation Act 1971;

(ii) section 19(2) of the Law of Limitation Act 1971 speaks about exclusion of the time taken for obtaining a copy of a decree or order after delivery of judgment but the section does not mention the judgment itself; accordingly, obtaining a copy of judgment is not one of the things for which time may be excluded: *expressio unius exclusio alterius;*

(iii) Attachment of copies of decrees and judgments is a condition precedent in instituting appeals originating from District Courts and courts of resident magistrates, but for appeals in matters originating from Primary Courts there is no such requirement and the filing process is complete when the petition of appeal is filed upon payment of the requisite court fees; accordingly, the appeal in this case is time barred as time started to run after the date of delivery of the decision of the District Court.

(iv) When hearing appeals originating from Primary Courts the law applicable is the Civil Procedure (Appeals in Proceedigns originating in Primary Courts) Rules 1963 (G.N. 312/1964)

Appeal dismissed

Case referred to:

(1) *Salim Rashid v. Hadija d/o Abdallah* (1967) HCD n. 154

Statutory provisions referred to:

(1) Magistrates' Courts Act 1984, sections 25(1)(b,) (3) and (4)

(2) Law of Limitation Act 1971, sections 2, 19(2), 43(f), and 46

(3) Civil Procedure Code1966 Order 39, rule 1

(4) Magistrates' Courts Act 1963 Chapter 537, section 21(1)(b)

(5) Civil Procedure (Appeals in Proceedings Originating in Primary Courts) Rules 1963, rules 2 and 4(1) and (2)

(6) Tanzania Court of Appeal Rules 1979, rule 89(1)

Mr Rweyemamu, for the Appellant

JUDGMENT

(Delivered 18 August 2004)

Luanda, J.: When this PC Civil Appeal was placed before me for admission or otherwise, I directed the District Registrar thus; I quote:

DR

Admit. To consider whether the appeal was filed in time.

(Sgd) B.M. Luanda

judge

9 October 2003

I did that because judgment of the first appellate District Court was handed down on 6 July 2000; whereas the "Memorandum of Appeal" was properly lodged in the District Court of Karagwe on 15 August 2000 vide ERV 11294240 as mandated by law vide section 25(3) of the Magistrates' Courts Act 1984.

The section provides:

> 25(3) Every appeal to the High Court shall be by way of petition and shall be filed in the District Court from the decision or order of which the appeal is brought.

After filing an appeal in the District Court, the District Court is required to forward the petition of appeal along with records of both the Trial Primary Court and the appellate District Court to the High Court (See section 25(4) of the MCA, 1984). This was done.

But an appeal to this court must be made within 30 days after the date of the decision of the District Court. However, if one is late to file within 30 days or feels that he will not make it, the law allows him to seek leave of this court to file outside the prescribed time of 30 days of course on showing good cause. Again this is provided under paragraph (b) of sub-section (1) of section 25 and its proviso of the above quoted law.

The section provides:

> 25(1) Save as hereinafter provided:
>
> (b) in any other proceedings any party, if aggrieved by the decision or order of a District Court in the exercise of its appellate or revisional jurisdiction may, within thirty days after the date of the decision or order, appeal therefrom to the High Court:
>
> Provided that the High Court may extend the time for filing an appeal either before or after such period of thirty days has expired.

From the above, I am of the settled mind that time started to run from 7 July 2000. Thirty days expired on 5 August 2000. So when

the appellant filed his appeal on 15 August 2000, he was late by ten days, hence my minute.

Mr Rweyemamu learned advocate for the appellant is of a different view. He submitted that time started to run after getting a certified copy of judgment. The copy was certified on 24 July 2000. However, he was unable to say when was the copy supplied to him or his client. Mr Rweyemamu said this being an appeal as defined by section 2 of the Law of Limitation 1971 this law is applicable as the issue of computing of time is involved and that the MCA, 1984 does not state how computation is done. Second, he said the term appeal does not exclude appeals from Primary Courts. Third, he said section 46 and section 43(f) of the Law of Limitation, 1971 are relevant as the MCA, 1984 does not forbid the use of the Law of Limitation 1971. So section 19(2) of the said law is applicable. He concluded by saying when computing time, the time of supply of judgment should be excluded. He cited *Salim Rashid v. Hadija d/o Abdallah* (1). He prayed that the appeal be considered as it was filed in time.

The respondent prayed the court to look into the matter.

The question for determination and decision in this matter is when does time of appeal on matters originating from Primary Courts to this Court start to run? Does time start to run right away after the date of the decision or after getting a certified copy of judgment?

I start with sections 46 and 43(f) of the Law of Limitation 1971.

The sections read:

> 46 Where a period of limitation for any proceeding is prescribed by any other written law, then, unless the contrary intention appears in such written law, and subject to the provisions of section 43, the provisions of this Act shall apply as if such period of limitation had been prescribed by this Act.

And section 43(f) provides:

This Act shall not apply to:

(f) any proceeding for which a period of limitation is prescribed by any other written law, save to extent provided for in section 46.

The combination of the two sections quoted *supra* are to this effect; the Law of Limitation, 1971 is not applicable where there is a clear time limit in other written laws and that such other time limit in other written laws are deemed to have been made by this law.

In our case section 25(1)(b) of the MCA, 1984 clearly states the time limit for one to appeal, i.e., 30 days. That time is deemed to have been provided for by the Law of Limitation, 1971. The two sections do not assist Mr Rweyemamu. I now turn to section 19(2) of the said Act.

Section 19(2) reads:

19(2) In computing the period of limitation prescribed for an appeal, an application for leave to appeal, or an application for review of judgment, the day on which the judgment complained of was delivered, and the period of time requisite for obtaining a *copy of decree or order* appealed from or sought to be reviewed, shall be excluded. [emphasis supplied]

The section speaks about the time of obtaining copy of a decree or order after delivery of judgment shall be excluded. The section does not talk about judgment itself. The copy of judgment is not one of them – *expressio unius exclusio alterius*. But the crux of the matter in my view is: Is a copy of judgment a condition precedent in filing an appeal in this court on matters originating from Primary Courts? This in turn bring us as to what is a petition of appeal and what are its contents. The Magistrates Courts Act 1984 is silent. However, the Civil Procedure (Appeals in Proceedings Originating in Primary Courts) Rules 1963 (G.N. 312/1964) which is the applicable law when hearing appeals originating from Primary Courts give us the answers; it both defines what is a petition of appeal and spells out the contents. Rule 2 defines what is a petition of appeal. It says:

"the petition of appeal" include the record of the grounds of appeal where the same have been stated orally and recorded by the District Court under the provisions of paragraph (b) of the proviso to subsection (3) of section 20 of the Act.

And what constitutes a petition of appeal, this is found under rule 4 of the said rules. The rule reads:

4(1) Every petition of appeal to a District Court from a decision or order of a Primary Court and every petition of appeal to the High Court from a decision or order of a District Court in the exercise of its appellate or revisional jurisdiction shall set out precisely and under distinct heads numbered consecutively the grounds of objection to the decision or order appealed against and shall be signed by the appellant or his agent.

(2) Every petition of appeal to the High Court shall be filed in duplicate.

As it can be seen, attachment of a certified copy of judgment is not one of the contents of the petition of appeal as it used to be in appeals originating from District Courts and courts of resident magistrate as is provided under Order 39, rule 1 of the Civil Procedure Code 1966 which law is not applicable in Primary Courts. Failure to attach Memorandum of Appeal along with copy of decree and judgment renders the appeal incompetent. Attachment of copies of decrees and judgments is a condition precedent in instituting appeals originating from districts courts and courts of resident magistrate. So it is proper to apply section 19(2) of the Law of Limitation 1971 for cases originating from those Courts. Similarly that is also a condition precedent in instituting civil appeals originating from this court to the Court of Appeal of Tanzania. (See rule 89(1) of Tanzania Court of Appeal Rules 1979).

But the position is different in instituting appeals in this court on matters originating from Primary Courts. Attachment of copies of decree or judgment along with petition of appeal is not a legal requirement. The filing process is complete when petition of appeal

is instituted upon payment of requisite court fees. If attachment with copies of judgment, as said by Mr Rweyemamu, is a condition *sine qua non* in filing PC civil appeal in this court, I think the rules i.e. The Civil Procedure (Appeals in Proceedings Originating in Primary Courts) 1964, G.N. 312/1964 would have stated so and in very clear words. The rules do not impose that requirement. So it is not proper to impose a condition which has no legal backing.

Mr Rweyemamu cited the case of *Salim Rashid* (1) The case originates from Primary Court. The facts are not very clear. It would appear *Salum* (plaintiff) was dissatisfied with the decision of the trial court and he intended to appeal. But he could not appeal within 30 days because he was awaiting for a copy of judgment and proceedings. Said J. (as he then was) observed. I quote:

> Until (plaintiff) had received such a copy the period of thirty days limitation could not be said to have started to run against him. Normally the time requisite for obtaining of an order appealed against should be excluded in computing the period of thirty days ...

This decision was handed down on 2 May 1967. By then the current Magistrates' Courts' Act 1984 was yet to come into existence. The law in use was the Magistrates' Courts Act Chapter 537 which had similar provisions as the current law viz MCA, 1984.

Section 25(1)(b) of the current MCA, 1984 is similar in wording with section 21(1)(b) of the repealed Chapter 537.

Back to the holding in *Salum* case. First, that decision is not binding upon this court. Second, for what I have said above I quite differ with that holding. It is my considered view that is not the law.

In sum, I am far from being persuaded that the appeal was filed in time. The appeal is time barred as time started to run after the date of the decision of the District Court.

The appeal is dismissed with costs.

MWITA S/O MHERE AND IBRAHIM MHERE *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Lubuva, Mroso and Kaji, JJ.A.)

CRIMINAL APPEAL No. 65 OF 2002

(From the decision of the High Court of Tanzania at Mwanza, Nsekela, J., dated 26 October 1999, in Criminal Appeal Nos. 123 and 124 of 1998)

Criminal Practice and Procedure – Defence of alibi – Defence of alibi raised without having first furnished the particulars of the alibi to the court or to the prosecution – Exercise of discretion by the court – Section 194(6) of the Criminal Procedure Act 1985.

Discretion – Judicial discretion – Judicial discretion defined.

Criminal Practice and Procedure – Discretion – Judicial discretion – Exercise of judicial discretion – Requirements for exercise of judicial discretion.

The appellants were convicted of robbery with violence by the District Court and sentenced to thirty years imprisonment. Their appeal to the High Court was not successful. They further appealed to Court of Appeal on two main grounds: that the evidence of identification was not water-tight and, with regard to the second appellant, that both the trial court and the first Appellate Court erred in not properly considering the evidence of *alibi*. The evidence of *alibi* was not properly considered because the second appellant had not given notice to the court or to the prosecutor that he intended to rely on the defence of *alibi* in compliance with the provisions of section 194(6) of the Criminal Procedure Act 1985. The Court of Appeal considered whether the court's discretion under section 194(6) was properly exercised by the mere statement that the court had exercised its discretion not to accord any weight to the defence of *alibi*.

Held: (i) Where a defence of *alibi* is given after the prosecution has closed its case, and without any prior notice that such a defence would be relied upon, at least three

things are important under the provisions of section 194(6) of the Criminal Procedure Act 1985:

(a) the trial court is not authorized by the provision to treat the defence of *alibi* like it was never made,

(b) the trial court has to take cognizance of that defence, and

(c) it may exercise its discretion to accord no weight to the defence;

(ii) When this court said in *Charles Samson v. Republic* (1) that a trial court should take into account the defence of *alibi* which was raised for the first time at the defence stage, it must have meant that the court acknowledges that the defence had been raised, albeit belatedly, then it proceeds to the next stage, to exercise its judicial discretion whether or not to accord any weight to it;

(iii) Judicial discretion is the exercise of judgment by a judge or court based on what is fair under the circumstances and guided by the rules and principles of law; the court has to demonstrate, however briefly, how that discretion has been exercised to reach the decision it takes;

(iv) In this appeal there were circumstances which, if the first appellate court had considered, could have influenced it to exercise its discretion to accord weight to the defence of *alibi* rather than decide, as it did, not to accord any weight to it;

(v) While the first appellant was reliably identified and therefore, was a participant in the armed robbery for which he was rightly convicted and sentenced, the prosecution case against the second appellant was not as strong as that against the first appellant and, bearing in mind that his defence of *alibi* was completely ignored, it will be unsafe to uphold his conviction.

Appeal by the first appellant dismissed

Appeal by the second appellant allowed

Cases referred to:

(1) *Charles Samson v. R.* [1990] T.L.R. 39

(2) *Salum Juma Kocho v. R.* [1994] T.L.R. 206

Statutory provision referred to:

(1) Criminal Procedure Act 1985, sections 194(6) and 19(4), (5), (6)

Mr Feleshi, State Attorney, for the Republic

JUDGMENT OF THE COURT

(Dated 01 September 2004)

Mroso, J.A.: The appellants, Mwita s/o Mhere and Ibrahim Mhere, were convicted of robbery with violence by the District Court of Musoma and sentenced to thirty years imprisonment. Their appeal to the High Court against conviction and sentence failed and they have resorted to this court. Mwita Mhere, who we shall henceforth in this judgment refer to as the first appellant, filed three grounds of appeal but at the hearing he sought and obtained leave to add three more grounds of appeal. Ibrahim Mhere, who we shall also henceforth in this appeal refer to only as the second appellant, originally filed five grounds of appeal. However, at the hearing of the appeal, like the first appellant, sought leave and was permitted to add seven more grounds of appeal. Despite the additional grounds however, all the grounds of appeal boil down to basically only two grounds namely, that the evidence of identification was not water-tight and, in the case of the second appellant, that both the trial court and the first appellate court erred in not considering the evidence of *alibi.*

At the hearing of the appeal the appellants fended for themselves and the respondent Republic was advocated for by Mr Feleshi, learned State Attorney. A brief resume of the evidence which was before the trial court is desirable.

During the night of 28 February 1997 when Obed s/o Ndaro (PW1) and his wife were sleeping in a house which also had a room which was used as a shop, bandits broke into the house and entered a room which was occupied by another tenant, one Sadiki Jumanne (PW3). They beat him up. He claimed that as there was enough light he was

able to identity the appellants and that they remained with him for 20 minutes before they left for PW1's room.

When the bandits were in the process of violently breaking into his room PW1 climbed to the ceiling in the room to hide himself. After they gained entry, he saw five bandits but claimed to have been able to identify three of them, two of whom were the appellants, with the aid of light from a chimney lamp in the room. The bandits, using torch light, spotted him in the ceiling. They ordered him to climb down. They attacked him with "*rungus*" and a "*panga*" and demanded to be given money. He gave them TZS. 100 000. From his wife they also got TZS. 100 000. They proceeded to his shop in the building from which they stole 20 pairs of *Khanga*.

Amani Mohamed (PW2), who also lived in a room in the same house, claimed to have identified the appellants after the bandits broke into his room. They assaulted him and he gave them money. Light from a chimney lamp in his room enabled him to identify the appellants, he claimed.

The first appellant was arrested on the following day by the police. His shop was searched and the police seized certain goods from it but later those goods were returned to him. He denied being involved in the robbery and claimed that the evidence which was given against him was all lies.

The second appellant was arrested four days after the robbery. He said he had gone to the police station to see the first appellant who had been arrested earlier. He was not in his village when the robbery was committed. He had been away in Bunda from 10 January 1997 until 3 March 1997 where he was being treated at a hospital which he named as DHH. He had medical certificates, he claimed.

During the hearing of the appeal the appellants questioned the claims of PW1, PW2 and PW3 that they identified them with the aid of chimney lamps. They said there was no evidence regarding the strength of such light as would assure liable identification. As

regards the evidence of PW1 the first appellant argued that the witness did not describe the size of the hole in the ceiling through which he was able to identify the bandits. He wondered why the police investigators who visited PW1's room did not testify at the trial to confirm or otherwise explain whether it was possible for PW1 to identify people in his room while he was in the roof. Both appellants argued that considering the terror which was caused by the violent breaking of doors and walls prior to the bandits entering the rooms occupied by the witnesses, such circumstances were not favourable to correct and reliable identification.

The second appellant had the additional argument that the trial court as well as the first appellate court misdirected themselves in disregarding his defence of *alibi*. He cited the case of *Charles Samson v. R.* (1) as supporting his argument. He complained that the trial court denied him his legal right to call a doctor and a nurse who attended him when he was admitted in hospital during the period he was supposed to commit the offence.

Mr Feleshi responded to the written and oral submissions of the appellants by arguing that the light from the chimney lamps was sufficient for accurate identification because it enabled the witnesses to know that the bandits put on dark clothes and that the first appellant had a gun and the second appellant had a rungu. Although the lamp in PW1's room was subsequently put off, that was after the bandits had been identified. Besides, PW3 said he had the bandits in view for 20 minutes which, with the available light facilitated accurate identification. On top of it all, PW1, PW2 and PW3 said they knew the appellants before the night of the robbery. PW3 said he identified the first appellant both by sight and voice and PW2 said the appellants used to visit his shop as customers.

We prefer to begin with the complaint by the second appellant that his defence of alibi was not properly considered. The trial court made a fleeting reference to the appellant's alibi but did not discuss it. It settled on brushing the appellants' defences as foolish and ridiculous.

The judge in the first appellate court on his part argued that since the second appellant did not comply with section 194(4) of the Criminal Procedure Act 1985 by giving notice to court and to the prosecutor that he intended to rely on the defence of *alibi,* it was enough for him to take cognizance of the defence of *alibi* and used his judicial discretion to accord no weight of any kind to that defence. With those words, no more was said about that defence in the judgment.

It is not apparent from the trial court record if the second appellant indicated at any time before the prosecution closed its case that he intended to rely on the defence of *alibi.* Of course, the appellant had no legal assistance and might not have known of that legal requirement regarding the defence of *alibi.*

Section 194(6) of the Criminal Procedure Act 1985 stipulates:

> If the accused raises a defence of *alibi* without having first furnished the particulars of the *alibi* to the court or to the prosecution pursuant to this section, the court may in its discretion accord no weight of any kind to the defence.

As mentioned earlier, the trial court simply considered all the defences by the apopellants as foolish and ridiculous. So, section 194(4) (5) and (6) of the Criminal Procedure Act 1985 was simply not in the mind of the trial magistrate. As for the High Court, the question is whether the court's discretion under section 194(6) was properly exercised by the mere statement that the court had exercised its discretion not to accord any weight to the defence of *alibi.*

In the case of *Charles Samson v. R.* (1) which the learned judge of the first appellate court cited, the Court of Appeal considered the import of section 194(6) of the Criminal Procedure Act 1985 and said, *inter alia*:

> It is obvious, on a proper construction of the provisions of this section, that the court is not exempt from the requirement to take into account the defence of an *alibi,* where such defence has not been disclosed by an accused person before the prosecution closes its case. What this section means is that where such disclosure is not made, the court, though taking cognizance of such defence, "may in its discretion, accord no weight of any kind to the defence."

We note from the above passage that in the case of a defence of *alibi* which is given after the prosecution has closed its case, and without any prior notice that such a defence would be relied upon, at least three things are important under sub-section (6) of section 194 of he Criminal Procedure Act 1985. First, that the trial court is not authorized by the sub-section to treat the defence of *alibi* like it was never made. Second, it follows that the trial court has to take cognizance of that defence. Third, it may exercise its discretion to accord no weight to the defence.

The trial court as already mentioned did not at all advert to section 194 let alone sub-section (6) of the section. The first appellate court which was entitled to step in the shoes of the trial court, referred to the subsection. The questions here are whether it took into account the defence of *alibi* and properly exercised its judicial discretion before deciding to accord no weight to it.

When this court in *Charles Samson* (1) said that a trial court should take into account the defence of *alibi* which was raised for the first time at the defence stage, it must have meant that the court acknowledges that the defence had been raised albeit belatedly, then it proceeds to the next stage, to exercise its discretion whether or not to accord any weight to it. Court's discretion must always be exercised judiciously.

According to **Black's Law Dictionary,** (6 ed), judicial discretion is the exercise of judgment by a judge or court based on what is fair under the circumstances and guided by the rules and principles of law. It will not, therefore, be sufficient in our considered view, to merely say that the court has exercised its discretion not to accord weight of any kind to the defence of *alibi,* and rest it at that. That court has to demonstrate, however briefly, how that discretion has been exercised to reach the decision it takes. For example, in the

case of *Salum Juma Kocho v. R.* (2) the appellant in that case also raised a defence of *alibi* for the first time during his defence. That trial judge rejected it. On appeal to this court, one of the things which were considered was the rejection of the defence of *alibi* by the trial High Court. This court said of the *alibi:*

> He had given no prior notice of this *alibi* as required under the law. Admittedly he was under no legal obligation to prove the *alibi* but in the face of the allegations made against him, one would reasonably expect him to call the said uncle to bear him out. However the appellant declined to do so despite suggestions to him in cross-examination. In these circumstances, therefore, no weight can be attached to his *alibi,* and the learned trial judge rightly discounted it.

It will be apparent that this court was attempting to explain the circumstances which led the trial court to exercise its discretion not to accord weight of any kind to the defence of *alibi.*

In the appeal now before us there were circumstances which, if the first appellate court considered, could have influenced it to exercise its discretion to accord weight to the defence of *alibi* rather than decide, as it did, not to accord any weight to it. The circumstances we have in mind are, first, that the second appellant was a lay person who was unrepresented and might not have known of the requirement under section 194(4) of the Criminal Procedure Act 1985 to give notice to the trial court and to the prosecution before the hearing of the case that he intended to rely on a defence of *alibi.* Secondly, the appellant said in his defence evidence that he had medical certificates to support his *alibi* and, thirdly, he was in fact supported in his *alibi* by a witness, Selemani Muhere (DW5), to the effect that he had been admitted in hospital during the period when the offence was committed.

Finally, he went to the police station of his own free will with a view to seeing the first appellant who was incarcerated there, suggesting he had no feelings of guilt. It was then that he was arrested. All these factors could have made the first appellate court come to the view

that the *alibi* was such as cried out for some probing questions regarding the alleged certificate or the doctor and nurse who were claimed to have attended him, in order to avoid the possibility of an innocent man being convicted for a serious offence he might not have committed. The question which we need to ask now is whether the failure by both the trial court and the first appellate court to consider the above circumstances in relation to the *alibi* may have denied him the opportunity to have his full case considered by the court. But before we decide on this issue, we find it appropriate to consider whether the evidence of identification against both appellants was so water tight that there was no likelihood of error in deciding that they participated in the robbery.

First, there is the question if there was sufficient light to enable PW1, PW2 and PW3 to identify the appellants reliably. It will be recalled that the three witnesses were not together when they saw the bandits. Each of the witnesses was in their own room and each claimed they saw the bandits with the aid of a chimney lamp in their respective rooms. So, each claimed independently to have identified the appellants. As regards the first appellant each of the witnesses said he had a gun. PW1 and PW2 were also able to identify the clothes he was wearing, which were black in colour. PW1 said that although he was in the ceiling, he was able to see this appellant through an opening in the ceiling and even though the light from the lamp was subsequently put out, he had already by then identified him. PW2 added that the first appellant used to be a customer at his shop, suggesting, he knew him before the night of the incident. PW3 identified him by both sight and voice. We, like the trial and the first Appellate Court, entertain no doubt that the first appellant was reliably identified and, therefore, was a participant in the armed robbery for which he was rightly convicted and sentenced.

PW1 and PW2 both claimed they saw and identified the second appellant as well. PW1 said the second appellant was holding a "*panga*" and a "*rungu*" but PW2 said the second appellant had a "*rungu*" and a "*sime*". Neither PW1 nor PW2 described the clothes which the

second appellant put on. PW3 did not say in his evidence if he saw and identified the second appellant. Although it was said that the second appellant was a brother of the first appellant, he could not have been the person who PW3 described as "*mdogo wake Mwita Muhere*" because, according to the witness, that person was not in Court, while the second appellant (who was the fourth accused) was in Court and he cross-examined the witness.

We observe therefore, that the prosecution case against the second appellant was not as strong as that against the first appellant and when it is born in mind that his defence of *alibi* was completely ignored, we consider that it will be unsafe to uphold his conviction. We, therefore, allow his appeal by quashing the conviction against him, set aside the sentence of thirty years imprisonment and the corporal punishment which were imposed on him. He is to be set free forthwith unless he is being held for some other lawful cause.

We dismiss the appeal by the first appellantin its entirety.

GODSON RIKANGA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Lubuva, Nsekela and Kaji, JJ.A.)

CRIMINAL APPEAL No. 72 OF 2002

(From the Conviction of the Resident Magistrate's Court of Arusha, Kapaya, PRM, Extended Jurisdiction, dated 31 May 1999, in RM's Court Criminal Appeal No. 74 of 1992)

Criminal Practice and Procedure – Sentencing – Sentence for armed robbery – Appellant condemned to a sentence higher than the law provided when the offence was committed – Sentence imposed is unlawful.

Statute – Retrospective Effect – Penal statute amended to enhance sentence prescribed forarmed robbery – Whether the enhanced sentence may apply to offence committed before the amendment – Section 5 of the Minimum Sentences Act 1972 as amended, section 49 of the Interpretation of Laws and General Clauses Act 1972, and article 13(6)(a) of the Constitution.

The appellant had been convicted of robbery with violence c/s 285 and 286 of the Penal Code and sentenced to 30 years' imprisonment by the District Court. His appeal to the High Court was unsuccessful. On this second appeal to the Court of Appeal he appealed against sentence only. On the day when the offence was committed the law prescribed a sentence of 8 years' imprisonment but after the trial had commenced the law was amended and prescribed a sentence of 30 years' imprisonment, to which he was then condemned. He argued that the sentence was not applicable to him.

Held: (i) The sentence of thirty years' imprisonment imposed upon the appellant was undoubtedly illegal.

Appeal allowed

Cases referred to:

(1) *Christopher Mwakabura v. Republic*

(2) *Abdul Abdallah v. Republic*

Mr Mulokozi, Senior State Attorney, for the Republic

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections 285 and 286

(2) Criminal Procedure Act 1985, section 170(1)

(3) Arms and Ammunition Ordinance Chapter 223, sections 13(1) and 31(2)

(4) Constitution, srticle 13(6)(a)

(5) Minimum Sentences Act 1972, Section 5 and 5(b)

REASONS FOR JUDGMENT

(Dated 04 October 2004)

Nsekela, J.A.: After hearing the appeal on the 30 September 2004, we reserved our reasons but ordered that the sentence imposed upon the appellant Godson s/o Rikanga be reduced to such term as would result in his immediate release. We now proceed to give our reasons.

This is an appeal against sentence only. In the District Court of Mondŭli, the appellant was charged with two counts, (i) Robbery with violence contrary to section 285 and 286 of the Penal Code,Chapter 16; (ii) Being in unlawful possession of Arms and Ammunition contrary to sections 13(1) and 31(2) of the Arms and Ammunition Ordinance Chapter 223 as amended by Act Number 13 of 1984, third Schedule. He was convicted on both counts and sentenced to thirty (30) year's imprisonment on the first count and ten (10) years' imprisonment on the second count. Sentences were to run concurrently. The appellant unsuccessfully appealed to the High Court, hence this appeal.

In his Memorandum of Appeal, the appellant raised three grounds of appeal. The complaint was essentially the illegality of the sentence meted out on the first count of robbery with violence. The appellant submitted that the offence was committed on the 11 April 1988 when the punishment under the then applicable law, was eight (8) years' imprisonment subject to confirmation by the High Court. The Act imposing thirty (30) years' of imprisonment became operational on the 26 May 1989 and this was after the trial of the case had commenced in the District Court. The appellant submitted that this was in contravention of article 13(6)(a) of the Constitution. He added that the learned Principal Resident Magistrate (Extended Jurisdiction) (Kapaya, PRM) did not consider this aspect at all in his judgment on appeal. On his part, Mr Mulokozi, learned Senior State Attorney, readily conceded that the sentence imposed upon the appellant was indeed illegal and should be corrected.

It is true that according to the charge sheet, the offence of robbery with violence was committed on the 11 April 1988. At that time the law applicable was the Minimum Sentences Act 1972 which provided under section 5(b) a minimum sentence of seven (7) years' imprisonment for robbery. Before sentencing the appellant, the Public Prosecutor addressed the trial court as follows:

> PP: I have no previous record for (*sic*) the present accused person. But the accused committed the offence in 1988. The Parliament has amended the offence to 30 years' imprisonment the sentence which I pray to be imposed.

The appellant was accordingly sentenced to thirty (30) years' imprisonment with twelve (12) strokes of corporal punishment. section 5 of the Minimum Sentences Act 1972 as amended by the Written Laws (Miscellaneous Amendments) Act 1989 Act Number 10 of 1989 provides as follows:

> 5(b) Where a person is convicted of robbery. The court shall sentence him to imprisonment for a term of not less than fifteen years;
>
> (bb) Where any person is convicted of armed robbery the court shall sentence him to imprisonment for a term of not less than thirty years.

Following this amendment of the Minimum Sentences Act 1972 by Act Number 10 of 1989, paragraph (b) of section 5 of the Act provided for a term of imprisonment of fifteen (15) years' imprisonment for armed robbery. The crucial issue in the appeal is that Act Number 10 of 1989 came into effect on the 26 May 1989, but the offence was committed on the 11 April 1988 at a time when Act Number 10 of 1989 was not in our statute books. section 49 of the Interpretation of Laws and General Clauses Act 1972 provides:

> 49. Where an act constitutes an offence, and the penalty for such offence is amended between the time of the commission of such offence and the conviction therefore, the offender shall, unless the contrary intention appears, be liable to the penalty prescribed at the time of the commission of such offence.

The offence was committed before Act Number 10 of 1989 came into effect. In addition at the time of the commission of the offence, the prescribed minimum sentence for the offence was seven year's imprisonment under section 5(b) of the Minimum Sentences Act 1972. And we would add at that time in terms of section 170(1) of the Criminal Procedure Act 1985 the power of a Subordinate Court in sentencing was limited to an award of a term not exceeding eight years imprisonment.

In the event, the sentence of thirty (30) years' imprisonment imposed upon the appellant was undoubtedly illegal and cannot be allowed to stand. (See: *Christopher Mwakabura v. Republic* (1); *Abdul Abdallah v. Republic* (2) The sentence is therefore rectified by substituting a term of imprisonment for seven (7) years' on the first count. However taking into account the fact that the appellant has been serving his term in prison since the 10 February 1992, we ordered on the 30 September 2004 that the appellant be released from prison immediately unless otherwise lawfully held for some other cause.

PERMANENT SECRETARY (ESTABLISHMENTS) AND ANOTHER *v.* HILAL HAMED RASHID AND FOUR OTHERS

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Mroso and Nsekela, JJ.A.)

CIVIL APPEAL No. 66 OF 2002

(From the decision of the High Court of Tanzania at Dar es Salaam, Kyando, J., dated 21 March 2002, in Civil Case No. 481 of 1999)

Police Officers – Termination of Service – Termination of Service in the Public interest – Services of Senior Police Officers abruptly terminated by the President by retirement in the Public interest – Whether the termination was lawful – Article 36(2) of the Constitution of the United Republic of Tanzania 1977 (1995 Edition) and section 3(2) of the Police Force and Prisons Services Commission Act 1990.

President – Powers of the President – Constitutional Powers of the President to remove a person from office – Whether the President may use those Powers to terminate service of Police officers – Article 36(2) of the Constitution (1995 Edition), and section 3(3) of the Police Force and Prisons Services Commission Act 1990.

Damages – Damages for unlawful termination of employment – Terminated officers claiming to be paid statutory salaries up to the date of compulsory retirement – Whether the claim is awardable.

The respondents were very Senior Police Officers. Their services were abruptly terminated on the grounds that the President had retired them in the public interest. They challenged their termination in the High Court, which held that they were unlawfully terminated. On appeal, the appellants defended the terminations and the respondents argued, *inter alia*, that they should be awarded damages in amounts equal to their statutory salaries up to their respective dates of compulsory retirement if they had remained in employment.

Held: (i) Being "retired in the public interest" is possible and lawful under the Civil Service Act 1989 which, however, was not applicable to the respondents because it categorically stated that it was not applicable to members of the Police Force;

(ii) Under article 36(2) of the Constitution the President is empowered to remove any officer from office and when the President retires any officer in the public interest he may be acting within his powers under the provisions of that article to remove that officer;

(iii) Although article 36(2) of the Constitution empowers the President to remove an officer from office, the application of the article is subject to other relevant law which, in this case is the Police Force and Prisons Services Commission Act 1990 whose section 3(2) vests the power to terminate Senior Police Officers in the President, but it has no provision for retirement in the public interest;

(iv) As the powers of the President to remove from office are subject to the provisions of the Police Force and Prisons Services Commission Act 1990, and the Act does not recognize retirement in the public interest, the respondents were wrongfully retired;

(v) It is baseless speculation to expect that once employed on permanent and pensionable terms, a person shall remain in that employment for life or up to the age of retirement; the claim for salaries up to the respondents' respective ages of compulsory retirement was, therefore, correctly refused by the trial court.

Appeal dismissed

Cases referred to:

(1) *McClelland v. Northern Ireland General Health Service Board* [1957] 2 All ER129

(2) *Attorney General v. Said Juma Shekimweri*, Civil Appeal Number 11 of 1998 (unreported)

(3) *Keke v. Chief Secretary and Clodumar v. Chief Secretary* [1987] LRC (const) 979

(4) *Jones v. Solomon* [1991] LRC 646

(5) *Twikasyege Mwaigombe v. Mbeya Regional Trading Co Ltd* [1988] T.L.R. 237

Statutory provisions referred to:

(1) Constitution of the United Republic of Tanzania 1977, article 36(2)

(2) Civil Service Act 1989 Number 16 of 1989, sections 2 and 19(3)

(3) Police Force and Prisons Services Commission Act 1990 Number 8 of 1990, sections 3(2) and 3(3)

Mr Chidowu, State Attorney, for the Appellants

Dr Twaib, for the Respondents

Editorial Note: Article 36 of the Constitution was amended in 2000 but the court made no reference to the amended version which came after the events leading to this case; the amendment, however, had no effect on the powers of the President considered in this judgment.

JUDGMENT OF THE COURT

(Dated 04 October 2004)

Ramadhani, J.A.: This is a consolidation of two appeals with respect to the judgment and decree of Kyando, J., in Civil Case Number 481 of 1999 in which Hilal Hamed and four others were the plaintiffs, and the Permanent Secretary (Establishments) and the Attorney General were the defendants. In Civil Appeal Number 64 of 2002 the plaintiffs are appealing against certain orders only while in Civil Appeal Number 66 of 2002 the defendants are contesting the whole judgment and denying any liability to the plaintiffs. So, we have taken the defendants to be the appellants and the plaintiffs to be the respondents with a cross appeal.

The respondents were very Senior Police Officers whose services were terminated abruptly by identical letters, dated 6 May 1996, from the first appellant to every one of them informing them that the President has terminated their services, albeit retroactively from 4 May 1996. The letters, which the learned judge collectively referred to as "the letters of retirement", reached the respondents after the

news of their termination had hit the headlines of some local newspapers, notably, *Daily News, Nipashe* and *Mtanzania.*

The respondents claimed that their premature retirement was illegal and invalid. Consequently, the respondents claimed payment of salaries and all dues owing to them from the date of premature retirement to the time of compulsory retirement age of each one of them, general damages to the tune of TZS. 300 000 000 for each, and interest from the date of judgment to the date of full payment.

Kyando, J., found from the letters of retirement that the respondents were "retired in the public interest", a phraseology obtained in the Civil Service Act 1989, which does not apply to the members of the Police Force by virtue of section 2 which defines a civil servant as 'a public officer holding or acting in a civil service office". Then the definition of a "civil service office" categorically excludes "the office of a member of the Police Force".

Members of Police Force are governed by the Police Force and Prisons Services Commission Act 1990, (Act Number 8 of 1990) (hereinafter referred to as the PFPSC Act). As the PFPSC Act does not contain the phrase "retirement in the public interest", Kyando, J., held that the respondents could not be retired in the public interest and that the premature retirement was illegal and void. He awarded damages of TZS. 70 000 000 to each of them for wrongful termination of employment with interest at court rate from the date of judgment to that of full payment.

However, the learned judge held that the respondents were not entitled to any payment from the date of illegal retirement to their respective dates of compulsory retirement. We better let the learned judge speak for himself:

> In the present case, too, the claims to payment from the date of the "premature" retirements to the dates of compulsory retirement are based on the assumption that the plaintiffs had to work up to the dates of their compulsory retirements. This assumption in view of the authority above [*McClelland B. Northern Ireland General Health Service Board* (1)] is wrong and it is also founded on speculations. This is because no one can know what the future holds for him. One can die before reaching the age of compulsory retirement or he can be dismissed from employment or he can even resign. I reject, therefore, in this case the claims in para (b) which are for payments up to the ages of compulsory retirement of the plaintiffs

The learned judge also dismissed another claim based on the Police Force Regulations, 1995, (GN 193/95) for respondents 1 and 2, Hilal Hemed Rashid and Edwin Abraham Man, for additional superannuating benefits due to officers of the rank of Commissioner of Police and above.

Mr Chidowu, learned State Attorney, appeared for the appellants and submitted that the letters of retirement cited section 36(2) of the Constitution of the United Republic, 1977, which in Kiswahili uses the phrase "kuwaondoa katika madaraka" and argued that this is correctly translated as "removal from office". He went further to submit that a couple of decisions in the Commonwealth have taken the word "removal" and the word "retire"to mean the same thing and pointed out that those decisions have been followed by this court in *Attorney General v. Said Juma Shekimweri* (2). It was submitted that the President had the power to do what he did with respect to the respondents, and so their termination was not illegal.

On behalf of the respondents was Dr Twaib, learned advocate, who submitted that the words "remove" and "retire" are not always synonymous. He submitted that the decision in *Shekimweri* (2) is confined to the facts of the case. He also pointed out that the powers of the President under article 36(2) of the Constitution are subject to other written laws, which include the PFPSC Act, and that the provisions of this Act were violated in the present case. He contended that the retirement of the respondents was unlawful.

We find it as a fact that the President terminated the services of the respondents by "retirement in the public interest". We cannot fault the learned judge's finding that the letters of retirement say so. We also agree with Mr Twaib that the appellants in their amended written

statement of defence pleaded so. The only issue is whether the President erred.

Article 36(2) of the Constitution was one of the laws cited in the letters of retirement and it provides, according to the edition of 1 July 1995, which was the one in force then, as follows:

> Bila ya kuathiri masharti mengineyo yaliyomo katika Katiba hii na masharti ya sheria yoyote inayohusika, mamlaka ya kuwateua watu kushika nafasi za madaraka katika utumishi wa Serikali ya Muungano, na pia madaraka ya kuwapandisha vyeo watu hao, kuwaondoa katika madaraka, kuwafukuza kazi na mamlaka ya kuthibiti nidhamu ya watu waliokabidhiwa madaraka, yatakuwa mikononi mwa Rais, Tume za Utumishi na mamlaka mengineyo yaliyotajwa na kupewa madaraka kuhusu nafasi yoyote au aina ya nafasi za madaraka kwa mujibu wa Katiba hii au kwa mujibu wa sheria yoyote inayohusika.

That can be translated:

> Subject to other provisions contained in this Constitution and to any other relevant law, the authority to appoint persons to offices in the service of the Government of the United Republic, and also the authority to promote such persons, to remove such persons from authority, to dismiss them from employment and the authority to discipline such persons, shall be vested in the President, the Service Commissions and any other authorities specified and empowered in respect of any office or category of office in accordance with this Constitution or in accordance with any relevant law.

Thus *"kuwandoa katika madaraka"* translates as "to remove such persons from authority" and so, the sub-article empowers the President to "remove" an officer from office. But, as already pointed out, the respondents were "retired in public interest". So, was this done under the provisions of article 36(2)?

Mr Chidowu referred us to *Shekimweri* where this court said:

> Going by the persuasive authorities in other Commonwealth countries, we hold that "remove" and "retire" mean one and the same thing.

Mr Twaib cautioned that the holding in *Shekimweri* should be confined to the facts of that case. However, that decision determined the meaning of two words used in two different legislation and that cannot be subject to the facts of a case.

Mr Twaib further argued that there are certain circumstances where the two words: "retire" and "remove" cannot be synonymous. Again that cannot be. In *Shekimweri* we followed the holding in *Keke v. Chief Secretary and Clodumar v. Chief Secretary* (3), one of the persuasive authorities, where it was said:

> The term "remove" means not only to dismiss but also to transfer or remove by retirement or change the situation of any person see **Shorter Oxford Dictionary**, (3 ed) Volume 2.

It suffices here to say that when the President "retire[s] in the public interest" any officer, he is acting within the provisions of article 36(2), that is to "remove" that officer. That is what was held in another persuasive authority relied upon in *Shekimweri* (2), *Jones v. Solomon* (4), at 662:

> In my judgment, the Commission acted within its jurisdiction in *removing* the respondent from public service on *retirement in the public interest...* [emphasis supplied]

However, the powers of the President under the provisions of article 36(2) are subject to other provisions of the Constitution and any other relevant law. In the present case the relevant law is the PFPSC Act, which provides in section 3(2) as follows:

> The power of appointment, promotions, confirmation and termination of appointment of Police and Prisons Officers above the rank of Assistant Commissioner is vested in the President of the United Republic.

The Act gives the President the power of "termination of appointment of a Police Officer above the rank of Assistant Commissioner". For the avoidance of doubt we have to state that according to *Shekimweri* (2) "termination" is also covered by the wider term "remove" obtained

in article 36(2). However, as already said, that article is subject to the provisions of section 3(2) of the PFPSC Act which specifically deals with the termination of (or the removal from) the appointment of Police Officers above the rank of Assistant Commissioner like the respondents.

In *Shekimweri's* Case (2) article 32(2), like in this case, was cited and the relevant law for the appellant in that case was the Civil Service Act, which provides for "retirement in the public interest" in section 19(3). However, the Civil Service Act categorically excludes police officers. In the case of the respondents, the relevant law, the PFPSC Act, does not contain the phrase "retired in the public interest".

There is no flicker of doubt in our minds that the Constitution overrides all other legislation, the PFPSC Act included. Admittedly, also article 36(2) of the Constitution empowers the President to "remove" from office any officer he has appointed. However, the same article subjects itself to any other relevant law, in this case, the PFPSC Act. It is a principle of interpretation that *generalia specialibus non derogant,* that is, general things do not derogate from special things. So, the controlling provision in the case of the respondents is the PFPSC Act, which does not recognize retirement in the public interest. Therefore, we agree with the learned judge that the respondents were wrongfully retired.

Having come to that finding, we now consider the alternative ground of appeal, that is, whether the award of damages of TZS. 70 million to each respondent is on the high side. We shall consider this side by side with the cross-appeal of the respondents that the learned judge erred in law in assessing damages.

Mr Chidowu submitted that the learned judge had wrong considerations in assessing damages. Then Mr Chidowu argued that the retirement dates of the respondents are not the same so, the quantum should not also be the same. Mr Twaib, on the other hand, contended that retirement in the public interest causes stigma and that the public take it as an indication of misconduct on the part of the individual

concerned. He pointed out that the first and predominant principle in damages is *restitutio in integrum,* that is, the restoration to the original position of the claimant.

Admittedly, the learned judge in assessing damages considered four matters: One, he considered the publicity which surrounded the retirement of the respondents. Two, he observed that "retirement in the public interest in this country carries a very bad stigma on the part of the retiree". Three, he accepted the evidence of the respondents that their families received the news "with shock and consternation and anguish". Lastly, he considered that the respondents lost their jobs.

We entirely agree with the last two considerations but we are rather uneasy with the first two. It is a fact that the news of the retirement of the respondents was splashed on three different newspapers. However, there was no evidence that the appellants were responsible for the publications. The respondents may consider suing the papers, subject to other relevant laws.

However, we are of the considered opinion that the last two considerations: the effect of the retirement on the members of the family, and the loss of employment, are weighty enough to dissuade us from interfering with the award. On the other hand, Mr Chidowu did not elaborate as to how to grade the damages on the basis of the differing compulsory retirement dates of the respondents. However, we are of the opinion that Kyando, J., ought to have taken into account that the first and the second respondents, who were Commissioners of Police, ought to have got slightly more. So, we grant TZS. 80 million to each and uphold the damages for the rest.

Then there was a cross-appeal that the learned judge erred in refusing to award statutory salaries to the respondents to the date of compulsory retirement of each. This need not detain us. We are in full agreement with the learned judge that the claim should fail. We endorse the observation by Mroso, J. (as he then was), in *Twikasyege Mwaigombe v. Mbeya Regional Trading Co Ltd* (5), at 241, that:

> There is sometimes a misconception that where a person is offered employment on permanent and pensionable terms, then that he must be employed for life and must be paid a pension.

Mroso, J, went on to list down a number of things that can prevent one from remaining in employment and so be eligible for a pension. For the same reasons a person may not be eligible to get salaries and other benefits for the period up to the compulsory retirement age. So, we dismiss this ground of cross-appeal.

Another ground of cross-appeal was raised by first and second respondents that they are entitled to further superannuating benefits under the Police Force Service Regulations 1995 (G.N. 193/95). Kyando, J. said:

> The plaintiffs called no evidence on this point and I hold that the regulations relied on by the first and second plaintiffs, though they exist, are not operative and they do not confer on these plaintiffs the benefits which they claim under them, i.e. the regulations. I reject, therefore, these claims here.

We cannot fault the learned judge. It was up to the respondents to beef up their case and to show that the regulations are operative. That, they did not do. On the contrary, the appellants produced Mrs Hawa Mmanga, who was the Director of Pensions in the Ministry of Finance, and the Deputy Commissioner of Police, Abbas Hamis Awamasoli, who was the Chief of Administration in the Police Force. Both said that the regulations are not in force. We dismiss this ground, too.

Before we conclude, there are two matters we wish to comment on. First, we are disturbed by the disability of some of the members of staff of the first appellant who violate left, right and centre the principle of confidentiality in State matters. In this appeal the letters of retirement were written on 6 May 1996, and on the next day the news were splashed on three dailies and the radio while four respondents received their letters on 13 May 1996, and the first respondent got his on 10 May 1996. It is obvious that some one spread the news on

the same day the letters were written. A similar thing happened in the case of *Shekimweri* who was officially informed of his retirement on 4 August 1995, while the news that twenty eight Immigration Officers, including Shekimweri, had been sacked by the Minister of Home Affairs appeared in the *Daily News* on 2 June 1995, two months earlier. This state of affairs is most unfortunate and intolerable.

The second matter is that the appellants, who are advisers of the President, mishandled the whole affair and led the President into this deplorable situation. As already said, the respondents were all very senior officers with distinguished service. They could have been consulted and the issue of their premature retirement could have been settled in a way more satisfactory than the course that was taken. We concede that almost all very senior appointments are subject to utmost confidence and trust of the statutory appointing authority on the appointee. This is particularly so with the disciplined forces. If confidence and trust vanishes, then the authority has either to talk to the officer into premature retirement or to take disciplinary measures, which might not be an easy thing to do especially if the record of the officer is clean.

In the final analysis the appeal is dismissed with costs. The cross-appeal is partly allowed but on a matter which was raised by the appellants. For the avoidance of doubt the respondents were unlawfully retired and consequently they are entitled to damages of TZS. 80 million for the first and second respondents, and for the remaining three respondents, TZS. 70 million each. Interest shall be charged at court rate up to the date of full payment from the time of the judgment of the High Court in the case of TZS. 70 million and from the date of this judgment with respect to TZS. 80 million.

DEEMAY DAATI AND TWO OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Lubuva, Nsekela and Kaji, JJ.A.)

CRIMINAL APPEAL No. 80 OF 1994

(From the Judgment of the High Court of Tanzania at Arusha, Munuo, J., dated 18 December 1992, in Criminal Appeal No.74 of 1992)

Criminal Practice and Procedure – Adjournment – Case adjourned for a period running beyond 60 days – Whether the adjournments vitiated the whole proceedings in the case – Section 225(4) and (5) of the Criminal Procedure Act 1985.

Evidence – Evaluation of evidence and credibility of witnesses – First appellate court makes fresh evaluation of evidence and comes to its own conclusion and varies the trial court's findings on credibility of witnesses – Whether the first appellate court acted properly.

Evidence – Evidence of a child of tender years – Evidence given without conducting voire dire examination but corroborated by an adult witness – Whether the omission to conduct voire dire examination rendered the evidence worthless – Section 127(1) of the Evidence Act 1967.

This is a second appeal. In the first appeal to the High Court by the Director of Public Prosecutions, the judge reversed the decision of the District Court which had acquitted the appellants because the trial magistrate doubted the credibility of the witnesses one of whom was ten years old although his evidence was corroborated by another adult witness. The High Court found the appellants guilty and sentenced each of them to five years' imprisonment and ordered them to pay compensation for the stolen cattle. On further appeal;

Held:(i) Unless the accused is prejudiced, the proceedings are not vitiated by adjournment granted beyond the aggregate period of 60 days;

(ii) It is common knowledge that where there is misdirection and non-direction on the evidence, or the Lower Court has misapprehended the substance, the nature and the quality of the evidence, an appellate court is entitled to look at the evidence and make its own findings of fact;

(iii) The learned judge on first appeal was entitled to re-evaluate afresh the evidence and come to the conclusion that the appellants were improperly acquitted by the trial court;

(iv) It is settled law that the omission to conduct *voire dire* examination of a child of tender years brings such child's evidence to the level of unsworn evidence of a child which requires corroboration; in this case the evidence was fully corroborated.

Appeal dismissed

Cases referred to:

(1) *Director of Public Prosecutions v. Fonja Mathayo* [1995] T.L.R. 23

(2) *John Joseph Onenge and Julius Senene v. Republic* [1993] T.L.R. 131

(3) *Peters v. Sunday Post Ltd* [1958] EA 424

(4) *Salum Mbando v. Republic* [1993] T.L.R. 170

(6) *Kilengeny Arap Kolil v. R.* [1959] EA 92

(7) *Kisiriri Mwita s/o Kisiriri v. R.* [1981] T.L.R. 218

(8) *Dahiri Aly v. R* [1989] T.L.R. 27

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections 268 and 265

(2) Criminal Procedure Act 1985, section 5(4) and (5)

(3) Evidence Act 1967, section 127(1) and (2)

Mr Chadha, for the Appellants

Mrs Ntilatwa, for the Republic

JUDGMENT OF THE COURT

(Dated 05 October 2004)

Lubuva, J.A.: This is a second appeal. In the first appeal to the High Court by the Director of Public Prosecutions, Munuo, J. (as she then) was reversed the decision of the District Court at Babati acquitting the appellants, Deemay Daati, Hawa Durbai and Nada Daati. The appellants were therefore found by the High Court guilty of the offence of cattle theft contrary to sections 268 and 265 of the Penal Code. They were each sentenced to a term of five (5) years imprisonment and were further ordered to pay TZS. 75 000 compensation for the stolen two bulls.

Briefly stated, the prosecution case was as follows. On 4 July 1990, at Utwari Village in Babati, the appellants collected three head of cattle from Faustin Cyril (PW2), the son of Cyril Baha (PW1) on the pretex that PW1 had sent them to collect the cattle. PW2, believing that PW1 had sent the appellants for the bulls released the same. The three head of cattle were driven by the appellants and were never recovered. At the time the appellants made the presentation to PW2 until the time of the release of the cattle, Humri Tatok was present, he witnessed the incident. Faustin Cyril (PW2) had no difficulty in believing that the appellants had been sent for the cattle by his father (PW1) because the first and third appellants were his uncles and the second appellant was a neighbour. The evidence of PW2 who was then ten years old was supported by the evidence of Humri Tatok (PW3).

The trial District Court was not satisfied with the evidence of PW1, PW2 and PW3. The magistrate doubted the credibility of these principal witnesses. In the case of PW2 the magistrate found him unbelievable because he had not reported the matter to his sister one Yasinta or to his grandmother. As for the complainant (PW1), the trial magistrate took the view that his evidence was fabricated in revenge for the desertion from the matrimonial home of PW1 by

one Fabiola, a sister of the first and second appellants. As said before, on the basis of such doubt, the trial magistrate acquitted the appellants. The Director of Public Prosecutions appealed to the High Court against the decision of the trial court.

Dealing with the appeal, the learned judge on first appeal was of the settled view that the trial magistrate misdirected himself in evaluating the evidence of PW2 and PW3, the eye witnesses to the incident. The learned judge also faulted the trial magistrate for according undue weight to the alleged marital discord between PW1, the complainant, and Fabiola, the sister of first and third appellants. According to the learned judge, the evidence of the young boy, PW2, was pertinent and straightforward. The first and third appellants as uncles and the second appellant, a neighbour, were well known to PW2. In that situation, the learned judge further held that as the three head of cattle were driven in broad day light witnessed by Humri Tatok (PW3), the question of mistaken identity of the appellants did not arise. Consequently, as already shown, the appeal was allowed, the appellants were found guilty as charged. Aggrieved the appellants have therefore preferred this appeal.

In this appeal Mr Chadha, learned counsel advocated for the appellants. He filed a five-point Memorandum of Appeal the sum total of which is to the following effect: First, that under ground five (5) the complaint is that as the trial court did not comply with the mandatory provisions of section 225(4) and (5) of the Criminal Procedure Act 1985 the proceedings were rendered a nullity. Second, that it was improper for the High Court as first appellate court to evaluate afresh the evidence of witnesses whom it had not seen or heard. Third, that the trial magistrate's omission to conduct *voire dire* examination of PW2, a child of tender years was a violation of section 127(1) of the Evidence Act 1967.

Regarding the first ground of complaint, Mr Chadha vigorously criticized the learned judge on first appeal for not addressing the issue pertaining to the violation of the provisions of section 225(4) and (5) of the Criminal Procedure Act 1985. He stated that under

the provisions of section 225(4) (5) of the Criminal Procedure Act 1985, for specified offences such as this, subject of the case, it shall not be lawful for a court to adjourn the case for an aggregate of 60 days after the institution of the case unless a certificate is filed by the Regional Crime Officer, the State Attorney or the Director of Public Prosecutions.

In this, he further submitted, as no such certificate was filed and the case was adjourned for a period beyond 60 days, the breach of the mandatory provisions of the section vitiated the whole proceedings of the case. To hold otherwise, Mr Chadha urged, renders the provisons of section 225(4) and (5) meaningless. He also pointed out that when the application for bail pending appeal was heard in this matter in the High Court, both the judge and the Principal State Attorney had conceded on this point.

For the respondent/Republic, Mrs Ntilatwa, learned Senior State Attorney, strongly opposed these submissions. While she conceded that there was no certificate filed in this case, she firmly maintained that the proceedings were nonetheless not vitiated. In her view, it had not been shown that the appellants had been prejudiced in any way by such adjournment. In support of her submission, she referred to the decision of the court in *Director of Public Prosecutions v. Fonja Mathayo* (1) and *John Joseph Onenge and Julius Senene v. Republic* (2).

With respect, we agree with Chadha, learned counsel that the provisions of section 225(4) and (5) of the Criminal Procedure Act 1985 were breached. This is so for the reason that the case was adjourned beyond the aggregate of 60 days without the requisite certificate being filed. However, we do not agree with him that the granting of adjournment beyond the aggregate of 60 days vitiated the whole proceedings. It is common knowledge that the objective behind the enactment of Act Number 9 of 1985 which introduced the provisions of section 225(4) and (5) was to expedite fair trial of criminal cases. We do not, however, think that in achieving this

objective, it was also intended to throttle the cases in the process. To do so, we also think, would defeat the whole purpose of initiating prosecution in cases which may be throttled in this way even where there may well be plausible reasons for failure to file the certificate. It is to be pointed out at once that where there is no certificate filed under sub-section (4) of section 225, the only option open for the court is to proceed with the hearing of the case or to discharge the accused.

Otherwise, it is our view that contrary to Mr Chadha's submissions, unless the accused is prejudiced, the proceedings are not vitiated by adjournment granted beyond the aggregate of 60 days. In *Director of Public Prosecutions v. Fonja Mathayo* (1) the court held *inter alia:*

> Breach of the provisions of section 225(4) and (5) of the Criminal Procedure Act 1985, does not necessarily vitiate the trial unless it is shown that the accused person has been prejudiced in his defence or that the adjournments did affect the substance of the conduct of the trial.

In *Joseph Onenge* (2) the court held similar views. In the instant case, neither has it been shown that the appellant was prejudiced in his defence nor that the adjournments did affect the substance of the conduct of the trial. We therefore find no merit in ground five regarding section 225(4) and (5) of the Criminal Procedure Act 1985. It is dismissed.

Mr Chadha, learned counsel, also strongly attacked the learned judge on first appeal for evaluating the evidence afresh and coming to its own conclusion. He submitted that it was improper for the learned judge to interfere with the findings of fact with regard to the credibility of the witnesses PW1 and PW3 who the trial magistrate had the advantage of hearing and seeing their demeanour.

Responding to these submissions, Mrs Ntilatwa, learned Senior State Attorney briefly stated that the learned judge properly re-evaluated the evidence of PW2 and PW3. She said the High Court as the first

appellate court and the Court of Appeal on second appeal, have power to re-evaluate the evidence afresh and come to their own conclusion.

We need not be delayed in this ground of complaint. It is common knowledge that where there is misdirection and non-direction on the evidence or the Lower Courts have misapprehended the substance, nature and quality of the evidence, an appellate court is entitled to look at the evidence and make its own findings of fact. In *Peters v. Sunday Post Ltd.* (3), the Court of Appeal for East Africa set out the principles in which an appellate court can act in appreciating and evaluating the evidence. Among other things, it was held:

> Whilst an appellate court has jurisdiction to review the evidence to determine whether the conclusion of the trial judge should stand, this jurisdiction is exercised with caution if there is no evidence to support a particular conclusion, or if it is shown that the trial judge has failed to appreciate the weight or bearing of circumstances admitted or proved, or has plainly gone wrong, the appellate court will not hesitate so to decide.

This principle had been reiterated eleven years (11) before in England in the case of *Watt v. Thomas* (4) 1 All ER 582. Within the jurisdiction of the court, in *Salum Mhando v. Republic* (5), the court observed *inter alia:*

> Where there are misdirections and non-directions on the evidence a court of second appeal is entitled to look at the relevant evidence and make its own findings of fact.

In the instant case, all the more so for a first appellate court, the High Court, we think the learned judge was justified in interfering with the findings of the trial court with regard to the evidence of PW2 and PW3. From our perusal of the evidence on record it is clear that the trial magistrate cast doubt on the evidence of these witnesses on what seems to us fanciful grounds. The evidence of PW2, a ten year old boy, is, to our minds, clear and straight forward. He knew the appellants as his uncles (first and third appellants) and neighbour (second appellant). It was broad daytime when the appellants

made the representation to PW2, it was made within sight and hearing of PW3 who fully corroborated the evidence of PW2.

Furthermore, the evidence of PW1, the complainant was, in our view, discredited on what seems to us extraneous reasons. In the event, we are satisfied that the learned judge on first appeal was entitled to re-evaluate afresh the evidence and come to the conclusion that the appellants were improperly acquitted by the trial court.

With respect, we do not accept the novel point made by Mr Chadha that PW3 was a chance witness, and so, his evidence was unreliable. Whatever is meant by chance witness, it is plain truth that PW3 was at the scene of crime when the appellants made the representation to PW2. In his evidence (PW3), stated that he heard and saw the appellants drive away the cattle. We can see no ground for discrediting the evidence of this witness. On the whole, therefore, upon proper evaluation of the evidence as the learned judge did, we agree with Mrs Ntilatwa that there was ample evidence to justify the appellants' conviction.

Finally, we wish to deal briefly with the complaint regarding the evidence of PW2. We agree with Mr Chadha that the evidence of PW2 was that of a child of tender years. We also agree that it is apparent that the trial magistrate did not comply with the provisions of section 127(1) of the Evidence Act 1967. From the record at page 20 of the proceedings it is apparent that when PW2 was called on to testify, it is indicated: "Examined and satisfied the court that he can give a sworn evidence; sworn and states". Section 127(1) of the Evidence Act 1967 provides to the effect that in a criminal case where a child of tender years is called as a witness does not, in the opinion of the court understand the nature of an oath, his evidence may be received, though not given upon oath or affirmation, "if in the opinion of the court *to be recorded in the proceedings* – he is possessed of sufficient intelligence..." [emphasis supplied]

From this extract in the proceedings, it is not clear that *voire dire* examination was conducted. It seems to us that this aspect was

scantly dealt within this manner. In that situation, we agree with Mr Chadha that the provisions of section 127(2) of the Evidence Act 1967 were breached. With respect, this aspect was not also addressed by the learned judge. The effect of the omission is the issue for consideration in this appeal.

It is settled law that the omission to conduct *voire dire* examination of a child of tender years brings such evidence to the level of unsworn evidence of a child which requires corroboration. Decided cases on this are numerous. See for instance: *Kilengeny Arap Kolil v. R* (6), *Kisiriri Mwita s/o Kisiriri v. Republic* (7), and *Dahiri Aly v. Republic* (8)

If we understood Mr Chadha, he seemed to take the view that as a result of such omission, the evidence of PW2 was rendered worthless. With respect, this is not the correct position of the law. Under sub-section (2) of section 127 of the Evidence Act 1967, the evidence of a child of tender years who, in the opinion of the court does not understand the nature of an oath, the evidence may be received like the evidence of any other unsworn witness. Such evidence however, requires corroboration.

In this case, even if it is accepted that PW2 was such a witness, namely that he did not understand the nature of an oath, his unsworn evidence was fully corroborated by PW3. As a result, with the evidence of PW2 corroborated by PW3, we are satisfied that upon consideration and evaluation of the evidence as the learned judge did, the appellants would still be found guilty of the offence as charged.

All in all therefore, on the evidence on record, we are satisfied that the learned judge was entitled to the conclusion that the case against the appellants had been proved conclusively.

In this event, we find no merit in the appeal; it is dismissed in its entirety.

JOSEPH MUNENE AND ALLY HASSANI *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Lubuva, Nsekela and Kaji, JJ.A.)

CRIMINAL APPEAL No. 109 OF 2002

(Appeal from the conviction of the High Court of Tanzania at Moshi, Munuo, J., dated 15 February 2000, in Criminal Appeal No. 33 of 1997)

Criminal Practice and Procedure - Preliminary hearing – Whether failure to hold a preliminary hearing vitiates proceedings in a case – Section 192 of the Criminal Procedure Act 1985 and rule 3 of the Accelerated Trial and Disposal of Cases Rules 1988.

The accused were charged with and convicted of armed robbery in the District Court. Their appeal to the High Court was dismissed and they appealed to the Court of Appeal. One of their grounds of appeal was that at the commencement of the trial the trial magistrate did not hold a preliminary hearing as required by section 192 of the Criminal Procedure Act 1985.

Held: (i) Holding a preliminary hearing is a mandatory requirement under section 192(1) of the Criminal Procedure Act and rule 3 of the Accelerated Trial and Disposal of Cases Rules 1988.

(ii) In the instant case the non holding of a preliminary hearing did not delay or cause extra costs or prejudice the appellants in any way.

Appeal dismissed

Cases referred to:

(1) *Mkombozi Rashidi Nassoro v. Republic* Court of Appeal Criminal Appeal Number 59 of 2003 (unreported)

(2) *MT 7479 Sgt Benjamin Holela v. Republic* [1992] T.L.R. 121.

(3) *John Kasanza and another v. Republic* Court of Appeal Criminal Appeal Number 27 of 2001 (unreported)

(4) *Efraim Lutambi v. Republic* Court of Appeal Criminal Appeal Number 30 of 1996 (unreported)

Statutory provisions referred to:

(1) Criminal Procedure Act 1985 and Rule 3 of the Accelerated Trial and Disposal of Cases Rules 1988, section 192

(2) Penal Code Chapter 16, sections 285 and 286

Mr Mulokozi, for the Republic

JUDGMENT OF THE COURT

(Dated 05 October 2004)

Kaji, J.A.: This is a second appeal. In the District Court of Rombo at Rombo, Joseph Munene and Ally Hassani who are hereinafter referred to as the first and second appellants, respectively were charged with and convicted of armed robbery contrary to sections 285 and 286 of the Penal Code Chapter 16. They were each sentenced to 32 years imprisonment and 12 strokes of the cane. They were also ordered to pay the complainant, Peter Ndeliva (PW2), TZS. 8 600 which they were alleged to have robbed him. On appeal to the High Court their appeal was dismissed, hence this appeal.

At the trial the prosecution adduced evidence to the effect that, on first August 1996, at about 6:30am, Peter Ndeliva (PW2) left his home at Kitowo Olele Mashati for Kwamakorosha Village to draw water. He had a bicycle, a 60 litre container and TZS. 8 600 with which he had intended to purchase maize. He left riding on the bicycle along Njaa road. The well at Kwamakorosha Village where he was going to draw water was about 5 kilometres from his home.

A short distance from his home he met the appellants and a third person who later escaped. The first appellant was armed with something resembling a firearm which later turned out to be a toy pistol. The second appellant had a matchet (*panga*). The third person who later

escaped had a gun. The 3 bandits stopped him by aiming the gun and the toy pistol at him and ordered him to give them all the money he had. They searched him and took the TZS. 8 600 he had in the pocket of his pair of long trousers. The second appellant cut the ropes which had tied tightly the 60 litre container onto the carrier of the bicycle. They left while one of them cycling carrying the other two, one of them carrying the container. PW1 ran after them while raising an alarm. His alarm was respondend to by villagers who included Jacob Moningo (PW3). They all ran after the appellants and the third bandit. When the bandits arrived at a stream they bumped into it and fell down thereby damaging the bicycle. They abandoned it together with the container and the matchet and took to their heels towards Tanzania/Kenya border. PW2, PW3 and other villagers pursued them. On the way the third bandit who had a gun fired in the air to scare the pursuers. It would appear it was through this threat that he managed to escape. But PW2, PW3 and other villagers continued running after the appellants who crossed the Tanzania/Kenya border into Kenya and took refuge in a Masai boma. The owner of the boma, Likimbiraiwai Ngatoya (PW4) apprehended the appellants assisted by some Morani. They were handed over to PW2, PW3 and other villagers who took them to the stream where the bicycle, container and matchet were. The appellants were later taken to Mkuu Police Station and later the court.

In this appeal the appellants who were not represented raised a total of 20 grounds of appeal which basically revolve on non compliance with section 192 of the Criminal Procedure Act 1985, identification, burden of proof, credibility of the prosecution evidence, age of the second appellant and severity of sentence.

At the commencement of the trial the learned trial magistrate did not hold preliminary hearing as required by section 192 of the Criminal Procedure Act 1985 on a mistaken belief that since the appellants were not represented by an advocate, that provision of the law was inapplicable. He was labouring under the old section 192 before its amendment which was effected by Act Number 19 of 1992. It is the

appellants' submission that failure to hold a preliminary hearing which was mandatory, vitiated the proceedings in the case.

In reply Mr Mulokozi, learned Senior State Attorney who appeared for the respondent Republic, conceded the error. However he was of the view that non-compliance with that provision of the law did not vitiate the proceedings because the appellants were neither prejudiced nor did it cause failure of justice or delayed the disposal of the case.

At this juncture we think it is convenient to set out the provisions of section 192(1) as amended. It provides:

> "192(1) Notwithstanding the provisions of section 229, if an accused person pleads not guilty the court shall, as soon as is convenient, hold a preliminary hearing in open court in the presence of the accused or his advocate if he is represented by an advocate and the public prosecution to consider such matters as are not in dispute between the parties and which will promote a fair and expeditious trial.

It is apparent, in our view that the provisions of section 192(1) are mandatory. Similarly rule 3 of the Accelerated Trial and Disposal of Cases Rules 1988 is couched in mandatory terms with regard to preliminary hearing. It provides:

> 1. In every case where a person pleads not guilty to the charge the presiding magistrate or judge shall hold a preliminary hearing on the day when the person charged or arraigned in the presence of his advocate either at his first or subsequent appearance in court, or if this is not possible, then as soon as it is practical.

In *Mkombozi Rashidi Nassoro v. Republic* (1) this court had an opportunity to give a brief historical background to the enactment of section 192 in the Criminal Procedure Act 1985 (hereinafter the Act) in the following terms:

> ...It is common knowledge that prior to the enactment of the Act, the then Criminal Procedure Code, 1966 (Chapter 20) did not contain a provision similar to section 192. It is apparent however, that as a result of complaints of dissatisfaction with the slow pace of the disposal of cases, Parliament in its wisdom enacted the Act which introduced section 192. The objective of the legislation was, as stated, to accelerate trials and the disposal of criminal cases ... From the wording of the legislation as seen from the section 192 of the Act and rule 3 it seems clear to us that the legislature intended to introduce a Wholistic scheme that would apply in criminal trials. This is in order to accelerate speedy disposal of criminal cases. That is, at the commencement of a trial where an accused person pleads not guilty, once the procedure laid down under section 192 of the Act is brought into play, it is mandatory for the trial court to strictly comply with the procedure set out in each of the subsections of section 192. This is the procedure which relates to the preliminary hearing. Failure to follow the procedure laid down under say, sub-section (3) and the rest of the subsections is fatal to the proceedings.

The court then cited the case of *Mt. 7479 Sgt. Benjamin Holela v. Republic* (2) where it was held:

> Section 192(3) of the Criminal Procedure Act 1985 imposes a mandatory duty that the contents of the memorandum must be read and explained to the accused.

The court cited also in this respect the case of *John Kasanza and Paulo s/o Dominick v. Republic* (3). That, in our view, is the position where the procedure laid under section 192 of the Act is brought into play.

But in the instant case the learned trial magistrate did not hold a preliminary hearing at all as required by the law. The crucial issue, therefore, is whether the proceedings in this case were vitiated.

We have already observed in this judgment that the intention of the legislature in enacting section 192 of the Act was to accelerate and speed up trials in criminal cases. This was emphasized also by the court in *Efraim Lutambi v. Republic* (4) where it said:

> .... the provisions of section 192 of the Act are very useful in the administration of criminal justice. They were intended by the legislature not only to reduce

the costs of criminal trials in the country, but also to ensure that those trials are, without prejudice to the parties, conducted expeditiously.

In the instant case, we think the issue is whether the proceedings were vitiated by the omission of the trial court to hold preliminary hearing. From our perusal of the record we have found nothing suggesting that the appellants' trial which proceeded without holding a preliminary hearing either delayed or caused extra costs or prejudiced the appellants. In fact through the appellants' defence as recorded in the proceedings, the appellants denied all essential matters of the case necessitating the prosecution to call witnesses to prove them. Also the trial took only one month and ten days, that is from 12 September1996 till 22 October 1996.

Under the circumstances we are satisfied that the proceedings which were conducted without invoking the procedure laid downunder section 192 of the Act, were not vitiated. With due respect, through an oversight, it seems the learned judge on first appeal did not address this issue. Had the judge addressed her mind to this aspect, we think she would have come to this conclusion.

Coming to the merit of the appeal, the crucial issue is the identification of the appellants PW2 testified at length how on the material day at 6.30am he left his home for drawing water, how he was invaded by the appellants who robbed him of his bicycle, TZS. 8 600 and a 60 litre container. His evidence was supported by PW3 who responded to the alarm raised and both of them together with other villagers pursued the appellants up to the *boma* of PW4. It was a continuous pursuit from when they robbed PW2 up to when they were apprehended in PW4's *boma*. It was during daytime. There was therefore no question of mistaking the appellants for somebody else. Even PW4 confirmed that it was the appellants who took refuge in his *boma* while being pursued by PW2, PW3 and others, until the appellants were apprehended thereat.

The appellants complained that the prosecution evidence was not credible in view of the contradiction in the evidence of PW1 on

one hand and PW2 and PW3 on the other or whether it was PW1 who picked up the live ammunition as stated by PW1, or a woman as stated by PW2 and PW3. In our view, this contradiction is minor and did not go to the root of the case. The appellants also complained that they were not found in possession of any of the stolen properties. Again this complaint is lame in view of the abundant evidence by PW2 and PW3.

The second appellant complained that at the material time he was 16 years old. We have noted the charge sheet shows his age to be 21 years, and his own statement when giving his evidence where he said he was 21 years old. This complaint therefore has no merits. In fact he had never raised it before the courts below. It is nothing but an afterthought which has no merits.

The first appellant who claimed to be a Kenyan citizen, complained why he was tried in Tanzania, and also why he was not assigned legal aid on government expenses. We have carefully considered this. It is common knowledge that the first appellant was tried in Tanzania because the offence was committed in Tanzania. He was not assigned legal aid on Government expenses because the government of Tanzania does not provide legal aid in cases of this nature, regardless of the nationality of the accused.

As far as sentence is concerned the minimum sentence for the offence of armed robbery as provided under Act Number 10 of 1989 as amended by Act Number 6 of 1994 is 30 years imprisonment. According to the circumstances of this case there were no aggravating factors calling for a sentence higher than the minimum. We think the learned trial magistrate had intended to impose the minimum sentence which is 30 years imprisonment. Likewise the learned judge on first appeal (Munuo, J. as she then was) was labouring under the same impression when she remarked in the judgment that the appellants were each sentenced to 30 years imprisonment plus 12 strokes of the cane. Since the sentence of 32 years imprisonment appears to have been inadvertently imposed, it is hereby set aside and substituted with a sentence of 30 years imprisonment.

In the event, save for the substitution of the sentence the appeal is otherwise dismissed in its entirety.

KALUNGA AND CO. ADVOCATES *v.* NATIONAL BANK OF COMMERCE LTD

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Shangwa, J.)

CIVIL REFERENCE No. 6 OF 2004

Civil Practice and Procedure – Bill of Costs – Judge orders bill of costs to be presented before a Taxing Officer for taxation – Taxing officer refuses to conduct taxation of the bill of costs – Whether proper.

Civil Practice and Procedure – Bill of Costs – Instruction fees – Whether or not an advocate has been instructed to be determined during taxation.

In High Court Civil Case Number 170 of 2000, the plaintiff, the National Development Corporation, withdrew the claim against both the defendant, National Bank of Commerce and the third party, the Bank of Tanzania. The plaintiff in that suit was represented by the applicant. The High Court granted the application to withdraw the claim but awarded costs to the Third Party. Thereafter, the applicant drew up a Bill of Costs totaling TZS. 2 069 784 and delivered it to the respondent for settlement. The respondent refused to settle it, querying what work the applicant had done, apart from filing an application to strike out the respondent's name from the suit, and that in any case payment would be subject to proper evidence that the applicant had been instructed in the matter. The Applicant's advocates then filed the Bill of Costs in the High Court, praying that the Bill be taxed by the Taxing Officer. The judge ordered the matter to be presented to the Taxing Officer for relevant orders. After the parties' advocates had filed written submissions, as directed by the Taxing Officer, the Taxing Officer refused to tax the Bill of Costs, saying that he would not do so until the question whether the applicant had been duly instructed was determined by a proper forum. Hence, the Civil Reference.

Held: (i) The Taxing Officer erred in refusing to conduct taxation of the Bill of Costs after the order of the judge requiring the Bill of Costs to be presented before the Taxing Officer for taxation; the refusal went beyond the order of the judge requiring the applicant's Bill of Costs to be taxed, and also defeated the Taxing Officer's own purpose of ordering the parties to argue the matter by written submissions;

(ii) If the applicant was not entitled to get even a single cent out of his Bill of Costs regarding his claim, the Taxing Officer had a duty to say so and to give the reasons therefor;

(iii) The question as to whether or not the Applicant had instructions from the respondent to defend in the civil case had to be considered and determined by the Taxing Officer during taxation;

(iv) In cases where a Taxing Officer finds that an advocate is not entitled to any remuneration or disbursement due to lack of instructions to defend the suit upon which a Bill of Costs is based, the course to be taken is not for the Taxing Officer to abdicate his responsibility such as was done in this case; the proper thing to do was to disallow it.

Taxing Officer's Ruling set aside; taxation to proceed before the Deputy Registrar

Mr Mwezi Mhango, for the Applicant

Mr Kabakama, for the Respondent

RULING

(Delivered 05 October 2004)

Shangwa, J.: This is a reference against the ruling of the Taxing Officer Mr S.A. Lila, DR, delivered on 16 April 2004. In his ruling, he refused to assess the applicant's Bill of Costs in Civil Case Number 170 of 2000 between NDC and NBC Ltd until the question as to whether or not the applicant had instructions from the respondent to defend it in the said case has been determined.

The order of costs in that case was passed by Bubeshi, J., on 31 January 2001. It reads as follows.

> claim withdrawn but third party to be awarded his costs.

This order was passed after Mr Malimi for the plaintiff NDC withdrew the claim against the defendant NBC Ltd and the third party, BOT.

After the award of costs, the applicant drew a bill of costs indicating a grand total of TZS. 2 069 784 and delivered it to the respondent for settlement. The respondent refused to settle it and made the following observation:

> The only visible work done by Kalunga and Co. Advocates, was the filing an application to strike out the name of National Bank of Commerce Ltd as a defendant to the suit as it was not a proper party.

Again

> subject to evidence of proper instructions, Counsel must show the actual legal work performed. Otherwise there is no justification for the Bank to pay the amount claimed.

After the respondent's refusal to settle the bill, the applicant approached M/s Mgongo Fimbo and Company, Advocates and M/s Mwezi Mhango and Company, Advocates for legal advice and representation. Both counsel decided to draw and file a Chamber Application supported by the applicant's affidavit in which they prayed for the following orders:

(a) An order that the relevant Bill of Costs be taxed by the Taxing Officer according to law.

(b) An order that the Taxing Officer taxes not only the Bill but also costs of the taxation and certifies what is due to the advocates, that is to say, the present applicant, in respect of the costs of taxation.

(c) An order that until the taxation is completed, no action shall be commenced on the Bill and any action already commenced be stayed.

The application for these orders was submitted before Madam Bubeshi, J., on 25 October 2002. On that date, Mr Mwezi Mhango for the applicant addressed the court as follows:

> Madame judge, all we need is your order to the effect that the matter be taken before the taxing officer master for taxation.

Upon this address Madam Bubeshi, J., ordered as follows:

> Let the matter be presented before the Taxing Officer for necessary Orders

On 3 March 2004, the matter was presented before the Taxing Officer, Mr S.A. Lila, DR, who ordered as follows:

> Advocate's Bill of Costs be argued by written submissions. Applicant to file by 12 March 2004. respondent by 19 March 2004. Rejoinder by 26 June 2004. Ruling on 16 April 2004

The parties' representatives did comply with the said Order. In his ruling, the Taxing Officer had this to say and I quote:

> The respondents in their submissions have raised a crucial issue which need be determined before the bills of costs can be taxed. The issue is whether the applicant had permission or authority or instructions from the respondent to represent or defend them in this matter (Civil Case Number 170/2000). The respondent have strongly denied to have given or assigned the applicant to defend them in the above cited matter... This is a matter requiring evidence to reach a just decision... Having said the above, it is my view that the issue as to whether the applicant had instructions to defend the respondent or not need be placed before a proper forum for its determination. It is after the above issue is determined then I will be able to exercise my powers...

Learned Counsel for the applicant are now seeking for the following orders from this court:

1. That the finding of Honourable Lila, Taxing Officer, that the matter proceed before a competent court to determine whether the applicant was or was not instructed by the respondent be set aside.

2. That the taxation proceed before another Taxing Officer of competent jurisdiction.

3. That costs follow the event.

Learned Counsel for the applicant, Mr Mwezi Mhango, submitted that the ruling of the Taxing Officer, Mr S.A. Lila, DR, seeks to overrule the order of Bubeshi, J. (Rtd), made on 25 October 2002, which was to the effect that the matter should go before the Taxing Officer for taxation.

He contended that his ruling has the effect of usurping the jurisdiction of the Court of Appeal which is the only competent authority to set aside the order of Bubeshi, J., of 25 October 2002.

On the other side, learned counsel for the respondent, Mr Kabakama submitted *inter-alia* that the Taxing Officer has wide discretionary powers and has a right to know whether counsel (Applicant) was in fact instructed to deal with the matter before he goes into carrying on the taxation exercise.

He argued that if the Taxing Officer has the power to grant the sum sought as instruction fee, the same Taxing Officer must have powers and a right to question and satisfy himself of the basis for the amount he is asked to grant.

In my opinion, I think the Taxing Officer went wrong in refusing to conduct taxation of the applicant's bill of costs after the order of Bubeshi, J., made on 25 October 2002, requiring the bill of costs to be presented before the Taxing Officer for taxation. His refusal to do so appears to me to be very strange. Apart from going beyond the order of Bubeshi, J., made on 25 October 2002 requiring the applicant's bill of costs to be taxed, he defeated his own purposes of ordering learned counsel for the parties to argue the bill by way of written submissions.

It goes without saying that the purpose of those submissions could not have been other than making a ruling as to how much costs out of the total claim is the applicant entitled to get from the respondent.

In case the applicant is not entitled to get even a single cent out of his Bill for lack of evidence in regard to his claim, the Taxing Officer had a duty to say so and give reasons. Likewise, in case the applicant is not entitled to be remunerated at all, the Taxing Officer had a duty to say so and give reasons.

This means that the question as to whether or not the applicant had instructions from the respondent to defend it in Civil Case Number 170 of 2000 had to be considered by the Taxing Officer himself and determine it during taxation. The Taxing Officer is an officer of the court with full powers and responsibility to determine such question. The proper forum to determine such question is during taxation.

Therefore, it was wrong for the Taxing Officer to direct the parties to go to another forum which he did not actually mention for determining the question as to whether or not the applicant had instructions from the respondent to defend it in Civil Case Number 170 of 2000. For the avoidance of doubt, I wish to state it categorically that there is no other forum that one may think of except the one I have just mentioned in which that question is supposed to be determined.

I would like to emphasize that in cases where a Taxing Officer finds that an Advocate is not entitled to any remuneration or disbursement due to lack of instructions to defend the suit upon which a Bill of Costs is based, the course of action to be taken is not to abdicate his responsibility such as was done in this case. The proper thing to be done is to disallow it.

For the reasons I have given in this ruling, I set aside the decision and finding of the Taxing Officer, Mr S. Lila, DR, and order that the taxation of the Applicant's Bill of Costs should proceed before the Deputy Registrar of the High Court of Tanzania

As no party to this reference is responsible for the wrong finding of the Taxing Officer, I order that each party should bear its own costs.

HUNAY LANGWEN AND THREE OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Ramadhani, Nsekela and Kaji, JJ.A.)

CRIMINAL APPEAL No. 120 OF 2002

(From the decision of the High Court of Tanzania at Arusha, Munuo, J., dated 6 October 1992, in Criminal Sessions Case No. 45 of 1990)

Criminal Law – Murder – Proof of death – Body of the victim of alleged murder not found – Judge accepting Police version without making any finding whether the victim is dead or not.

Criminal Practice and Procedure – Representation – Trial continued while some of the accused were not represented by counsel – Whether it was proper for trial to continue.

The four appellants had been convicted on the evidence of one eye witness, Hadandi Sige. According to Hadandi his younger brother, Gwandu, and their father were abducted, blindfolded and tied by a group of cattle rustlers who took away seventy nine head of cattle and taken blindfolded into a forest. As the captives kept on stumbling, the blindfolds were removed. The following day they were blindfolded again and Hadandi was tied to a tree and abandoned while his father was taken farther on. Hadandi managed to free himself and reported the matter. The following day a search party found the father, a T-shirt Gwandu had been wearing and his two sandals. There were drag-marks between where the sandals and T- shirt had been found. The police concluded that the deceased had been mauled by wild beasts. In his statement to the police produced at the trial Hadandi had said the kidnappers had left Gwandu at home before driving him and his father and the cattle away. In court he said Gwandu had also been kidnapped, adding that he could hear Gwandu's footsteps behind him. The trial had proceeded with three of the five accused unrepresented by counsel. The appellants were convicted on the police conclusion that Gwandu had been eaten by wild beasts. The judge did not make her own finding about the fate of Gwandu,

whether or not she agreed with the police conclusion. The Republic did not support the conviction.

Held: (i) The trial court should have made a finding on whether or not the evidence on record established beyond reasonable doubt that Gwandu was dead;

(ii) It was wrong for the trial judge to conduct the trial when three of the accused persons were not represented by counsel;

(iii) There was no conclusive proof that the victim was dead and because of the long period that had passed since the date of the incident complained of a retrial would serve no useful purpose.

Appeal allowed

Cases referred to:

(1) Laurent Joseph v. Republic [1981] T.L.R. 351

(2) Lekasi Mesawarieki v. Republic Criminal Appeal Number 31 of 1993

Statutory provisions referred to:

Mr S.N. Merinyo, for the Appellants

Ms. Neema Ringo, for the Republic

JUDGMENT

(Dated 27 October 2004)

Ramadhani, J.A.: The four appellants, together with another person, were charged with the murder of a boy, Gwandu Sige. The four appellants were convicted and sentenced to suffer death hence this appeal.

The learned trial judge was satisfied with the evidence of the only eyewitness, Hadandi, Sige, PW2, that on the night of 1 June 1998, one Sige Barie, now deceased, was asleep in his *boma* with his two sons, PW2 and Gwandu. Suddenly a group of cattle rustlers pounced on them taking away 79 head of cattle. The rustlers also kidnapped the deceased Sige, Gwandu and PW2 across the Warret

NAFCO wheat farms into the Mreru forest where they abandoned them.

PW2 said that from their house they were blindfolded so that they could not recognize their captors and they were tied with a rope. After sometime through the jungle and as PW2 and his father kept on stumbling, the blinds were taken off. However, early on 2 June 1988, they were blindfolded again and then PW2 was tied to a tree and abandoned while his father was taken farther along. PW2 managed to free himself and returned to the village to report. As it was already night time they waited for the morning to go searching for his father and Gwandu.

PW2 was positive that he identified the first appellant and the third appellant as the their kidnappers having had a thorough view of the two during the time the blinds were taken off and when they were just about to tie him to a tree and before they blindfolded him again.

As for the fate of Gwandu the learned judge had this to say:

> While still combing Mreru forest in search for Gwandu the search party traced the rope with which the little boy had been tied to a tree; near the rope was one of the boy's sandals. His other tyre sandal was recovered a few paces away where there were drag marks leading to what appeared to be a cave for wild animals. The T-shirt the boy last wore was also found at the scene but no traces of his other remains or bones were recovered. Since the clothing and tyre sandals were recovered in the midst of the Mreru forest and owing to the fact that the late Gwandu like his father and his elder brother, PW2 had been tied to a tree with a rope, and in view of the drag marks found between the tyre sandals and the T-shirt the boy last wore, the police concluded that the victim must have been mauled by wild beasts leaving no trace of his remains behind....

With due respect to the learned judge, she did not make her own findings of the fate of Gwandu. After she had carefully catalogued what was found and identified to belong to Gwandu, she stated the

conclusion of the police that "the victim must have bee mauled by wild beasts leaving no trace of his remains behind". She did not categorically say whether or not she agreed with that conclusion by the police. However, she used that conclusion in convicting the appellants:

> There is no way accused numbers 1, 2, 3 and 4 can avoid their responsibility in the cattle raid and kidnapping of Sige Barie, his elder son PW2 Handandi and the late Gwandu Sige whose remains must have been feasted upon by wild animals in the Mreru forest...
>
> Under the circumstances accused numbers 1, 2, 3 and 4 are guilty and convicted of murdering Gwandu Sige on the 1 June 1988 as charged.

The crucial finding in any charge of murder or manslaughter is whether there is a person who has been killed. The trial judgment has to make a categorical finding that someone is really dead and should not leave that to be by way of an inference. So, the issue in this appeal then is, Gwandu Sige dead?

Mr S.N. Merinyo, learned advocate, appeared for all four appellants and had six grounds of appeal. His ground three was that:

> The Honourable trial judge erred further in assuming the death of the alleged deceased without proof of such death without sufficient evidence to that effect.

The learned advocate referred us to the passage in the judgment which we have already quoted above cataloguing pieces of proofs that Gwandu is dead and then proceeded to point out errors. Mr Merinyo pointed out that it was not said that the T-shirt was found to be blood stained or ripped as should have been if Gwandu was devoured by a wild beast. The learned advocate submitted the same with respect to the sandals and the rope.

Mr Merinyo pointed out two contradicting pieces of evidence by PW2: First his testimony in court in which he said that Gwandu was also taken to the Mreru forest. Second, his Police Statement, Exhibit D1, in which he said that Gwandu was left behind at home.

For the respondent/Republic was Ms Neema Ringo, learned State Attorney, who stated that there are many deficiencies in the case and that the Republic does not support conviction.

In court PW2 said:

> My father and I were tied together with a rope, both of our left hands were tied to a rope and because we were also blindfolded we were simply driven out of our house jointly. Gwandu Sige was driven behind us, we could hear him walk behind us.

However, in Exhibit D1, PW2 said:

> *Walitufunga kamba mimi na baba na wakatutoa nje ya boma na tukaanza kubugozwa (sic) kupelekwa sehemu tusiyoifahamu huku mdogo wangu tukiwa tumemwacha pale nyumbani.*

That can be translated:

> They tied my father and me with a rope and took us out of the premises and started to lead us to an unknown destination while we had left behind my younger brother at our house.

We agree with Mr Merinyo that the statement, Exhibit D1, should be more accurate as it was given soon after the event, in June 1988, while the testimony in court was in September 1992.

But even his testimony in court raises some doubts. For instance, "Gwandu Sige was driven behind us, we could hear him walk behind us". There are two queries: One, PW2 could only have spoken for himself that he heard Gwandu walking behind them. How could he say on behalf of his father and hence use the plural form "we could hear"? Two, PW2 also said: "We could hear the footsteps of our herd of cattle following behind us at a distance of about 500 paces". We ask: could they honestly hear the footsteps of a boy of 11 years amidst the hoofs of 79 head of cattle, even if 500 paces away? We think not. He only imagined hearing the footsteps of Gwandu.

Of course, there is the question how did the T-shirt and the sandals get to the Mreru forest? We do not know. There are two ways of

looking at it: One, it is only a problem if PW2 is believed that the T-shirt was Gwandu's. Two, the paradox underscores the magnitude of the problem and amplifies the doubts surrounding the whole case. Trite law requires us to resolve the doubt in favour of the appellants.

If there is no proof beyond reasonable doubt that Gwandu Sige is really dead, then that is the end of the matter. So, we do not need to go to the other grounds exept, may be, one. Mr Merinyo pointed out that the record is loud and clear that the learned judge proceeded with the trial while accused persons 1, 3, and 5 had no legal representation. That was wrong. This court has clearly said so in *Laurent Joseph v. Republic* (1) and again in *Lekasai Mesawarieki v. Republic* (2). In those two decisions this court ordered retrials. In this case both Mr Merinyo and Ms. Ringo are at one that ordering a retrial for murder is useless as there is no conclusive proof that Gwandu is dead. We agree. Moreover, the incident was on 1 June 1988, while Munuo, J.'s judgment was on 6 October 1992, and we heard the appeal on 7 October 2004, that is, 12 years later.

So we quash the conviction of murder, set aside the sentences of death and order the immediate release of the appellants from custody unless their continued retention is lawful.

NATIONAL SOCIAL SECURITY FUND v. NEW KILIMANJARO BAZAAR LIMITED

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Ramadhani, Nsekela and Kaji, JJ.A.)

CIVIL APEAL No. 16 OF 2004

(From the Judgment and Decree of the High Court of Tanzania at Moshi, Mchome, J., dated 27 January 2003 in Civil Case No. 1 of 1999)

Civil Practice and Procedure – Preliminary objection – Certificate of delay issued by Registrar who had not supplied the appellant with documents requested – Certificate of delay incorrectly, improperly and erroneously certified – Effect.

On 10 February 2003 the advocate for the appellant had applied from the Registrar for supply of certified copies of proceedings of the court to enable the appellant to file an appeal. After failing to get a reply from the Registrar the advocate managed to get copies of the proceedings. By a letter the appellant confirmed to the Registrar about having obtained the proceedings on 23 May 2003 and requested the Registrar to issue a certificate of delay under rule 83(1) of the Court Rules. The Registrar issued the certificate of delay although he had not delivered to the appellant the proceedings and the appellant had not paid requisite fees. On the strength of the certificate the advocate filed an appeal.

When the appeal was due for hearing the advocate for the respondent raised a preliminary objection to the effect that the certificate of delay was incorrect, improper and erroneously certified and prayed for dismissal of the appeal for being time barred.

Held: (i) It is the duty of the High Court to supply documents applied for and supply them promptly and that the parties should exercise diligence in the conduct of their cases;

(ii) Since there was no payment of court fees it means that there was no official delivery of the documents to the appellant on the 23 May 2003. There should have been, in our view, an official communication from the Registrar to the learned advocate for the appellant that the documents requested in their letter dated 10 Febrhary 2003 were ready for collection and after that the Registrar would issue a certificate in terms of rule 83(1);

(iii) The certificate of delay issued by the Registrar was incorrect and misleading because by 23 May 2003 there was no evidence that the documents the advocate for the appellant had applied for from the Registrar had been supplied to him;

(iv) The fact that the Registrar had not supplied the appellant with the documents requested for rendered the certificate of delay incorrect.

Preliminary objection upheld

Cases referred to:

(1) *Mohsin Mohamed Taki Abdallah v. Tariq Mirza and 4 others*

(2) *D.T. Dobie and Company (Tanzania) Ltd. v. N.B. Mwaitebele*

(3) *The Commissioner of Income Tax v. C.W. Armstrong*

(4) *African Marble Company Limited v. Tanzania Saruji Corporation*

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rule 83(1)

(2) Evidence Act 1967, section 22

Professor Mwaikusa, for the Appellant

Mr Mwaluko, for the Respondent

RULING

(Dated 27 October 2004)

Nsekela, J.A.: In this appeal the appellant, the Board of Trustees of the National Social Security Fund, is appealing against the decision of the High Court (Mchome, J.) in High Court (Moshi District Registry) Civil Case Number 1 of 1999. When the appeal was due for hearing,

Mr Mwaluko, learned advocate for the respondent, raised a preliminary objection to the effect that:

> The Certificate of Delay at page 453 of the Record of Appeal is incorrect, improper and erroneously certified. Therefore the appeal is time – barred and liable to be dismissed with costs.

Not to be outwitted, Professor J.T. Mwaikusa, learned advocate for the appellant also filed a preliminary objection of his own seeking the dismissal of the respondent's objection. After a brief discussion between the Bar and the Bench, Proffessor Mwaikusa saw the futility of trying to pre-empt hearing of the objection already before the Court.

The certificate which is being challenged by the learned advocate for the respondent reads:

> This is to certify that the period from 10 February , 2003 when Mkono and Company Advocates, applied for copies of proceedings, judgment and decree and lodged Notice of Appeal to the Court of Appeal to 23 May 2003 when a copy of the final part of the proceedings was obtained from the court, is to be excluded from the computation of time within which to appeal against the decision in this case as the said period was required for the preparation and delivery of the said proceedings, judgment and decree.

Relying on this Certificate, the learned advocates for the appellant filed the appeal on the 21 July 2003. If reckoned from the 23 May 2003 as certified by the Registrar, the appeal was filed on time.

However, Mr Mwaluko thinks otherwise. The learned advocate forcefully submitted that this Certificate is incorrect because it states that a copy of the final part of the proceedings was obtained from the court on the 23 May 2003 when in fact none of those proceedings or any part thereof were delivered to the appellants.

On the 10 February 2003 Proffessor Mwaikusa, wrote a letter to the Registrar requesting for certified copies of proceedings; judgment; extracted decree and certificate under rule 83(1) of the Court Rules.

This was followed by a reminder dated 3 June 2003. This is an important letter and we take the liberty to quote it *in extenso*. It reads:

> We wish to refer your Honour to the case cited in the captioned (*sic*) above and our letter to you dated 10 February 2003 similarly titled and referring to the same subject.
>
> In that letter we requested your Honour to supply us with copies of the proceedings as well as the judgment and decree in the cited case, all of which we needed for purposes of lodging an appeal. We also asked for the Certificate of Delay under rule 83(1) of the Tanzania Court of Appeal Rules
>
> Unfortunately our letter has remained unanswered to date. All the same, we wish to confirm that on Friday 23 May 2003 our Professor J.T. Mwaikusa was able to obtain from Civil registry a copy of the final part of the proceedings which until then we had not been given. All that now remains unobtained in our list of requested items is the certificate under rule 83(1).
>
> In view of that, we would humbly request your Honour to supply us with the said Certificate specifically specifying that the period from 10 February 2003 when the judgment was delivered and the Notice of Appeal was filed, to 23 May 2003 when we obtained the completed record is to be excluded from the computation of time as it was required for the preparation and delivery of the proceedings.

Mr Mwaluko complained that according to the tenor of this letter, the Certificate of Delay was issued at the instance of the appellant's advocate. He was of the view that it was the duty of the Registrar to make the necessary computation of the period to be excluded in terms of rule 83(1) and then issue a certificate to that effect. The learned advocate added that the Certificate was incorrect since on the 11 October 2004 when he made an official search of the court file, there was no copy of the final proceedings that was given to Prof. Mwaikusa. The required court fees had not been paid and so the documents in question could not have been delivered and collected. Consequently, the exclusion period under rule 83(1) was not at that

date available to the appellant. The Certificate was therefore erroneously certified.

We granted to Prof. Mwaikusa a short adjournment to enable him to peruse the court file. At the resumed hearing, Professor Mwaikusa with deep conviction, submitted that the last part of the proceedings were collected on the 23 May 2003, but he candidly admitted that court fees had not been paid as required by law. However, he was of the settled view that the appeal was not filed out of time. He appeared to be throwing the blame on the Registrar for not supplying the remaining part of the record and not computing the court fees. The learned advocate implored the court not to strike out the appeal since this will be tantamount to punishing the appellant for following up the record and reminding the Registrar to issue the Certificate.

It is not in dispute that the learned advocates for the appellant on the 10 February 2003 made an application to the Registrar for certified documents as enumerated therein. This was followed by a reminder dated the 3 June 2003. These two letters did not evince a response from the Registrar. Instead, Professor Mwaikusa in his second letter informed the Registrar that:

> All the same, we wish to confirm that on Friday 23 May 2003 our Professor J.T. Mwaikusa was able to obtain from civil registry a copy of the final part of the proceedings which until then we had not been given.

It has now turned out that there was no payment of court fees. This means that there was no official delivery of the documents to the appellants on the 23 May 2003. There should have been, in our view, an official communication from the Registrar to the learned advocate for the appellant that the documents requested in their letter dated 10 February 2003 were now ready for collection, and after that the Registrar would issue a certificate in terms of rule 83(1). We deprecate what appears to be the clandestine obtaining of court documents and we cannot give our blessing to such conduct. We must discourage it at any cost. With respect, we subscribe to the observations made by the late Lugakingira, J.A. in Civil Application Number 100 of

1999 between *Mohsin Mohamed Taki Abdallah* and *Tariq Mirza and four others* (1) that it is the duty of the High Court to supply documents applied for and supply them promptly and that parties should exercise diligence in the conduct of their cases. The Registrar did not respond to the letter dated the 10 February 2003. Nor did the Registrar inform the learned advocates for the appellant that the copy for the last part of the proceedings was ready for collection. The learned advocates it would seem informally obtained the said copy from the court as is evident from their letter of 3 June 2003 confirming having obtained the missing documents from the court, not that it was given to them! We say informally because Prof. Mwaikusa admitted that no court fees was paid when he obtained the document on the 23 May 2003. This date has assumed importance because the limitation period would start to run from this date in filing the appeal under rule 83(1). In the case of *D.T. Dobie and Company (Tanzania) Ltd v. N,B. Mwaitebele* (2) this court at page 154 made the following observations:

> We have to point out at once that the Registrar's certificate is not and cannot be, beyond question. It is true that the Registrar has power to issue the certificate under the proviso to rule 83(1) of the Court of Appeal Rules. But we are quite clear in our minds that if there are grounds for thinking that the certificate is incorrect or otherwise improper, that would justify interfering with it.

This takes us to section 122 of the Evidence Act 1967 which provides:

> 122. The court may infer the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

This provision deals with presumptions of fact and therefore the court may presume that judicial and official acts have been regularly performed. In the case at hand, there is a presumption that the Registrar issued a proper certificate under rule 83(1). In the case of *The*

Commissioner of Income Tax v. C.W. Armstrong (3), Newbold, J.A. stated at page 513 that:

> This section authorizes the presumption that an official act, which is proved to have been performed, has been performed regularly; *and this is a presumption which is not lightly overridden.* [emphasis supplied]

The presumption under section 122 of the Evidence Act 1967 is rebuttable; it is not a conclusive presumption. The words "may infer" in the section leave it to the court to make or not to make the presumption depending upon the circumstances of the particular case. (See: Civl Reference Number 14 of 1997 between *African Marble Company Limited v. Tanzania Saruji Corporation* (4). A question we ask ourselves, is this a proper case in which to disregard a certificate given by the Registrar under rule 83(1) of the Court Rules?

We know that the Notice of Appeal was filed on the 10 February 2003 and so the appeal had to be instituted within sixty days of the Notice of Appeal. Since, this was not the case, it was essential for the appellant to rely on the exception to rule 83(1) which is to the effect that in computing the sixty days, the time taken to obtain a copy of the proceedings from the Registrar shall be excluded as certified by the Registrar. We hope we have amply demonstrated that the Certificate issued by the Registrar was incorrect. It was misleading since by the 23 May 2003, there was no evidence that part of the proceedings or for that matter the documents the appellant had requested from the Registrar had been supplied to him. What the Registrar's Certificate purported to certify was factually untrue.

A certificate under rule 83(1) of the Court Rules is a vital document in the process of instituting an appeal. It comes into play after the normal period of sixty days for filing an appeal has expired. We are of the view that there must be strict compliance with the rule. The Registrar had not supplied the appellant with the documents requested for, thus rendering the Certificate incorrect. This is a serious error. The Certificate was false and this fountain of justice cannot overlook such an error in the cause of advancing justice as Prof. Mwaikusa so eloquently urged us to do.

In the result, we uphold the preliminary objection and strike out with costs the Certificate of Delay dated the 14 July 2003.

NELI MANASE FOYA v. DAMIAN MLINGA

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Ramadhani, Nsekela and Kaji, JJ.A.)

CIVIL APPEAL No. 25 OF 2002

(Appeal from the Ruling of the High Court of Tanzania at Moshi, Mchome, J., dated 15 February 2000, in Miscellaneous Civil Appeal No. 19 of 1999)

Primary Court – Jurisdiction – Territorial jurisdiction of Primary Court – Whether the Moshi Urban Primary Court has jurisdiction over land situate in the rural part of Moshi District – Sections 3(1) and (2) and 19(1) of the Magistrates' Courts Act 1984 and paragraph 1(a) of the Fourth Schedule thereto.

Primary Court – Assessors – Opinion of Assessors – Whether assessors are required to give to or to have their opinions recorded by the magistrate – Rule 3 of the Magistrates' Courts' (Primary Courts)(Judgment of Courts) Rules 1987, G.N. 2 of 1988.

The respondent was the original plaintiff before Moshi Urban Primary Court, alleging that the appellant had altered the boundary of a plot by uprooting boundary trees. The respondent was successful, and appeals by the appellant both before the District Court and the High Court were not successful. She further appealed to the Court of Appeal which considered three grounds namely whether the Moshi Urban Primary Court had jurisdiction to try a suit over a piece of land located at Mbokomu, Old

Moshi area; whether the court assessors gave their opinion; and whether the second appeal was rightly determined. The appellant challenged the jurisdiction of the Moshi Primary Court on the ground that the suit property was located in Moshi rural and therefore that the court that had jurisdiction was the Old Moshi Primary Court, Moshi Rural. The challenge on the role of assessors was premised on the fact that the magistrate did not record the opinion of the assessors.

Held: (i) Since the suit was instituted in a Primary Court in Moshi district, and since the property was situated in Moshi District, according to section 3(1) and (2) of the Magistrate's Courts Act 1984 the Moshi Urban Primary Court had jurisdiction to hear and determine the case;

(ii) Since assessors are members of the court and sign the judgment as such and not for the purpose of authenticating it or confirming it, they are neither required to give their opinions nor to have their opinions recorded by the magistrate;

(iii) There being no point of law raised in the second appeal and since the second appellate court found no reason to differ from both lower courts' findings of fact, the second appeal was rightly decided.

Appeal dismissed

Cases referred to:

(1) *Peters v. Sunday Post Limited* [1958] EA 424

(2) *Watt or Thomas v. Thomas* [1947] AC 484

Statutory Provisions referred to:

(1) Magistrate's Courts Act 1984, rules 3(1), (2) 19(1)

(2) Appellate Jurisdiction Act 1979, section 5(2)(c)

(3) Court Rules, rule 105(2)

JUDGMENT

(Dated 27 October 2004)

Nsekela, J.A.: This appeal concerns a dispute on a boundary over a piece of land and the uprooting of trees thus causing the alteration

of the boundary in a plot situate at Old Moshi, Mbokomu. The value of the said trees was not pleaded. The suit started in Moshi Urban Primary Court, Civil Case Number 63 of 1997 in which one Damian Mlinga, now respondent, was the plaintiff and one Neli Manase Foya, now appellant, was the defendant. The respondent Mlinga was the successful party in the Primary Court and so the appellant appealed to the District Court where she lost. Still aggrieved by this decision, the appellant unsuccessfully appealed to the High Court, hence this appeal. Section 5(2)(c) of the Appellate Jurisdiction Act 1979 provides:

> No appeal shall lie against any decision or order of the High Court in any proceedings under Head (c) of Part III of the Magistrate's Court Act 1963, unless the High Court certifies that a point of law is involved in the decision or order.

Under this provision of the law, the High Court was required to certify that a point of law or points of law were involved before an appeal could be entertained by this court. This certificate was duly given by the High Court, (Munuo, J.) as she then was, who certified three points of law, namely:

(i) Whether the trial court had jurisdiction to determine the suit;

(ii) Whether the assessors gave their opinions;

(iii) Whether the second appeal was rightly determined.

At the hearing of the appeal, the appellant appeared in person, unrepresented. The respondent, who was duly served with notice of the hearing date, was absent and so the court proceeded on to hear the appeal in terms of rule 105(2) of the Court Rules. In her brief oral submission, the appellantstated that she had nothing to add apart from the contents of the memorandum of appeal.

We propose to start with the question of the jurisdiction of the Urban Primary Court, Moshi to determine the suit.

The respondent in the Urban Primary Court had alleged that the appellanthad encroached upon his land and uprooted trees thus altering the boundaries of their respective plots of land. The number of trees

so uprooted and the value thereof was not disclosed in the plaint. The essence of the respondent's claim was the repossession of the land that had been encroached upon by the appellant. On page 10 of the record of appeal, the appellant filed a document which reads in part:

JURISDICTION

The land in dispute is traditional land under customary law. Not registered. Located Kijiji cha Korini Kusini, Mbokomu Ward, Moshi District Council, Moshi Rural.

Jurisdiction: Old Moshi Primary Court, Moshi Rural.

Section 3(1) and (2) of the Magistrates Courts' Act 1984 provides as follows:

3(1) There is hereby established in every district a Primary Court which shall, subject to the provisions of any law for the time being in force, exercise jurisdiction within the district in which it is established.

(2) The designation of a Primary Court shall be for the Primary Court in which it is established.

The suit was instituted in a Primary Court in Moshi District. The Primary Court therefore had jurisdiction to hear and determine the suit. We are further fortified in this view by section 19(1) of the Magistrates Court Act read together with paragraph 1(a) of the Fourth Schedule to the Act. Paragraph 1(a) provides:

1. Subject to the provisions of this Act, proceedings of a civil nature shall be heard and determined:

(a) if they relate to immovable property, by a court within the local jurisdiction of which the property is situated

The trial court therefore had the jurisdiction to try the suit.

The second point of law certified by the learned judge concerned the necessity of giving their opinions by the assessors. The learned judge who heard and determined the second appeal had this to say:

I have gone through the trial court's record and found that the hearing of this case was throughout with two assessors, Raymond and Rose. The only time there was a different assessor was at mentioned date.

As for the assessors opinions it is nowadays not necessary to write assessors opinions provided they sign the judgment of the court to certify that they agree with it. So the Primary Court judgment is not defective. We think that the answer to the issue as certified lies in rule 3(1) and (2) of the Magistrate's Court's (Primary Courts) (Judgment of Court) Rules 1987 G.N . Number 2 of 1988. It provides as follows:

3(1) Where in any proceedings the court has heard all the evidence or matters pertaining to the issue to be determined by the court, *the magistrate shall proceed to consult with the assessors present, with the view of reaching a decision of the court.*

(2) If all the members of the court agree on one decision, the magistrate shall proceed to record the decision or judgment of the *court which shall be signed by all the members.* [emphasis supplied]

(3) For the avoidance of doubt a magistrate shall not, in lieu of or in addition to, the consultations referred to in sub-rule (1) of this rule, be entitled to sum up to the other members of the court.

We do not read anything in rule 3(1), (2) and (3) above which demands the assessors to give their opinions on an issue before the court. Under rule 2 assessors are members of the court which include the magistrate. It is evident from sub rule (2) above that all members of the court are required to participate in the decision making process of the court. Assessors are members of the court, co-equal with the magistrate. After they have completed hearing the evidence from the parties, the stage is then set for the magistrate to *consult* with them in order to reach a decision of the court. This presupposes that before the court reaches a decision, there will be a conference of the members of the court to deliberate on the issues before them and reach a decision. In such a case, the magistrate will write down the decision, which will then be signed by all members of the court. It will be recalled that Mchome, J. said that-

they (asessors) sign the judgment of the court to certify that they agree with it.

With all due respect to the learned High Court judge, this is not what rule 3(2) provides. The assessors are members of the court and sign the judgment as such, and not for the purpose of authenticating it or confirming it. In answer to the second point of law, assessors are neither required to give their opinions, nor to have their opinions recorded by the magistrate.

We now proceed on to the third point of law, namely, whether the second appeal was rightly determined. The essence of the learned appellate judge's decision is to be found in the following extract which reads-

> Both Lower Courts decided against the appellant on point of fact. The only point of law raised on this second appeal are that the court tried the case with a different set of assessors, and the assessor's opinions were not given. The other grounds of appeal are on purely factual issues, which are none of my concern at this second appeal.

And he continued:

> As there is no valid point of law raised in this second appeal, I find no reason to differ from both lower courts' findings of fact.

It has often been stated that a second appellate court should be reluctant to interfere with a finding of fact by a trial court, more so where a first appellate court has concurred with such a finding of fact. The District Court, which was the first appellate court, concurred with the findings of fact by the Primary Court. So did the High Court itself, which considered and evaluated the evidence before it and was satisfied that there was evidence upon which both the Lower Courts could make concurrent findings of fact. As was said by Sir Kenneth O'Connor, P. of the defunct Court of Appeal for Eastern Africa in the case of *Peter v. Sunday Post Limited* (1) at page 429:

> It is a strong thing for an appellate court to differ from the finding, on a question of fact, of the judge who tried the case, and who has had the advantage of seeing and hearing the witnesses. An appellate court has, indeed, jurisdiction to review the evidence in order to determine whether the conclusion originally reached upon that evidence should stand. But this is a jurisdiction which should be exercised with caution: it is not enough that the appellate court might itself have come to a different conclusion. (see also: *Watt or Thomas v. Thomas* (2)).

In all the circumstances, we are satisfied that the second appeal was rightly determined. In the result, we dismiss the appeal in its entirety. Since the respondent did not appear before us, we make no order as to costs.

RAPHAELI KINASHI v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Ramadhani, Nsekela and Kaji, JJ.A.)

CRIMINAL APPEAL No. 67 OF 2002

(From the decision of the High Court of Tanzania at Moshi, Mushi, J., dated 3 September 1993 in Criminal Session Case No. 29 of 1992)

Criminal Practice and Procedure – Identification – Case depending on identification of accused – Such identification must be watertight.

Evidence – Grave suspicion against an accused – Whether such suspicion may ground a conviction.

The appellant was convicted of murder by the High Court. He appealed challenging the decision of the High Court on the ground that the conditions were such as not to be favourable for proper identification.

Held: (i) The light used to identify the appellant was such as to raise suspicion as to whether the appellant was really identified;

(ii) Suspicion however grave cannot be a substitute for proof beyond reasonable doubt.

Appeal allowed

Statutory provision referred to:

(1) Tanzania Court of Appeal Rules 1979, rule 71(1)

Mr J.M. Itemba, for the Appellant

Mr Mwampoma, for the Respondent

JUDGMENT

(Dated 27 October 2004)

Ramadhani, J.A.: Two brothers, Raphaeli Kinashi and Nicolaus Kinashi, were convicted of the murder of their cousin, Joseph Babu, on 24 August 1990. When we came to hear the appeal we were informed that Nicolaus Kinashi died in prison. So, we struck out his appeal under rule 71(1) of the Tanzania Court of Appeal Rules 1979. However, in this judgment we shall refer to him, whenever necessary, by his first name of Nicolaus.

About midnight of that fateful day the front door of the deceased's house was forced open by the use of a big stone commonly called *Fatuma*. Two people got in. There was a wick lamp, known in *Kiswahili* as *Koroboi* inside the room of the deceased and his wife, Benedicta Joseph (PW1). In another room there were the children of the couple one of whom, Apronia Joseph, was PW2. Both PW1 and PW2 recognized the two intruders as the appellant and Nicolaus.

PW1 and PW2 said that inside the house Nicolaus kicked the lamp and extinguished it and then started to attack the deceased with a stick. The appellant was beaming the torch at Nicolaus and the deceased, while throwing stones at the deceased. The deceased and his family raised an alarm and the two vanished.

Two persons arrived at the same time at the scene in response to the alarm. Michael John Mtei (PW3), left his house for that of the deceased's and on the way he met Festo Juma (PW4) heading towards the same destination. When they arrived they asked the deceased as to what was the matter and they were told "*Ndugu zangu wananiua*", that is, "My kinsfolk are killing me". The deceased named the appellant and Nicolaus as his assailants. PW3 and PW4 advised the deceased not to mention those names to other people for fear that the appellant and Nicolaus could be attacked. A few minutes later the appellant and Nicolaus appeared at the scene and Nicolaus, together with other persons, accompanied the deceased to the hospital. The deceased died some 19 days later because of tetanus.

The appellant said that since after supper he was sleeping in his house when his wife, Lucia Raphael, DW 1, woke him saying that someone was knocking at the door. He got up and went to open the door where he found one Nico Babu who told him of the incident at the deceased's place and so he left in the company of Nico. At the deceased's place the appellant found a number of people including PW3 and PW4. The appellant said further that he and Nicolaus heard the gossip that they were mentioned as the assailants and so, they presented themselves to the Police Station. They gave two reasons for doing so: One, they wanted to look into the possibility of suing the deceased for spreading false information. Two, they wanted to clear their names.

The learned trial judge did not buy those explanations and made the following observations:

> The reasons given by both accused for going to the Police are absurd and completely untenable. It is unthinkable that someone can decide to go to the Police to open a charge against someone who has made a complaint to the Police against him. Or for that matter that someone should voluntarily go to the Police to clear himself from a complaint made against him to the Police. The accused persons must have been labouring with guilty conscious and were under fear of being attacked and decided to clear it out by submitting themselves to the Police.

May be we digress a bit. We asked Mr Mwampoma, learned Senior State Attorney, for the respondent/Republic, about that comment and he said that the learned judge went too far. We think that statement is unfortunate and tends to incriminate the appellant and Nicolaus. We ask: what could they have done? If they had left the locality and had gone elsewhere, that would have been taken to be running away from the arm of the law. Anyway, to be fair to the learned judge he made those comments after he was satisfied with the evidence before him. He said:

> Having heard and carefully observed PW1 and PW2 give evidence in this case, I have no reason at all to doubt their credibility. I believe the testimonies of these witnesses and find as a fact that the conditions as described by them were favourable for identification and that they identified the two accused persons in this case as the people who broke the door of their house that night and attacked the deceased.

The issue is the reliability of PW1 and PW2. For the appellant was Mr J.M. Itemba, learned advocate, who canvassed before us a lone ground of appeal that the learned judge erred when he found that the appellant was properly identified. The learned advocate asked us to review the evidence. He submitted that the law is that where a case depends on the identification of an accused person then the evidence must be watertight. He questioned whether there was enough light to enable proper identification. The learned advocate pointed out that the wick lamp was extinguished and the torch was beaming away from the one holding it. However, Mr Itemba conceded that the torch shone upon Nicolaus and so, he was properly identified.

Mr Mwampoma, on the other hand, contended that there was enough light even to enable the identification of the appellant who was holding the torch. However, the learned Senior State Attorney conceded that there are a number of loose ends in the evidence produced but he did not agree that they raise reasonable doubts.

We are of a different view. As for light, PW2 said that she was woken up by the decease to go and tie up a goat which became loose.

She took the lamp from her parents' room and went to attend to the assignment and that after she had finished she returned the lamp to the parents' room. This shows that there was only that lamp and no other source of light in the house. Admittedly, PW2 also said that there was a lamp in her room. But if that was so, why did she have to take the lamp in the parents' room to attend to the goats?

PW2 told the court that the house had three rooms. She said further that after the big bang the deceased stood near the door leading to his room in which was the lamp. We are not told where exactly the lamp was stationed in the parents' room. Could the lamp inside the parents' room effectively illuminate the corridor leading from the front door which was broken into? Then both PW1 and PW2 told the court that Nicolaus kicked that lamp and extinguished it. It is not easy to envisage the acrobatic moves which were involved. How did he manage, from the corridor, to kick the lamp inside the parents' room? Did Nicolaus get into the parents' room first, kick the lamp and then get out? If so why was there no immediate confrontation between the deceased, who was standing near his door, and Nicolaus as he was entering that door to put off the lamp? The prosecution had to clear these taxing questions. The court was told that the deceased told PW3 and PW4 that the appellant and Nicolaus attacked him and that he also told the Police. We wonder why the appellant was not arrested immediately. Mr Mwampoma said that this was due to the laxity of the Police.

These matters raise doubts in our minds on whether the appellant was really identified. We realize that there was a lot of suspicion against the appellant. The appellant had a border dispute with the deceased way back in 1989. Then the appellant accidentally burnt the deceased's sugar cane and he was ordered to pay a compensation which he has not yet done. But suspicion, however grave, cannot be a substitute for proof beyond reasonable doubt.

We, therefore, give the appellant the benefit of doubt and allow his appeal. The appellant should be released immediately unless his incarceration is otherwise authorized by law. We so order.

STELLA TEMU *v.* TANZANIA REVENUE AUTHORITY

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Ramadhani, Nsekela and Kaji, JJ.A.)

CIVIL APPEAL No. 72 OF 2002

(From the Judgment of the High Court of Tanzania at Arusha, Rutakangwa, J., dated 22 November 2001, in Civil Appeal No. 1 of 1999)

Civil Practice and Procedure – Issues – Framed issues – Issue not framed at the commencement of the hearing but pleaded in the plaint and evidence adduced on it in court – Whether court should not make decision on it.

Natural Justice – Right to be heard – Appellant engaged on secondment to the respondent – Respondent refuses to confirm the appellant's engagement at the end of the secondment period – Whether the appellant had a right to be heard before the refusal.

The appellant, an employee of the Ministry of Finance, was seconded to the respondent for a probationary period of one year after which she would either be confirmed as an employee of the respondent, or released to go back to the Ministry of Finance. At the end of the one year period the respondent declined from confirming the appellant and returned her to the Ministry of Finance. The appellant did not go back to the Ministry but 18 months later filed a suit against the respondent alleging, *inter alia,* wrongful termination of employment, breach of the right to be heard, and that no reasons were given for her termination. The High Court awarded her TZS. 2 000 000 as general damages for *"wrongful termination of her probationary employment."* She appealed against that decision arguing *inter alia*, that the court should have annulled the termination and ordered reinstatement.

Held: (i) As the appellant was only seconded to, and not employed by, the respondent, the latter did not terminate her employment;

(ii) The respondent not having terminated the appellant it could not be ordered to reinstate her;

(iii) As the issue of defamation was contained in the pleadings and the appellant gave evidence on it, the trial court was right to make a finding on it even though it was not among the framed issues;

(iv) As the appellant was not an employee of the respondent and there was no termination of the appellant's employment by the respondent, the latter had no duty to give the appellant a hearing;

(v) The appellant's secondment to the respondent was like a probation and a probation is a practical interview; the right to be heard and to be given reasons for a decision do not extend to include a person who is told that he has failed an interview;

(vi) As in this case there was no termination of employment (wrongful or otherwise) the appellant was not entitled to any damages.

Appeal dismissed; award of damages quashed

Cases referred to:

(1) *O' Rouke v. Miller* [1980] L.R.C. (Const.) 654

(2) *Chief Constable of Northern Wales Police Force v. Evans* [1982] 3 All ER 141

(3) *Ridge v. Baldwin* [1963] 2 All ER 66; [1964] AC 40

Statutory provisions referred to:

(1) Appellate Jurisdiction Act 1979 Number 15 of 1979, section 3(2)

(2) Tanzania Court of Appeal Rules 1979, rule 34(1)

(3) Police Regulations 1971, regulation 16

Mr Malamsha, for the Appellant

Mr Rugaiya, for the Respondent

JUDGMENT

(Dated 27 October 2004)

Ramadhani, J.A.: The appellant, Stella Temu, is a lawyer by training and was employed by the Ministry of Finance (hereinafter referred to in short as MoF) in the taxation department. Some time in 1996 the Tanzania Revenue Authority (TRA) became fully operational and was charged with the collection of taxes. Stella, like others, was taken to TRA from MoF. She was given by TRA a letter, Exhibit P1, of 17 June 1996, titled *"Kuajiriwa na Mamlaka ya Mapato Tanzania"*, which reads, in relevant parts, as follows:

> 2. ... Hivyo wafanyakazi wote wa sasa wa Idara za Kodi chini ya Wizara ya Fedha wanatakiwa kuajiriwa upya kwa masharti ya Mamlaka ya Mapato.
>
> 3. Kwa kuzingatia maelezo chini ya aya ya pili hapo juu, nafurahi kukujulisha kuwa imeamuliwa uajiriwe katika Mamlaka ya Mapato tangu tarehe 1 Julai 1996.
>
> Hata hivyo utakuwa katika kipindi cha majaribio (probation) kwa muda wa mwaka mmoja tangu tarehe ya kukubali ajira hii. Endapo utendaji wako wa kazi na tabia yako vitaonekana kukidhi matakwa ya ajira ndani ya Mamlaka, utathibitishwa kazini.

Stella accepted the offer by her letter dated 16 July 1996, Exhibit P3 which reads in the relevant part:

> Nachukua fursa hii kukuarifu kuwa nimekubali uteuzi huo kwa masharti yaliyoelezwa na mengine yatakayoamuliwa na Bodi ya Wakurugenzi.

On 16 June 1997 she was given another letter, Exhibit P5, titled *"Kutokuthibitishwa Kazini katika Mamlaka ya Mapato Tanzania"* and reads, in relevant parts as follows:

> ... Katika barua hiyo tulikueleza pamoja na mambo mengine kuwa utakuwa katika kipindi cha majaribio kwa muda wa mwaka mmoja kuanzia tarehe 1 Julai 1996 hadi tarehe 30 Juni 1997. Kutokana na tathmini tuliyofanya katika kipindi cha majaribio, tunasikitika kukujulisha kuwa hautathibitishwa kazini.
>
> Kufuatana na maelezo na uamuzi wa Serikali, TRA inakurudisha Wizara ya Fedha kuanzia tarehe 1 July 1997. Tafadhali wasiliana na Katibu Mkuu kwa maelekezo zaidi.

Stella decided not to report to MoF but over a year later, on 6 January 1999, she filed a suit against TRA alleging wrongful termination of employment, that the termination was not done by a competent authority, that she was not given the right to be heard, that the letter of termination, Exhibit P5, was defamatory, and that no reasons were given to her for the termination.

The matter landed before Rutakangwa, J., who framed five issues for trial and we paraphrase them as follows:

(i) Was there termination of employment?

(ii) Was Stella given a hearing before she was terminated?

(iii) Was the termination ordered by a competent authority?

(iv) Was Stella entitled to be given reasons for the termination?

(v) What reliefs are the parties entitled to?

Rutakangwa, J., found that Stella's employment was terminated by a competent authority but that she was not given a hearing before the decision was taken and that she was entitled to know the reasons for the termination, but that was not done. However, the learned judge was of the decided opinion, based on the evidence of Patience Minga, DW2, who was the immediate boss of Stella, that she would not have been confirmed in the employment even if she had been heard because of her irresponsible attitude. For the same reason the learned judge found that Stella was not defamed and, therefore, declined to grant her damages instead he gave her general damages of TZS. 2 000 000 "for the wrongful termination of her probationary employment'.

Stella is aggrieved by that judgment and has preferred this appeal having four grounds. Before us she was represented by Mr Malamsha,

learned counsel, while TRA had the services of Mr Rugaiya, learned advocate. Briefly the four grounds were that the learned trial judge erred by:

(i) Not annulling the termination and ordering reinstatement.

(ii) Framing new issues *suo motu* for which there were neither evidence nor submissions.

(iii) Granting reliefs not prayed for.

(iv) Subjecting the appellant to double jeopardy of wrongful termination by the respondent and termination by the court.

Mr Malamsha decided to combine grounds one and three and argued grounds two and four separately.

Before we go into the grounds of appeal and the submissions of the learned counsel, we think we need to appraise the evidence which is on record and make up our own findings on certain important issues. We do this under rule 34(1) which provides as follows:

(1) On any appeal from the decision of the High Court acting in the exercise of its original jurisdiction, the court may:

(a) re-appraise the evidence and draw inferences of fact;

There are two matters of fact which we want to make findings on: One, what was the status of Stella vis a vis TRA: was she employed by TRA or was she seconded by MoF pending confirmation by TRA? Two, and following from one, what did Exhibit 5 do: did it terminate the employment of Stella with TRA or did it decline to confirm Stella? Most of our questions to the two counsel revolved around these two points of fact.

We have no doubts in our minds that Stella was an employee of MoF and that it was Exh P1 which moved her to TRA. The question is what was the nature of this movement? Was she seconded to TRA or was she now an employee of TRA and that she had severed all relations with MoF? Admittedly, the word "seconded" was not used in Exhibit P1 or Exhibit P5.

However, Mr Rugaiya referred us to Exhibit D2, *"Waraka wa Utumishi Nambari 7 wa Mwaka 1995"*, that is, "Establishment Circular Number 7 of 1995", issued on 01 December, 1995. That Circular prescribes three categories of services under which a Government employee could work for a parastatal or a Government Agency. There is secondment under paragraph 3. Then there is attachment under paragraph 8 and, thirdly, there is what we will refer to as "departmental transfer" or, as it is termed in the Circular, *"uhamisho wa moja kwa moja"*. The second mode, attachment, that is, assigning an employee to a parastatal for a specified period of time after which the officer goes back to the parent ministry, does not concern us here. The other two types are relevant here and we shall reproduce the applicable portions in Kiswahili.

Secondment is provided in paragraph 3 as follows:

3. **Utaratibu wa Kuazimwa (Secondment):**

Pale inapokusudiwa na inapoamliwa kumpeleka mtumishi wa Serikali kwenye Shirika la Umma kwa minajili ya kumhamishia huko moja kwa moja, mtumishi huyo baada ya kufuata utaratibu wa Waraka huu atahamishiwa kwenye Shirika moja kwa moja. Hata hivyo mtumishi huyo atapaswa kuwa katika muda wa majaribio (trial period) kwa kipindi cha miezi kumi na miwili (12). Kipindi hicho kitakapokwisha, Shirika litapaswa kuamua kama litamchukua mhusika kama mtumishi wake wa kudumu au la. Ikiwa atachukuliwa, basi atafuata masharti yaliyomo katika Waraka huu. Iwapo Shirika litaamua kutomchukuwa, mhusika atarejeshwa alikotoka bila ya kuchelewa. Endapo kipindi hicho kitakuwa kimepita na Shirika halikuchukua hatua zozote za kumchukua au kumrejesha, na kama mhusika hatakuwa ameomba kurudi alikotoka, itachukuliwa kwamba ameingia katika utumishi wa kudumu wa Shirika.

Two things are obvious to us here: One, the initiative of moving an employee from a ministry to a parastatal is of the parastatal itself which, under paragraph 4, is required to make an application to the Central Establishment. There was no such application here and we

think it was because all employees connected with taxation and custom duties were seconded to TRA from MOF. Nevertheless, the initiative in this case came from TRA who wrote Exhibit P1 offering employment to Stella in TRA. The second thing is that an employee so seconded is taken on probation for one year. This is what was contained in Exhibit P1. The import of paragraph 3 is driven home by the provisions of paragraph 11 which give the third category of service, that is, departmental transfer or *"uhamisho wa moja kwa moja"*

11. **Utarabitu wa Uhamisho wa Moja kwa Moja:**

Uhamisho wa moja kwa moja kutoka Serikalini wenda shirika la Umma hufanyika baada ya mtumishi aliyeazimwa kumaliza muda wake wa kuazimwa kama ilivyoelezwa katika ibara ya [3] hapo juu. Aidha mtumishi anapojiunga na Shirika la Umma kutokana na uteuzi wa Serikali, mtumishi huyo hujiunga na Shirika linalohusika moja kwa moja bila ya kuwa na muda wa majaribio kwanza. Kwa madhumuni ya Waraka huu, uteuzi wa Serikali ni pamoja na:

11.1 Uteuzi unaotokana na Idara ya Serikali kuwa Shirika la Umma.

It is abundantly plain to us that in this *"uhamisho wa moja kwa moja"* the initiative is from the Government and then there is no probation period. As we have already observed, Exhibit P1 was written to Stella by TRA and not by the Government and then Stella's engagement with TRA was prefaced by a probation of one year. Therefore, Stella's engagement with TRA was **not** *"uhamisho wa moja kwa moja"* but was secondment. After the one year period of probation TRA could retain Stella, that is, confirm her engagement or TRA could decide not to confirm her engagement, which is what it did, vide Exhibit P5. In that case Stella was to report back to her former employer, MoF. Likewise, Stella could have decided, after the expiry of the probation period, not to work for TRA and in that case, too, she would have returned to MoF.

The position explained above is confirmed by Exhibit D3, a letter from the Central Establishment to TRA dated 11 November 1998, which said in relevant parts as follows:

Napenda kukutaarifu kuwa utaratibu ambao umekuwa unatumika katika kuwahamisha watumishi wa Serikali, katika Idara ambazo zimebadilishwa kuwa Wakala wa Serikali (Agencies) ni kuwapa kibali cha kuazimwa katika kipindi cha mwaka mmoja na katika kipindi hicho mwajiri anawajibika kulipa Hazina asilimia 25 ya mishahara yao kwa madhumuni ya kuhifadhi pensheni zao. Baada ya kipindi cha mwaka mmoja kumalizika inabidi waajiriwa hao pamoja na mwajiri kufanya uamuzi wa kuendelea au kutokuendelea na kazi katika Taasisi hiyo. Watumishi ambao hawapendelei kuendelea na kazi au wameshindwa kutimiza masharti inabidi warudishwe kwa mwajiri wao kutafutiwa nafasi nyingine ya kazi kama ipo au kupunguzwa kazini.

The final piece of evidence supporting the fact that Stella was seconded to TRA was the fact that she was on 19 August, 1996, promoted from Finance Management Officer Grade III to Finance Management Officer Grade I according to the letter to her from MoF, Exhibit P February. At that time Stella was with TRA where her engagement started from 1 July 1996. We asked Mr Malamsha how could that happen if Stella was a permanent employee of TRA. How could MoF promote a person who is not their employee? Mr Malamsha merely said that the process of promotion was in the pipeline when Stella was transferred to TRA. That is not a satisfactory answer. Even if that were so, MoF knew that she was no longer their employee. The letter was sent to her through TRA. Our interpretation of that fact is that MoF promoted Stella because she was still their employee, that she was merely seconded to TRA, and that her continued stay there depended on confirmation after the probation period.

So, our conclusion is that Stella was seconded to TRA and that she continued being an employee of MoF. So, Exhibit P 5, did not terminate her employment but did not confirm her engagement with TRA and that she was to go back to MoF. So, grounds one and three which were consolidated and which sought to fault the learned judge for not ordering the reinstatement of Stella are dismissed. We agree with Mr Rugaiya that if there was no termination there could not be reinstatement. Equally, ground four of appeal that Stella was subject to double jeopardy of termination by TRA and also by the court Order

is misconceived and is dismissed as was properly submitted by Mr Rugaiya.

What remains now is ground two that the learned judge *suo motu* framed issues at the time of composing the judgment and thereby denied Stella the opportunity to call evidence in rebuttal. Mr Malamsha complained of the discussion of defamation by the learned judge. We agree with Mr Rugaiya entirely that though defamation was not framed as an issue, and that was the fault of both advocates at the trial the pleadings contained defamation. Even Stella in her examination-in-chief said:

> When I received this letter of non-confirmation, I believed that I had failed to perform my duties efficiently and I was defamed thereby as a trained lawyer, my employment record as well as my reputation were tarnished. Because of that I am praying for damages to clear my name and record. I am therefore praying to be paid TZS. 50 000 000 as general damages.

Surely, the learned judge could not pretend that the question of defamation was not before him just because no issue was framed on defamation. In fact this court has decided in one appeal, following a decision of the former East African Court of Appeal, that a court must decide a matter which it has allowed to be argued before it even if the matter is not contained in the pleadings. We dismiss this ground.

The learned judge found that Stella had a right to be heard but that she was not. Also he made a finding that she was entitled to know the reasons for the non-confirmation which again she was not given. Was the learned judge right? These two matters could not be subject to the appeal, and there was also no cross-appeal. However, we intend to use section 4(2) of the Appellate Jurisdiction Act 1979, as amended by Act Number 17 of 1993, and revise the proceedings. That section provides as follows:

> For all purposes of and incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred upon it by this Act, the Court of Appeal shall, in addition to any other power, authority and jurisdiction conferred by this Act, have the power of revision and the power, authority and jurisdiction vested in the court from which the appeal is brought.

The learned judge followed a number of authorities in arriving at those two holdings. The main authority relied upon is of the High Court of Australia in *O'Rouke v. Miller* (1). Unfortunately it has not been possible for us to lay our hands on that law report in Arusha. However, that decision, in turn, relied on *Chief Constable of Northern Wales Police v. Evans* (2) which we have been able to obtain. In both of these cases a police constable was employed but was placed under probation during which time the constable was dismissed without being heard, and without being given reasons.

At page 151 Lord Brightman said:

> My Lords, before I conclude this unhappy story, I must turn to the statutory provision. Regulation 16 of the Police Regulations 1971, which I need not quote verbatim, provides that during his period of probation in the force, the services of a constable may be dispensed with at any time if the Chief Officer of Police considers: (1) that he is not fitted, physically or mentally, to perform the duties of his office; or (2) that he is not likely to become an efficient constable; or (3) that he is not likely to become a well conducted constable. It is plain from the wording of the regulation that the power of a Chief Officer of police to dispense with the services of a person accepted as a probationer constable is to be exercised, and exercised only, after due consideration and determination of the specified questions. It is not a discretion that may be exercised arbitrarily and without accountability.

The present case is distinguishable. In the case cited there was a specific provision of law spelling out the "checklist", as it were, for dismissing. In the present case there is no such provision at all. Stella referred to performance appraisal forms but on cross-examination she answered Mr Rugaiya that "I do not know if these forms were not in existence when I was in the service of TRA". It was up to Stella to show that the forms were in use at her time and that in her case they were not used when considering her confirmation. In any

case the forms are for employees and we have already made a finding that Stella was not an employee of TRA.

Lord Brightman observed further on page 154 that:

> I turn secondly to the proper purpose of the remedy of judicial review, what it is and what it is not. In my opinion the law was correctly stated in the speech of Lord Evershed [1963] 2 All ER 66 at 91, [1964] AC 40 at 96. His was a dissenting judgment but the dissent was not concerned with this point. Lord Evershed referred to:
>
> > 'a danger of usurpation of power on the part of the courts... under the pretext of having regard to the principles of natural justice... I do observe again that it is not the decision as such which is liable to review; it is only the circumstances in which the decision was reached, and particularly in such a case as the present the need for giving to the party dismissed an opportunity for putting his case'.

That was the case of *Ridge v. Baldwin and others* (3) where the appellant had been a Police Constable since 1925 and rose to the rank of Chief Constable. He was prosecuted together with two others for some offences but he was acquitted. However, the trial judge made some comments which prompted the Watch Committee to discuss him and unanimously dismissed him in March 1958, without giving him a hearing. Lord Evershed held that the Chief Constable was entitled to a hearing. But Stella here was not an employee of TRA.

Lord Brightman had the same holding when he said on page 154:

> Judicial review is concerned, not with the decision, but with the decision-making process. Unless that restriction on the power of the court is observed, the court will in my view, under the guise of preventing the abuse of power, be itself guilty of usurping power... I leave these preliminary observations in order to consider the judgments in the Court of Appeal. It was accepted by each member of the court that the case fell within the third of Lord Reid's categories; that the respondent was entitled to a fair hearing; and that he had not had one.

In the present case, however, we are of the opinion that there was no right of a hearing because there was no termination but it was merely a non-confirmation while Stella remained in the employment of the MoF. It is our decided opinion that probation is a practical interview. We do not think that the right to be heard and to be given reasons extends even where a person is told that he/she has failed an interview.

With that finding then comes the question for remedies: is Stella entitled to any damages? The learned judge said this:

> I will accordingly award the plaintiff TZS. two million (2 million) Tanzanian TZS. as nominal general damages for the wrongful termination of her probationary employment with the defendant.

The wrongful termination was because of "the breach of the *audi alteram* rule and failure to give reasons for the non-confirmation by the committee". As we are of the decided view that those two requirements do not apply we, therefore, quash the decision of the learned judge of granting two million shillings.

We wish to make two observations before we conclude this judgment. One, Exhibit D2, "*Waraka wa Utumishi Na.7 wa Mwaka 1995*", that is, "Establishment Circular Number 7 of 1995", was in existence when TRA wrote the letter to Stella, Exhibit P1, offering her probationary service, TRA should have referred to that circular in that letter and should have used the terminology contained therein, and we would have been saved all this problem. Two, Stella ought to have reported to MoF as directed and matters would have been different. In fact, by not reporting she absconded from work.

So, the appeal is dismissed with costs.

TANGA CEMENT COMPANY LIMITED *v.* CHRISTOPHERSON COMPANY LIMITED

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Ramadhani, Nsekela and Kaji, JJ.A.)

CIVIL APPEAL No. 77 OF 2002

(From the judgment and decree of the High Court of Tanzania at Moshi, Mchome, J., dated 8 October 2001 in Civil Case No. 11 of 1998)

Civil Practice and Procedure – Judgment – Meaning and contents of a judgment – Decision made on 8 October and reasons for the decision were given seven days later – Whether the judgment was given on the earlier or the later date – Section 3 and Order XX, rule 4 of the Civil Procedure Code 1966.

Civil Practice and Procedure – Notice of Appeal – Validity and legal competence of a Notice of Appeal – Notice of Appeal lodged after the decision is made but before the reasons for the decision are given – Whether the Notice of Appeal is legally competent.

On 8 October 2001 a decision was made in favour of the respondent. Reasons for the decision were reserved till on 15 October 2001 when they were read. Before the reasons were read, on 10 October 2001 the appellant lodged a Notice of Appeal against the whole decision of 8 October 2001. When the appeal was called on for hearing a preliminary objection was raised to the effect that the Notice of Appeal lodged on 10 October 2001 was both premature and legally incompetent on the ground that it related to an imperfect decision and orders.

Held: (i) The word "judgment" as defined under section 3 of the Civil Procedure Code 1966 means the statement given by the judge or the magistrate of the grounds of a decree or order;

(ii) Order XX, rule 4 of the Civil Procedure Code 1966 provides that a judgment shall contain a concise statement of the case, the points for determination, the decision thereon and the reasons for such decision;

(iii) The decision of 8 October 2001 does not contain a concise statement of the case, the points for determination and the reasons for the decision and is therefore not a judgment; it is the decision of 15 October 2001 which is the judgment of the case;

(iv) The Notice of Appeal , the Memorandum of Appeal and the decree which related to the decision of 8 October 2001, were premature and legally incompetent and legally there was no Notice of Appeal, Memorandum of Appeal and decree in respect of the real judgment of the case dated 15 October 2001.

Preliminary objection upheld

Cases referred to:

(1) *Sheikha binti Alli bin Khamis and another v. Halima binti Said bin Nassib and others* [1959] E.A. 500

(2) *Raichand and another v. Assanand and Sons* [1957] EA 82

Statutory provisions referred to:

(1) Civil Procedure Code 1966, section 3 and Order XX, rule 4

(2) Court Rules 1979, rules 77(1),92(1),89(1)(k) 100

Shayo, for the Appellant

Makange, for the Respondent

RULING

(Dated 27 October 2004)

Kaji, J.A.: The respondent, Christopherson Company Limited, successfully sued the appellant, Tanga Cement Company Limited, for various amounts of money for breach of contract. The appellant lodged this appeal against the whole decision of the trial High Court (Mchome, J.) through its advocates W.A.L. Mirambo and Company, Advocates and Shayo, Jonathan and Company Advocates.

When the appeal was called on for hearing, Mr Makange learned counsel for the respondent, raised a preliminary objection under rule 100 of the Court Rules1979, notice of which had been served on the court and on the appellant.

In the preliminary objection Mr Makange raised the following grounds:

1. That the Notice of Appeal lodged in the High Court of Tanzania at Moshi on the 10 October 2001, being related to an imperfect decision/ judgment and orders of the Honourable Mr Justice L.B. Mchome, given at Moshi on the 8 October 2001, is both premature and legally incompetent with the effect that Civil Appeal Number 77 of 2002 ought to be struck out with costs.

2. That, in the event of this Honurable Court upholding the first-mentioned preliminary objection, both the decree and Memorandum of Appeal are, as corollary, misconceived at law with the effect that Civil Appeal Number 77 of 2002 ought to be struck out with costs.

3. That in the event of this Honourable Court overruling the first-mentioned preliminary objection, Civil Appeal Number 77 of 2002 ought to be struck out with costs for want of service of Notice of Appeal on the respondent as mandatorily required under rule 77(1) of Tanzania Court of Appeal Rules1979.

4. That, as there exists no *nexus* between the judicial proceedings dated 18 February 2000 and those resumed on 27 September 2000, the record of appeal is bad at law on grounds of incompleteness with the result that Civil Appeal Number 77 of 2002 ought to be struck out with costs.

In the course of hearing the preliminary objections Mr Makange abandoned ground number 3 after he learned from his client that before he took over the conduct of the appeal from Mr Mahatane, learned counsel, his client was duly served with the Notice of Appeal. Mr Makange proceeded with the remaining three grounds.

In elaborating ground number 1 Mr Makange stated that, on 8 October 2001, judgment was entered in favour of the respondent.

But reasons for the judgment were reserved till on 15 October 2001 when they were read. Before the reasons were read, on 10 October 2001 the appellant lodged a Notice of Appeal against the whole decision of 8 October 2001. It was the learned counsel's submission that the decision delivered on 8 October 2001 was not a judgment which could be appealed against. He said that the judgment of the case was the one which was read on 15 October 2001 which contained the grounds for the decision. The learned counsel referred us to the case of *Raichand and another v. Assanand and Sons* (1) and the definition of the word "judgment" under section 3 of the Civil Procedure Code, 1966. He said that since the grounds for the judgment which was the judgment in the case were delivered on 15 October 2001, the Notice of Appeal which was lodged on 10 October 2001 was lodged prematurely and was legally incompetent.

Arguing ground number 2, the learned counsel stated that, a decree must agree with the judgment as stated under Order XX, rule 6(1) CPC. He said that in the instant case the decree filed by the appellant, does not agree with the judgment, especially in terms of the amount which the respondent was awarded. He said that, whereas the amount in the judgment dated 15 October 2001 shows the amount to be TZS. 30 000 000 , the decree shows the amount to be TZS. 30 062 000 which is also reflected in the decision of 8 October 2001. The learned counsel further stated that, even the Memorandum of Appeal was defective because it purportedly showed that it referred to the whole decision and moreover in its heading it refers to the decision of 8 October 2001 which was not the judgment of the case. It was the learned counsel's submission that the decree and the Memorandum of Appeal were misconceived.

Arguing ground number 4, the learned counsel stated that, on 18 February 2000 judgment was entered in favour of the respondent. According to the record of appeal, nothing is shown to have transpired until on 27 September 2000 when the case was fixed for hearing defence on 24 November 2000. The learned counsel wondered how a case whose judgment had been delivered on 18 February 2000 was

again fixed for hearing defence on 24 November 2000. He said that there is no *nexus* between the judicial proceedings dated 18 February 2000 and those resumed on 27 September 2000. When later it transpired from the bar that there were some proceedings between 18 February 2000 and 27 September 2000 whereby the judgment of 18 February 2000 was set aside, and that the said proceedings were not included in the record of appeal, the learned counsel stated that, in that respect the record of appeal is bad at law on the ground of incompleteness and a breach of rule 89(1)(k) of the Court Rules 1979, and that it was falsely certified to be a correct copy of the record. He therefore called upon the court to strike out the appeal with costs.

On the other hand Mr Shayo, learned counsel for the appellant, stated that the first ground of objection can find its answer in logic. He said that the decision of 8 October 2000 is what the learned trial judge had in mind. The decision of 15 October 2000 are his reasons for his decision of 8 October 2000. The decree shows the reliefs granted. In his view, the difference in the amount awarded in the decision of 8 October 2000 and 15 October 2000 is minor which cannot make the judgment or decree imperfect. However the learned counsel conceded that he did not apply for amendment of the decree. The learned counsel further stated that, of the two decisions, the true judgment is that of 8 October 2000, and that the one of 15 October 2000 were merely reasons for the judgment of 8 October 2000. He cited the decision of the then Court of Appeal for Eastern Africa in the case of *Sheikha Binti Alli Bin Khamis and another v. Halima Binti Said Bin Nassib and others* (2) In that respect it was the learned counsel's submission that the Notice of Appeal is not premature nor is it incompetent.

On why there is no *nexus* between the judicial proceedings of 18 February 2000 and 27 September 2000, the learned counsel stated that, they applied before the trial court for copies of proceedings, judgment and decree for appeal purpose, and that they were supplied with the same minus those of between 18 February 2000 and 27 September 2000.

The learned counsel further submitted that if the respondent felt that the record was insufficient, he should have lodged a Supplementary Record under rule 92(1) of the Court Rules, 1979. The learned counsel urged the court to overrule the preliminary objection.

It is common ground that the Notice of Appeal , the Memorandum of Appeal and the decree refer to the judgment/decision and orders of the High Court (Mchome, J.) dated 8 October 2001. The crucial issue is which of the two is a judgment? Is it that of 8 October 2001 or that of 15 October 2001? Mr Shayo, learned counsel for the appellant, argued vehemently that the judgment of the case is the one dated 8 October 2001 because it is what the trial judge had in mind. On the other hand Mr Makange, learned counsel for the respondent, argued forcibly that the judgment of the case is the one dated 15 October 2001 because it contains the grounds for the decision.

In our view, before coming to the decision, we think it is imperative that we revisit the meaning of "judgment". The word "judgment" as defined under section 3 of the Civil Procedure Code 1966 has the following meaning:

> 3. 'judgment' means the statement given by the judge or the magistrate of the grounds of a decree or order.

Let us see what the decision of 8 October 2001 says.

It is recorded as follows:

8 October 2001

Order: Judgment entered for the plaintiff

For:

(1) TZS. 30 062 000 plus interests at 6% from 1 May 1986 till full payment.

(2) General damages at TZS. 5 000 000 for breach of contract.

(3) Costs of this suit

(4) Interest on 2 and 3 above at 12.5% p.a. from date of judgment till full payment. Reasons for judgment to be given on 15 October 2001.

We ask ourselves: is this a judgment? We have already observed the meaning of a judgment as defined under section 3 of the Civil Procedure Code 1966. We ask: what are the necessary contents of a judgment? In order to answer this question properly we look at Order XX, rule 4 of the Civil Procedure Code, 1966 which states:

4. Judgment shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision

In the instant case the decision of 8 October 2001 does not contain a concise statement of the case, the points for determination and the reasons for the decision. In that respect we are of the view that, it is not a judgment.

But the decision of 15 October 2001 has all the necessary elements; a concise statement of the case, the points for determination, decision thereon and the reasons for the decision. We are satisfied that it is this decision of 15 October 2001 which is the judgment of the case. In that respect the Notice of Appeal, the Memorandum of Appeal and the decree should have been in respect of that decision and not that of 8 October 2001 for the reasons we have already stated. We therefore agree with the learned counsel for the respondent that the Notice of Appeal , the Memorandum of Appeal and the decree which were related to the decision of 8 October 2001, were premature and legally incompetent, and that legally, there was no Notice of Appeal, Memorandum of Appeal and decree in respect of the real judgment of case dated 15 October 2001.

We are aware of the decision by the then Court of Appeal for Eastern Africa in the case of *Sheikha Binti Alli Bin Khamis and another v. Halima Binti Said Bin Nassib and others* (2) cited by Mr Shayo, learned counsel for the appellant. In that case the appeal had been heard on 8 October 1958, at the end of which the court announced that the appeal had failed and that reasons would be given

in writing later. These were read in open court on 24 October 1958. The motion for leave to appeal to the Privy Council was filed on Monday 8 December 1958, that is, 61 days after the decision given at the hearing on 8 October 1958. Counsel for the applicants argued that "judgment" in section 4 of the Order in Council meant, in that case, the reasons for the court's decision which were read on 24 October 1958, and not the decision given on 8 October 1958, and that therefore the application was well in time. In the alternative he argued that since the last day for filing the motion fell on a Sunday, it should be excluded when calculating the period, and that anything done on the day following should be held to be in time. The court held as follows:

(i) The "judgment" on the appeal was the decision given on 8 October 1958; the fact that the document giving the reasons of the court for its judgment was headed "judgment" could not alter the fact that judgment on the appeal had been given on 8 October 1958, and the document merely set out reasons for the judgment and was not itself judgment.

(ii) ...

But in that case the court held so because the then Kenya Civil Procedure Ordinance had no provision defining what a judgment was, unlike in the instant case where the word "judgment" has been defined under section 3 of the Civil Procedure Code 1966, and elaborated under Order XX, rule 4 of the civil Procedure Code 1966. These two cases, therefore, were decided through two different laws. That is why we are not persuaded to adopt the holding in *Sheikha* case.

As for the absence of *nexus* between the judicial proceedings dated 18 February 2000 and those resumed on 27 September 2000, the learned counsel for the appellant has conceded the omission. He has also conceded the same to be a breach of rule 89(1)(k) of the Court Rules 1979. However he said that the error can be cured by ordering a Supplementary Record of Appeal under rule 92 of the Court Rules 1979.

In view of the position we have taken in respect of the first two grounds, we do not consider it necessary to consider and determine this ground.

In the event, and for the reasons stated, we uphold the preliminary objection by the respondent and we hereby strike out the appeal with costs.

DAUD MLENGE *v.* TITUS N. MAKOMBE

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Msoffe, JJ.A.)

CIVIL REFERENCE No. 3 OF 2000

(From the decision of a single judge of the Court of Appeal at Dar es Salaam, Makame, J.A., dated 16 March 2000 in Civil Application No. 93 of 1998)

Limitation of Time – Court Vacation – Application filed 3 days beyond the limitation period but during a time when the court is on vacation - Whether the application is time barred.

This was a reference from the decision of a single judge of the Court of Appeal dismissing an application for leave to appeal. The dismissal was on the ground that the application had been filed 3 days beyond the 14 day limitation period for filing such an application. But it turned out that the court was actually on statutory vacation throughout that period. On reference, the court considered whether the application before the single judge had indeed been filed out of time.

Held: As the entire period from the time of the High Court decision to the time the applicant filed his application before the single judge of the Court of Appeal the said court was on vacation and should have been excluded in the computation of time, the application before the single judge was not filed out of time.

Reference allowed

Mr Taslima, for the Applicant

Mr Mkongwa, for the Respondent

Statutory provision referred to:

(1) Court Rules 1979, rule 6(e), (b), 24(1) and 57(1)(b)

RULING

(Dated 4 November 2004)

Lubuva, J.A.: In Civil Application Number 93 of 1998, the applicant, Daud Mlenge applied before a single judge of this court (Makame, J.A.) for leave to appeal to this court against the decision of the High Court (Kileo, J.) of 12 December 1997 in Civil Appeal Number 61 of 1996.

When the application was called on for hearing, a preliminary objection was raised on behalf of the respondent, Titus Makombe, that the application for leave to appeal to this court against the decision of the High Court was filed out of time. Sustaining the preliminary objection, the learned single judge dismissed the application. Dissatisfied, the applicant has come to the court on reference in terms of the provisions of rule 57(1)(b) of the Court Rules 1979.

For easy appreciation of the sequence of events leading to this matter, we think it is desirable to outline briefly the historical background of the case. The case involving a plot of land originated from Magomeni Primary Court, Kinondoni District in Dar es Salaam. The respondent successfully instituted a suit against the applicant claiming ownership over the suit plot. On appeal to the District Court, the decision of the Primary Court was overturned in favour of the applicant. The respondent appealed to the High Court where on 12 December 1997 the appeal was allowed with the result that the decision of the District Court was set aside and the Primary Court decision restored. Dissatisfied

with the decision of the single judge, this reference as already indicated, has been preferred.

As already indicated, since the matter originated from the Primary Court, the respondent sought from the High Court extension of time within which to apply for leave to appeal and for leave to appeal to this court. On 14 December 1998, the application was dismissed by the High Court (Bubeshi, J.) After the dismissal of the application, the application before the learned single judge was filed on 31 December 1998.

A preliminary objection was raised that the application before the single judge was out of time. Sustaining the preliminary objection, the learned single judge was live to the fact that G.N. 307 of 1964 provides to the effect that 15 December to 31 January inclusive, is one of the court vacations, that is the Christmas vacation. The learned Single judge however, took the view that the G.N. Number 307 only refers to the High Court and not the Court of Appeal. Furthermore, the learned single judge's endeavour to resort to the application of rule 6(e) which provides that Christmas vacation shall not be taken into account in computing time was not fruitful either. This was so, the learned judge further held, because the rules do not define Christmas vacation. For this reason, it was the view of the learned single judge that the practice of applying Christmas vacation in such a situation in the Court of Appeal was a "borrowing" from the High Court which had no legal basis. In the event, the learned single judge also considered the application of rule 6(b) which provides for *dies non*. Even then, the learned single judge came to the conclusion that in the circumstances of the case, the rule was also inapplicable. Consequently, the application was dismissed.

Before us in this application, the applicant was represented by Mr Taslima, who had also appeared for the applicant before the single judge and the High Court as well. The thrust of his submission in support of the reference was that the decision of the learned single judge was *per incuriam* because the provisions of G.N. 114 of 2

November 1979 were not considered. Had the learned single judge considered the provision of G.N. 114 of 2 November 1979, he would have found that the application was timous and that it was unnecessary to seek extension of time in which to apply for leave, Mr Taslima urged.

For the respondent, Mr Mkongwa, learned counsel, who had also represented the respondent in the High Court appeared. While conceding that the decision of the learned single judge was *per incuriam*, he maintained that the outcome of the case would still be the same. In his view, the application would still be out of time even after invoking the provisions of rule 6(e) of the Court Rules 1979 with regard to the Christmas vacation. At any rate, he further submitted, if the submissions by Mr Taslima were accepted, the matter, subject of the application would have to be taken back to a single judge to be dealt with on merit.

This matter, we think, can be disposed of within a narrow compass. This is so because as correctly submitted by Mr Taslima, learned counsel for the applicant, and conceded by Mr Mkongwa, learned counsel for the respondent, the decision of the learned single judge was *per incuriam*. In coming to the conclusion that the application was out of time the learned single judge relied on the provisions of Government Notice Number 114 of 1979 which provides for the Christmas vacation. According to the provisions of this Government Notice, no reference is made to the Court of Appeal and so, the learned single judge correctly in our view, held that it (G.N. 114 of 1979) did not apply to the Court of Appeal with regard to the Christmas vacation. As observed earlier, the Government Notice Number 114 of 1979 which was published on 2 November 1979 under rule 24(1) was not taken into account. It provides for the court vacations. Among others, it provides that the vacations of the Court of Appeal in every calendar year shall be from 15 December to 31 January, inclusively. It is to be observed that without excluding the time covered during the Christmas vacation as the learned single judge did when computing

time in which the application was filed, the application was filed 17 days after the High Court decision (Bubeshi, J.) was given on 14 December 1998. This was about three (3) days out of time. However, if the provisions of Government Notice Number 114 of 2 November 1979 were invoked, it is patently clear that the period from 15 December 1998 to 31 January 1999 should have been excluded in computing the time in which to institute the application. With such exclusion, we think it goes without saying that the application before the learned single judge was well within time.

With great respect, we think had the provisions of the Government Notice Number 114 of 2 November 1979 been brought to the attention of the learned single judge for consideration, we have no doubt in our minds that he would have found that the application was timous and that the application for extension of time in which to apply for leave was thus unnecessary.

In the event, we are constrained to allow the reference.

The matter is to be placed before the Honourable Chief Justice for assigning the matter to a single judge of the court to deal with the application on merit regarding leave to appeal to the court which was not dealt with after the preliminary objection was sustained.

EAST AFRICAN DEVELOPMENT BANK v. BLUELINE ENTERPRISES LTD AND A.T.H. MWAKYUSA

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Nsekela and Kaji, JJ.A.)

CIVIL REFERENCE No. 7 OF 2004

(From the ruling of a single judge of the Court of Appeal at Dar es Salaam, Munuo, J.A., dated 28 June 2004 in Civil Application No. 57 of 2004)

Civil Practice and Procedure – Reference – Application for reference – Amendment of the letter applying for reference – Whether it is necessary to obtain leavė of the court before making the amendment – Rule 47(1) and (2) of the Tanzania Court of Appeal Rules 1979.

Civil Practice and Procedure – Stay of execution – Whether leave to appeal is a condition precedent for grant of stay of execution – Rule 9(2 (b) of the Court of Appeal Rules 1979.

The applicant had filed a petition to remove the second respondent, one Ambwene T.H Mwakyusa, as sole Arbitrator. The petition was struck out as incompetent. Aggrieved, the petitioner filed a Notice of Appeal and an Application in the Court of Appeal for Stay of Execution. A single judge of the Court of Appeal struck out the application as incompetent on the ground that leave to appeal had not been obtained, whereupon the petitioner wrote a letter to the Registrar applying for reference in terms of rule 57(1)(b) of the Court of Appeal Rules 1979. However, two days later, on discovering that the second respondent had not been cited as a party, the petitioner wrote another letter withdrawing the first one and replacing it with the second letter which cited the second respondent as a party to the reference. The advocate of the respondents raised a preliminary objection on the ground that the second letter added a second respondent without leave of the court contrary to rule 47(1) and (2) of the Court Rules, dealing with amendments of applications.

Held: (i) Rule 47(1) and (2) applies to amendment of formal applications before the court, but does not apply to amending a letter to the Registrar applying for reference;

(ii) An application for reference by a party aggrieved by the decision of a single judge of the Court of Appeal may be made orally to the judge hearing the application or by writing to the Registrar as provided for under rule 57(1)(b) of the Court of Appeal Rules 1979;

(iii) As there was no particular procedure prescribed for withdrawing letter of reference a withdrawal or an amendment may be made by invoking the same procedure used for applying for the reference.

(iv) Leave to appeal is not a requisite for granting an order of stay of execution.

Reference allowed

Cases referred to:

(1) *Willow Investment v. Mbombo Ntumba and two tthers* [1997] T.L.R 93.

(2) *Saidi Amid Mwilima v. Tabora Reginal Trading Company* [1997] T.L.R 156.

(3) *Sadik Abdallah Alawi and another v. National Bank of Commerce*, Civil Appeal Number 29 of 1997 (unreported)

Statutory provisions referred to:

(1) Tanzania Court of Appeal Rules 1979, rules 9(2)(b), 47(1) and (2), 57(1)(b), 55(1),3(2)(a), 45, 46

Dr Nguluma, for the Appellant

Mr Bwahama, for the Respondent

RULING

(Dated 12 November 2004)

Nsekela, J.A.: In High Court Civil Cause Number 324 of 2003, the applicant was the East African Development Bank and the respondents were Blueline Enterprises Ltd and another. The applicant had filed a petition under the Arbitration Ordinance Chapter 15, and rules made there under seeking the removal of the second respondent, one Ambwene

T.H. Mwakyusa as the sole Arbitrator. On the 11 May 2004, Massati, J. struck out with costs the petition as incompetent. Aggrieved by this decision, the applicant filed in this Court Civil Application Number 57 of 2004 seeking stay of execution in Miscellaneous Civil Cause Number 324 of 2003 pending the determination of an intended appeal, notice of which had been given. The court struck out the application as incompetent on the ground that leave to appeal to the court had not been obtained. Apparently an application for leave to appeal had been filed but not determined as yet.

On the 2 July 2004, Ms. Maajar, Rwechungura, Nguluma and Makani, learned advocates for the applicant wrote a letter to the Registrar seeking a reference of the decision of a single judge of this court (Munuo, J.A.) dated the 28 June 2004 in terms of rules 57(1)(b) of the court rules. This was followed by a subsequent letter dated the 5 July 2004 whose effect is being disputed by Mr Bwahama, learned advocate for the respondents. It reads in part as follows-

> After filing the said application we discovered that we have advertently (*sic*) omitted to include the name of the second respondent A.T.H. Mwakyusa. *We regret the omission and we are hereby withdrawing the said application and replacing it by this letter of application.* [emphasis supplied]

Mr Bwahama, learned advocate for the respondents raised a preliminary objection essentially questioning the manner in which the first letter of reference dated the 2 July 2004 was withdrawn by the second letter dated the 5 July 2004. The complaint by the learned advocate is in the following terms:

> 2. That the second application dated 5 July 2004 withdrawing the first application dated 2 July 2004 was withdrawn without first applying for leave of the court to amend it and add the second respondent in compliance with rule 47(1) and (2) of the Court of Appeal Rules 1979. It is mandatory that leave of the court should first be obtained before adding the second respondent. Failure to do so renders the application for reference incompetent and should be struck out with costs.

The essence of Mr Bwahama's complaint is to the effect that in the first letter of reference dated 2 July 2004, there was only one respondent, but in the second letter there is added a second respondent, Mr A.T.H. Mwakyusa who was included without leave of the court in contravention of rule 47(1) and (2) of the Court Rules.

We think that the answer to this complaint depends on true construction of rule 57(1), which provides:

> 57(1) Where any person is dissatisfied with the decision of a single judge exercising the powers conferred by section 68G of the Constitution he may apply informally to the judge at the time when the decision is given or by writing to the Registrar within seven days after the decision of the judge.
>
> (a) ...
>
> (b) In any civil matter, to have any order, direction or decision of a single judge varied, discharged or reversed by the court.

Under rule 57(1), informal applications may be made orally to a single judge of the court at the time of making the decision complained against, or in writing to the Registrar within seven days thereafter. The learned advocate for the applicant preferred the second option, that of writing a letter of reference to the Registrar. There was no need for the applicant to file a formal application before the court under rules 45 and 46 since the matter was governed by rule 57(1)(b). The applicant, being aggrieved by a decision of a single judge made on the 28 June 2004, the procedure for making reference to the court is as prescribed under rule 57(1). A reference to the court is different from a formal application. The latter falls under rules 45 and 46 and the applicant did not write the two letters dated 2 July 2004 and 5 July 2004 under the said rules. Under the circumstances, Mr Bwahama's contention that the applicant should have complied with rule 47(1) and (2) which deal with amendment of documents is totally misconceived. What is before us is a reference under rule 57(1)(b) which has its own prescribed procedure.

The question still remains, could the applicant withdraw the letter of reference dated the 2 July 2004 without a court order to that effect? On the 5 July 2004, the learned advocates for the applicant wrote another letter to the Registrar which withdrew the first letter dated the 2 July 2004. As far as civil appeals to the court are concerned, the procedure for such withdrawal is prescribed under rule 95. We have not been able to find in the Court Rules a procedure for withdrawing a letter of reference. As explained before, a reference to the court may be made in writing to the registrar under rule 57(1)(b). We do not see any reason in the absence of a specific rule to that effect, why the same procedure of writing a letter to the Registrar should not be invoked to withdraw a letter of reference. The court will then record the reference as withdrawn under rule 3(2)(a) of the Court Rules when the reference is called for hearing. The letter of reference dated the 2 July 2004 is accordingly marked as withdrawn under rule 3(2)(a) of the Court Rules.

We now turn our attention to the substantive issue in the reference. Was the learned single judge correct in striking out the application for stay of execution on the ground that the applicant had not first obtained leave to appeal? Mr Bwahama referred the court to *Willow Investment v. Mbombo Ntumba and two others* (1); *Said Amid Mwilima v. Tabora Regional Trading Company* (2) which held that the power of the court to grant a stay under rule 9 was exercisable only in proceedings which were properly before the court. It is now settled law that an application for stay of execution is to be decided on the merits whether or not there is leave to appeal provided that there is a Notice of Appeal. This was authoritatively stated in *Sadiki Abdallah Alawi and (1) Zulekha Suleman Alawi (2) National Bank of Commerce* (3) wherein the court stated thus-

> Rule 9(2)(b)... which sanction a stay of execution does not make such leave a pre-requisite, and the question is whether there is justification for reading that requirement into the provision. Can the framers of the rule have intended that leave to appeal should be a requisite for granting a stay of execution? We think not. Under the rule, only the Notice of Appeal

is made a pre-requisite for granting a stay of execution. We think that if it was intended that leave to appeal also be made a pre-requisite, then it was only too easy for the framers of the rule to say so but they did not.

What is required under rule 9(2) is the presence of a Notice of Appeal. Since the learned single judge struck out the applicant's application for stay of execution without considering its merits, we direct that the matter be placed before a single judge of this court for hearing of the application on the merits in terms of rule 55(1) of the Court Rules. Costs to be in the case.

ATTORNEY GENERAL *v.* ROSELEEN KOMBE (AS ADMINISTRATIX OF THE LATE GEN IMRAN HUSSEIN KOMBE)

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani, Nsekela and Kaji, JJ.A)

CIVIL APPEAL No. 80 OF 2002

(From the decision of the High Court of Tanzania at Moshi, Mchome, J., dated 4 October 2001, in Civil Case No. 80 of 1999)

Damages – Fatal accidents – Assessment of damages – Basis for assessment of damages to dependants must be present – Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360.

Damages – Award of damages to dependants after fatal accident – Damages awarded to several dependants calculated as a lump sum – Whether court must also apportion the damages among the dependants – Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360.

The respondent was the widow of one Imran Kombe and administratrix of his estate. She instituted a suit in the High Court against the appellant claiming compensation for herself and several dependants of the deceased, under the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Chapter 360. Liability was admitted by the appellant. The trial judge found that evidence regarding earnings the deceased would have gained and the dependency of the dependants was lacking. The judge nonetheless awarded a sum of TZS. 300 million as general damages. Aggrieved, the appellant preferred this appeal against the decision of the trial judge. In the course of his submission counsel for the appellant informed the court that the appellant was prepared to pay TZS. 200 million as general damages.

Held: (i) Assessment of dependants' lost pecuniary benefit from the deceased's lost earnings must be founded on evidence and in making the assessment the court must be guided by established governing principles;

(ii) Where the court calculates general damages to several dependants as a lump sum, the court must, in the absence of an agreement on apportionment, proceed to apportion the amount among the dependants;

(iii) Where dependants agree on apportionment, such an agreement should be incorporated in the award;

(iv) An award of TZS. 200 million as general damages meets the justice of the case

Appeal allowed

Cases referred to:

(1) *Davies v. Powell Duffryn Associated Collieries Ltd,* [1942] AC 601

(2) *Silas Simba v. Editor Mfanyakazi Newspaper and another,* Civil Application Number 7 of 1997 (unreported)

(3) *Nance v. British Columbia Electric Railway Company Ltd.*, [1951] AC 601

(4) *Taylor v. O'Conner,* [1971] AC 115

Statutory provisions referred to:

(1) Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360, sextions 2 and 4

(2) Law of Marriage Act 1971 – Second Schedule

(3) Court of Appeal of Tanzania Rules, rules 34(1)(a), 36 and 63

Mr Kamba, for the Appellant

Mr Ng'maryo, for the Respondent

Editorial note: Following publication of the 2002 Revised Edition of the Laws of Tanzania, the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360, is now the Law Reform (Fatal Accidents and Miscellaneous Provisions) Act, Chapter 310 and the Law of Marriage Act 1971 is Chapter 29.

JUDGMENT

(Dated 17 November 2004)

Nsekela, J.A.: The respondent Roseleen Kombe is the widow and administratrix of Lieutnant General Imran Hussein Kombe, now deceased. She instituted Civil Case Number 8 of 1999 in the High Court seeking to recover compensation under the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360 as amended, for her own behalf and for the benefit of named dependants. These were five daughters, Sophia, Sonia, Salgha, Sharifa and Sheira; the deceased's mother Saadi Hussein and two grandchildren. All of them qualified under the definition of "dependant" in section 2 of the Ordinance as amended by the Second Schedule to the Law of Marriage Act 1971. This fact was not in contention.

Briefly, the facts of the case are not in dispute. The deceased was murdered by two policemen on the 30 June 1996 who were in the course of the their employment. This crucial fact was admitted by the appellant Attorney-General. The deceased was a very high ranking army officer who rose to the rank of Lieutnant–General and

had held the post of Director–General of Intelligence. He met this tragic death shortly after being relieved of this latter post. The learned trial judge (Mchome, J.) awarded to the administratrix general damages in the sum of TZS. 300 million to be apportioned by the respondent to other dependants:

> as they have agreed and as compensation for the loss of profit from the failed projects.

The appellant, Attorney–General was aggrieved by this decision and filed two grounds of appeal, namely:

1. The High Court erred in law in fact (*sic*) in finding the Government is vicariously liable on unauthorized and wrongful killing of the deceased without tortfeasors being sued.
2. The High Court erred in law and in fact in awarding general damages to the tune of TZS. three hundred million (300 000 000) to the dependants without proof of the dependence of the dependants and as compensation for the loss of profit from non-proved projects of the deceased.

At the commencement of the hearing of the appeal, Mr Kamba, learned Principal State Attorney, abandoned the first ground of appeal and so we are left with the second ground of appeal. The question of the liability of the appellant was thus not contested. The respondent on her part, through Mr Ng'maryo, learned advocate, filed a cross appeal containing two ground of appeal:

1. That the High Court erred in law in requiring further proof of the plaintiff's averments as regards the criteria for assessment of the quantum of damages when those averments were in law admitted by the defendant.
2. That the High Court erred in law and in fact in assessing the general damages at TZS. 300 000 000. Had the High Court properly considered the facts of the case and the uncontroverted evidence before it, it would have awarded a much larger sum as general damages to the plaintiff.

Mr Kamba, learned Principal State Attorney submitted that principles to be used in the award of damages were expounded in the case of *Davies v. Powell Duffryn Associaed Collieries Limited.* The basic principle he said, was the court is confined to the loss of reasonable expectation of pecuniary benefit sustained by the family of the deceased, and that the court should not take into account the mental suffering of the survivors. He added that the respondent had not proved anything as regards damages suffered by the dependants. The daughters, Sofia and Sonia, had reached majority age. He also submitted that there was no evidence on the income generated from the purported projects accruing to the deceased. The learned Principal State Attorney criticized the learned trial judge for relying on conjecture and that damages should be revised downwards, citing *Silas Simba v. Editor, Mfanyakazi Newspaper and Mohamudi Mwinyi* (2). The learned trial judge, he complained, was not guided by any principles and the court should therefore intervene in the assessment of damages. He was of the view, however, that an award of damages in the sum of TZS. 200 million, would meet the justice of the case.

On his part, Mr Ng'maryo, learned advocate for the respondent, submitted to the effect that damages are based on the pecuniary loss suffered by each dependent and the calculation could be based either on a lump sum or on individual calculations. Persons entitled to receive damages are the dependants as defined in the Second Schedule to the Law of Marriage Act, 1971. He added that the evidence of PW1, the widow, was not challenged in any material respect by the appellant. The averments in the plaint on the extent of the pecuniary loss were also not controverted by the appellant. As regards the apportionment of damages among the dependants, the learned advocate was of the view that the task could be undertaken by PW1, the administratrix of the estate of the deceased.

As stated before, the respondent had a cross – appeal containing two grounds. First, the respondent complained that there was no need for further proof on the quantum of damages since the appellant had admitted them. The second complaint was to the effect that general

damages assessed at TZS. 300 million were on the low side and should be enhanced to TZS. 600 million taking into account the inflation factor.

The learned Principal State Attorney countered these submissions. He reiterated that the amount of pecuniary loss for each dependant should have been assessed and that averments in the pleadings had to be proved, and if not, they are of little evidential value. The purported salary of the deceased to the tune of TZS. 72 million per annum had been denied and so the respondent was duty bound to prove the same. As regards the valuation report, Mr Kamba urged the court not to act upon it since the learned trial judge had discredited it.

We propose to deal with the appeal by the appellant. The only issue before the court is the quantum of damages payable to the dependants. The first question for decision, is what are the principles governing the assessment of damages under the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Chapter 360 as amended? R.F.V. Heuton, the learned author of **Salmond on the Law of Torts** (17 ed) at page 585 stated:

> The starting point is the amount of wages which the deceased was earning, the ascertainment of which to some extent may depend upon the regularity of his employment. Then there is an estimate of how much was required or expended for his own personal and living expenses. The balance will give a datum or basic figure which will generally be turned into a lump sum by taking a certain number of years' purchase. That sum, however, has to be taxed down by having due regard to uncertainities.

The principles were enunciated by Lord Wright in *Davies v. Powell Duffryn Associated Collieries Ltd.* (1) at page 617 Viscount Simon restated them in *Nance v. British Columbia Electric Railway Company Ltd* (3). We wish also to quote what Lord Pearson stated in *Taylor v. O'Connor* (3) at page 140:

> There are three stages in the normal calculation, namely, (1) to estimate the lost earnings, that is, the sums which the deceased probably would have earned but for the fatal accident; (2) to estimate the lost benefit,

that is, the pecuniary benefit which the dependants probably would have derived from the lost earnings, and to express the lost benefit as an annual sum over the period of the lost earning; (3) to choose the appropriate multiplier which, when applied to the lost benefit expressed as an annual sum gives the amount of the damages, which is a lump sum.

This is the normal practice followed in assessing damages in fatal accident cases which has been recommended for the sake of uniformity and certainty.

We now turn to consider the evidence of PW1, Roseleen Kombe, who was the sole witness. During her examination in Chief, PW1 did not shed any useful information on the income of the deceased from his salary as well as income derived from their projects. When examined by the court, PW1 candidly admitted that:

> My husband was receiving a salary which I do not know. It was top secret.

She did not testify as to how much the deceased was giving her for the upkeep of the family, that is herself and the rest of the dependants listed in the plaint. We would like to point out as well that none of the dependants testified during the trial in the High Court. This was undoubtedly vital information, which the trial court would use in the calculation of the amount of damages payable to the dependants. At the instance of the court, PW1 was requested to produce the project write – up. What emerges from her evidence on this aspect is that the projects were in their early implementation stages and largely financed by bank loans, which were still outstanding at that time of the deceased's death. It would seem that these projects are now in financial doldrums. There is thus no evidence at all as to how much income was derived from these projects and what income was to the deceased for his own use and the family.

In considering the quantum of damages to be awarded to the respondent and other dependants, the trial judge cited a number of decided cases including the familiar passage from Lord Wright's judgment in *Davis v. Powell Duffryn Associated Collieries Limited* (1). The learned trial judge observed thus:

From the authorities I have cited above it is necessary to know as much as possible the deceased's income and how much he was spending on his widow and other dependants in order to be able to assess how much has to be awarded them in damages to make them in a position like they would have been if the deceased has (*sic*) not died. *The court has not been helped much by the plaintiff in this respect"* [emphasis supplied]

With respect, we agree with the learned trial judge. Then the learned trial judge proceeded on to consider the five "economic projects" listed in paragraph 16 of the plaint whose total financial investment was TZS. 2 243 000 000. PW1 however did not give any evidence to prove this investment. However what is important for our purposes is the income derived from these projects to the deceased for his own use and the family. As regards these projects, the learned trial judge had this to say:

> In business or commercial undertakings there are chances of making profit and also those of making loss. It will be unrealistic to assume the projects would reap maximum profit if the decease had not died. The plaintiff is apparently aware of this reality. That is why in her notice to the Attorney general she was ready to settle at the amount of TZS. 680 000 000 as damages instead of the estimated 2.24 (*sic*) projects value. Through the evaluation of the projects is speculative and exaggerated indeed the projects or at least some of them would have made some profit had the deceased, their engineer, not been killed.

It is evident from decided cases that the measure of damages is the loss of the pecuniary benefit which the dependants would have got from the deceased if the latter had not died, for example support by way of maintenance, education of children and the like. The starting point of the assessment of damages is the amount of the dependency ascertained by deducting from the earnings of the deceased, the estimated amount of his own personal and living expenses. The evidence adduced by the sole witness PW1 regarding the income of the deceased and the amount of loss caused to her and other dependants was in our view wholly unsatisfactory. In fact there was no such evidence! Obviously,

the learned trial judge could not embark upon the calculations envisaged in the *Davis case, (1),* because there was no such evidence.

The deceased husband was a distinguished military and public officer for all his working life and towards the end of his illustrious career that was tragically cut short by overzealous policemen, he was preparing to join the business fraternity upon his retirement. PW1 testified that the deceased's salary and fringe benefits were "top secret", yet in the plaint, it was averred that the deceased's net income as Director of Intelligence (inclusive of fringe benefits) was TZS. 72 000 000 per annum. Surely such unproven figures on the required standard in civil cases could not form the basis for calculation of damages. In the written statement of defence, this income was disputed. The same problem arises as regards the income from the listed projects. The figures in the plaint are investment figures in the purported projects. The critical question is how much was the deceased earning as net income from these projects? The learned trial judge did not ascertain the deceased's income as Director of Intelligence as well as from the purported projects. The second stage would have been to make an estimate of the amount required by the deceased for his personal and living expenses. The learned trial judge did not make this estimate as well. The persistent problem is that during the trial there was no evidence adduced on the income of the deceased and how much he was spending on the dependants.

A question we ask ourselves, was the learned trial judge right in his assessment of the damages? From the passage in his judgment we have quoted, the learned trial judge was well aware of the principles to be used in undertaking such an exercise. However, he did not attempt to do so. On the evidence available, it was an impossible task. From PW1's scanty evidence, it was not known what was the deceased's income both from his salary as well as the projects. As regards the later, the learned trial judge did not have before him the accounts for those projects in order to gauge whether or not they were developing and prosperous. There was no evidence before the trial court on the deceased's income from these projects by way of salary, director's

fees, dividends and the like. All this leads to the inevitable conclusion that the learned trial judge's award of general damages was not founded on known principles in fatal accident cases. Such an assessment must be made on actual known figures.

Section 4 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance provides as under:

> (1) Every action brought under the provisions of this Part shall be for the benefit of the dependants of the person whose death has been so caused, and shall be brought either by and in the name of the executor or administrator of the person deceased or by and in the name or names of all or any of the dependants (if more than one) of the person deceased.
>
> (2) In every such action the court may give such damages as it may think proportionate to the injury resulting from such death to the parties respectively for whom and for whose benefit such action is brought; and the amount so recovered, after deducting the costs not recovered from the defendant, *shall be divided amongst the aforesaid parties in such shares as the court shall find and direct:*
>
> Provided that not more than one action shall lie for and in respect of the same subject matter of complaint [emphasis supplied].

After evaluating the evidence before him and purportedly considering the applicable principles of law, the learned trial judge awarded, *inter alia.*

> General damages TZS. 300 000 000 (hundred million) to cover all the listed dependants to be distributed by their representative, the plaintiff, among them, as they have agreed and as compensation for the loss of profit from the failed projects.

We have two comments to make on this. First, we hope we have amply demonstrated that the learned trial judge did not make any calculations of damages based on the principles explained in the decided cases, of which he was aware, notably *Davis v. Powell Duffryn Associated Collieries Ltd.* (1). We do not know what principle he

used to reach the said amount of TZS. 300 million general damages. We do not entertain any doubts that his was an error of principle in his award of the damages. There are known principles to be followed, which he did not. The second comment relates to the division of the damages among the dependants. This apportionment was left to PW1, probably because she was the administratrix of the estate. The court can award a lump sum and when that sum has been ascertained the court can proceed in the absence of agreement, to apportion the amount among the various dependants. This agreement must be recorded and form part of the award of the court. The apportionment among the dependants is an essential part of the judgment since each dependant has a separate judgment, equal to the amount of damages apportioned to him/her. The procedure that was adopted by the trial court was wrong. Even where the dependants agree on the apportionment of damages, which is a good thing to do, such an agreement should be incorporated in the court's award.

We now come to the cross-appeal. Both grounds in the cross – appeal need not detain us. The first complaint was to the effect that the respondent's averments on the quantum of damages were not challenged by the appellant. Paragraph 10 of the written statement of defence cannot by any stretch of imagination be taken to be an admission that the deceased as Director of Intelligence was earning TZS. 72 million per annum as income. The question of the quantum of damages was challenged in the defence. It was the second issue which had been framed and recorded for determination by the court. The second ground of appeal sought the enhancement of general damages. We think we have sufficiently dealt with this matter in connection with the appellant's ground of appeal. There was simply no iota of evidence before the trial court which would form the basis for calculating general damages as provided for under the Law Reform (Fatal Accidents Miscellaneous Provisions) Ordinance, Chapter 360. So the question of enhancement of damages does not arise. This ground also fails.

Rule 36 of the Court Rules provides as under:

> 36. The court may, in dealing with any appeal, so far as its jurisdiction permits, confirm, reverse or vary the decision of the High Court or remit the proceedings to the High Court with such directions as may be appropriate, or to order a new trial and make any necessary incidental or consequential orders, including orders as to costs.

On our part, we are satisfied that the learned trial judge did not follow established principles in the calculation of damages under the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Chapter 360 as amended. We have seriously considered stepping into the shoes of the learned trial court so that his court make the assessment itself under rule 34(1)(a), but this is not possible since the evidence before the trial court was far from satisfactory. Since the liability of the appellant was admitted, our sense of justice demands that there should be an assessment of damages according to law. An order for a retrial limited to the assessment of damages would have been an appropriate one. However, it will be recalled that Mr Kamba, learned Principal Stated Attorney, submitted that the appellant would be prepared to pay TZS. 200 million as damages to the widow and other dependants.

In the event, we allow the appeal with costs and dismiss the cross-appeal. The appellant is ordered to pay TZS. 200 million as damages to the widow and dependants of the deceased herein. The apportionment of the said amount between the widow and the dependants to be done by the learned trial judge, Mchome, J.

NURBHAI N. RATTANSI *v.* MINISTRY OF WATER CONSTRUCTION ENERY LAND AND ENVIRONMENT AND HUSSEIN RAJABALI HIRJI

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, J.A.)

ZNZ CIVIL APPLICATION No. 3 OF 2004

(From the judgment of the High Court for Zanzibar at Vuga, Mshibe, J., dated 10 March 2003, in High Court Civil Appeal No. 5 of 2000)

Civil Practice and Procedure – Leave to appeal to Court of Appeal – Whether there was a legal point worth consideration of the Court of Appeal.

The applicant lost in a Civil Case before the Regional Magistrate's Court in 1996. He appealed to the High Court where the appeal was also dismissed in 2003. Still dissatisfied he applied to the High Court of Zanzibar for leave to appeal to the Court of Appeal. The application was dismissed on the ground that there was no point of law involved worth consideration by the Court on Appeal. Hence this application.

Held: The complaint that the High Court judge did not deal with the appeal on its merits but instead dismissed it on other grounds which did not feature in the trial is a contentious legal point worth the consideration of the Court of Appeal.

Leave to appeal granted

Case referred to:

(1) *Said Remadhani Mayange v. Abdalla Salehe* [1996] T.L.R. 74

Statutory provision referred to:

(1) Court Rules 1979, rule 43(b)

Messrs Mbwezeleni and Makanje, for the first Respondent

Mr Nassoro, for the second Respondent

RULING

(Dated 19 November 2004)

Lubuva, J.A.: There is before me an application for leave to appeal to this court. By Notice of Motion, the applicant, Nurbhai N. Rattansi, has filed this application supported by affidavit sworn by Salim Hassan Mnkonje. The matter arises from the decision of the High Court, Zanzibar (Mshibe, J.) in Civil Appeal Number 5 of 2000 of 10 March 2003. From the affidavit deposition and other documents laid before me the brief historical background of the matter may be outlined as follows:

The matter arose from the decision of the Regional Court at Vuga, Zanzibar in Civil Case Number 93 of 1996 in which the applicant lost. Being dissatisfied, he took the matter on appeal to the High Court Zanzibar, where the appeal was dismissed on 10 March 2003. Still dissatisfied, the applicant sought to appeal to this court by first lodging a Notice of Appeal on 21 March 2003 and applying to the High Court Zanzibar for leave to appeal to this court. After hearing the application, the learned judge took the view that there was no merit in the application because there was no point of law involved worth consideration of the court on appeal. Accordingly, the application for leave was dismissed on 23 March 2004. After the refusal, the applicant has filed this application in terms of the provisions of rule 43(b) of the Court Rules1979.

In this application, the applicant is represented by Mr Mbwezeleni and Mr Mnkonje, learned counsel, and the first and second respondents are represented by Mr Saleh Mumbarak and Mr Nassoro, learned advocates, respectively.

For the applicant Mr Mnkonje stated that the learned judge on first appeal, erroneously dismissed the appeal on the ground that the appeal lodged before the High Court, Zanzibar, new issues had been raised which were not before the trial Regional Court. This, Mr Mnkonje maintained, was wrong because in the High Court the

main ground of complaint was that the trial magistrate erred in basing his decision to dismiss the suit on the issue of *res judicata* and not the issues framed at the trial. Counsel went on in his submission that this was a legal issue that warranted consideration of the Court of Appeal but unfortunately the learned judge dealing with the application for leave, did not accept it as a legal point worthy of consideration by the court. He charged that the learned judge instead of directing his mind on the central issue of complaint in the Memorandum of Appeal before him, strayed into extraneous matters, namely, the issue of *res judicata* and the fact that the second respondent had a proper letter of administration of the estate of his father. Had the learned judge addressed his mind properly on the framed issues before the trial court, which were not considered at the trial and the High Court on first appeal, he would have granted the application for leave to appeal. In support of the application the court was referred to the decision of the High Court in *Said Ramadhani Mayanga v. Abdalla Salehe* (1).

Mr Saleh Mumbarak, learned State Attorney, for the first respondent, the Ministry of Water, Construction, Energy, Land and Environment, apart from stating that he did not see the grounds for the application, otherwise, he conceded to the application. In effect, therefore, he did not make any substantive submission to counter the application.

On the other hand Mr Nassoro, learned counsel for the second respondent, made brief submission in opposition to the application. He urged that the learned judge cannot be faulted in refusing to grant leave because there was no point of law for consideration by the Court on Appeal. He also said that the new issues raised before the High Court which were refused are now the subject of complaint in respect of which leave to appeal is being sought. This, Mr Nassoro stressed, should not be allowed. Furthermore, he went on in his submission, as was done by the learned judge in the High Court, leave should not be granted because there are no chances of success on appeal.

I have closely considered these submissions. In my considered view, the narrow issue for consideration in this application turns on the fact whether there was a legal point worth consideration of the

Court on Appeal. As already indicated, Mr S. Mumbarak, learned State Attorney, for the first respondent readily conceded that in the circumstances of the case, leave should have been granted. With respect, I think there is merit in the position taken by the learned State Attorney in this matter. If as submitted by Mr Mnkonje, learned counsel for the applicant, the trial magistrate decided the case on the basis of extraneous matters, namely the question of *res judicata* and that the second respondent had a letter of administration for his late father's estate and not the issues framed during the trial, I have no hesitation in accepting the contention that this was a legal aspect worth consideration by the court on appeal. From the documents laid before me and the submission by counsel for the applicant, it can be gleaned at once that the complaint before the High Court judge on first appeal was that the trial court did not address the issues raised before it. With respect, in that situation, the learned judge did not deal with the appeal on its merits. Instead, the appeal was dismissed on other grounds which did not feature at the trial.

In the circumstances of the case, I am, with respect, in agreement with the view expressed by Msumi, J. (as he then was) in *Said Ramadhani Mnyanga v. Abdallah Salehe* (1), in which I think he restated the correct position of the law in this regard. He stated *inter alia*:

The matter raises contentious issues of law and is a fit case for further consideration by the Court of Appeal.

In the event I am inclined to the view that the basis upon which the suit was determined by the trial Regional Court and thereafter on first appeal before the High Court, Zanzibar, was such that it raised a contentious legal point. Such an aspect, I am further persuaded to accept, is worth consideration of the court on appeal. I am therefore, with respect, unable to accept Mr Nassoro's attractive argument that there was no point of law raised for the court's consideration.

Accordingly, leave to appeal to the Court of Appeal is granted.

ABDALLA BAKAR ABDULRAHMAN *v.* MARYAM MAKSOUD MOH'D AND MRAJIS WA NYARAKA

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, Mroso and Msoffe, JJ.A.)

CIVIL APPEAL No. 6 OF 2004

(From the decision of the High Court of Zanzibar at Vuga, Dahoma, J., dated 5 September 2003, in an application for review in Civil Case No. 55 of 2002)

Civil Practice and Procedure – Applications – Application for review – Order L, rules 1 and 2 of the Civil Procedure Decree.

Civil Practice and Procedure – Review – Application for review – Jurisdiction for review by a judge who made original decision sought to be reviewed – Order L, rule 5 of the Civil Procedure Decree.

The first respondent had applied in the High Court for revocation of a deed of gift of a house she had made in favour of her son, the applicant, and her daughter. The deed of gift had been duly registered with the Registrar General in 2000. The application was dismissed by Mshibe, J., on 19 February 2003 as the property had already been transferred to the donees. Twelve days later the first respondent was granted by Dahoma, J., an application for review of the decision of 19 February 2003. The appellant, aggrieved by the decision, appealed on the ground that Dahoma, J. had contravened the provision of Order L, rule 5 of the Civil Procedure Decree. The second ground was that the learned judge erred in dealing with the matter of review and reversing the decision of a fellow judge with similar powers. The second respondent did not resist the appeal and argued that Dahoma, J., had no jurisdiction to deal with the matter on review as in terms of the provision of the law, if at all the review was warranted, it should have been heard by Mshibe, J.

Held: (i) The decision on review was null and void as the judge lacked jurisdiction since the original judge who had dismissed the application for revocation was still attached to the court.

(ii) ***Obiter:*** What the learned judge did amounted to hearing an appeal from another judge with the same jurisdiction; even assuming he had jurisdiction to deal with the application, none of the instances set out under the rule for the court to invoke the powers of review were available in this case.

Appeal allowed

Mr Jadi, for the second Respondent

Statutory provision referred to:

Civil Procedure Decree, Order L, rules 1, 2 and 5.

JUDGMENT

(Dated 26 November 2004)

Lubuva, J.A.: This appeal arises from the decision of the High Court of Zanzibar (Dahoma, J.) of 4 September 2003 in an application for review filed in connection with Civil Case Number 55 of 2002. In High Court Civil Case Number 55 of 2002, the appellant, Maryam Maksoud Mohamed, applied for the revocation of a Deed of Gift she had made in favour of the donees, the appellant, Abdallah Bakar Abdulraman, her son, and Chausiku Bakari Abdulrahaman, her daughter. The Deed of Gift which was duly registered in the office of the Registrar General on 20 June 2000, concerned house number 13/1 at Kilimani within the Municipality of Zanzibar. The revocation of the deed of gift against the appellant was based on the ground that the appellant was not taking care of the first respondent, the donor, an old and sick lady. Resisting the application the appellant firmly maintained that the Deed of Gift could not be revoked because there was no condition attached to the Deed for the appellant to take care of the donor, the first respondent.

The learned judge, Mshibe, J., took the view that as the transfer of the immovable property, namely a house, had been effected by a duly signed and registered instrument, the Deed of Gift could not

be revoked. Consequently, on 19 February 2004 the application was dismissed with costs.

On 11 March 2003 about twenty days after the dismissal, the respondent filed an application in the High Court of Zanzibar seeking the review of the High Court decision of 5 March 2003. The application for review was made under the provisions of Order L , rules 1 and 2 of the Civil Procedure Decree Chapter 8 of the Laws of Zanzibar.

Dealing with the application for review, Dahoma, J. held that the Deed of Gift to the donees was invalid in law. The decision of the High Court of 19 February 2003 was reversed and the deed, Registration Number 156 of 2 March 2000, Volume 1 Book A of 10 February 2000, was cancelled. The appellant was aggrieved by the decision; hence, this appeal has been preferred.

In this appeal, the appellant was unrepresented. He filed four grounds of appeal in his memorandum of appeal. From his grounds, two essential points are raised. First, that the learned judge erred in hearing the application for review in contravention of the provisions of Order L, rule 5 of the Civil Procedure Decree. Second, that the learned judge erred in dealing with the matter to review and reverse the decision of a fellow judge of the High Court with similar power or jurisdiction.

Mr Jadi, learned State Attorney, represented the second respondent, the Registrar General of Zanzibar. On his part, he said he was not resisting the appeal. He further stated that as he had done in the High Court at the hearing of the application for review, it was his view that Dahoma, J. had no deal with the matter on review. He maintained that in terms of the provision of Order L, rule 5 if at all the review was warranted, it did amount to hearing an appeal from the decision of the fellow judge with similar jurisdiction. The decision arising from the proceedings before Dahoma, J. was null and void, it should be set aside, he urged.

It is common ground that the application for the revocation of the Deed of gift in respect of the appellant was heard and determined

by Mshibe J. on 19 February 2003. It is also not disputed that the same matter was dealt with and decided on review by Dahoma, J. on 5 September 2003. The issue falling for consideration is the propriety of the proceedings for review before Dahoma,J. As said before, the application was filed under the provision of Order L, rule 5 of the Zanzibar Civil Procedure Decree which provides:

> 5. Where the judge or judges or any one of the judges, who passed the decree or made the order, a review of which is applied for, continues or continue attached to the court at the same time when the application for review is presented, and is not or are not precluded by absence or other cause for a period of six months next after the application from considering the decree or order to which the application refers, such judge or judges or any of them shall hear the application, and no other judge or judges of the court shall hear the same.

In this case, it is not disputed that when the application for the review was presented, Mshibe, J., was still attached to the court and was not in any way precluded by absence from the court. It is therefore inexplicable that the application for review in this matter was dealt with by Dahoma, J. Quite clearly this was, in the circumstances, a violation of the mandatory provisions of Order L, rule 5 of the Civil Procedure Decree. With respect, Dahoma, J. had no jurisdiction to deal with the application for review of the matter which appropriately should have been dealt with, if at all, by Mshibe, J. As Mr Jadi, learned State Attorney correctly observed, as the learned judge lacked jurisdiction, the proceedings before him were a nullity. The resulting decision was likewise, null and void.

Having taken this view in this matter, it becomes unnecessary to deal with the other points raised in the memorandum of appeal. However, we wish to make the following two observations which are not necessary for the determination of this appeal. First, in this matter, what the learned judge (Dahoma, J.) did amounted to hearing an appeal from another judge with the same jurisdiction. This was, to say the least, improper and unwarranted. Two, even assuming that the leaned judge

was vested with jurisdiction to deal with the application, none of the circumstances set out under Order L, rule 1 of the Civil Procedure Decree for the general power of the court to invoke the power of review were available in this case.

For the ongoing reason, we allow the appeal, set aside the decision of the High Court of 5 September 2003 and restore the decision of Mshibe, J. of 19 February 2003. Costs are awarded to the appellant.

KHAMIS NASSORO SHOMAR *v.* S.M.Z.

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, Mroso and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 1 OF 2004

(From the conviction and sentence of the High Court of Zanzibar at Vuga, Mshibe Bakari, J., dated 17 April 2003 in Criminal Session Case No. 19 of 2001)

Criminal Practice and Procedure –Assessors – Failure of trial judge to sum up the case to the assessors before obtaining their opinion — Effect of such failure — Section 256(1) Criminal Procedure Decree Chapter 14 of the Laws of Zanzibar.

The appellant was charged with and convicted of manslaughter and sentenced to 5 years imprisonment. It was not apparent from the record whether at the close of the case for both sides the trial judge either summed up the case to the assessors or required the assessors to state their opinion.

Held: As there was no summing up of the case to the assessors and their opinion was not taken, in similar vein, the proceedings were in contravention of the clear and long established practice of the court.

Order accordingly

Cases referred to:

(1) *Hatibu Gandhi and others v. R.* [1996] T.L.R. 12.

(2) *Stanley Anthony Mrema v. R.* Court of Appeal, Criminal Appeal Number 60 of 2000 (unreported)

(3) *Washington s/o Odindo v. R.* (1954) 21 E.A.C.A. 392

(4) *Andrea and others v. R.* [1958] EA 684

Statutory provisions referred to:

(1) Criminal Procedure Decree Chapter 14 of the Laws of Zanzibar, sections 220, 265, 283(1) 289(1) 248, and 256(1)

(2) Penal Decree Chapter 13 of the Laws of Zanzibar, sections 179 and 182

(3) Zanzibar Constitution 1984, article 95(3)

Lt. Col. Laizer, for the Appellant

Mr Ali A. Hassan for the Respondent (S.M.Z.)

JUDGMENT

(Dated 26 November 2004)

Lubuva, J.A.: This is an appeal against the decision of the High Court of Zanzibar, Mshibe Bakari, J., in Criminal Sessions Case Number 19 of 2001. The appellant was charged with and convicted of the offence of manslaughter contrary to sections 179 and 182 of the Penal Decree Chapter 13 of the Laws of Zanzibar.

Briefly stated, the case against the appellant, a soldier with the Tanzania People's Defences Forces in Zanzibar, was as follows: On 23 December 1997, the appellant together with other soldiers, PW1, PW3, PW4, PW5, PW6 and PW7, were on duty at Fumba taking charge of the security of TANESCO installation. At about 8:00pm, the deceased, Claudius Karl, visited the TANESCO installation area riding a motor cycle. He was suspected as a security risk to the

TANESCO electricity installation. The appellant and his companions confronted the deceased who was not armed. As the deceased was running away to save his life, the appellant fired a shot at the deceased who fell down dead.

In his defence at the trial, the appellant denied aiming the gun at the deceased. Instead, he claimed to have fired the gun twice in the air to scare the deceased. Unfortunately, the deceased was shot on the right side of the neck. The trial court found as a fact that the appellant had without intention caused the death of the deceased. As observed earlier, the appellant was convicted of manslaughter and was sentenced to five (5) years imprisonment. This appeal has been preferred against the decision of the High Court.

Lt. Col. Laizer, learned counsel, advocated for the appellant before us in this appeal. On the other hand, Mr Ali A. Hassan, learned State Attorney, represented the respondent, the Revolutionary Government of Zanzibar. At the commencement of hearing the appeal, at the prompting of the court, two issues were raised and argued as preliminary matters. These relate first to the summing up of the evidence to the assessors and their opinion. Second, the propriety of transferring the case from one judge to another.

We shall first deal with the summing up of the case to the assessors. From the record, it is clear that on 8 April 2002, when the trial commenced before Dourado, J. three assessors were selected namely Ali Ramadhani Ali, Abdulla Ali and Mwadini Makungu. However, it is also apparent from the record that at the close of the case for both sides, it is not indicated that the learned trial judge either summed up the case to the assessors or required the assessors to state their opinion.

In this regard, the issue is the legal effect of the trial judge's failure to sum up the case to the assessors and obtain their opinion. On this, Mr Ali A. Hassan, learned State Attorney, for the respondent, the Revolutionary Government of Zanzibar, stated that in terms of the provisions of section 256(1) of the Criminal Procedure Decree,

Chapter 14 of the Laws of Zanzibar, (hereinafter referred to as the decree) it is not mandatory for the trial judge to sum up the case to the assessors and require them to state their opinion. Stated differently, he said it is a matter of discretion on the part of the trial judge to do so. He however conceded that this interpretation of section 256(1) of the Decree negates the import and the logic behind the provisions of section 220 of the Decree which provides that all trials before the High Court shall be with the aid of assessors.

On his part, Lt. Col. Laizer, learned counsel, firmly contended that as section 220 of the Decree provides in mandatory terms for the High Court to sit with assessors during trials, the discretionary provisions of section 256(1) should be applied such that the provisons of section 220 are not negated. He urged the court to quash and set aside the decision of the High Court, remit the matter to the High Court with direction to deal with the matter in accordance with the law.

With regard to the role of assessors in trials before the High Court, the pertinent issue is whether the judge's summing up of the case to the assessors is mandatory or discretionary. This aspect has engaged our minds considerably. section 256(1) of the Decree provides:

> 256(1) When the case on both sides is closed, the judge *may* sum up the evidence for the prosecution and the defence, and shall then require each of the assessors to state his opinion orally and shall record such opinion. [emphasis supplied]

From the provisons of this section, we are in agreement with Mr Ali A. Hassan, learned state Attorney, that the judge's summing up of the case to the assessors is discretionary and not mandatory. The wording of the section is unambiguously clear where the operative word used is "may". However, we wish to point out at once that although it is not mandatory for the trial judge to sum up the case to the assessors, as a matter of long established practice, trial judges sitting with assessors have invariably been summing up the cases to the assessors.

That this is the practice can be seen from a number of decided cases by this court in Tanzania and elsewhere in East Africa by the Court of Appeal for East Africa. In Tanzania Mainland, section 265 of the Criminal Procedure Act 1985 (the Act) essentially provides in similar terms as section 256(1) of the Decree, in Zanzibar. It provides:

> 298(1) When the case on both sides is closed, the judge *may* sum up the evidence for the prosecution and the defence,, and shall then require each of the assessors to Estate his opinion orally as to the case generally and as to any specific question of fact addressed to him by the judge and shall record such opinion [emphasis supplied].

As said before, with such similarly worded provision of the law in Tanzania Mainland, in *Hatibu Gandhi and others v. R* (1), the court took the view that although the trial judge's summing up of the case to the assessors is discretionary, as a matter of practice, it is prudent for the judge to sum up the case. In part, the court held:

> The word 'may' in section 283(1) of the Criminal Procedure Code (now section 298(1) of the Criminal Procedure Act 1985) is unambiguous and crystal clear; and thus the trial judge's summing (*sic*) of the case to his assessors is not mandatory, but prudent as a matter of practice.

It is our view that this view is in accord with logic and the spirit behind the provisions of section 265 of the Act in Tanzania Mainland. It provides that:

> All trials before the High Court shall be with aid of assessors the number of whom shall be two or more as the court thinks fit.

In our view, to hold otherwise, would negate the import of this very clear and mandatory provision of the section. As correctly submitted by Lt. Col. Laizer, learned counsel for the appellant, it would otherwise make a mockery of the provisions of section 265(1) of the Act, if the practice of the court was different from what was stated in *Hatibu Gandhi* (1).

In *Stanley Anthony Mrema v. Republic* (2) this court reiterated the position of the law regarding summing up of the case to the assessors applicable in Tanzania. In that case, the Principal Resident Magistrate in exercise of extended jurisdiction, did not properly sum up the case and direct the asssessors on the applicable law in the circumstances of the case. Allowing the appeal and ordering the case to be heard *de novo*, the court reaffirmed the views expressed by the Court of Appeal for Eastern Africa in *Washington s/o Odindo v. R* (3) which was also followed in *Andrea and others v. R* (4). The Court of Appeal for Eastern Africa *inter alia* stated:

> The opinion of assessors can be of great value and assistance to a trial judge but only if they fully understand the facts of the case before them in relation to the relevant law. If the law is not explained and attention not drawn to the salient facts of the case, the value of the assessors' opinion is correspondingly reduced.

What is the legal position in Zanzibar, where, as already indicated, the provisions of sections 220 and 256(1) of the Decree are in essence similarly worded as sections 265 and 298(1) of the Criminal Procedure Act 1985 in Tanzania Mainland regarding trials with assessors and summing of the case. In our view, having regard to the essence and similarity in these provisions, we do not think that there is any rational or legal ground for taking a different view of the import and logic behind these provisions in Zanzibar. We are firmly of the view that the logic behind these provisions is essentially the same. We think by parity of reasoning, the same view taken by this court and its predecessor, the Court of Appeal for East Africa in the above cases would hold true of Zanzibar.

Based on established practice and decided cases, in *Stanley Anthony Mrema* (2), where the trial Principal Resident Magistrate (Ext. J.) had not properly directed the assessors in the summing up, this court took the view that it was not certain what the verdict would have been if the assessors had been properly directed. In the instant case, we think the situation is even worse. There was no summing up at

all to the assessors and their opinion was not taken. In *Hatibu Gandhi* (1) the court also held:

> Section 248 of the Criminal Procedure Code (now section 265 of the Criminal Procedure Act 1985) obliges the trial judge, by necessary implication, to take the assessors opinion before giving judgment.

As there was no summing up of the case to the assessors and their opinion was not taken, in similar vein, we are satisfied that the proceedings were in contravention of the clear and long established practice of the court.

Although this ground is sufficient to dispose of the appeal, there is yet another aspect of the matter. This we intend to deal with briefly. The issue relates to the changing of judges in the trial of the case. From the record, it is apparent that Dourado, J. conducted the trial of the case from the commencement of hearing of the case until the close of the prosecution case. On the submission of no case to answer, the trial judge, ruled that the accused, the appellant in this case had a case to answer. On 26 July 2002, Dourado, J. instructed one Luciano, apparently, a court clerk to submit the court record to the Chief Justice for re-assignment to another judge. The record was reallocated to Dahoma, J. on 29 July 2002 by the Deputy Chief Justice. On 14 August 2002, Dahoma, J. reallocated the case to Mshibe, J. It is further apparent that in all the orders for reallocation, no reason was ascribed to explain the reason for the transfer of the case.

As to the propriety of such transfer of the case, Mr Ali A. Hassan, learned State Attorney, said it was his view that the Criminal Procedure Decree does not provide for such a situation. He however pointed out that article 95(3) of the Zanzibar Constitution 1984, provides to the effect that in the event a judge of the High Court of Zanzibar reaches the retirement age, he shall continue holding the office of a judge until such a time that he concludes the cases assigned to him before reaching the retirement age. In this case, he conceded that if the transfer of the case was due to Dourado, J.'s retirement, the re-assignment was improper.

Lt. Col. Laizer urged that as no reason was given for the transfer of the case it is a matter of conjecture why the case was transferred. On the other hand he said if the transfer was due to Dourado, J.'s retirement, it was improper because article 95(3) of the Zanzibar, 1984 constitution provides for such an eventuality. In the circumstances, Lt. Col. Laizer maintained that the appellant was prejudiced by the transfer of the case to other judges at a stage when the initial trial judge, Dourado, J. had seen and heard the witnesses until the close of the prosecution case. For unexplained reasons, the transfer of the case to other judges at that stage, counsel further submitted, was not only improper, but also prejudiced the appellant.

We have no hesitation in agreeing with learned counsel for both parties that no reason was shown in the record for the transfer of the case from one judge to another. As happened in this case, it is a matter for conjecture why it was done. If, as the learned State Attorney submitted, the law under the Criminal Procedure Decree in Zanzibar is silent on the transfer of cases from one judge to another, it is, to say the least, a very unsatisfactory state of affairs. Properly laid down procedure should be provided in the law to take care of deserving situations warranting such transfer of cases.

Otherwise it would be a chaotic situation whereby judges or other judicial officers for unexplained reasons may transfer cases indiscriminately. At any rate, in order to ensure that there is some semblance of orderliness, apart from giving reasons for the transfer of cases where necessary, such transfer of cases in the High Court should be effected by the Chief Justice or Judge-in-charge and not at the whim of any judge as happened in this case.

On the other hand, in this case, if the transfer of the case was due to Dourado, J. retirement, it was, as conceded by counsel for both parties improper. This is so because article 95(3) of the Zanzibar Constitution, 1984, takes care of such a situation. Dourado, J. would have continued to hear the case until its conclusion. As happened in this case, having regard to the fact that the case had reached the

stage of closing the prosecution case Dourado, J. had ruled that the appellant had a case to answer and the fact that no reason was given for the transfer, it may well be that the appellant was prejudiced by the transfer of the case as urged by learned counsel, Lt. Col. Laizer.

For the foregoing reasons, the appeal is allowed, conviction quashed and sentence set aside. It is further ordered that the case is to be remitted to the High Court for re-trial by another judge according to the law. Having taken this view, it becomes unnecessary for the court to deal with other grounds of appeal raised.

MALIK HASSANI SULEIMAN *v.* S.M.Z.

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, Mroso and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 77 OF 2004

(From the Judgment of the High Court of Zanzibar at Vuga, Dourado, J., dated 19 February 1998 in Criminal Appeal No. 2 of 1998)

Civil Practice and Procedure – Exhibits – Handling of exhibits – Exhibits handled in a way that makes tampering with them possible – Effect thereof.

Civil Practice and Procedure – Search – Mandatory conditions to observe in conducting a search – Section 114 (1) and (2) of the Criminal Procedure Decree Chapter 14 of the Laws of Zanzibar.

Civil Practice and Procedure – Functus officio – When a judge becomes functus officio.

After calling one respectable inhabitant of the locality to attend and witness a search, the appellant's house was searched. In the search four packets of bhang were found. The appellant was charged in the regional magistrate's court with being in possession

of bhang, and was convicted and sentenced to 15 years imprisonment, the minimum sentence for such offence being 20 years imprisonment. The handling of the bhang was such as might raise doubts as to whether or not it was the bhang that was seized at the appellant's house that was admitted in court as exhibit. The appellant's appeal to the High Court was not successful; instead his sentence was enhanced to 25 years imprisonment. Upon the appellant's application to the High Court for review of sentence, the first appellate judge reduced the sentence to one of 20 years imprisonment. The appellant, aggrieved by the decision of the High Court, appealed to the Court of Appeal against both conviction and sentence. The Court of Appeal considered the propriety of handling the bhang, the manner the search was conducted and the jurisdiction of a judge to review his own decision.

Held: (i) Given the manner in which the bhang was handled by the police, the Government Chemist, and eventually the court, anybody could have tampered with it in the process and thus it could not be safely said and concluded that the alleged four packets of bhang seen in the appellant's jacket were necessarily the bhang that was examined and certified by the Government Chemist;

(ii) In executing a search warrant under section 114(1) and (2) of the Criminal Procedure Decree, Chapter 14 of the Laws of Zanzibar, the following conditions are mandatory: the search must be witnessed by two or more respectable inhabitants of the locality and a list of all things seized in the search must be prepared and signed by the witnesses; in the instant case the search was irregular for being witnessed, and the list being signed, by only one inhabitant;

(iii) A court becomes *functus officio* when it disposes of a case by a verdict of guilt or by passing a sentence or making orders finally disposing of the case; in this case the learned judge became *functus officio* when he passed the judgment of 19 February 1998 and he was not clothed with the necessary jurisdiction to review his own decision subsequently.

Appeal allowed

Cases referred to:

(1) *John Mgaya and four others v. Edmund Mjengwa and six others*, Criminal Appeal Number 8A of 1997 (unreported)

(2) *Kamundi v. Republic* [1973] EA 540

Statutory provisions referred to:

(1) Criminal Procedure Decree, Chapter 14 of the Laws of Zanzibar, sections 114(1) and (2) and 61(1) and (2)

(2) Civil Procedure Decree Chapter 8 of the Laws of Zanzibar, Order L, rule 5

Uhuru Khalfan, for the Appellant

Salma Ali Hassan, State Attorney, for the Respondent

JUDGMENT

(Dated 26 November 2004)

Msoffe, J.A.: In the Regional Court for Zanzibar at Vuga, the appellant was convicted of unlawful possession of bhang contrary to sections 17(2) and 32(3) of the Pharmaceuticals and Dangerous Drugs Act Number 6/86 as amended by the relevant provisions of the Written Laws (Miscellaneous Amendments) Act Number 6/91 of the Laws of Zanzibar. Following the conviction, he was sentenced to serve a fifteen year period at the Education Centre. Dissatisfied by the conviction and sentence he appealed to the High Court of Zanzibar. The High Court, Dourado, J., in a seven line typed judgment dismissed the appeal and enhanced the sentence to twenty five years. The judgment reads as follows:

JUDGMENT

> The learned RM adequately dealt with the evidence which conclusively show that the accused was in possession of 4 pkts of bhang. This court is unable to upset his findings. As regards sentence the minimum is 20 years. He was sentenced to 15 years. A deterrent sentence is called for. The sentence is raised from one of 15 years to 25 years. In addition he will receive 12 strokes which will be administered today.
>
> Sgd. W. Dourado
>
> Judge
>
> 19 February 1998

On 2 March 2001 the appellant lodged an application at the High Court seeking review of the sentence. On 4 June 2001 the High Court, Dourado, J. granted the application and reduced the sentence to the statutory minimum of 20 years. Again, the "judgment" to that effect read as follows:

JUDGMENT

> On review this Court is prepared to alter sentence. There will be no corporal punishment. The sentence is reduced from 25 years to the minimum 20 yrs.
>
> Sgd. W. Dourado, J.
>
> 4 June 2001

On 10 March 2004 he filed an application at the High Court seeking leave to appeal to this court against the above conviction and sentence. On 24 June 2004 the High Court, Mshibe A. Bakari, J. granted leave reasoning, *inter alia*, as follows:

> The court having heard the ground of the application and the reply from the respondent is of the view that the Applicant has got no good grounds of applying for leave to appeal to the Court of Appeal but it seems that there is a point of law whether the Appellate Judge can increase the sentence from what passed by the trial court without any complaints from the prosecution/respondent that the sentence passed is lenient.

Having been granted leave, the appellant filed the appeal on 13 July 2004. Mr Uhuru Khalfani, learned advocate, appeared and argued the appeal before us on behalf of the appellant. On the other hand, Ms Salma Ali Hasan, learned State Attorney, appeared and resisted the appeal on behalf of the respondent, the Revolutionary Government of Zanzibar.

Briefly stated, the prosecution case against the appellant was that on 11 May 1995 at around 8.30 a.m. the appellant was at his home. His home is at Jambiani, Kikadini, Zanzibar South. While

there, PW1 CPl. Ali and PW2 ASP Ali Muno came in and met him having his breakfast. The two policemen told the appellant that they wanted to search his house. The appellant did not resist the desire by the policemen to search his house. PW6 Sulemani Hafadhi was called to witness the search. In the search four packets of bhang weighing 17.670 grams were found in one of the pockets of the appellant's jacket. The appellant was arrested and taken to Makunduchi police station where a charge was framed against him. On 15 May 1995 he appeared in court to answer the charge in question. At the same time, the bhang was sealed and taken to the Government Chemist for examination and analysis. The Government Chemist, Abdala Musa (PW5), examined it and certified that it was bhang. He then wrote a report to that effect and gave it to PW1 with the bhang in issue.

The appellant's defence was a general denial of guilt. He basically stated that the police witnesses (PW1 and PW2) came to his home on the above date and time and said that they were looking for stolen properties. He allowed them to search the house in the presence of PW6. After the search, the two policemen told him that they had seen four packets of bhang in one of the pockets of his jacket. He denied any knowledge of the bhang in question. Thus, according to him, he had nothing to do with the said bhang.

The Memorandum of appeal has seven grounds of appeal. In arguing the appeal Mr Uhuru Khalfani abandoned the second, fourth, sixth and seventh grounds.

The complaint in the first ground is that there was a possibility that the bhang was, at some stage, tampered with in the course of handling by the police, the Government Chemist and the court. We are of the view that this complaint has merit for a number of reasons. One, PW1 and PW2 did not say how and where the alleged bhang was preserved before it was given to PW3 and PW4 for onward transmission to PW5.

Second PW5 stated that he received the bhang on 12 May 1995, yet he did not go further to say when he examined it. Indeed, PW5

did not even say when he gave the bhang and his report to PW1. And neither did PW1 say whether he received the bhang, if at all, from PW5; and assuming he did, when he received it!

Third, it is in evidence that the bhang was produced and admitted in evidence on 13 February 96, a period of nine months after the appellant's arrest. We wonder why it took all that long period of time to produce it in evidence.

Given the above manner in which the bhang was handled by the police, the Government Chemist and eventually the court, we agree with Mr Uhuru Khalfani that anybody could have tampered with it in the process. Since there was that possibility it could not be said safely and concluded that the alleged four packets of bhang seen in the appellant's jacket were necessarily the bhang that was examined and certified by the Government Chemist. This being a criminal matter, we think this doubt should have been resolved in favour of the appellant.

The third ground is an attempt at highlighting some shortcomings in the prosecution case. For example, while PW1 said the appellant was met outside his house, PW2 stated that they met him taking breakfast. While PW3 said he sealed the Exhibit (bhang) on 11 May 1995, PW4 stated that he sealed it on 26 May 1995. The point being made here on the issue of sealing of the exhibit is two-fold: One, it is not clear when the exhibit was sealed. Two, it is also not clear who, as between PW3 and PW4, actually sealed it.

Another shortcoming mentioned by Mr Uhuru Khalifani was the failure to comply fully with the provisons of section 61(1) and (2) of Act 6/86 which reads:

> 61(1) In every case in which a sample is delivered to the Government Analyst under section 56, the Analyst shall cause it to be analysed as soon as is practicable and shall give to the person who reques'ts the analysis to be made a certificate specifying the resut of the analysis in the form prescribed in the Third Schedule to this Act and such certificate shall judicially be noticed.

(2) A certificate or the result of analysis given by the Government Analyst under subsection (1) shall be signed by him, and the analysis may be made by any person acting under his instructions. [Emphasis Supplied.

According to Mr Uhuru Khalifani, the certificate mentioned under section 61(1) ought to have been produced in evidence for purposes of being judicially noticed. He maintained this view before us inspite of the fact that PW5 testified in court. We agree with him only to the extent that production of the certificate would have helped in advancing the prosecution case. Otherwise, a strict interpretation of section 61(1) does not suggest to us that it was mandatory to produce the certificate in court even after PW5 had testified. In our view, the certificate could have only been judicially noticed if and when produced in court. Once PW5 testified there was no need to produce it in evidence.

On a broader scale though, we agree with Mr Uhuru Khalifani that the shortcomings mentioned in the first limb of the third ground of appeal were material only to the extent of showing that the prosecution case was not necessarily established to the expected standard.

The fifth ground is very clear. It seeks to show that the search conducted at the appellant's house was not done according to law, specifically section 114 of the Criminal Procedure Decree, Chapter 14 of the Laws of Zanzibar. section 114(1) and (2) reads as follows:

114(1) Before making a search under section 112 or section 113 the officer or other person about to make it shall call upon two or more *respectable inhabitants* of the locality in which the building or other place to be searched is situate to attend and witness the search, and may issue an order in writing to them or any of them so to do.

(2) The search shall be made in their presence, and a list of all things seized in the course of such search and of the places in which they are respectively found shall be prepared by such officer or other person and signed by such witnesses; but no person witnessing a search under this section shall be required to attend the court as a witness of the search unless specially summoned by it [emphasis supplied]

It occurs to us that in executing a search warrant under section 114(1) and (2) the following conditions are mandatory: one, the search has to be witnessed by two or more respectable inhabitants of the locality. Two, a list of all things seized in the search must be prepared and signed by the witnesses. It will follow that in the instant case the search was irregular for being witnessed, and the list signed, by only one inhabitant. Indeed, Ms Salma Ali Hassan, learned State Attorney, on reflection readily conceded before us that the search was unlawful to that extent.

We wish to make a brief observation about the mode of the judgment of the High Court dated 19 February 1998, the subject of this appeal. With respect, we do not think this judgment is in conformity with the normal format and style of writing judgment. Generally a judgment should contain the point or points for determination, the decision thereon, and the reasons for the decision. The above judgment did not meet those standards. Indeed, a look at the proceedings in the first appeal will show that the appeal was argued quite extensively. In the circumstances, it was expected that, as a matter of courtesy and expedience, a reasoned judgment would be written and delivered in the process.

It will also be recalled that pursuant to the application for review, on 4 June 2001 the sentence of 25 years was altered and reduced to the statutory minimum of 20 years. In the same vein and spirit, the sentence of corporal punishment was set aside. One question has vexed our minds to a certain extent. This is whether the learned judge on first appeal was clothed with the necessary jurisdiction to review his own decision. Unfortunately no provision in the Laws of Zanzibar could be cited to us on this specific point. At best, Ms Salma Ali Hassan cited to us section 8(1) of The High Court Act 1985 which vests the High Court of Zanzibar with power, jurisdiction and authority to review proceedings from Subordinate Courts of Zanzibar. Thus,

section 8(1) is not of any assistance to the point being made here. However, in the absence of a specific provision on the point, Mr Uhuru Khalfani and Ms Salma Ali Hassan, were at one in consensus that the action taken by the judge was not correct both in law and practice. We think they were correct in maintaining that view. We say so because once the judgment was pronounced on 19 February 98 the learned judge became *functus officio*.

In order to answer the question as to when does a court become functus officio the decision of this court in the case of *John Mgaya and four others v. Edmund Mjengwa and Six others* (1) is very instructive. In *Mgaya's case* this court cited with approval the decision of the Court of Appeal for Eastern Africa in *Kanundi v. Republic* (2) where it was stated as follows:

> The court becomes *functus officio* when it disposes of a case by a verdict of guilty or by passing a sentence or making orders finally disposing of the case [Emphasis Supplied].

In the instant case, it is clear that the judgment of 19 February 98 finally disposed of the case. The learned judge was therefore *functus officio* when he passed the "judgment" of 4 June 2001. Of course, we are aware that in a proper an deserving case review is allowed under Order L, rule 5 of the Civil Procedure Decree, Chapter 8 of the Laws of Zanzibar. However, this was not a case in which Order L, rule 5 could apply.

For the above reasons, we are satisfied that there is merit in the appeal. The appeal is accordingly allowed, conviction quashed, and sentence set aside. The appellant is to be released from the education centre unless he is held therein in connection with a lawful cause.

MWAJUMA ALI MTIPULA v. SHOMAR ALI MTIPULA

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, J.A.)

ZNZ CIVIL APPLICATION No. 5 OF 2002

(In the matter of an intended appeal from the decision of the High Court of Zanzibar at Vuga, Dahoma, J., dated 31 October 2002 in Civil Appeal No.10 of 2002)

Islamic Law – Jurisdiction of the Court of Appeal – Question of inheritance among Moslems coming within the jurisdiction of Kadhis' Courts – Whether Court of Appeal of Tanzania has jurisdiction over the matter – Article 96(2) of the Constitution of Zanzibar 1984.

Islamic Law – Jurisdiction – Respondent claims inheritance of a house under Islamic law – Applicant claims right of ownership of the house under contract of sale – Whether Kadhi's Court has jurisdiction to determine the question of sale.

Constitutional Law – Revision of decisions originating from and determined in Kadhis' Courts – Matter may entail interpretation of a provision of the Constitution of Zanzibar 1984 – Whether the Court of Appeal of Tanzania has jurisdiction to do so – Article 96(2) of the Constitution of Zanzibar.

This is an application by Notice of Motion under rules 43, 44 and 46 of the Court of Appeal Rules 1979 for leave to appeal to the Court of Appeal against a decision of the High Court of Zanzibar. The respondent had filed an inheritance claim in the District Kadhi's Court over a house. The applicant disputed the respondent's claim and asserted that the house was sold to her by her late father before he died. The District Kadhi's Court found for the applicant and dismissed the respondent's claim. Dissatisfied the respondent appealed successfully to the Kadhi's Appeal Court. The applicant in turn appealed to the High Court which upheld the decision of the Kadhi's Appeals Court. She is aggrieved by that decision, hence, this appeal.

Held: (i) Both the Constitution of Zanzibar 1984 and the Kadhis' Courts Act 1985 make it plain that the Court of Appeal has no jurisdiction to hear cases on Islamic matters originating in the Kadhis' Courts;

(ii) The question of whether there was a sale and a purchase of a house or whether the applicant was competent to enter into a valid contract to buy the house are not Islamic matters or based on Muslim law; those were matters for the ordinary courts;

(iii) Since the Court of Appeal has no jurisdiction to interpret the Constitution of Zanzibar, one cannot go into the question if a revision case is or is not included in the words "kesi zozote" (in article 96(2) of the Constitution of Zanzibar 1984).

(iv) Granting leave to appeal as sought by the applicant would be giving occasion to this court to violate the provisions of article 96(2) of the Constitution of Zanzibar and section 10(3) of the Kadhis' Courts Act Number 3 of 1985.

Application dismissed

Case referred to:

(1) *Mohamed Rafik Ishak Ayoub and another v. Anwar Hussein Jaffar and two others,* Court of Appeal of Tanzania, Civil Appeal Number 35 of 1994 (unreported)

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rules 43, 44 and 46

(2) Kadhis' Courts Act 1985, sections 6(1) and 10(3)

(3) Appellate Jurisdiction Act 1979, section 4(2)

(4) Constitution of Zanzibar 1984, article 96(2)(b)

Mr Ussi Khamisi Haji, for the Applicant

Mr Salim H. Mkonje, for the Respondent

RULING

(Dated 26 November 2004)

Mroso, J.A.: This is an application by Notice of Motion under rules 43,44, and 46 of Court of Appeal Rules 1979, for leave to appeal to the Court of Appeal against a decision of the High Court of Zanzibar, Dahoma, J. The applicant was represented by Mr Ussi, learned advocate, and Mr Salim H. B. Mnkonje, learned advocate, represented the respondent.

The respondent had filed an inheritance claim in the District Kadhi's Court over a house. The applicant disputed the respondent's claim and asserted that the house had been sold to her in 1994 by her late father Ali Mohamed Mtipula before he died in the same year.

The District Kadhi's Court found for the applicant and dismissed the respondent's claim. Dissatisfied, the respondent appealed successfully to the Kadhi's Appeal Court. That court held the view that there could not have been a valid sale of the disputed house because the applicant was aged 15 years at the time of alleged sale, which was not the age of majority and, therefore, presumably, she was not *sui juris* with capacity to contract. The sale was null and void and the house reverted to the estate of the deceased owner to be inherited.

The applicant in turn appealed to the High Court. Dahoma, J. sitting with four assessor upheld the decision of the Kadhi Appeals Court. He went further to hold that the applicant was not a legitimate child of the owner of the house whereas the respondent was, and that the respondent in fact inherited the house. The High Court dismissed the applicant's appeal. She is aggrieved by that decision and wishes to appeal to the Court of Appeal and, hence, this application for leave to appeal.

In arguing the application Mr Ussi Haji contends that the Kadhi's Court had no jurisdiction to adjudicate the issue of whether or not there was a valid sale of the house to the applicant. That issue is adjudicable in the ordinary courts only. In addition, Mr Haji argued

that the Kadhi's Appeals Court had wrongly rejected evidence that was given before it on the authenticity of thumb prints which appeared on the sale document relating to the disputed house.

In support of the argument, that Kadhi's Courts have no jurisdiction beyond the matters specified in section 6 (1) of the Kadhi's Courts Act 1985, Mr Haji referred to a decision of this court, *Mohamed Rafik Ishak Ayoub and others v. Anwar Hussein Jaffar and others* (1) which, he said, was based on very similar facts. He said that in that case the Court of Appeal stepped into the shoes of the High Court of Zanzibar to quash decisions of Kadhi's Courts which had been obtained by fraud and in which the Kadhi's Courts had no jurisdiction. If leave to appeal is granted therefore, the Court of Appeal will be called upon to act in similar manner as in Civil Appeal Number 35 of 1994. The Court of Appeal would have jurisdiction notwithstanding the provisions of article 96(2) of the Constitution of Zanzibar 1984.

Mr Mnkonje submitted that in considering whether or not to grant leave to appeal, it is necessary to ascertain if the Court of Appeal will have jurisdiction to deal with the matter that will be appealed to it. He said the dispute has been taken to the Kadhi's Court and the appeal to the High Court originated from those proceedings. In addition, the question of inheritance among Moslems comes squarely within the jurisdiction of the Kadhi's Courts. Both article 96(2)(b) of the Constitution of Zanzibar 1984 and Civil Appeal Number 35 of 1994 according to Mr Mnkonje, show that the Court of Appeal has no appellate power over the High Court on Islamic matters originating in Kadhi's Courts. It would be futile, in his submission, to grant the applicant leave to appeal against the High Court decision to the Court of Appeal. He suggested that what the applicant could do would be to apply for revision in the Court of Appeal under section 4(2) of the Appellate Jurisdiction Act 1979. Since revision by the Court of Appeal of a matter originating in Kadhi's Courts is not prohibited either by the Kadhi's Courts Acts, 1985 or by the Constitution of Zanzibar, Mr Mnkonje believes the Court of Appeal would have jurisdiction to decide on Islamic matters originating in the Kadhi's Courts, as

the Court of Appeal did in Civil Appeal Number 35 of 1994 to which reference has already been made.

Mr Ussi Haji agreed that an application to the Court of Appeal for revision could be an option for the applicant but an appeal is also another option on non-Islamic issues, like the question whether or not the house had been validly sold to the applicant.

It seems to me clear that the Court of Appeal has no jurisdiction to hear cases on Islamic matters originating in the Kadhi's Courts. Both the Constitution of Zanzibar1984 (and the Issue of 2003) and the Kadhi's Courts Act 1985 make it plain.

Section 96(2) of the Constitution of Zanzibar 1984 reads:

> (2) Mahakama ya Rufaa haitakuwa na uwezo wa kusikiliza kesi zozote zinazohusiana na:
>
> (a) ...
>
> (b) Mambo ya kiislam ambayo yameaza katika Mahakama ya Kadhi.

Similarly, section 10(3) of the Kadhi's Courts Act 1985 provides:

> (3) The decision of the High Court shall be final on matters of Islamic Law and shall not be subject to appeal to the Court of Appeal.

This court in Civil Appeal Number 5 of 1994 confirmed that position when it said:

> It is clear that this court has no jurisdiction to hear appeals emanating from the Kadhis' Courts on matters of "Islamic Law" or just "Islamic matters" as the Constitution of Zanzibar puts it.

Section 6(1) of the Kadhi's Courts Act 1985 says:

> 6(1) A Kadhi's Court shall have and exercise jurisdiction in the determination of the question of Muslim Law relating to a personal status, marriage, divorce or inheritance in proceedings in which all parties profess the Muslim religion.

The respondent who claimed he had inherited the house in dispute went to the District Kadhi's Court to vindicate his right to ownership

of it. Such a dispute over inheritance was properly taken to the Kadhi's Court for adjudication. It turned out however that the applicant also claimed a right of ownership of the same house, in her case basing the claim on purchase. So, before the District Kadhi there were two important issues namely, whether the respondent had inherited the house or the applicant had bought it. The question of whether there was a sale and buying of the house or whether the applicant was competent to enter into a valid contract of buying the house are not by any stretch of imagination Islamic matters or based on Muslim Law. Those are matters for the ordinary courts. Unfortunately the trial District Kadhi's Court did not refer the issue of sale of the house to the ordinary courts for determination before it could consider the question of inheritance. The matter remained with the Kadhi's Courts until it got to the High Court.

The issue of inheritance was alive in all the courts, from the District Kadhi's Court to the High Court in which Sheikhs sat to assist the judge, as is required under section 10(2) of the Kadhi's Courts Act 1985. It could be said, therefore, that as far as the issue of inheritance was concerned, the High Court had sat as the final court as stipulated in section 10(3) of the Kadhi's Courts Act.

As already mentioned, the issue on whether or not there was a sale of the house to the applicant and the follow-up question that, if there was a sale, whether the sale was valid in law, were not adjudicable by the Kadhi's Court and yet the District Kadhi's court, the Appellate Kadhi's Court and the High Court sitting as the final Court of appeal in matters originating in Kadhi's Court, all considered the issue. But they had no jurisdiction over that issue. Can that issue go to the Court of Appeal for determination?

It seems to me that the *Rafik Ayoub* case (*1*) is distinguishable. First, in that case this court found that judgment in the Lower Courts had been obtained by fraud and the court felt that by all means such a judgment must not be left to stand, as it was void *ab initio*. And there was need to pronounce so. Secondly, the court found that throughout

the proceedings there was no issue on Islamic Law and the Kadhi's Courts had no jurisdiction right from the outset. It was then the Court of Appeal used its revisional powers to quash the decisions, which were reached without jurisdiction.

In the present matter the same thing cannot be said about the decision of the High Court and of the Kadhis' Courts. They had jurisdiction to adjudicate on the matter of inheritance and there could not be an appeal beyond the High Court. I may also add that the decision of this court in *Rafik Ayoub* is not entirely without difficulty. The court had used its revisional powers under section 4(2) of the Appellate Jurisdiction Act 1979 and, acting as the High Court, revised the decisions of the Kadhi's Appeal Court and of the trial Kadhi's Court. But the proceedings before the Kadhi's Courts were not before the court!

It has been argued that the Court of Appeal is only precluded from sitting as an appellate court in decisions originating in Kadhi's Courts but that it can sit to revise those decisions. That of course may entail interpretation of article 96(2)(b) of the Constitution of Zanzibar which speaks of "*kusikiliza kesi zozote*" not "*kusikiliza rufaa*" But since the Court of Appeal has no jurisdiction to interpret the Constitution of Zanzibar, one cannot go into the question if the revision case is or is not included in the words "*kesi zozote.*" Suffice it here to say that for me to grant leave to appeal, would be giving occasion to this court to violate the provisions of article 96(2)(b) of Zanzibar Constitution and section 10(3) of the Kadhi's Courts, Number 3 of 1985.

The application is dismissed with costs.

MWITA WAMBURA KITILO *v.* S.M.Z.

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, Mroso and Msoffe, JJ.A.)

CRIMINAL APPEAL No. 61 OF 2003

(From the judgment of the High Court of Zanzibar at Vuga, M. A. Bakari, J., dated 9 January 2003 in Criminal Appeal No. 10 of 2002)

Criminal Practice and Procedure – Appeal – Summary dismissal of appeal – Whether the High Court has power to summarily dismiss an appeal.

Criminal Practice and Procedure – Appeal – Power of the High Court to summarily dismiss an appeal – Whether the court may dismiss an appeal summarily after it has allowed the parties to argue the appeal on merit – Section 328 of the Criminal Procedure Decree.

The appellant appealed to the High Court against conviction and sentence by the Regional Magistrate's Court at Vuga for unlawful possession of dangerous drugs contrary to sections 23 and 32 of the Pharmaceuticals and Dangerous Drugs Act 1986 as amended by Act Number 6 of 1991, and Legal Notice Number 17 of 1991. The High Court, after having heard both the appellant and the respondent dismissed the appeal summarily. The appellant further appealed to the Court of Appeal.

Held: (i) The High Court can dismiss summarily an appeal only where after receiving the petition of appeal and copy of the judgment from which the appeal is being lodged, it peruses it and finds that it is completely without merit;

(ii) Where the High Court allows the appellant or his Advocate to argue on the merit of the appeal before it, it has to deliver a Judgment in which the reason for allowing or dismissing the appeal will be given.

Order or summary dismissal quashed

Case referred to:

(1) *Robert Mgire v. R.* [1994] T.L.R. 174

Statutory provisions referred to:

(1) Pharmaceuticals and Dangerous Drugs Act 1986, sections 23, 32

(2) Legal Notice of 1991

(3) Criminal Procedure Decree (Zanzibar), section 328

Mr Miskry, for the Respondent

JUDGMENT

(Dated 26 November 2004)

Mroso, J.A.: The appellant was convicted of unlawful possession of dangerous drugs contrary to section 23 and 32(1) of the Pharmaceuticals and Dangerous Drug Act Number 6 of 1986, as amended by Act Number 6 of 1991 and Legal Notice Number 17 of 1991, by the Regional Court of Zanzibar at Vuga. He was aggrieved by both the conviction and the sentence and appealed to High Court of Zanzibar. The High Court, Mshibe A. Bakari, J. heard both the appellant and State Attorney for the Revolutionary Government of Zanzibar and dismissed it summarily. Still feeling aggrieved, he appealed to this court, filling six grounds of appeal. At the hearing of the appeal, the appellant sought and obtained leave of the court to argue additional ground of the appeal. What were meant to be additional grounds of appeal turned out to be inappropriate because they were raised for the first time in this court, as they were not raised in the High Court and therefore, were not considered by the first appellate court.

In his petition of appeal, appellant complained in the first ground of appeal that the prosecution side at the trial failed to show evidence, such as an air ticket, that he had arrived from overseas and had also failed to prove that he had been arrested at the airport. In the second ground of appeal he complained that although the prosecution claimed that he had passed out from his stomach alleged dangerous drugs, no independent witness confirm such an incident.

In the third ground, he pointed out an apparent contradiction in the evidence, but this ground of appeal was based on a typing error. The typed proceedings that he had been taken to hospital to be x-rayed to establish that he had swallowed a quantity of dangerous drugs on the date which was earlier than the date he was arrested. The typed proceedings showed that he was taken to hospital on 12 October 2000 whereas he was arrested on 1 October 2000. When we checked the handwritten notes of the proceeding it was found that he was taken to hospital on the same date he was arrested, which was on 21 October 2000. Therefore, there was no contradiction in the evidence on that point. Ground number 4 seems to be repetition of the first ground of appeal although it was put in different words. The complaint is that there was no evidence that he had arrived by air from overseas. Ground number 5 is in substance a repetition of the third ground of appeal. In ground six the appellant is harping on the complaint that he was not arrested at the airport.

Mr Miskry, learned Principal State Attorney, for the Revolutionary Government of Zanzibar, contended that the grounds of appeal in which it was being disputed that the appellant was arrested at the airport were not helpful to appellant because what matters was not whether the appellant was arrested at the airport or at Darajani (as claimed by the appellant), but whether he was found to have swallowed 62 capsules or tablets of heroin, which is a dangerous drug. He said that the evidence which was adduced by the prosecution at the trial showed without doubt that the appellant had been arrested on suspicion that he had swallowed and stored in his stomach a quantity of drug capsules or tablets. He was x-rayed and the x-ray films showed there were suspicious substances in the stomach. The bowels were induced to empty and "*pipi*" tablets or capsules were passed out and were witnessed by two police officers. The tablets are listed in a ministerial order, given under section 16 of the Pharmaceuticals and Dangerous Drugs Act 1986, published in Legal Notice Number 17 of 1991, as a dangerous drug.

The court of its own motion raised the question whether it was appropriate for High Court which had heard the parties to proceed to dismiss the appeal summarily. Obviously the appellant who was a lay person and unpresented would not have been able to submit on that legal point. Mr Miskry conceded that the judge should not have dismissed the appeal summarily after having heard the parties. Even so, he asked the court to dismiss the appeal in entirety.

Section 328 of the Criminal Procedure Decree Chapter 14 of the Laws of Zanzibar reads:

(as relevant):

> 328(1) On receiving the petition and copy (of the judgment) ... the High Court shall peruse same, and, if it considers that there is no sufficient grounds for interfering, it may dismiss the appeal summarily.
>
> Provided that no appeal shall be dismissed summarily except in the case mentioned in subsection (2) unless the appellant or his advocate has had an opportunity of being heard in support of the same.
>
> (2) Where an appeal is brought on the ground that the conviction is against the weight of the evidence or the sentence is excessive, and it appears to the court that the evidence is sufficient to support the conviction and there is no material in the circumstances of the case which could raise a reasonable doubt whether the conviction was right or lead it to consider that the sentence ought to be reduced, the appeal may, without being set down for hearing; be summarily dismissed by an order of the court certifying that it has perused the record and is satisfied that the appeal has has been lodged without any sufficient grounds of complaints.
>
> (3) Whenever an appeal is summarily dismissed, notice of the same shall forthwith be given to the Attorney General.

It seems to us that the High Court can dismiss summarily an appeal against conviction and sentence, like the appellant's appeal to the

High Court, only where, on receiving the petition of appeal and copy of the judgment from which the appeal is being lodged, it peruses it and finds that it is completely without merit and, therefore, that there is no need to allow it to be fixed for the hearing of the appellant. But once the High Court allows the appellant or his advocate to argue the merit of the appeal before it, it has to deliver a judgment in which the reasons for allowing or dismissing the appeal, as the case may be, will be given.

In the present appeal the High Court heard both the appellant and the respondent. That approach implied that the High Court had found that it was not appropriate to dismiss the appeal summarily. It could not in the same breath, purport to dismiss it summarily but should have written a judgment.

Not only did the High Court faulter on the procedure. We also think that this was not at any rate a proper case for summary dismissal. Although the ground of appeal to the High Court were inelegantly drafted, it is discernible at any rate that the appellant was calling upon the High Court to consider critically the evidence which suggested that he had been found with the dangerous drugs. He put to question the reliance by the trial court on x-ray pictures, which were not admitted as Exhibits at the trial. There was also the question of the charge sheet, which did not specify the dangerous drug the appellant allegedly possessed, whether it disclosed an offence.

In the case of *Robert Mgire v. Republic* (1), originating from mainland Tanzania, this court allowed the appeal of the appellant because the High Court wrongly dismissed the appeal summarily instead of re-appraising the evidence. The court had found that there was a reasonable doubt as to the appellant's guilt. In the present appeal we think that it should be heard *de novo* or the High Court to re-appraise the evidence and decide it on merit. In the result, we quash the order of summary dismissal of the appeal and direct that it be re-heard before another judge of the High Court.

NATIONAL BANK OF COMMERCE LTD *v.* UNIVERSAL ELECTRONICS AND HARDWARE LTD AND TWO OTHERS

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM

(Kalegeya, J.)

COMMERCIAL CASE NO. 198 OF 2002

Banking – Debtors – Discharging a debtor from liability – Whether the bank's internal mechanism of writing off debts or losses discharges a debtor from liability.

Banking – Securities – Debenture – Whether guarantors discharged upon the debtor failing to excise options provided in a debenture.

Banking – Securities – Guarantee – Whether guarantors discharged upon the debtor failing to excise options provided in a debenture.

Contract – Liability of a surety – Liability is co-extensive with that of the principal debtor – Section 80 of the Law of Contract Act.

Contract – Estoppel – Whether a bank is estopped from claiming from debtors money due to it after using its internal mechanism of debt or loss write-off.

Law – Securities – Debtor of a bank is sued – Effect of the suit on securities given by the debtor.

The defendants were offered and accepted a renewal of an overdraft facility in the sum of TZS. 200 million for a period of twelve months, expiring on 18 December1997. Among the securities included a the second and third defendants provided personal guarantees. Also, the first defendants' landed property was mortgaged. The facility was not serviced and by 27 June 2000 the outstanding liability wasTZS. 123 414 837-25 as principal sum and TZS. 165 013 103.45 as interest. On that date, the Bank's Samora Branch charged off the liability, making the account read "0.0" balance, and

the account was then transferred to the Bank's Head Office which instructed the Bank's lawyers to take debt recovery measures. The lawyers made demands in June 2001 and April 2002. Meanwhile, between 13 November 2000 and 6 November 2001, the defendants paid into the account a total of Shs. 100,609,901-90. By 31 March 2001, the outstanding liability was TZS. 22 804 971-35 as principal and TZS. 288 755 581-64 interest, totaling TZS. 311 560 552-99. defendants argued that the moment the Bank wrote off the debt, their liability was discharged, a claim which the Bank denied.

Held: (i) The writing off of the debt was just an internal mechanism intended to clear the bank's books but not to discharge debtors from liability; it was an exercise allowed by the Banks' Guidelines, *vide* GN 39 of 2001, providing debt or loss write offs, but they do not discharge customers' liabilities as such;

(ii) The defendants were never cleared of their liability and there was no estoppel

(iii) In construing a claim the plaint should not be read in isolation. Read as a whole, the plaint was clear and categorical that the overdraft facility was TZS. 200 million and the said shs. 200 million was utilized by the first defendants and that that was the basis of the claim for the outstanding of TZS. 22 804 971 as principal and 332 646 812 as interest as of 28 February 2002;

(iv) By clause 1 of the guarantee document the second and third defendants guaranteed to the Bank to pay all the sums of money owing to the bank by the principal debtor and section 80 of the Law of Contract Act provides that the liability of the surety is co-extensive with that of the principal debtor, unless provided otherwise by second and third defendants have been discharged from the liability by the plaintiff's failure to exercise the options provided in the Debenture Deed;

(v) The action before the court did not concern land as such but concerned a commercial transaction whereby the first defendants received a facility which they did not service and were sued for its recovery; the question of realization of a debenture or mortgage was just ancillary to the action and the court, therefore, had jurisdiction.

Judgment for the Plaintiff

Cases referred to:

(1) *Nurdin Bandali v. Lombank Tanganyika Ltd.* [1963] EA 304

(2) *Bank of Uganda v. Banco Arabe Espanol,* [2002] EA 296

(3) *Shinyanga Regional Trading Co. Ltd and another v. National Bank of Commerce* [1997] T.L.R. 78

(4) *Reid v. National Bank of Commerce,* [1971] EA 525

(5) *Jacob v. Batana and Generals Plantations Trust,* (1924) 1 Xh. 287

Statutory provisions referred to:

(1) Law of Contract Act, sections 80, 167

(2) Law of Evidence Act 1967, section 123

(3) Income Tax Act Number 33 of 1973, section 16

(4) Banking and Financial Institutions Act Number 12 of 1991, sections 15 and 16

(5) Civil Procedure Code, Order XIV, rule 5

Mr Kabakama, for the Plaintiffs

Professor Fimbo, for the Defendants

JUDGEMENT

(Delivered 10 December 2004)

Kalegeya, J.: The plaintiffs' prayer is for judgment and decree against the defendants jointly and severally for:

(i) Payment of the outstanding balance of the sum of TZS. 332 646 812

(ii) Interest of (i) above at the rate of 26% per annum from 1 March 2002 up to the date of judgment

(iii) Interest on the decretal sum at the court's rate from the date of judgment till final settlement and

(iv) An order for sale and or vacant possession of the properties of the first defendant charged under the debenture

(v) Costs of the suits

(iv) Any other relief as the Honorable Court may deem just to grant

The plaintiffs are represented by Mr Kabakama, Advocate, while Professor Fimbo, Advocate, represents the defendants.

The plaintiffs called 2 witnesses-one Zollo (PW1), Credit Officer who also tendered Exhibit P1-8 and Mrindoko (PW2) who works with the plaintiffs, stationed at their head office, credit department and who tendered Exhibits 9 and 10.

The defendants called 2 witnesses one Muro (DW1), the first defendants' Managing Director who tendered Exhibit D1-9 and Lyimo (DW2), the first defendants' Director and Production Manager.

Issues framed during the final pretrial and scheduling conference are as follows:

1. Whether the first defendants owed the plaintiff shs 22,804 971 principal and Shillings 309 841 841 interest as at 28 February 2002 or whether the plaintiffs are estopped from asserting that there was any money owing as at 31 December 2000?

2. Whether the facility extended to first defendants attracted interest of TZS.309 841 841?

3. Whether the debenture dated 9 September 1994 is null and void

4. Whether by suing on the debenture and/or the covenant to pay, the plaintiffs discharged the second and third defendants from their obligation as guarantors under the guarantee dated 28 July 1997

5. Whether this court has jurisdiction to grant Plaintiffs' prayer for "an order of sale and or vacant possession of the properties of the first defendants charged under the debenture" in view of section 167 of Land Act Number 4 of 1999?

In this controversy, key elements are not disputed. The following stand uncontroverted.

Vide Exhibit P1 (a letter of offer) the plaintiffs offered to the first defendants a renewal of an overdraft facility in the sum of TZS. 200 million for a period of 12 months, expiring on 18 December 1997. The offer was duly accepted and the facility was utilized accordingly.

Among the securities, included was a debenture created on the first defendants' assets as per debenture deed (Exhibit P2) and which was duly registered as a charge Exhibit P3 (Certificate of Registration). Also, the second and third defendants provided personal guarantees as per Exhibit P4 (a guarantee deed dated 28 July 1997) which they both signed. Also, as per Exhibit D2 (mortgage Deed), the first defendants, landed property on Plot Number 108, Industrial area, Mbezi (Dsm) with certificate of occupancy number 29968 (Exhibit D1) was mortgaged. It transpired however that the facility was not serviced as required such that by 27 June 2000 (as per Exhibit P5, first defendants' statement of Account for the period of 1 January 1998 to 31 December 2000) the outstanding liability was TZS. 123 414 873-25 as principal sum while the interest was TZS. 165 013 103-45.

On the said date (27 June 2000), the Bank's Samora Branch charged off the liability by issuance of three vouchers, tendered collectively as Exhibit P6, making the account (Exhibit P5) to read "0.0" balance.

In a bid to recover the debt, the plaintiffs instructed IMMA, Advocates, who made a demand on 19 June 2001 by the letter as acknowledged by the first defendants' letter (Exhibit P10) dated 3 August 2001 and subsequently, by further demand notices, Exhibit P7 and P8, both dated 12 April 2002.

Between 13 November 2000 and 6 November 2001, as per the Bank statement, (Exhibit P9), the first defendant paid onto the account a total of TZS.100 609 901-90 (TZS. 2 000 000 on 13 November 2000 +2 063 072-00 on 28 May 2001 +82 646 829-90 on 7 August 2001 +3 900 000-00 on 7 March 2001 +10 000 000-00 on 6 November 2001). The said Exhibit P9 indicates that by 31 December 2001 the outstanding liability was TZS. 22 804 971-35 as a principal sum andTZS.288 755 587-64 as interest, all totaling toTZS.311 560 552-99.

Now, for the contested part. As already indicated, the center of contention is very fine indeed.

The defendants urge that the moment the Bank wrote off the debt, their liability got discharged. DW1 insisted that Bank officials told him that the liability had been discharged and referred to representations allegedly made to him by one Byeshulilo. On this, part of his testimony runs as under:

> Removal from the balance sheet means removal from liabilities. Shortly before removal there was an asset. This is TZS. 288 427 976-70. This was a property to the Company. Before removal it should be on assets side of NBC. This is earmarked to be receivable. Accounts receivable are any monies that are given to creditors and then looking forward to receiving them notwithstanding uncertainty. Once it is removed from the balance sheet it becomes no asset.
>
> To my knowledge one gets tax relief once you declare it to be a loss. This is an International Standard...
>
> This is a letter dated 7 August 2000. It is a demand notice. The figure is TZS. 288 427 977 being the principal sum together with accrued interest. It is signed by one Joseph M. Byeshulilo.
>
> *On receipt of the letter, I immediately contacted Joseph who gave me details that the debt had been written off. This was in his office, NBC head office. That's when I first knew that NBC had decided to write off the debt. This was a relief on our operations. We knew that NBC had decided to assist businesses instead of killing them. We would be able to operate fully without liabilities hence with a better balance sheet.* [emphasis supplied]

That was during examination in Chief. In cross examination, DW1 went on:

> I received a demand notice on 9 August 2000 from NBC. We had a liability to the Bank at the time (witness shown Exhibit P6). We had already discussed the possibilities of debt compression or reduction on interest and that's when Joseph told me that the debt had been written off.

DW1 also challenges the rate of interest. On this he had the following to say (after making reference to paragraph 5 of the plaint):

> This shows that the principal sum was TZS. 22 804 971 while the interest was 309 841 841. *What I can say is that the rate of interest is absurd.* Overdrafts attract fluctuating interest and at one stage interest was 35% *The interest here far exceeds the principal contrary to any business practice.* [emphasis supplied]

And, Professor Fimbo, in his final submission, very strenuously expanded the arguments by insisting that the Plaintiffs having written off the debt, they are estopped from lodging the present claims. The Prof. making reference to the Banking and Financial Institutions Act (Number12 of 1991), sections 15 and 16, urged that the banks or financial institutions have to make provisions for bad, doubtful debts and losses which is a public duty and after which they would get tax reliefs in terms of section 16 of the Income Tax Act (Number 33 of 1973) and that therefore under the estoppel principle of law enunciated under section123 of the Law of Evidence Act 1967, no claim, as the current one, can be lodged. He also made reference to *Nurdin Bandali v. Lombank Tanganyika Ltd.* (1) *Bank of Uganda v. Banco Arabe Espanol* (2).

On interest, in the alternative, Prof. Fimbo argued that TZS. 22 804 971 as principal sum to attract TZS. 309 841 841 as interest is extortionate and illegal as the rate would be 1,386.66.% per annum.

And yet still, the Professor fronted another argument – that the court has no power to grant prayer (iv) because, first, the Bank could only proceed by appointing a Receiver and Manager as per the provisions of the Debenture deed (Exhibit P2), making reference to *Shinyanga Regional Trading Co. Ltd and another v. National Bank Commerce* (3) (but failed to provide a proper citation), and secondly, because secion167 of the Land Act Number 4 of 1999, grants exclusive jurisdiction on land matters to named courts other than the High Court, Commercial Division.

Finally, the Prof. argued that by suing the second and third defendants as guarantors, secondary securities, before proceeding on the primary

securities of the first defendants as per debenture, the said second and third defendants are deemed to have discharged and made reference to *Reid v. National Bank of Commerce* (4).

On the other hand in his final submissions, Mr Kabakama for the plaintiffs maintained that the existence of liability has not been challenged; that the writing off of the debt was just an internal matter as per Bank of Tanzania Guidelines (Guidelines on Management of Risks, Assets classification of Loans and other Risk Assets, Provisioning for losses and Accrual of interest) in operation since 1991 and finally gazetted on 9 March 2001 under G.N. 38 of 2001 as Management of Risk Assets Regulations, 2001, whose objective is to have "probable losses" kept off the balance sheet to avoid overstatement of income but not to exonerate liability from holders; that defendants could not have been orally notified of no longer being liable as these alleged oral representations would over-ride the terms of written contract, making reference to *Jacob vs Batana and Generals Plantations Trust* (5) and **Cheshire and Fifoot's Law of Contact**, (10 ed) Butterworths, 1981, at page 107 and **Sarkar on Evidence**, Volume 1, (14 ed). at page 1212; that the principle of estoppel is inapplicable as it cannot be used to stop one from asserting his rights, again making reference to **Sarkar on Evidence**, Volume 2, page 1559; that the debenture stands valid and discharged whether or not the execution mode is made through the court; that this division of the High Court is seized with jurisdiction in terms of rule 5 A and 2 of the High Court Registries (Amendment) Rules 1999 (G.N. 141 of 1999 as the relationship between the parties inclusive of executions and enforcement of the debenture, fall under the item (iv) of rule 2 because it is the liability of a commercial or business organization or its officials arising out of its activity and that in terms of clause 2 of Exhibit P2 the entire assets of the Company were encumbered and not confined to land.

Mr Kabakama insisted further that while the plaintiff could appoint a Receiver and Manager without using the court, the latters jurisdiction is not ousted and that it is proper to sue the first defendants together

with second and third defendants as guarantors to avoid "multiplicity of recovery procedures on a single credit transaction" and made reference to Bradgate, R., **Commercial Law**, (2 ed) Butterworths at page 433. Mr Kabakama insisted that the alleged discharge by the second and third defendants is unknown in law because in terms of clause 1 of Exhibit P4 and section 80 of Law of Contract Ordinace, these defendants are either solely or jointly liable with the first defendants hence there is no question of primary or secondary security, distinguishing the *Reid* case in the process. Now for the merits.

During the composition of this judgment I have found it necessary to rephrase the issues as empowered in terms of Order XIV, rule 5 of the Civil Procedure Code, which permit the court at any time before passing a decree to amend, frame or add an issue or strike out any issue that appear to be wrongly framed or introduced. Thus, issue one is broken into the following issues:

1. Whether the plaintiffs' writing off of the debt from the Samora Branch books on 27 June 2000 discharged the defendants from liability hence plaintiffs are estopped from any further claim?

2. If the answer is in the negative, whether the first defendants owed the plaintiffs TZS. 22 804 971 as principal sum and TZS. 309 841 841 as interest as of 28 February 2002?

In view of issue one as rephrased the current issue 2 is superfluous. It is accordingly struck out. The current issues 3 and 5 are maintained but issue four is rephrased

Issues now appear as follows. Apart from the new issue 1 and 2 reflected just above, issue 3 reads:

3. Whether action could be commenced on guarantors only after recovery by way of realization of debenture had failed to discharge the liability and whether suing simultaneously the two guarantors and first defendants on debenture discharged the said second and third defendants' liability.

The current issue 5 becomes issue 4 while a new issue 5 is framed as follows:

5. To what reliefs are parties entitled?

Starting with issue 1, with respect to Prof. Fimbo and DW1, this can only attract a negative answer.

PW1 stated categorically and unchallengedly that the writing off of a debt was just an internal matter. He deposed.

> Procedurally, if facility remains unserviced for a long time in the bank balance sheet, we remove the debt and transfer it to the off-balance sheet. Thus, on 27/6/2000 we charged off the said account. We debited Bank's books and credited the customers
>
> ...Thereafter the debt was transferred to the Bank's head office for intensive recovery follow-up. Thereafter, we in the branch we were being informed of steps being taken. We were then informed that the matter has been handed over to our lawyer

Under the Professor's rigorous cross-examination, PW1 reiterated the position thus,

> We have not written off the debt and we did not so inform the lawyers. We have never informed the customer that the debt had been written off. It was not written off but removed from the balance sheet. I have never told the customer that the debt had been written off.

Apart from the above-unchallenged testimony, if what the defendants allege was correct, as rightly submitted by MrKabakama, it would have sounded odd in that the plaintiffs would have varied the terms of written contract, verbally.

Although DW1 stated that one Byeshulilo (already quoted) and Derek are the ones who told him that the liability has been discharged, his other part of the testimony is incompatible with the allegation.

> I also had discussion with Derek Velliers. This was a person dealing with debt collection in NBC, the new Bank. This was his office at the headquarters. He said that we should give him 50 millions before anything otherwise he would allow dogs. Those were his words. It is immediately after receiving the letter from Joseph.

Now, if indeed he had earlier on been informed that they are no longer liable as the debt had been written off what then had he visited the said office for? Of course, I do appreciate that these are public offices hence can be visited by any person. However, in this situation, DW1 does not tell us what the mission of his visit was. More surprising however, he does not tell us how the discussion went on and whether he challenged Derek, and what the outcome was. A person of DW1's caliber and who was informed and believed that the liability was no longer in existence could not simply stomach Derek's statement. In the circumstances, I am satisfied that he knew then, as he has all long known, that the liability still existed.

The above apart, if indeed he had been notified of the extinction of the liability shortly after 10 August 2000, when he was alleged to have met Byeshulilo which is said to have been immediately after receiving the demand letter of 10 August 2000, common sense can not give the type of allowance fronted; that he (DW1) could have proceeded to author Exhibit P10 dated 3 August 2001 (almost a year later) with the following contents:

RE: OUTSTANDING ACCOUNT WITH NBC LTD

Please refer to your letter dated 19 June 2001 Ref Number IMMA/NBC/UEH regarding the above captured subject.

1. Universal Electronics and Hardwire (T) Limited (Universal) is glad to inform NBC that the government has finally paid Universal TZS.82 646 829-90 (Eight Two Million Six Hundreds Forty Six Thousand Eight Hundred Twenty Nine Cents Ninety Only). This amount was owed to Universal by the Government since1997

   As mentioned in several discussions between NBC and universal, the overdraft facility was used to cover Government obligation in Kisarawe Brick Factory (KIBRICO) owned 70% (Universal) and 30% (Government) on pro-rata basis. Consequently, both the Government and Universal have agreed that the Government makes the payment to NBC directly.

Both the Government represented by (PSRC) and Universal will be grateful if NBC will acknowledge receipt of the enclosed payment of TZS. 82 646 829-90(PSRC Cheque Number 000511 National Micro Finance Bank, Bank House Branch) and relieve Universal's liability to NBC accordingly.

2. Universal is requesting NBC for an appointment to discuss the repayment

Arrangement of the balance due once the above-mentioned cheque has been cleared.

Finally, Universal wishes to thank NBC For their patience and understanding in this issue.

Yours truly,

UNIVERSAL ELECTRONICS AND HARDWARE LTD

E.E.MURO

MANAGING DIRECTOR

"Encls" PSRC Cheque Number 000511 National Micro Finance Bank,

- Bank Branch Branch.
- Letter from IMMA Advocate-Ref. Number

IMMMA/NBC/UEH

c.c. The Executive chairman

PSRC

Dar es Salaam

Attn: MrTemba

Mr W.L. Nyachia

The Treasurer Registrar

Ministry of Finance

Dar es salaam.

Mr Derek De Villiers

NBC Limited

Dar es Salaam.

Further to above, if they knew that the debt no longer existed as early as august 2000 why then go servicing the same such that between 13 November 2000 and 6 November 2001 they paid a total of TZS.100 609 901.90, and why, in terms of clause 2, on the last page of Exhibit10 (quoted), pray to have discussion held on repayment? The totality of the above is incompatible with what the defendants are trying to impress.

On the whole, on facts alone, I am satisfied that no one ever represented to defendants that they are no longer liable stating from 27 June 2000. I am satisfied further that the writing off of the debt was just an internal mechanism intended to clear their books to discharge debtors from liability. And, legally, this was allowable by the Bank's Guidelines, which is rightly explained by Mr Kabakama, were finally gazetted vide G.N. Number 38 of 2001. Under these guidelines, while providing for debt or loss write offs, they don't discharge customers' liabilities as such as they are categorical that there may be partial future recoveries. defendants were never cleared of the liability.

With this finding, breath should not be wasted discussion the patently inapplicable principle of estoppel.

We turn to issue 2. Also, on the evidence available this should be answered positively. PW1 and PW2 tendered ExhibitS P5 and P9, statement of Accounts which indicate the extent of the defendants' liability and which the latter never legally challenged. I should hurriedly add that the denials leveled here and there in Prof. Fimbo's final submission is of no effect as a final submission is not evidence.

Exhibit P5 is a statement for the period between 1 January 1998 and 31 December 2000, indicating withdrawals, commissions and interests. It indicates the status when the internal write-off was effected.

The defendants do not challenge the computation. They in fact adopt it because they rely on "0.0" balance indicated thereon.

Exhibit P9 is a summary statement of an account, which PW2 described thus,

> This is a statement of Account of 1st defendant for the period of 13 November 2000 -29 February 2004. This is for account number 126513000042, maintained at the head office, originating from Samora Branch, collection Unit.

This Exhibit shows how the liability progressed since 13 November 2000. As of 28 February 2002 it is indicated that the owing principal sum was TZS. 22 804 971-35 while interest was 301 986 882-58.

Again the defendants did not front any challenging evidence apart from DW1's branding of the interest amount as "absurd" and which charge I will shortly demonstrate as unjustified.

Now, in terms of the law, the onus swung to the defendants to tilt it and erect otherwise. However, both DW1 and DW2 close their respective testimonies without tilting the balance. The brief cry by DW1, supported by Prof. Fimbo in his submission that the interest charged is illegal don't advance their case as much as they simply fly over in the face of the evidence offered by the plaintiffs. With respect, Professor and DW1 seem to misconceive facts. I fail to see where they gather the assertion that the interest indicated is computed on 22 million as principal.

The plaint is very categorical that the overdraft facility was TZS. 200 million. It is trite law that in construing the claim the plaint should not be segmented but read as whole. Thus paragraph 5 of the plaint should not be read in isolation. Read as a whole, the plaint leaves no one in doubt that shs 200 million was utilized by first defendants and that this is the basis of the claim for the outstanding of TZS. 22 804 971 as principal andTZS. 332 646 812 as interest (*sic*) as of 28 February 2002. The picture of deductions is verified by Exhibit P.9 which shows that on the 13/11/2000 the principal sum was TZS. 121 413 873-25 while the interest wasTZS. 189 873

224-39 and that after the five deposits made by first defendants (and already referred to) between 13 November 2000 and 6 November 2001, including the shs 82 646 829-90 referred to in Exhibit P10, the liability had gone down as per figures reflected for 28 February 2002. And , P1 clearly shows that the interest rate chargeable was 28% p.a. while a penalty "interest of 5% p.a. above the normal rate" was to "be charged in all excesses created without prior arrangements and on expired limit". The Defendants' complaint on interest therefore is without support.

Treading on Exhibit P9 however, the amount due as on 28 February 2000 was TZS. 22 804 971-35 as principal and TZS. 309 841 841 as interest as claimed. However, as a party should not be awarded what he has not claimed, the liability under issue two is decreed to be TZS. 22 804 971 on principal. On interest, as the sum claimed is above that established by evidence (Exhibit P9) it is decreed that the interest due was TZS. 301 986 882-58.

We turn to issue 3. With respect to Professor Fimbo, the argument pegged on primary and secondary securities does not apply in this situation. As rightly stated by the Plaintiffs' Counsel section 80 of the Law of Contract Ordinance which provides:

> The liability of the surety is co-extensive with that of the principal debtor, unless provided by the contract

read together with clause I of Exhibit P4 which reads:

> We the undersigned hereby guarantee to you the payment of and undertake on demand in writing made on the undersigned by you or... an authorized agent to pay to you all sums of money which may now be or which hereafter may from time to time become due or owing to you anywhere from or by the Principal either as principal or surety and either solely or jointly with any other person...

do not permit the arguments presented to stand. The terms of the contract stand against what is urged by Prof. Fimbo. Thus, the second and third defendants have not been discharged from the liability by the Plaintiffs' failure to exercise the options provided under Exhibit P2.

On issue four, I should only say that section 167 of the Land Act is not applicable. The said provision provides:

> Section 157(1) The following courts are hereby vested with exclusive jurisdiction, subject to the provisions of this part, to hear and determine all manner of disputes, actions and proceedings concerning land, that is to say:
>
> (a) The Court of Appeal
>
> (b) The Land Division of the High Court established in accordance with law for time being in force for establishing courts divisions:
>
> (c) The District Land and Housing Tribunals:
>
> (d) Ward tribunals;
>
> (e) Village Land Councils

In my considered view, the action before us does not concern land as such. What is before us is an action, concerning a commercial transaction whereby first defendants received a facility which they did not service and they are now being sued for its recovery. The question of realization of a debenture or mortgage is just ancillary to the action and this comes into play once the main action has been decreed in favour of the Plaintiffs. In my view, in enacting section 167, the Legislature had in mind an action which centers on land, pure and simple. Thus, I hold that this court has jurisdiction. And, I should add that in the early stages of this matter the Professor had raised a general preliminary objection that this court had no jurisdiction to no avail.

Finally, we come to reliefs. This follows the consequences of the findings made. Judgment is entered in favour of the Plaintiffs as per prayers' paragraph (i) and (ii) with a qualification that the interest sum to which the Plaintiffs are entitled is TZS.301 986 882-58 as established by evidence, bringing the sum awarded to shs. 324 791 853-93 (TZS. 22 804,971 35 + 301 986 882-58) instead

of TZS. 332 646 812. On prayer (iii), the decretal sum to attract 7% interest from the date of judgment till payment in full. Prayer (iv) to be invoked in the event the decretal sum is not paid. Defendants are also condemned in costs.

NATIONAL BANK OF COMMERCE v. WAKULIMA ENGENEERING COMPANY AND TWO OTHERS

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM
(Dr Bwana, J.)

COMMERCIAL CASE No. 114 OF 2002

Banking law – Loan facility – Loan Agreement not stating whether interest to be charged is "simple interest" but the bank charges "compound interest" – Whether the charging of compound interest is lawful.

Banking – Loan facility – Compound interest charged on loan facility – Compound interest defined.

On 10 December 1990 the plaintiff granted to the first defendant a loan facility of TZS. 12 900 000 on such terms and conditions as stated in the Loan Agreement. On 28 May 1992 an additional loan of TZS. 11 000 000 was granted. To secure the loan the first defendant mortgaged its property on Plot Number 135 Block "E" Unga Limited Arusha in favour of the plaintiff. Both the second and third defendants severally and jointly guaranteed the loan by executing a deed of guarantee on 6 June 1992. The defendants defaulted to pay interest on the loan. In their defence the defendants contended that the plaintiff was charging them compound interest instead of simple interest.

Held: (i) Compound interest is interest charged on interest;

(ii) It is a well settled principle that unless the loan agreement provides for simple interest compound interest shall be charged;

(iii) The loan agreement does not state anywhere that interest to be charged was to be "simple interest"; this leaves us to adopt a long established banking practice which allows banks to charge compound interest over such loan facilities.

Judgment for the Plaintiff

Cases referred to:

(1) *Parr's Banking Company Ltd v. Yates* [1898] 2 Q.B. 460

(2) *The National Bank of Greece SA v. Pinions Shipping Company Number 1 and another* [1990] 1 All ER 78

(3) *Stanbic Bank (T) Ltd v. Raymond Mushi,* High Court of Tanzania, Commercial Division, Commercial Case Number 306 of 2002 (unreported)

Statutory provisions referred to:

(1) Companies Ordinance Chapter 212

(2) Loan Agreement State, clauses 4 and 7

Mr Matunda, for the Defendants

JUDGMENT

(Dated 13 December 2004)

Bwana, J.: The plaintiff is a commercial bank operating in Tanzania. The first defendant is a company incorporated in Tanzania under the Companies Ordinance Chapter 212. Both second and third defendants are natural persons and directors of the first defendant company.

The following facts are not in dispute. That on 10 December 1990 the plaintiff granted to the first defendant a loan facility of TZS. 12 900 000 on such terms and conditions as stated on the Loan Agreement, Exhibit P1. Again on 28 May 1992 the defendant was granted an additional loan of TZS. 11 000 000 making a total of TZS. 23 900 000. A Deed of Variation was tendered as Exhibit P2.

It is further admitted that that in consideration for the plaintiff extending the said loan facilities to the first defendant, the said defendant mortgaged its Right of Occupancy over C.T. Number 3452, Plot Number 135 Block "E" Unga Limited, Arusha, in favour of the plaintiff. Both second and third defendants severally and jointly guaranteed the loan by virtue of a Deed of Guarantee executed on 6 June 1992. In that deed, they guaranteed repayment of the loan for the sum not exceeding TZS. 32 000 000. Repayment of the loan was to have been completed by 1997. However, that was never to happen until 2000.

The main point of contention on the part of the defence case is that they were being charged compound interest, instead of simple interest. They also claimed that they have paid the whole loan (principal plus interest). Each party called three witnesses. The following issues were framed for the determination of this court:

1. Whether the defendants are liable to pay the compound interest as claimed by the plaintiff.
2. Whether the amount claimed by the plaintiff was due for repayment
3. What reliefs are the parties entitled to.

An additional issue and which clarifies more on issue number 1 is whether the defendants are liable to the plaintiff in the sum claimed or any part thereof.

It is the plaintiff's case that the defendants jointly and severally are liable to pay the outstanding interest in the sum of TZS. 25 477 684-30. The whole interest issue hinges on whether it was compound or simple interest and whether it was paid together with principal or otherwise. Further, whether the interest chargeable was at 23% or 22% and whether the penal interest at 1% was per month or per annum. The defendants claim that the plaintiff charged its interest arbitrarily and contrary to the terms of the Loan Agreement and /or the Deed of Variation. The plaintiffs deny this. However, having carefully examined the Exhibits produced by both sides, it is evident that this Loan Facility Account was not kept in an orderly form. Much criticism

is placed on Exhibit P 6 which is a document prepared by Mika E. Mrindoko- PW3-using a computer worksheet to make calculations in order to establish the outstanding balance due. Therefore it is not a bank statement. I agree that Exhibit P6 cannot be considered to be a 'Bank Statement" within the strict meaning of the word.

The above shortcomings notwithstanding, the Loan Agreement and Deed of Variation documents provide the much needed answers. As to the issue of interest, Clauses 4 and 7 of the Loan Agreement state:

> 4. INTEREST
>
> (i) The Borrower shall pay to the Bank interest on the principal money at the rate of 23% per annum. Such interest shall be due and payable quarterly.
>
> (ii) The interest shall be calculated on the basis of the actual number of days, using a 365 days factor
>
> 7. INTEREST ON DEFAULT
>
> The Bank shall have the right to charge additional interest at the rate of *1% per month on all overdue amounts of principal, interest, commitment fees and commission from the date on which such payment fell due until the date of final payment* inclusive of both dates...[emphasis supplied]

The Bank retained the right of varying the interest rate. This it did by lowering it to 22% per annum (Exhibit P2).

It is not in dispute that the defendants defaulted, hence, calculation to be compounded? By virtue of Clause 7 (*supra*), it did. That is so because upon default the 1% would be charged "on the principal amount, on interest and other fees." Therefore compound interest is interested on interest. **Black's Law Dictionary** (6 ed) defines the term as:

> Compound interest is interest that is paid not only on the principal but also on any interest earned but not withdrawn during earlier periods...when then interest of a sum of money is added to the principal and then bears interest, which thus comes secondary principal...

The next question for consideration is-was this Loan Agreement governed by simple or compound interest? My perusal of the document reveals that there is nowhere stating that interest be chargeable was to be "simple interest." This leaves us to adopt a long established banking practice which allows banks worldwide (therefore Tanzania inclusive) to charge compound interest over such loan facilities. In *Parr's Banking Company Ltd. v. Yates* (1) Vaugham Williams, LJ, stated at page 467:

> According to the ordinary practice of bankers, the interest due is from time to time added to the principal and becomes itself part of the principal and thus payable...

This well settled principle was adopted in the case of *National Bank of Greece SA v. Pinions Shipping Co. Number1 and another* (2) and also by this court in the case of *Stanbic Bank (T) Ltd v. Raymond Mushi* (3).

All the above considered further, the following facts are not controverted. First, according to the terms of the Loan Agreement, Exhibit P1, the defendants were supposed to pay TZS. 1 160 000 in 20 equal instalments. The defendants defaulted. Had they not done so, they would have paid about shs.16,000 000 as accrued interest. Since they defaulted, interest accrued further and further, to the further sum of TZS. 8 000 000 by the time they cleared the principal sum. The defendants claim that it was not proper for the plaintiff to clear the principal only and leave the interest. My reply to this is: banking practice could have allowed that flexibility/system. The court is not shown any illegality in applying that procedure. By the time the principal was cleared in February 2000, the accrued interest of 8 000 000 had attracted further interest of 17 000 000 thus making the total sum to be 25 000 00, the sum being claimed now. I agree with the plaintiffs.

As to the liability of both second and third defendants, it is on the record that both were directors of the first defendant and further,

that they knew of the default. As directors, they were supposed to know the activities of their company. It is not sufficient to say that they did not involve themselves in the daily activities of their company or furthermore (as alleged by the third defendant) that they have since lost interest in the company. The two had guaranteed the loan. They knew of the default. They were under duty as directors, to put things in order. They did not do so. They cannot escape liability for the consequences. It is equally important to note that those two defendants did not raise this averment in their written statement of defence. They cannot successfully do so now as parties are bound by their pleadings. *Ultra petita* evidence cannot help their case.

Therefore judgment is entered in favour of the plaintiff against all the defendants jointly and/or severally. They (the defendants) are ordered as follows:

1. To pay the plaintiff, the sum of TZS. 25 477 684-30.
2. The above sum to carry a 23% per annum interest from date of filling of this suit (3 April 2002) to date.
3. Interest in the decretal sum at the rate of 7% per annum interest from the date hereof until full satisfaction.
4. Failure to satisfy 1-3 above, then vacant possession and sale by the plaintiff of the mortgaged property over CT. Number 3452 Plot Number135 Block "E" Unga Ltd, Arusha.
5. Each party to bear its costs of this suit.

REPUBLIC v. RASHID SALEHE HEMEDI

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(E.M.E. Mushi, J.)

CRIMINAL SESSIONS CASE No. 11 OF 2000

Terrorism – Conspiracy to commit murder – Accused had no knowledge of plans and activities of conspirators – Whether there is a basis for inferring guilt of accused

Criminal law – Terrorism – Conspiracy to commit murder – Accused had no knowledge of plans and activities of conspirators – Whether there is a basis for inferring guilt of accused

Evidence – Circumstantial evidence – Accused was a friend of conspirators – Accused had no knowledge and activities of conspirators – Whether accused guilty of conspiracy to commit murder

On 7 August 1998 an act of terrorism was mounted on the United States Embassy in Dar es Salaam. The Embassy was bombed leading to the death of eleven people and a great deal of damage to property. Following the bombing of the Embassy the accused was charged with conspiracy to commit murder contrary to section 215 of the Penal Code.

The prosecution built its case around five factual areas namely, first that the accused was a friend of alleged conspirators and therefore his acquaintance with the alleged conspirators made him a participatory in all the activities of the bombing. Secondly, some physical Exhibits used in the preparation of the bomb were found in the accused's house and shop thus proving that he participated in the preparation of the bomb. Thirdly, remains of explosive materials were found on the accused's clothes thus establishing the accused's involvement in the bombing. Fourthly, the accused had common possession and use of a Suzuki Samarai vehicle with the alleged conspirators thus connecting the accused with the conspirators. And fifthly, after the bombing the conduct of the accused of evading the police tended to connect him with the alleged conspirators

The prosecution submitted that conspiracy presupposes an agreement between two or more persons to commit a crime; an agreement between the accused and the other conspirators should be inferred from the factual areas produced by the prosecution.

The defence asserted that the evidence adduced by the prosecution left so many doubts that it could not be held that a case had been proved against the accused.

Held: (i) Since conspiracy is an agreement between two or more persons to do an unlawful act or a lawful act by unlawful means, it is sufficient to prove that each conspirator knows that there is in existence or coming into existence of such scheme;

(ii) The nature of the evidence that is commonly used by the courts to find whether or not accused committed the offence of conspiracy is purely circumstantial;

(iii) Circumstantial evidence must be such as to produce moral certainty to the exclusion of every reasonable doubt;

(iv) While there is ample evidence from both the prosecution and defence witnesses to show that the accused, knew most of the alleged conspirators suspected of the bombing of the U.S. Embassy, yet he himself had taken no part in the alleged conspiracy;

(v) The accused person was not aware of the bombing activities of the alleged conspirators and therefore there is no evidence from which it can properly be inferred that he was a party to the conspiracy of the bombing of the U.S. Embassy.

Accused not guilty

Cases referred to

1. *R. v. Golkadas Kanji Kana* 16 E.A.C.A 116
2. *R. v. Whitchurch* (1890) 24 Q.B.D 420
3. *Ongodia and Erima v. Uganda* [1967] E.A. 137
4. *Hassani Fadhili v. R.* [1994] T.L.R. 89
5. *Teper v. R.* [1952] A.C. 480
6. *Ndunguru v. R.* [2006] E.A. 179

Statutes referred to

1. The Evidence Act 1967, sections 12 and 114(1)
2. The Penal Code, section 215

Mr Mulokozi for Prosecution

Dr Fauz for the Accused

JUDGEMENT

(Delivered 22 December 2004)

E.M.E. Mushi, J.: In the morning of 7 August 1998, for the first time, Tanzania experienced the bitterness of the most feared new wave of international crime, known as "terrorism". On that day, at about 10:45 a.m. the United States Embassy at Dar es Salaam was bombed. The bombing, no doubt about that was in all respects, an act of terrorist attack committed by a highly organised and sophisticated "gang" of terrorists. It is believed, from the forensic evidence collected, that the terrorists used a "home made" bomb, made of high explosive materials, initiated by an electronic detonator connected to motor batteries.

The bombing caused a great deal of damage, both to human beings and property. Eleven people died as a result thereof, and many others were left seriously wounded. Buildings and vehicles in and around the United States Embassy (The U.S. Embassy) premises were destroyed, several of them beyond repair.

After the bombing, the Government of Tanzania formed a special committee to conduct an investigation. The Committee was chaired by the Director of Criminal Investigations (DCI) of Tanzania. Several Senior Police Officers were assigned to the Committee, including, ASP Ahmed Stambuli (who testified for the Republic as PWI), SP Valentino Mlowola (PWII), one SSP Samson Kassala, and others.

Due to the novelty, the magnitude and the seriousness of the crime, the Tanzania Criminal Investigation Department (The Department) found itself just too incapable of handling the investigation alone. The Department simply lacked the personnel conversant with the proper knowledge and skills. The Department was inadequately equipped with the necessary facilities and equipment with which to conduct that kind of investigation. Much of the investigation needed could appropriately be termed as forensic investigation and engineering. Due to these deficiencies, the Department had to require the assistance of the U.S.A.'s Federal Bureau of Investigation (FBI). The U.S. Embassy was too happy to assist, since some of the people killed as a result of the bombing included United States nationals. Hence, some F.B.I. special agents were included in the investigation Committee.

The investigation commenced almost immediately after the commission of the horrendous crime. The immediate problem that confronted the investigators was how to locate the suspects, for, immediately after or before the commission of the offence, all the suspects virtually vanished into thin air. However, despite that set-back, S.P. Valentino testified that through intelligence reports, a list of suspects believed to be linked with terrorists "gang" was supplied by the F.B.I. Of course, it is common knowledge that the F.B.I. is quite good at keeping tabs of these terrorist suspects. Movements of these suspects were traced and it was revealed that some of them had, indeed, been frequenting Nairobi, Mombasa, Zanzibar and Dar es Salaam. Movements of these terrorist suspects were traced at Dar es Salaam also. The places they had visited were known, even the places they resided and their guests were identified. And it came to be, as if by coincidence, that all these suspects were of "Arabic descent". But perhaps the most remarkable revelation is that all these suspects were centred around the accused person who is also, perhaps again by coincidence, of "Arabic origin". The accused person has his origins from Pemba Island. At the end of the day, to cut a long story short, the Investigation Committee had eventually established

a "ring" of terrorist suspects and the accused person was glaringly at the centre of it.

At least six (6) names of suspects featured on the list. Evidence recorded reveals the existence of at least two key suspects, with almost identical names, known as "Ahmed". Photographs of these two Ahmeds (Exh P.3(a) and (b) were shown to witnesses, which led to the disclosure of their true identities (at least as they were known in Dar es Salaam, for these terrorist suspects go by different assumed names). So we had one Ahmed s/o Khalifan Ghailan, identified as "Ahmedi Mfupi/Mnene" (short and stout Ahmed). The other one goes by the name of Ahmed Mohamed alias Burger, otherwise "Ahmedi Mrefu/Mwembamba" (tall and slim Ahmed).

The said Ahmed Khalifani Ghailani (Ahmed Mfupi), is undoubtedly a long time friend of the accused person. His origins are said to be in Chake Chake, Pemba. However, it seems he moved to Mombasa, Kenya, where he found permanent residence. He used to visit the accused quite frequently, since 1996. In fact the accused and this Ahmed Ghailani were business associates. Ahmed Ghailani used to bring articles of clothing from Mombasa to a Dar es Salaam shop, wherein he (Ahmed Ghailani) also acted as a shopkeeper. Evidence also indicates that Ahmed Ghailani used to visit Dar es Salaam and Nairobi and, of course, some of the Arabic countries. It is recorded that the said Ahmed Ghailani was in Dar es Salaam in July, 1998, and he used to live at the accused's house, first at Narung'ombe Street, Kariakoo, and they later moved to another house, situated at Ilala, Amani street, House No. 15. It is also a fact recorded that the said Ahmedi Ghailan disappeared just a few days before the bombing incident.

Evidence recorded reveals that the other Ahmed Mohamed alias Burger (Ahmed Mrefu), also originates from Chake Chake Pemba. Again, like Ahmed Ghailan, he moved to Mombasa, Kenya, where he also used to reside. He used to frequent Dar es Salaam, Nairobi as well as London. Like the other Ahmed, Burger was also an acquaintance

of the accused person. Whenever he visited Dar es Salaam, he used to hang out at the accused's shop during daytime and spent nights at his house. It is recorded in evidence that both Ahmeds used to be together, whenever they visited accused person.

Then we have other names on the list, also believed to be friends of the accused. There is one Khamisi Khalifani Mohamedi, also a resident of Mombasa, Kenya, Fahadi Mohamedi Ali, again a resident of Majengo – Chini, Mombasa. The accused definitely has a lot of friends, no doubt about that, including one Hussein Hassan @ Mustapha Fadhili, again, a resident of Mombasa. There are others more, like Mohamed Sultan Zaidi and Seleman s/o Abdallah, both residents of Mombasa. We may also add to the list one Hafadhi s/o Mbaruku and Issa s/o Lombo, both residents of Unguja.

In summary, the so-called friends of the accused person are said to be "business men", operating between Unguja, Pemba, Dar es Salaam, Mombasa, Nairobi, Dubai, Yemen and some other Arabic countries. They used to visit him frequently, on and off, bringing some assorted articles of trade in which they were engaged. Evidence on record shows that some of these "friends" visited the accused as late as July, 1998, just a few days before the bombing. However, soon before or after the bombing of the US Embassy, practically all of them disappeared into thin air. It is believed that they disappeared either immediately before the bombing or immediately thereafter. And it is sad to say that since the bombing incident, only one of these terrorist suspects, one Khalifani Khamisi Mohamedi, has been captured, and the arrest was made in South Africa. We have been informed that after his arrest the suspect was extradited to the United States of America, where he was charged and later on found guilty. He is now serving a long imprisonment sentence.

Despite the fact that these mysterious "friends" of the accused have yet to be captured, the accused has been charged, nonetheless. The charges facing him are those of conspiracy to Murder, c/s 384 of the Penal Code. The indictment for murder, apparently, could not

hold due to what was said to be "lack of sufficient evidence" to support the charges of culpable homicide.

At the initial stage of the proceedings, during the preliminary inquiry, the accused was charged with eleven (11) counts of murder. However, upon completion of investigations, conducted jointly by the Tanzania Police Investigation Department (C.I.D.) and the American Federal Bureau of Investigations (FBI), the charges of 11 counts of murder were reduced to a single count of conspiracy to murder.

The prosecution alleges that even if the accused person was not directly involved in the commission of the offence, however, he did conspire with his "friends/business associates" to commit the offence of murder. The Prosecution adduced evidence purporting to demonstrate how these conspirators committed the offence of bombing with the clear knowledge of the accused. The evidence produced by the Prosecution is directed towards establishing the fact that the offence of conspiracy can only, in most cases, be inferred from the conduct of the accused person and the conspirators, and that the inference must be drawn from the facts produced and admitted by the court. A total of 18 witnesses for the Prosecution did testify in that endeavour.

There is no doubt that the incident that took place on 8 July 1998, at the U.S. Embassy, was a terrorist attack. All the pieces of evidence, both physical and non-physical, gathered by the C.I.D., in collaboration with the F.B.I., led to that conclusion. Evidence recorded shows that the bomb was planted in a motor vehicle, which was driven and parked in front of the main gate of the U. S. Embassy's premises.

Both SSP Ahmed Stambuli (PWI) and SP Valentino (PWII) testified to what they experienced on that fateful morning of 7 August 1998, round about 10:45a.m. from their Kinondoni District C.I.D.'s headquarters, located along Salender Bridge Street, both heard a horrifying blast, coming from the direction of the United States Embassy (which then was not very far from the said Police Station). The explosion made the neighbouring surroundings and skies filled with black and heavy

"clouds" of dust and smoke, full of metal and other bits of objects flying around. They visited the scene, and to their utter disbelief and shock, they saw the extent of damage that had been caused to the Embassy. The front portion of the Embassy had been completely destroyed; a good number of vehicles had been damaged beyond repair. Some parts of the premises were on fire. The situation was so horrific that one of the Police Officers could only compare it with the "Hiroshima's Atomic Bomb explosion!" It was an explosion caused by a bomb, all right, the Police Officers satisfied themselves.

The Police had to do something, quick and fast. Together, with a squad of several Police Officers and Field Forces Unit, they had to do some extra job to manage the situation around, including the control of the panic stricken mob of people that had gathered around. They assisted the U.S. Marines to remove the wounded from the rubble and organised transport to ferry them to Muhimbili hospital. By then all the Senior Police Officers, including the Director of Criminal Investigations (DCI), the Regional Police Commander (RPC), and the others who mattered, had arrived at the scene. Appropriate orders and instructions were issued and duties were assigned to different groups of officers and individuals. Police investigation had began. Witnesses were located and interrogated. The scene of the blast was investigated. Physical material evidence was collected, to be analysed and used as evidence/exhibits later on.

One piece of a metal plate was of particular interest, and this proved to be a vital lead to the investigation. It was a piece of the chassis of the motor vehicle believed to have housed the bomb. The piece of metal had some numbers on it, No MH40 – 06050 (Exhibit P.6). ASP Valentino (PWII) and his colleagues visited several companies dealing with importation of motor vehicles into the country. They traced the company believed to have imported that vehicle. It was the JABA Motors Company. Yes! The company had imported such a vehicle, a Nissan Atlas, two-toner truck, Model MH 40, Engine No. ED 33-50626, and Chassis No. MH 40-06050, and whose registration

No. was TZH 6134. The truck had been sold to one Amani Juma Kasinya.

ASP Valentino (PWII) contacted the said Amani Kasinya. True, he had purchased the said truck, however, he had long since sold it to one Mohamed Sultan Said, who testified for the Prosecution, as PW5. He confirmed to have purchased the said Nissan Atlas Truck from Amani Kasinya, for a price of TZS. 3 500 000. He produced an agreement of Purchase, dated 17 June 1998. This has been admitted in evidence, as Exh. P 2. It is the testimony of PW5 that the truck was used for the transportation of fresh fish from Tanga to Dar es Salaam. For this type of business, therefore, the truck had been equipped with cold storage facilities, such as air conditioners and freezers. Sadly, however, PW5 was no longer in possession of the truck, since, he in turn, had sold it to two individuals, of "Arabic origin". The sale had been made through the agency of one Sleyyum Suleiman Salum Juma.

Sleyyum Suleiman Juma testified for the Republic, as PW15. He confirmed that he sold the said Nissan Atlas truck to two "Arab youths". Sleyyum identified the photograph of Ahmed Khalifan Ghailan (Ahmed Mfupi). The photograph of Ahmed Khalfani has been produced as Exh P3(a). PW15 further testified that he sold the truck at TZS. 4 300 000. The sale was conducted at Al-Noor Hotel, on 27 July 1998. The sale was witnessed by PW6, one Said Salum Said, who has also identified the photograph of "Ahmed Mfupi". They had prepared two copies of purchase agreement, testified PW15, but both of these documents had been taken by "Ahmed Mfupi" for purpose of photocopying. But of course, "Ahmed Mfupi" never returned to give Sleyyum a copy.

After the purchase of the Nissan Atlas truck, the truck was prepared for the installation of the bomb. For this purpose, several alterations had to be made on the truck. These alterations were done by different technicians, on different occasions and locations and at appropriate timing. To effect the changes, without creating any suspicion, the

two Ahmeds had to do it secretly and involving as few people as possible. That is why different jobs had to be done by different technicians and mechanics. Besides, the Ahmeds had to purchase some of the necessary materials either by themselves or through agents.

Evidence recorded indicates that after the sale the said Ahmed Ghilan requested PW15 to recommend him a good mechanic to service the truck. One Anold Kessy was recommended. The truck was sent to his garage, at Kidongo Chekundu. The said Anold Kessy testified for the Prosecution, as PW8. He testified to the effect that PW 15 did introduce the said "Ahmed Mfupi" to him. He was required to service the vehicle, check the alternator, the braking system, engine oil, tyres, etc. PW8 testified further that he was also required to remove the cold storage facilities that had been built inside the "box body" like trunk of the vehicle. PW8 had removed the old compressor (air conditioner) and the cold chambers that had been used for fish storage. PW8 also testified that the service had been supervised by the said "Ahmed Mrefu". At last, when this part of the job was done, PW8 got paid, and that was the last time he saw "Ahmed Mrefu".

The next piece of job done on the truck was to fix compartments (in shelves like). This was done by two gas-welding technicians, one Frank Marley (PW9) and Julius Karoli Kisingo (PW10). Both testified to the effect that they were contracted to fix compartments (shelves like), about for (4), of them around the box body of the truck. Of course, before the fixing they had to scrap clean the old linings of the body of the truck. To install the "shelves", they used iron flat bars of three inches wide. Both mechanics testified further that they used a sketch plan with specific instructions, in terms of dimensions of the "shelves" and how to weld (join) the metal bars. Having fixed the "shelve" like compartments, the technicians prepared some kind of a cradle (seat), whose base could accommodate two motor vehicle batteries. The battery seats were joined together. Then followed the job of drilling holes on the body of the truck, some on the walls and some on the floor. The holes were made at the rear part of the truck, near the back door. When the modifications on the truck were completed,

PW10 and the said "Arab owner," drove the truck up to Nyamwezi/ Uhuru Road. That was the last time he ever saw the truck, testified PW10. Evidence on record would reveal that all along the truck had been hidden in the backyard of a house that had been rented by the said Ahmeds, along Nyamwezi Street, Ilala.

At these premises, more "odd jobs" had been done on the truck. The truck had then been installed with the "home made" bomb devices. The explosives, from which the bomb was made, were identified to be the kind used in military operations. These explosives are technically known as "**trinitrotoluene**" (TNT) and "**pentaerythritol tetra nitrate**" (PETN). These are, according to the F.B.I. agents, very powerful and high explosives materials. Evidence on record indicates that these explosives were compressed in several gas cylinders. The gas cylinders, we have been informed, were purchased by the said Ahmeds, through the agency of three gas vendors and technicians; including Flenan Abel Shayo (PW2), Felix John Lekule (PW3) and one Fred Lyimo (PW4).

These three witnesses did testify to the effect that, on different occasions, they were approached by the two "Ahmeds" for the supply of empty gas cylinders. It is the testimony of PW2 that he sold the Ahmeds a total of seven (7) cylinders, whereas PW3 sold them ten (10). The two Ahmeds, definitely had to tell a lie to PW3, in order to hide their sinister clandestine activities. When PW3 quizzed them about the uses of so many empty gas cylinders, the Ahmeds had replied to the effect that they wanted the empty cylinders for sale, as "scrap metal".

By this time the Prosecution had collected enough evidence to locate and confront the accused person. ASP Valentino (PW11) first traced him to his shop – "Sera Auto Parts", but he wasn't there. They tried his house, located at Ilala, - Amani Street, 15. Again, he wasn't there. But at least PW11 managed to find another significant witness, at the accused's house, one Amina Rashid (PW17), the accused's housemaid. PW17 had given ASP Valentino the mobile phone number

of the accused. It is the testimony of ASP Valentino that at first he did talk with the accused, and instructed him to meet him (ASP Valentino) at his (accused's) house. But the accused wouldn't do as instructed. ASP Valentino had to phone the accused again, but this time the phone was answered by a different person altogether. He was informed that the accused was at a mosque, praying.

Just when ASP Valentino was about to be tired of waiting, alas! He was met with another person, instead of the accused. This individual came driving a motor vehicle, a Suzuki, with Registration No. TZG 7575. The visitor introduced himself to ASP Valentino as one Hamisi Saidi Hamisi. He was another friend of the accused. The said Hamisi had informed ASP Valentino, that the accused was at Ilala. ASP Valentino sent one of his Police Officers to go and collect the accused. But no sooner had he sent this Officer, than yet another friend of the accused came along, driving a saloon car. He introduced himself as one Issa Salum Mattra. The said Issa Mattra delivered a different message to ASP Valentino. That the accused was no longer at Ilala, but he was at some other place. ASP Valentino had to request this one Issa to go and collect the accused.

Meanwhile, the Police Officer who had been sent to collect the accused from Ilala, had come back, but without the accused, since he was nowhere to be seen. It was at this juncture when ASP Valentino and the other Officers decided to search the accused's premises.

It was on 26 July 1998, about 10:00 p.m., when the first search was conducted. It is in the testimony of PWII that they could not risk to wait until the morning to do the search (as required by the law), since the nature of the offence was too serious to abide by this procedure! And in any case, the accused himself had proved to be un-cooperative. But at least the search was witnessed by a number of witnesses, including the said Amina Rashid (PW17), one Said s/o Mtali, Hamisi Othman Saidini and one of the accused's friend, Hamisi Issa Mattra.

The testimony of PWII reveals that when the search was conducted a number of exhibits vital for the prosecution's case were found, including a Mobile Customer Application Form and two photographs. These documents were admitted in evidence as Exhibits P3 (collectively). The Prosecution alleged that the Diary contains a list of names of individuals like Ghailan, Fahadhi, etc, who are alleged to be connected with the bombing. The Mobile phone application form is made out in the name of Ahmed Khalfani (the suspected mastermind of the bombing). The customer declaration on the form was made by the accused, Rashid Saleh Hamisi Saidi. About the Suzuki vehicle, PWII testified that he was informed that the Suzuki belonged to one Fahadhi. And that the said Fahadhi was one amongst the suspected terrorist conspirators on the F.B.I. list. This made ASP Valentino to order the Suzuki to be sent to Central Police Station for custody and further investigations.

Meanwhile, the F.B.I. Agents had arrived in Dar es Salaam to assist the investigations. Three of them, namely, Gregory Carl, Robert Fricke and Michael Gough analysed the scene of crime as well as the debris and other physical exhibits that had been collected. Together with the intelligence reports they had relating terrorists activities being carried out within the Eastern African Countries, they had no difficulty identifying the explosive materials used in making the bomb. The FBI Agents carried more investigations. The Suzuki vehicle was then searched, some explosive materials were found on it. This led to the second search in the house of the accused, at Amana Street, No. 15, on 29 August 1998.

The second search team included ASP Valentino and several Tanzanian Policemen and two FBI Agents. It was witnessed by several independent civilian witnesses, including one Amiri Ally (PW18). The whole premise was searched: As a result of this search, several articles related to the preparations of the bomb were found, and the same have been admitted in evidence as exhibits.

The first category of items included, articles of clothing allegedly taken from the bedroom of the accused. They consisted of 36 shirts, 25 pair of trousers, one T-shirt, one "*Kanzu*", and one pair of jeans. These have been admitted in evidence as Exhibit P4(a) (36 shirts, T-shirts and "*Kanzu*"). As for the trousers and jeans, they were marked Exhibit P4 (b).

Another group of exhibits included the following: six (6) glass beakers, a roll of aluminium foil paper, four (4) medium size dry cells (batteries), a box of carbon switch brushes. Collectively, these were admitted in evidence and marked Ex P.4 (c) There was also found a detonator (blasting cap) in one of the rooms. This has been photographed, since it is still with the F.B.I. Laboratories, Washington. Its photograph has been produced as exhibit and accordingly marked, P4(d).

There was also found a document purporting to be an agreement of sale of the Suzuki Vehicle TZG 7575, between one A. J. Rutahirwa and one of the accused's Arab friends, - one Khalifan Khamisi Mohamedi. The document is dated 09.06.1998. The said Khalifan is said to have purchased the said Suzuki for a price of TZS. 2 300 000. Again, the agreement of sale has been admitted as Exhibit P5(b). Of course, the Suzuki itself was produced in evidence as Exhibit P5(a).

These physical exhibits were sent over to the F.B.I. Laboratories, Washington, for forensic examinations. F.B.I. agent Ronald Kelly testified as PW13. This FBI Agent is said to be a Chemist with the FBI Laboratories, Explosives Unit. He has been on the job for the past twenty five (25) years. He performs chemical analysis of the materials found on scenes of bombing. He did examine the exhibits found on the scene of bombing of the U.S. Embassy, and the ones collected from the accused's house (15 Amani Street), some parts of the Suzuki vehicle and other materials from other locations, but related to the case. After his careful and thorough analysis, Agent Kelly did compile a report of his findings. Briefly, his report would indicate the following findings; first, regarding the items collected

from the accused's house, 15 Amani Street: The F.B.I. report indicates that the pair of blue jeans [Exhibit P (a)], the 25 pairs of trousers [P4(b)] and the 36 shirts, and a *kanzu* [P4(b)], were found with traces of the deadly explosive materials known as *Pentaerythritol tetra nitrate* (PETN). The report was admitted in evidence as Exhibit P7(a).

Several parts of the Suzuki vehicle were examined. About 59 swabbing specimen were examined for explosives and explosive residues. Out of the 59 specimen, about 29 of them were detected with trinitrotoluene (TNT) explosive materials. The part of the vehicle contaminated with these TNT explosives, included the driver's seat cover and the covers of the other seats, the steering wheel, the window frames, and the wheels. The report for this Exhibit was admitted as Exhibit P7(b). Agent Kelly (PW13), further testified that the items were sent to him in sealed plastic bags and they were accordingly marked. He did examine them in the order and manner they were sent to him. And furthermore, he was the first person to open the seals.

The Prosecution is about to wrap up the case against the accused and his alleged absentee conspirators. In doing so, at least a few more, important witnesses testified in detail, with the purpose of connecting up the relationships between the accused and the conspirators. One such witness was Kassim Juma Abdallah, who testified as PW7. As a matter of fact, PW7 is the accused's step-father (*Baba Mdogo*). He once was a secondary school teacher, in Pemba, between 1971-1994, when he was re-trenched from his teaching duties. He had to turn into business, to make a living. He came to Dar es Saalam in 1996 and joined the accused in his business. It is the testimony of PW7 that, at that time, the accused had a garments' shop. That the shop-keeper of this shop was one Ahmed Khalifan (Ahmed Mfupi). That the accused and the said Ahmed and PW7 lived together in the same house.

PW7 further testified that the accused had a lot of friends and visitors. They used to come and go. They would stay for a day or

two, and then they would be gone. PW7 also testified that, even the said "Ahmed Mfupi", had friends of his own. These would include one Khalifan and one Hussein and one Fahadhi. All of these were residents of Mombasa, Kenya. That the said Ahmed used to visit Mombasa, on and off, for shopping. But more significant is that, the said "Ahmed Mfupi" went to Mombasa in 1997, only to come back in 1998.

The testimony of PW7 would further reveal that Fahadhi owned a pick-up. The said Hussein purchased a Suzuki vehicle. When Hussein left, he left the Suzuki to the accused. It is also in his testimony that, even before the departure of Hussein, the accused sometimes used to drive the said Suzuki in his business activities in Dar es Salaam. PW7 further testified that Ahmed Khalifan left Dar es Salaam on 4.8.1998, for Yemen (that is 3 days before the bombing).

The testimony of PW7 is closely linked with that of PW16 (Salim Issa Mohamed). Salim was a sales clerk at the accused's Auto Spare Shop (SERA), situated along Sikukuu Street, Kariakoo. He had his assistants, one Abdallah Ally and Nassid Ally. It is the testimony of PW16 that at the accused's garments shop, one Ahmed Khalifan Ghailan (Ahmed Mfupi) used to assist the selling, along with, Kassimu Juma Abdallah, PW7). PW7 further testified that the said "Ahmed Mfupi" used to live in the accused's house, together with PW7. Ahmed used to travel to Mombasa, Nairobi and other places, apparently to collect articles of clothing for their shop.

Almost echoing the testimony of PW7, it is the testimony of PW16, who testified to the effect that the accused had several friends, as well as the said "Ahmed Mfupi". These friends would include one Fahadhi, who was always in the company of Ahmed whenever he (Fahadhi) visited them. PW16 further testified that he came to know Ahmed since he used to visit him at the spares shop, for an occasional chat or whenever he (Ahmed) wanted to have a talk with the accused.

The testimony of PW16 further reveals that just before his departure, for good, the said "Ahmed Mfupi" had brought to the accused's shop

some second hand articles, purportedly for sale. These included an air conditioner (compressor), two motor vehicle batteries and two pieces of bed rails *(chagga)*. But of course, these items were never sold since the police did confiscate some of them, including the air conditioner and the batteries. PW16 did testify that the police and the FBI had come to the shop inquiring about the said "Ahmed Mfupi". Out of fear of being connected with the bombing, PW16 testified, he had given the compressor to one Feza Ali in order to throw it away. But Feza could not do so, since the Police impounded them.

The Prosecution would not leave out the testimony of the accused's house maid. Amina Rashid. She would testify as PW17, with the hope that she would give some inside story of the accused's domestic activities. Amina had been the accused's house maid from 1997 to 1998 (up to the time of the bombing). Her duties included the buying of groceries at the market, the cooking, the washing and doing the other normal domestic chores. PW17 used to report for job at six (6) in the morning and she would leave for her home at Tandika, at six in the evening.

In her testimony, PW17 testified that the accused used to live with Mwalimu Kassimu (PW7) and one Ahmed (she knew him by one name only). The accused house, she testified, had three bed rooms and a store. The accused had his own room, likewise, both Mwalimu Kassimu and the said Ahmed, each had a room of his own. And each of these occupants, including the accused himself, had his own friends. And each one would be visited by their respective friends.

PW17 would also testify of what she recalled about the bombing of the U.S. Embassy. She had heard the terrifying blast, and she had hurried back home (the accused's house). At about 11 am., the accused had come back home, and had informed her that the U.S. Embassy had been bombed. They had watched the live pictures being shown in the television then. That the accused had then left only to come back at about 1:00 p.m., for his usual lunch.

Three days later, PW17 witnessed the first police search. The search was conducted about 9 p.m. in the evening, PW17 testified that the accused was not present then. The police had searched each of the rooms. The rooms were not locked. After the search, PW17 testified, the police took with them some items. When the accused was arrested, PW17's job came to an end. She was paid her wages by the accused's brother, now deceased, PW17 concluded her testimony.

Having completed the investigation, all the bits and pieces of evidence were compiled together. The accused was arrested and had been remanded for about two years, during which period he was extensively interrogated by both the Tanzanian Police and the F.B.I. At the end of the day, the accused was charged with the offence of conspiracy to commit murder, C/S 215 of the Penal Code.

At the close of the prosecution's case, the accused was required to defend himself. He did so through his Advocate, Dr Fauz Twaib. The accused lives at Ilala, Amani Street, House No.15, in a three bed-room House. He is a businessman, deals with motor-vehicle spare parts. He owns a shop for that kind of business, known as Sera Auto Parts. "SERA" stands for "Seif and Rashid", since the accused owns the shop jointly with one Seif, so testified the accused.

His business ventures began way back in 1995, when he and one Sued, both had a garments shop. Sued's shopkeeper was one Suleman Abdallah. Then is 1996, the said Sued closed down his shop and moved to Saudi Arabia. But the accused stayed on. The accused used to do shopping (consisting of garments, shoes, etc.) from Zanzibar and Dubai and sold them in his shop and to other vendors. The accused used to travel to Zanzibar with the said Suleiman.

The accused came to know the mysterious - Ahmed Khalifani Ghailani (Ahmed Mfupi) through this Suleiman. During one of his trips to Zanzibar, Suleiman had come back with this "Ahmed Mfupi". The accused was introduced to "Ahmed Mfupi". His friend, Suleiman, had requested him to give Ahmed some accommodation.

The accused's connection with the Mombasa business counterparts also was made by this very Suleiman. The accused contended that the said Suleiman had introduced him to one Mohamed Blazari. They had agreed to do joint business. Mohamed agreed to provide the required capital. The money would be payable at Dubai, through the accused's agent, one Jakubu. But did this business deal work out? It seems the answer is in the negative! How come? This Mohamed had borrowed USDollar 10,000 from the accused. He had promised to re-pay at Dubai, through his (accused's) agent, Jakubu. But when the accused arrived at Dubai, he could not get the money. But he was informed that the said Mohamed had died. The accused had returned to Dar es Salaam, empty handed. However, a few days thereafter, the accused was phoned by the wife of the deceased Mohamed, and she had instructed him to go to collect his 10,000 dollars from one Abdallah Bazaar, at Dar es Salaam. The accussed did as he was instructed and, indeed, he got his money back.

Strangely, the 10,000 dollars seems to have brought together the accused with one Fahadi. You would think it was pre-arranged (or was it?), as one day this person (who introduced himself to the accused as Fahad), from Mombasa, visited the accused. Fahadi had inquired from the accused whether he had been paid the 10,000 U.S. Dollars he had lent to the deceased Mohamed. From then onwards, the accused and this Fahad had known each other, and had become close friends. Therefore, whenever, the acccused visited Mombasa in his business trips, he would stay at Fahad's house. Likewise, this Fahad would stay at the accused's house, whenever he visited Dar es Salaam.

The accused admitted to have met the said Fahadi and Ahmed Khalifan Ghailan (Ahmed Mfupi) in June 1998. Both had visited him, as they had been doing in the past, they had stayed at his house. However, later, these Fahad and "Ahmed Mfupi" had rented their own house at Magomeni Makuti. The accused even visited this house. But even after renting their own house, Fahad and "Ahmed Mfupi"

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would still visit the accused on and off. They would rest and eat and chat, as they used to do in the past. The accused further admitted to have seen these two just a few days before the bombing incident, in late July 1998. That the two had come to sort of bid him farewell. "Ahmed Mfupi" had informed him that he was traveling to Germany, while Fahadi had told him he was off for Yemen. The accused further testified that, from that day he never saw them again. The accused denied to have ever met the said "Ahmed Mrefu"; let alone to have known him.

As for the bombing, the accused claimed that he saw the news on the television, just like anybody else. He admitted to have gone back home at about 10.30 a.m., to check on his brother, whom he was expecting to arrive from Zanzibar. At his house, he had instructed his house maid (PW17) to switch on the television set and went on watching the then "breaking news" i.e. the bombing. Having missed his brother at the house, he had gone back to his shop. He had met his brother at about 12:00 noon. In the afternoon, the accused testified, he had again gone back home for lunch, as usual. After lunch, he had gone back to his shop. In the evening, he also came back to his house. Even for a number of days subsequent to the bombing, before his arrest, the accused stayed around, going about with his business as usual. He never travelled outside Dar es Salaam, or Tanzania, for that matter, the accused testified.

The accused also testified as to how he was arrested, searched and interrogated by the police and F.B.I. He was first contacted by the Police on 26 August 1998 (about twenty days after the bombing). The contact was through a mobile phone, (by the number that had been supplied to the police by the house maid PW17). For quite sometime, the accused testified, he stalled meeting the police, as they had required him to do so, since he was afraid of the Tanzania Revenue Authority (TRA) officials from Tanga. The accused had instructed his friends, first Khamis and later on one Issa, to investigate for him who actually were those people looking for him. When Issa confirmed to him that they were not the T.R.A. officials but the F.B.I.,

who were investigating the bombing incident, the accused then decided to surrender himself to the police headquarters (within the Home Affairs Headquarters), for questioning.

The accused would testify that he did admit, both to the C.I.D. and the F.B.I., to have known both the said "Ahmed Mfupi" and Fahadi. But he also denied to have known or met one "Ahmed Mrefu". He denied to have known the existence of the Nissan Pick-up. He denied to have known the fact that these alleged "conspirator friends" of his had a house at Ilala. He would also deny to have even known of the existence of the bombing plot of the U.S. Embassy.

The accused lamented that his house was searched on several occasions. That his house, at Amani Street 15, was searched at least three times. His shop was also searched. On the first search, the accused was not present. However, during the second search, he was around. The accused claimed that the police, in collaboration with the F.B.I., searched from one room to another. They searched every place, everywhere. In his bedroom he found clothes being kept in one place. They had been removed from the wardrobe. The clothes included his and, those of "Ahmed Mfupi" and Mwalimu Kassimu. He did sort them out, identifying those clothes alleged to belong to "Ahmed Mfupi", those belonging to Kassim and his own. Later, the clothes were taken by the Police, in one heap, the accused alleged. The accused identified the assortment of clothes, marked Exh. P.4(a) and (b).

Some other items were also confiscated by the police and FBI, including the contents of Exhibits P.4 (c) (batteries, laboratories, beakers, and the foil paper). These items, the accused testified, were found in Mwalimu Kassimu's (PW7) bedroom, in a utensils cupboard. The testimony of the accused is that the cupboard had two compartments, each compartment being used by "Ahmed Mfupi" and Kassim. The accused denied to have the knowledge of the existence of these items in the house. He also denied to have the knowledge of the existence of the detonator Blasting Cap (Exh.P.4 (a), also found in "Ahmed Mfupi's" room.

As for the Suzuki vehicle (Exh. P. 5 (c), the accused testified that the vehicle was jointly being used by Fahadi; "Ahmedi Mfupi" and himself. When Fahadi left, he (Fahadi) had left it to him. The keys to the vehicle were given to Mwalimu Kassimu. The accused contended that the Suzuki vehicle was left with him for safe custody, as it had been done before, whenever Fahadi travelled.

The lengthy testimony of the accused was considerably supported by that of his four (4) witnesses, including, Mohamedi Sulemani Chatwanga (DW 1), Issa Said (DW 2) Ahmed Muslim Salim (DW3) and one Add Masony (DW4). These defence witnesses, by and large, testified favourably for the accused.

Mohamedi Suleman Chatwanga - (DW1) is a real estate agent. He acts as a broker between landlords and prospective tenants, since 1995. He lives at Ilala Street No. 17. His testimony is to the effect that on 15.06.1998, he did rent a house of one Ibrahim Kitwana, situated at Ilala Bungoni, to one Khalifani Mohamedi Khamisi, whom he knew. The tenancy agreement was for one year. The rent was TZS. 65 000 per month, accordingly, the annual rent was TZS.760 000. That the said Khalifan Khamisi had paid the annual rent in cash. DW1 was paid TZS.65 000 by way of commission.

DW1 further testified that sometimes after the bombing incident he was required by the FBI, in New York, to testify against the said Khalifan Khamisi, who had been arrested in South Africa and charged with the offence of the bombing of the U.S. Embassy in Tanzania. DW1 did testify for FBI. He did identify the said Khalifan Khamisi as the one who had rented the Ilala Bungoni house. DW1 further testified that it was his first time to have ever seen the accused in the dock.

Ahmed Muslim Salim also testified favourably for the accused as DW3. As a matter of fact DW3 is a brother-in law *(shemeji)* of the said Khalifan Hamisi Mohamedi (now a prisoner in one of the USA maximm security prisons). DW3 did also testify against Khalifan Khamisi in the New York court, in respect of Khalfan's involvement

in the bombing of the U.S. Embassy. His testimony was to the effect that at the material time, in June 1998, he (DW3) was residing at Ubungo Maziwa. The said Khalifan had visited him. He (Khalifan) had wanted to send over DW3 to Ilala to show him the house that "his friends had rented". That his friends were about to leave, meaning that, the house was about to fall vacant, therefore, Khalifan had wanted DW3 to re-rent it to other interested tenants in due course. DW3 had gone to view the Ilala house. It was a three bed roomed house, testified (DW3), that the backyard rooms, four of them, were still under construction. But DW3 did not see any of the tenants of the said house, who were about to leave soon, as he was told by the said Khalifan.

It is in the testimony of DW3 that a period of about three weeks went by, but he never saw the said Khalifan. He had to search for him for three days, but in vain. And then, DW3 further testified, on the night of the bombing of the Embassy, one Suleiman reported at his house, Ubungo. He had brought him the keys of the Ilala Bungoni house, together with some other domestic appliances, alleged to have been given to him (Suleiman) by the said Khalifan Khamisi. These items included a Milone domestic flour mill. DW3 had gone to the house and had removed from it three (3) mattresses and two (2) blankets. DW3 further testified that about three days after the bombing, he got news that Khalfani had been arrested by the FBI in South Africa. DW3 was later required by FBI to identify the items brought to him by Suleiman and sent them to the Ilala house. It is also the testimony of DW3 that he never even once saw the said Khalfani with the accused. As a matter of fact he never knew the accused prior to seeing him in the dock.

DW4, Add Masony, would testify for the defence to this effect; that he is a businessman, in transportation, based in Tanga. He has known the accused through their transport business ventures. The accused used to hire his services to clear his goods at Tanga port. It is the testimony of DW.4 that sometime in July 1998, he cleared a Mitsubishi Canter vehicle for the accused. That in the vehicle, there

were hidden some used motor vehicle spare parts. These goods were not cleared (that is to say, the necessary custom duties were not paid), accordingly the T.R.A. had to impound both the vehicle and the goods therein. However, before the T.R.A. could seize the vehicle, the accused did manage to "steal it" away. And so, the T.R.A. officials had been looking for the accused ever since in order to make him face the necessary charges for evading the payment of the required customs duties. But of course, DW.4 would not know whether or not the accused was engaged in activities other than the importation of used vehicles and spare parts.

At the end of his defence, the accused contended vehemently claiming that he did not conspire with the said two Ahmeds or Khalifan Khamisi Mohamed, or Fahadi, nor had he ever conspired with any other person to commit the act of bombing of the US Embassy, or to commit any of the charges facing him.

Having closed the presentation of their cases, both the prosecution and the defence were given the opportunity to make their final submissions. From their submissions, it is clear that there emerged a set of facts which are undisputed. It is not contested that in the morning of 7 August 1998, a bomb exploded outside the United States of America Embassy, in Dar es Salaam. A total of eleven (11) people lost their lives. Subsequent investigations carried out by the F.B.I and the Tanzania C.I.D, established that the huge explosion was caused by a home-made bomb, using high explosive materials. A piece of a motor vehicle chassis found at the scene established the fact that the bomb was transported in a vehicle, a Nissan Atlas truck, with Registration No. TZH 6134, which was itself destroyed by the bomb.

It is also not disputed that the Nissan Atlas truck was purchased about a week before the bombing, by two individuals with Arabic features. who both went by the name "Ahmed". One of them was short and stout. nick-named - "Ahmed Mfupi", while the other, tall and slender, was referred to as "Ahmed Mrefu". The sale of the truck was made through the agency (dalali) of one Sleyum Suleiman Sahim

(PW15). The deal was concluded at Alnoor Hotel, Dar es Salaam, on or about 26.7.1998.

It is not disputed either that after the purchase of the Nissan Atlas truck, the two "Ahmeds" made substantial alterations within the internal designs of the truck. PW15 sent the Ahmeds to Gerezani garages. PW15 introduced some welders, Fleman (PW2) and Felix Lekule (PW3), to Ahmeds. These welders, with the instructions of the two Ahmeds, carried out the alternations. Later, the same Ahmeds purchased some empty gas cylinders from one Freddy Lyimo (PW4).

At Gerezani garages, the truck's compressor was removed; some sort of "metal shelves" was fabricated and fixed within the body. The said gas cylinders were accordingly installed. Two new batteries were fixed at the back of the body, the tyres were replaced and thorough general service was conducted to the vehicle.

The evidence has also established that the two Ahmeds were working together with several other individuals, including one Fahad Mohamed and Khalfan Khamis Mohamed. It is not disputed that both Ahmed and Fahad and Khalfan were present in Dar es Salam, at about the time of the bombing, the end of July and early August 1998. It is also a fact that just before or immediately after the bombing incident, the alleged four conspirators disappeared. Of these four, only one of them, Khalfani, has been arrested. The remaining three are still at large. The foregoing facts are not disputed, but the remaining ones are highly controversial.

It is upon these disputable facts that the case for prosecution is built. At least five (5) main areas are contended by the Prosecution: First, that the Accused's acquaintance with the alleged conspirators makes him a participatory in all the activities of the bombing, hence equally a conspirator with the others though not present in court. Secondly, the fact that some physical exhibits used in the preparation of the bomb were found in the accused's house and shop, this proves that he participated in the preparation of the bomb.

Thirdly, the presence of the remains of explosive materials found on the accused's clothes, further establishes the accused's involvement in the bombing. Fourthly, the common possession and use of the Suzuki Samurai's vehicle between the alleged conspirators and the accused, further complicates his position. The fifth, aspects is in relation to the conduct of the accused, during the time of the bombing and when he was being required by the Police and FBI for questioning and the searching of his house. The Prosecution contends that the accused was evading the Police.

The Prosecution submitted, partly, that conspiracy presupposes an agreement between two or more persons to commit a crime. That the agreement between accused and the other conspirators involved in this case should be inferred from the facts produced by the Prosecution. Once the conspiracy is reasonably believed to exist, claims the Prosecution, then the accused becomes responsible for all the acts committed by his co-conspirators even in the absence of proof of his direct involvement therein. The Prosecution referred to the provisions of section 12 of the Evidence Act 1967, which states as follows:

> Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by any one of such person referring to or in execution or furtherance of their common intention, after the time when such intention was first entertained by any one of them, is a relevant fact as against each such persons believed to be so conspiring, as well as for the purpose of proving the existence of the conspiracy and for the purpose of showing that any such person was party to it.

The prosecution concluded their submissions with the contentions that there is sufficient evidence to connect the accused with the bombing of the US Embassy. However, the defence claims to the contrary. They assert that the evidence provided by the prosecution leaves a lot of doubts that it cannot be held that a case has been proved against the accused. The defence submitted a number of counter-claims, in the attempt to challenge and weaken the case for the prosecution. We shall look at these assertions, but shortly.

> Any person who conspires with another to commit any felony or to do any act in any part of the world which if done in Tanganyika would be a felony and in which is an offence under the laws in force in the place where it is proposed to be done, is guilty of felony....

In other words, conspiracy is an **agreement** between two or more persons to do an unlawful act or a lawful act by unlawful means. It is not necessary that the conspirators, should know each other. It is not even essential that all the conspirators should know all the details of the plans or operations of the conspiracy. But it is sufficient to prove that each conspirator knows that there is in existence or coming into existence of such scheme (see generally: *R.v. Kana* (1)).

Therefore, it is imperative that each conspirator must know the purpose or the aim of the conspiracy and must agree to become one of the members to carry out that unlawful purpose *R. v. Whitchurch* (2).

By its very nature, the offence of conspiracy is committed under acts of high secrecy. Rarely do conspirators meet together and execute a common plan. Under such circumstances, therefore, quite unlikely does direct evidence become available to prove the unlawful agreement. In most cases proof of conspiracy depends on inferences to be drawn from the acts and conduct of the parties. Accordingly, the nature of evidence that is commonly used by the courts to find whether or not the accused(s) committed the offence of conspiracy is purely circumstantial (see general discussion in *Orgadia and Erima v. Uganda* (3) and *R.v. Golkadas Kanji, Kana* (1).

Admittedly, in all the authorities referred to above, and a series of others, the courts have laid down principles upon which circumstantial evidence is to be applicable. One such standard is that the circumstantial evidence must be such that it is incapable of any other explanation but the accused is guilty of the offence charged. The Prosecution is required to prove, through the circumstantial evidence, that there was in fact and in law a "meeting of the minds", under circumstances that can only be described as anything other than the existence of an unlawful agreement to commit a crime. And such evidence must point irresistibly

to the accused's involvement in the commission of the offence. In other words, circumstantial evidence must be such as to produce moral certainty to the exclusion of every reasonable doubt.

Having set the appropriate legal position in its perspective, the defence submits that in order to arrive at a fair verdict, the court should ask itself the following questions(s):

> .... Did the conduct of the accused provide the circumstantial evidence which the inculpatory facts are incompatible with the innocence of the (accused) and incapable of explanation upon any other hypothesis than that of guilt? *Hassan Fadhili v. R.*. (4).

The defence submitted that the case of the prosecution against the accused is not supported by any tangible evidence other than the nebulous inference to be drawn from the pieces of evidence, which evidence is weakened considerably by contrary evidence from several witnesses, including their own prosecution witnesses. In his submission, the defence counsel, Dr Fauz, has been very insistent on this aspect. He would refer us to the decision of Privy Council, in the case of *Teper v. R.* (5) whereby it was held that:

> It is also necessary before drawing any inference of the accused's guilt from circumstantial evidence that there are no other co-existing circumstances which would weaken or destroy the inference.

In this case, I was assisted by three assessors, including one lady assessor, Zuhura d/o Faraja and two gentlemen assessors, Ibrahim s/o Ally and Bakari s/o Issa. As usual, after the submissions, I did sum up the evidence to them. As usual, I requested them to avail me of their opinion in respect of the guilt or otherwise of the accused. They dutifully did so. Of course, according to the law, their opinion is only advisory, it is not binding to this court. It is interesting to note that the three assessors arrived at a unanimous decision, to the effect that, taking into consideration the evidence produced in court, it was their humble opinion that the accused was not guilty of the offence he was charged with.

Each of the assessors gave reasons for arriving at such a finding. One of the reasons given by the assessors was that the accused did not have knowledge of the plans for the bombing of the U.S. Embassy by the alleged conspirators. They had arrived at this conclusion, explained the assessors, after looking at some of the activities done by the alleged conspirators which totally shut the accused out of the picture. For example, the accused was not involved in the purchase of the Nissan Atlas truck, which transported the bomb to the U.S. Embassy. Neither was he informed about the said purchase. Likewise, the conspirators, secretly had rented the Bungoni Ilala house (whose premises the bomb is believed to have been assembled), without the knowledge of the accused.

The assessors gave other reasons too, including that the accused could have run away, but he did not; he could have hidden or destroyed the exhibits found in his house; but he did not do so, not because the accused decided not to do so, but simply because he had no idea of their existence. And besides, reasoned the assessors, if the accused was really involved in the affair, the F.B.I. would have found out, especially having subjected the accused to their thorough, methodical and lengthy sessions of interrogations. Or at least, the said Khalifan (one of the conspirators now serving a life sentence in U.S. prisons, after a conviction of plea of guilty), could have easily named the accused, as one of the conspirators. But even then the said Khalifani did not implicate the accused in the bombing.

In the course of writing this lengthy judgment, I gave a lot of thought to the reasons given by my lady and gentlemen assessors, for arriving at such a unanimous verdict. On several occasions, I went over and over, again and over again, the evidence adduced by both sides and the submissions made by the learned counsel. I did, in the preceding paragraphs, summarize the main points relied upon by the prosecution. The defence, as expected of them, likewise presented quite a few issues with an attempt to weaken the prosecution's case. It is time we looked at these claims before we pronounce our verdict.

One area which was substantially exploited by the prosecution, as we have seen, is the friendship and the association of the accused with some of the alleged conspirators, especially the said "Ahmed Mfupi" (Ahmed Khalifani Ghailan) and Khalifani Hamisi Mohamed and one Fahadi Mohamed. The accused, as we have demonstrated, does not deny his acquaintance with these alleged conspirators. Indeed it was by virtue of this long time friendship of theirs that led to some of them visiting him and on many occasions putting up at his residence, having free accommodation and meals. Indeed, the accused admits the fact that the said three, "Ahmed Mfupi", Khalifani and Fahad, were in Dar es Salaam, at about the time of the bombing. However, the accused contended, unlike the previous visits, this time these "friends" of his were not residing at his house, Amani Street No. 15, since they had rented their own house, at Ubungo.

But the Prosecution would insist that the accused knew the activities of these conspirators and in-fact, the accused did actively participate in the initial stages of the preparations (construction) of the bomb. Submitting on this, Mr Mulokozi, a Senior State Attorney, asserted that, first, it was the accused who introduced the two Ahmeds to the mechanics, Abel Shayo (PW2) and Felix Likule (PW3), for the purpose of effecting alterations in the Nissan Pickup and the purchase of the gas cylinders. Secondly, it was the accused who sheltered, fed and introduced them to various areas and places around and about in Dar es Salaam.

Of course, some of these allegations and inferences by the Prosecution have been denied and disputed by the defence. Dr Fauz, for the Defence, submitted and contends that, the accused did not know of the clandestine activities of his friends (the alleged conspirators), neither was he involved in the preparations of the bomb, nor the actual plans for bombing of the US Embassy. Dr Fauz maintains that all that took place was the work done by people whom the accused had trusted, helped and considered as friends, or friends of his friends.

Dr Fauz further maintains that most of the activities and conduct of the alleged conspirators (friends of the accused) sufficiently

demonstrate the fact that the accused was not meant to know or to be made a member of the heinous plot designed by the alleged conspirators to bomb the US Embassy. Citing some of these clandestine activities, Dr Fauz maintains that, the evidence on record clearly reveals that the accused was not involved in the following dealings; that the accused did not know some of the alleged conspirators, especially the said "Ahmed Mrefu"; the accused was not involved in the purchase of the Nissan Atlas truck; neither was he involved in the making of the alterations in the truck nor the buying of the gas cylinders; that the accused was neither aware of the leasing of the Ilala Bungoni house, nor of the tenancy arrangements that followed subsequent to the secret departure of the alleged conspirators.

The evidence on record reveals that it was not the accused who introduced the two Ahmeds to the technicians (PW2, PW3, PW4, PW8 and PW9), contrary to the prosecution's assertions. PW2 testified to the effect that, when the accused was in Dubai his shopkeeper, Ahmed Khalifan Ghailan (Ahmedi Mfupi), visited him (PW2) at his garage. He had wanted to purchase gas cylinders. But because PW2 had none, PW2 then referred the said Ahmed to PW3. When cross-examined by Dr Fauz as to whether the said Ahmedi Mfupi went to his garage with the accused, PW2 replied in the negative: "... I did not see the accused with the said Ahmed!"

PW3 testified, on cross - examination, that he did not know the accused: "... I do not know the accused. I do not know his name ... The guys who purchased the gas cylinders from me, I do not see them here ..."

The accused was not amongst them ... "Even PW4, Fred Shayo, testified to the effect that - he did know the accused, neither was he amongst the "Arab youths" who had purchased gas cylinders from him.

The evidence on record further reveals that the accused was not involved in the purchase of the Nissan Atlas truck. PW5, Mohamedi Sultan Said, the owner of the Nissan Atlas truck, testified that he

sold the truck to two persons. "... They were two, of Arabic origin... their names were Ahmed... Both of them had the same surname ..." On cross-examination, PW5 testified to the effect that he did not know the accused "... I do not know the accused. He is not one amongst the two Ahmeds who bought the vehicle."

The Nissan truck was sold through the agency of one Sleyyum, PW15. He did corroborate what PW5 testified. But PW15 further testified that after the two Ahmeds had purchased the Nissan truck, they had to service it. He, PW15, did buy a new alternator for the truck, and later sent them to Kidongo Chekundu garage. Therefore, it was PW15 who did introduce the Ahmeds to the mechanic Anold Kessy, PW8. But PW15, testified even further, on cross-examination, to the effect that "Ahmed Mfupi" warned him (PW15) not to inform the accused that he had purchased a vehicle. "... All this time I did not see the accused. But one "Ahmed Mfupi" told me that he did not want Rashid (the accused) to know that he (Ahmed) had bought a vehicle ..."

It is on evidence that the accused was not involved in the carrying out the service on the truck. These were effected by PW8, who testified that the service negotiations were conducted between him and PW15, on the first day. But on the second and the third day, they were made by "Ahmed Mrefu". "... for three days I serviced the vehicle, I did not see the accused. The accused was not the "Arab owner "of the vehicle.

The alterations in the truck were partly made by PW9, Frank Marley and PW10, Julius Kisingo. PW9 testified that he did fix flat bars and angles (in order to fabricate metal shelves) to the interior of the body of the truck. The flat bars had been brought to him by PW10. Besides, PW9 testified that he did not see the accused, nor was the accused with the Arab owner of the vehicle. PW10 removed the compressor from the truck and fixed two batteries seats. It was PW10 and one individual, a Msambaa, who purchased the flat bars. PW10 further testified that the instructions for these works were

provided by the Arab owner of the truck (but not the accused). He even testified that when he (PW10) inquired from this Arab owner as to what use would the truck be put (having made such odd alterations), he was informed by the "Arab owner" that - "...the truck was for the purpose of transporting different types of fish in each of the compartments ... of course, the Arab owner of the now re-altered truck, had lied to PW10. But he had lied to PW10 previously, when he did tell him that he "... was from Tanga Mwambao. And that he deals in fish business." After the job on the truck was done, both PW10 and the Arab owner had driven up to Nyamwezi/Uhuru Road, "... and that was the last time I saw the said Arab and the vehicle ..." testified PW10.

Carrying further the issue of the accused's acquaintance with his alleged Arab conspirators, Dr Fauz submitted that these "Arab friends" of the accused stopped visiting him a few weeks before the bombing. And this was the time when they rented a house at Magomeni (a fact they had told the accused). However, later on, they moved to the house at Ilala Bungoni, about which the accused never knew.

The evidence on vehicle record reveals that DW1, Mohamed Suleiman, rented a house to one of the said conspirators, Khalifan Khamisi, at Ilala Bungoni. "... on 15 June 1998, I did rent the said house to some people, one Khalifan ... and another person, whom I do not recall. They were two..." DW1 further testified that at least the accused was not one amongst these tenants: "...The accused person in the dock is neither the said Khalifan nor the other guy. I have seen the accused, ever..."

It is also "recorded that the accused was not involved in the arrangements of maintaining the Ilala house, after the sudden vacant possession of the same by the said Khalifan and the others. DW3, Ahmed Muslim testified to the effect that Khalifan had approached him with the intention of, first showing him the Ilala Bungoni House, secondly, with a request that, if he, DW3, could be willing to look for tenants for the house, since his friends (Khalifan) were about to leave."... He (Khalifan) wanted me to go to Ilala to show me the

(commission) for his involvement in their bombing affairs, as it seemed to be intimated by the prosecution. However, it would be much safer and more credible to entertain a holding that the vehicle was left to the accused in the normal way as it was used to be done by the said Khalifan, for the purpose of safe custody, with an implied permission that the accused could go on using it in his business activities. That is the finding of this court.

Another aspects of evidence produced by the prosecution to be considered is the presence of physical explosive materials found in the accused's house and shop, together with remnants of explosive materials found on some of his clothings. The following physical exhibits were found in the room, which was normally used by the said "Ahmed Mfupi": an electric detonator, glass beakers, and aluminium foil paper, dry cell batteries and carbon brushes. The prosecution maintains that these physical materials, can be used to prepare a home made bomb. Mr Mulokozi would further contend that some of these gadgets are highly and inherently dangerous, likely to explode on slightest careless handling, and yet they were safely kept in the house of the accused person. Mulokozi would ask himself a question - whether it could be said that this dangerous material was left unattended in the accused's house or that the accused did not know that there was something of this nature left in his house!

But the accused person has denied knowledge of the existence of these materials, which were kept in the room used to be occupied by "Ahmed Mfupi". The question is - can it be inferred from the facts and evidence on record that the accused knew or should have known the presence of these items in "Ahmed Mfupi's" room? I find it is very difficult to make such an inference. My hesitation is founded on the fact that, so far we have no concrete evidence to link the knowledge of the accused with the activities of "Ahmed Mfupi". These items, together with some documentary exhibits (a diary, an agreement for purchase of the motor vehicle Suzuki,"Ahmed's" photographs and a mobile phone customer application form), were found in a cupboard, jointly shared by "Ahmedi Mfupi" and Mwalimu

Kassim (PW7), in the room normally used by the said "Ahmed Mfupi". If the accused was not aware of his (their) clandestine activities, likewise, there should be no justification to make an inference that the accused knew or should have known or should have even contemplated the idea that his friends would be "hiding" dangerous items in the room.

How about the remains of explosive materials on some of the clothes of the accused? The prosecution, of course, would like this court to draw a conclusion that the explosive remains on the accused's clothes (Exhibit P4(b) and 4(c) collectively), found their way to the clothes during the preparation of the bomb just like the clothes of the alleged conspirator, "Ahmed Mfupi" (Exhibit 1 P4(a) (- a pair of blue jeans and a polo shirt):

Dr Fauz contends that the remains on the accused clothing could be explained by the fact that there was not much care taken during the search conducted in the first evening at the accused's house. He would maintain that the search was chaotic and hazardous, as a result thereof, all the clothes, those belonging to the accused and the ones belonging to "Ahmed Mfupi" and those of Kasim (PW7), were thrown on the floor in a single heap, until the next day, when they were properly identified and then sorted out by the accused. Dr Fauz's contentions are that, according to the FBI Agent, Ronald Kelly (PW13), there was a possibility that the mixing up of the clothes could have contaminated all of them, including those of the accused. Besides, the remains on the clothes were of small quantity!

However, Mr Mulokozi would still insist that PW13 had testified to the effect that the search was properly conducted and the clothes were carefully collected; that they were taken from different rooms separately with special care and then packed in different plastic bags and then sealed. There was no possibility, therefore, argues Mr Mulokozi, that one heap of clothes could have contaminated the other.

The stand-off between Mr Mulokozi and Dr Fauz can only be resolved by the evidence on record. In the first place, when the first

search was made, August 26th 1998, during the evening hours, the accused was not present. He was yet to be arrested, the police were then looking for him. Secondly, even the said FBI Agent, Robert Kelly, was not present during this search. The fact is, PW13 was not in Tanzania during the material time. Indeed, he was in the FBI Labs in Washington D.C. His testimony was to the effect that sometime in September, 1998, he received several sealed plastic bags containing the clothes in question and other items purportedly collected from the scene of crime, for analysis. PW13 was cross-examined as to how the clothes were collected, handled and subsequently packed in the plastic bags. In reply he did admit that he had no first hand information regarding those issues: "... I do not have the first hand knowledge how they were handled before they were brought for analysis I do not know who sealed them .... The investigators on the scene were the ones who handled them I do not re-call how each plastic bag was sealed". Clearly, PW13 cannot, in law, testify on the facts that took place during the search. Neither did PW13 testify the way Mr Mulokozi would have us believe. Besides, neither did FBI Agent Gregory Carl (PW12) testify on anything to do with the search of the house of the accused or on the collection and handling of the clothes.

However, ASP Valentino (PW11) did testify on the searches conducted in the accused's house. The collection in respect of the clothes was done during the second search. His testimony on this aspect is to the effect that: "...the whole house was searched.. the search revealed the following:.... (c) clothing articles, from the room of Rashid (accused), including - 36 shirts, 25 trousers, 1 T-shirt and 1 jeans... The accused did admit that the shirts and the trousers belongs to him. But the T-shirt and the jeans belonged to Ahmed Ghailano ..." PW11 further testified that "...in respect of the clothes and the other items identified by the FBI, they were carefully sealed...."

But rather strangely the testimony of the housemaid, Amina Rashid (PW17), seems to be at variance with that of PW11. PW17 said that "The police searched the room of the accused. They broke the wardrobe.

They took clothes from it. The clothes were on the floor. They did search them. The Police were in uniform. The Police did not put on gloves. I did not see them ....After the search, the clothes were lamped together ....When I left in the morning of the search, I left them like that ...." PW17 went on testifying that ".... As a house maid, I used to wash the clothes of the accused, Ahmed and Mwalimu Kassim used to wash them together and press (iron) them ...."

DW2, one Issa, who witnessed the first search, testified to the effect that the Police wanted him to witness the search. He would recall that "...they broke into his (accused's) room. The whole house was searched. The Police did break into the cupboards as well .... The Police searched about four rooms The Police also searched some clothes .... They were not dressed in special gear.... They did not put on hand gloves...." But when DW2 was cross-examined by the Senior State Attorney, Mulokozi, DW2 testified that he was not sure as to whether the Police and the FBI put on special gear or wore gloves. "....I do not recall whether they were dressed in special gear. I do not recall that, but they were not dressed in gloves.... "

Testifying on this issue, the accused maintained that when the second search was conducted in the house (after he had reported to the Police the next day), he could not witness the search in each room, but at least he found his clothes in his room, "....heaped in one place. They had been removed from the cupboard. Also the clothes of the other persons, Ahmed and Kassim, were also heaped in one place. I did identify my clothes and those of Ahmed and those of Kassim. It is me who sorted them out. They were mixed up .... The cupboard had been emptied. The cupboard doors had been broken ...."

Definitely, the testimony outlined on the preceeding paragraphs clearly indicates the existence of some sort of confusion surrounding the handling of the clothes, especially during the first search, which was conducted during the night. To me the evidence does not seem to support the prosecution's' assertion that the clothes were taken

from different rooms with special care and then packed in different plastic bags and then sealed. But the opposite counter assertions are more plausible, that the search during that evening was definitely conducted in a hurried way, with plenty of expectation to reveal some of the materials connected with the bombing. And, naturally, in such a situation, one cannot be too careful!

The amount of explosive remains found on the accused's clothes was quite small. FBI Agent Kelly (PW13) told us that, when he testified that "..Explosive residue can be transferred to another item either by direct contact or by contact with other item with explosive residue: Example, a cloth can contact explosive residue with other items... We did not test the quantity of residue. But they were quite small...."

Dr Fauz posed a question to us, which we must respond to: Can it be safely said that the remnants of explosives found in the clothes, which the FBI Agent (PW13) said were of small quantity, meant that the accused was involved in the preparations of the, bomb? Isn't it possible that the contamination resulted from the mix-up done on the first day of the search?

The most logical response to the question is that, taking into consideration the evidence on record, coupled with the scant amount of explosives remains found on the clothes of the accused, it would be very reckless of us to make a firm finding that the accused was actively involved in the preparations of the bomb. At least probable possibilities have been advanced-as to how the contamination might have been brought about onto the accused's clothes - either through the use of the Samurai Suzuki (which was also contaminated with the explosives residue), but more probably so, by the mixing up of the clothes together, those of the accused and those of "Ahmed Mfupi") in one heap, on the first search of the house, during the night.

We now move to the presence of the refrigerator compressor in the shop of the accused. The evidence on record is to the effect that the compressor that was removed from the Nissan Atlas truck was later taken by "Ahmed Mfupi" to the shop of the accused for sale.

The compressor was not sold, however, since the Police later detained it, after unsuccessful attempts to dispose of it by PW16. The Prosecution's theory is that it should be taken that the accused knew that the compressor was the one removed from the Nissan Atlas truck, and therefore, he must have known that the truck was being used for the "housing" of the bomb.

But the defence holds to the contrary. They contend that, firstly, when the compressor was sent to the shop, the accused was not present. And when he was shown the compressor, he was astonished, and wondered whether the same could be sold at all. Dr Fauz argues that this should be taken to mean that the accused had no idea of the item he was looking at, or where it came from, what it was for and whether it was even saleable.

This aspect should not detain us more than necessary. It is a fact that when the compressor was sent to the accused's shop, by "Ahmed Mfupi", the accused was not present. PW16, Salim Issa Mohamedi, testified that ".... When the compressor was brought to the shop, the accused did not know. But he (Ahmed "Mfupi") told me that, I should tell the accused...."

The genuine surprise shown by the accused when he saw the compressor simply does not sound as if the accused knew beforehand that the compressor came from the Nissan Atlas truck. Neither can the attempted disposal of it be associated by the accused, since when this attempt was made, the accused was already in custody, under high security, by both the Police and the FBI. It was almost impossible to communicate with PW16.

The prosecution has also argued, quite extensively, against the conduct of the accused, when he was required to report to his house on the first day of contact. The prosecution contends that the accused was hiding away from the Police Officers who had gone to his house. The inference is that the accused was suffering from guilty conscience since he had participated in the bombing. The argument is further extended that the accused's hiding was meant to prevent the possibility

of a search being conducted at his house. And that he was afraid of the search because he knew what could be found in the house. The prosecution moves this court to dismiss the accused's story that he was hiding from T.R.A. Officers from Tanga, who were looking for him for an alleged customs duty tax evasion.

But the accused would insist on his story, that his failure to return home during the evening of the first search was due to his main fear that the persons who were looking for him might have been from TRA Tanga. Then, Dr Fauz would argue, soon after the accused had been satisfied that those looking for him were not TRA Officials but real Police Officers and FBI Agents, he immediately reported to the Police Headquarters.

You would recall that the accused was arrested about three weeks after the bombing incident. It is true that when he was first contacted by the Police, requiring him to report at his house for the purpose of searching, he did not do so, despite the efforts of ASP Valentino (PW11) wishing him to do so. The accused has given some explanation for this attitude and behaviour. The question is - was he hiding away from the Police and the F.B.I. or the TRA Officials from Tanga?

At the maternal time, July 1998, the TRA Officials, Tanga, were looking for the accused, for the purpose of answering charges in relation to customs tax evasions. The accused, in assistance of his Clearing Agent, Add Masony (DW4), had removed a customs bounded Mitsubish Canter truck from the Tanga Port without the proper authorisation of the TRA Officials. DW4 testified that "... the TRA impounded the vehicle until the goods in the vehicle had been cleared as well .... But before the TRA could capture the vehicle, the said Rashid (accused) had taken the motor vehicle, plus the goods in the vehicle.... Rashid took both the motor vehicle and the goods in it to Dar es Salaam ... the TRA did not arrest Rashid. Later on, I met the T.R.A. Officials and gave them the phone number of Rashid...." What took place thereafter, DW4 would not know, so he testified.

Which of the versions is more plausible! The accused's story or that of the prosecution? I would go along with the accused's story! It is more probable to accept the fact that the accused was hiding away from the Tanga TRA Officers rather than the Police, following his subsequent conduct, - the next day. On his own, he reported to the Police Headquarters and the FBI. It would not make much sense to assume that the accused was afraid of the search being conducted at his house for fear of what might be found in it, for the accused could have disposed of whatever he might have been afraid of, well in advance, since he had plenty of time to do so. Besides, during the period the Police were looking for him (less than twenty four hours) there is no evidence to show that the accused did or even attempted to hide or remove any article from his house or his shop. This would further indicate that the accused had no knowledge of the existence of the materials (exhibits) found in his house.

The Prosecutions has also attacked the accused's reaction to the news related to the bombing incident. They alleged that the manner the accused received the news proves that he knew something like that was going to take place. On the morning of the day that the bombing took place, the accused had returned home at about 10:30 a.m., and had instructed his house maid (PW17) to switch on the television, and had watched the activities taking place at the U.S. Embassy. The prosecution asked the following question, for which we have to respond to: One has got to querry as to what was so special to push him to watch television at his house! It was unusual, of him, contends the prosecution, to come back home at such a time to watch television! The accused could have watched it somewhere else around his business area. Mr Mulokozi would insist that for the accused to come back home, at that precise timing; only to watch television and go back to his business just after the bombing incident must have been premeditated. Mr Mulokozi would require this court to draw an inference that the accused went home to see and satisfy himself how successful their mission had been.

The accused gave some explanations as to why he had gone back home that morning. He testified that .... "I went home to check my brother, Salum .... He had come from Zanzibar to get a VISA from the U.S.A. Embassy. When I got home, he was not there.... I saw him at 12:00 noon ... by that time he had already gone to the U.S.A. Embassy. When I got home I met my housemaid, Amina. We also talked of the news. We also watched the television ...."

Well! What can we say about this! Will it be a reasonable inference that the accused knew of the bombing and that he had gone home to watch the bombing news as they unfolded on the television screen, thereby having the gratification for the successful completion of their mission? If we answer that question in the positive, we should also satisfy ourselves that the accused must had all along known about the bombing activities. However, such a finding has had no tangible basis so far. That being the case, therefore, it would be more logical to accept the accused's explanation that, perhaps he might have gone back home to check on his brother, whom he was expecting from Zanzibar. Having accepted that to be a good explanation, it would equally be fair to reach a conclusion that there was nothing wrong for the accused to watch the bombing incident news on the T.V.set, at his own house, together with his housemaid. After all, that was the "breaking news" of the "century", since nothing like that had ever taken place in Tanzania. No one could have afforded to miss that kind of news! Never!

Having traversed the main areas of controversy, still Dr Fauz would further submit that the accused was interrogated by F.B.I and the Tanzania Police for several days and for long periods, about his alleged involvement in the bombing. The contention is that the F.B.I would have arrested him and taken him to the U.S. for trial had they been convinced that he was in any way involved in the conspiracy. Dr Fauz still maintained that even after arresting Khalfan Khamis Mohamed, who had confessed to the crime and thereafter convicted, the F.B.I. did not find it necessary or essential to have the accused sent to U.S for trial or for some other legal action. Having failed to

hold the accused responsible for any of the bombing activities, the F.B.I. left the fate of the accused into the hands of the Tanzania Police, who then decided to reduce the initial murder charges into a single count of conspiracy to murder! Dr Fauz wondered whether it was conceivable for the accused to be charged with this offence, when people actually died, eleven of them, as a result of the alleged conspiracy!

When the Senior State Attorney, Mr Mulokozi, was winding up him submissions, he reiterated the prosecution's case that there was sufficient evidence to connect the accused with the bombing of the U.S. Embassy in Tanzania. However, as I did remark earlier on, my gentlemen and lady assessors were not convinced with the evidence adduced to make them return a verdict of "guilty", instead, however, they unanimously find the accused "not guilty" of the offence of conspiracy.

In reaching their verdict, my gentlemen and lady assessors must have applied the cardinal principle of evidence embodied in section 114 (1) of the Evidence Act 1967, which states that:

> any person shall be entitled to be acquitted of the offence charged if the court is satisfied that the evidence produced by either the prosecution or the defence creates a reasonable doubt as to the guilt of the accused person in respect of that offence.

The question before this court is this: Can it be said, from the totality of the evidence produced in court, that there is no doubt at all that the accused was one of the conspirators in the bombing? Isn't there a possibility that he might not have been involved at all? To answer this question, perhaps I should remind you of the principle which has to be satisfied before circumstantial evidence forms a basis of conviction. The principle was expounded in the case of *Ndunguru v. R.* (6), where it was stated that:

> ... in order for circumstantial evidence to form the basis of a conviction, it had to point to the guilty of accused, exclude any other reasonable hypothesis than that of guilty as well as exclude co-existing circumstance which would tend to weaken or destroy such an inference.

Let us now go back to the question that was posed by the defence at the beginning of this analysis, the question was - "... Did the conduct of the accused provide the circumstantial evidence which the inculpatory facts are incompatible with the innocence of the accused and incapable of explanation upon any other hypothesis than that of guilt?"

I have no hesitation to agree with my gentlemen and lady assessors, that upon the evidence adduced, I can hardly find the accused guilty of the offence of conspiracy. The evidence; certainly, creates a heavy cloud of doubt, thus falling far short of the criteria established by law. A lot of suspicion, for sure, has been created in relation to the involvement of the accused in the bombing incident. But then, suspicion alone cannot be a basis of conviction. That was the decision in the case of *Ongondia and Erima v. Uganda* (3), in which it was stated that:

> ... however, grave may the suspicion that the [second appellant] was acting in concert with [the first appellant], we do not consider that this was evidence from which it could properly be inferred that he was a part to the conspiracy.

The evidence on record provides more than one plausible explanations for the accused's conduct wherever suspicious evidence is available. There is ample evidence from both the prosecution witnesses and defence witnesses to show that the accused, though he knew most of the alleged conspirators suspected for the bombing of the U.S. Embassy, yet he himself had taken no part in the alleged conspiracy. Indeed, the evidence simply casts too much doubt in the prosecution's case only to leave a lot of substantial questions unanswered. These would include questions like, why didn't the alleged conspirators, all of fleeing whom were non-residents of Dar es Salaam, while the accused was, involve him in the buying of the Nissan Atlas truck? Or in the making of the alterations thereto? Or in buying the gas cylinders? Or renting of the Ilala Bungoni house? Or arrangements for the re-renting the said house? Or in the disposal of the flour mill? The alleged conspirators simply decided to use other people

in all these activities, but not the accused person. The question still remains, if the accused was a fellow conspirator, why not involve him?

Again, another question nagging us is this, why didn't the accused, who had a passport and all the necessary means and time of fleeing the country, leave the country, even after twenty days after the bombing incident had gone by, and yet the accused willfully surrendered himself to the police on 25th August, 1998? Indeed, the accused could have disappeared just like his alleged conspirators, some of whom are still at large up to-date.

There are a number of other unresolved questions, as outlined and discussed in the judgment whose effect is to create circumstances of the accused's guilt. Evidence on record abundantly suggests and demonstrates that the accused was used by the very people he trusted, helped and considered as friends, or friends of his friends, to provide them with safe haven, whereby they could camouflage their sinister activities without creating any suspicion. That is typical of conspirators and much more so, the terrorists. The alleged conspirators (terrorists) kept the accused away from their activities. The accused was not brought into the plan nor was he supposed to know anything about their bombing plot.

The evidence on record demonstrates that although the accused and some of the alleged conspirators were very close, the three of them however, began to distance themselves from him as the "bombing day" approached. Their regular visits gradually become occasional, then they stopped visiting the accused's residence, just a few days before the bombing. And then the bombing, on that fateful, unforgettable morning of 7 August 1998, the alleged conspirators had virtually disappeared, while the accused, quite unaware of the events, completely in the dark, was left "high and dry" to face the consequences of the bombing of the U.S. Embassy. He was betrayed by the very people he had trusted and called "friends".

I am satisfied, just like my gentlemen and lady assessors were, that the accused person was not aware of the bombing activities of the alleged conspirators and therefore, there is no evidence from which it can properly be inferred that he was a party to the conspiracy of the bombing of the U.S. Embassy. Accordingly, I find him not guilty! He is, therefore, acquitted.

AFRITAINER (T) LIMITED *v.* ILULA COMPANY LTD AND RELIANCE INSURANCE (T) LTD

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM

COMMERCIAL CASE No. 247 OF 2002

Insurance – Doctrine of utmost good faith (uberrimae fidei) – Diclosure of material facts – Misrepresentation or non-disclosure of material facts – Consequences of failure to disclose material facts.

In order to get an advance from the plaintiff the first defendant was required to provide adequate and acceptable collateral security. The first defendant, by misrepresentation, got a performance bond that was duly executed by the second defendant, an insurance company. Upon failure of the first defendant to perform in accordance with the contract between the plaintiff and the said first defendant, the plaintiff sued both the first and second defendants on the performance bond seeking to recover the advance made to the first defendant. The second defendant argued that the performance bond was executed because the first defendant did not disclose all material facts as required under the insurance principle of *uberrimae fidei*. The High Court was satisfied, on the evidence, that the performance bond was executed on the basis of misrepresentation made by the first defendant.

Held: (i) The first defendant, the insured, was under an obligation to disclose to the insurance company the second defendant openly and in good faith, all the relevant information as asked for in the relevant application forms for performance bond;

(ii) Where it is subsequently discovered that the insured had materially misrepresented facts the insurance company may repudiate the performance board;

(iii) Since the performance bond was sought and obtained through misrepresentation, the principle of *uberrimae fidei* was breached by the first defendant; as such the said bond was unenforceable between the two defendants and the second defendant was discharged from any liability in respect of the suit;

(iv) The second defendant may repudiate the performance bond.

Order accordingly

Statutory provision referred to:

(1) Civil Procedure Code, Order XIV, rule 5

Mr M. Bomani for the Plaintiff

Mr Rutashoborwa for the first defendant

Mr D. Kesaria for the second defendant

JUDGMENT

(Dated 10 January 2005)

Dr Bwana, J.: All the parties in this case are limited liability companies carrying on their business in Tanzania. The plaintiff carries on the business of financing agricultural and fisheries activities. The first defendant is said to be carrying on the business of ginned cotton at Makuyuni, Mwanza. The second defendant, on its part, carries on insurance business.

The following facts are not disputed by the first defendant. That the plaintiff advanced to the first defendant the sum of TZS. 177 787 000 on condition that the said defendant procures and supplies a total of TZS. 240 252-70 kilograms of ginned cotton to the said

plaintiff on terms agreed upon by both parties. Part of the terms was that the first defendant provides adequate and acceptable collateral security. It is not in dispute that on the very day, that is 15 October 2001, the first defendant provided to the plaintiff a performance bond duly executed by the second defendant. The performance bond acted as security guaranteeing the payment of the TZS. 177 787 000.

Joseph Michael, DW1, the Managing Director of the defendant did admit the following in his evidence. I quote him *in extenso*:

> for the (performance) bond I paid them (the second defendant)TZS. 5.3 million. The second defendant also took the title deed of my house. The house is on plot number 30 Block X, Makuyuni Mwanza...I have not delivered cotton to the Plaintiff yet...I was paid cash TZS.177million by them (the Plaintiff). I carried the money with me to Mwanza. I drove to Mwanza...I gave the plaintiff a receipt Exhibit P3 – on the very day they gave me 177 million... what I stated in my Written Statement of Defence is correct and I admit the contents of paragraph 4, 5 and 6 of my Written Statement of Defence ... I admit I took the shs. 177 million and issued a receipt to that effect .... therefore I got the 177 million but I failed to deliver the ginned second defendant) has failed to pay the plaintiff. However, the plaintiff is supposed to claim that money from Reliance, not me .... When I took the money, I sincerely intended to deliver the cotton and the Plaintiff believed so ... It is indeed true that I received the 177 million cash and I took it and drove to Mwanza with that money. Up to now I have not delivered the cotton but the plaintiff should claim it from the guarantor (second defendant), the insurance company because it agreed and I paid a premium for it ...

In so far as the second defendant is concerned, it admits to have executed the performance bond, but that, the said performance bond was procured and obtained through misrepresentation, fraud and non disclosure of materials facts by the first defendant and the plaintiff, either singularly or jointly. The plaintiff called only one PW, one Kato John, its Finance Manager. The first defendant called – as stated

above – Joseph Michael – DW1 its Managing Director. The second defendant called 3 defence witnesses namely Robert Lugachwa, DW2, a loss assessor; Emmanuel Kakwezi, DW3- an Assistant Registrar of Companies, and Lingiasamy Seenivasagiam, DW4, a Deputy General Manager.

The following issues were framed for the determination of this court:

1. Did the Plaintiff and first defendant enter into a contract of supply on 15 October 2001?
2. Was the said contract legally enforceable?
3. Did the Plaintiff pay to the first defendant the sum of TZS. 177 million on 15 October 2001?
4. Did the second defendant issue performance bond to the first defendant on 15 October 2001?
5. Was the said performance bond sought and obtained lawfully by the first defendant from the second defendant?
6. Whether or not the said performance bond is legally enforceable.
7. Is the second defendant entitled to repudiate liability under the performance bond?
8. What reliefs are the parties entitled to?

In his final submission Mr Bomani requested this court to reframe issue No.7 because he does not "see how we could have agreed to an issue...that would have been framed differently". That submission by Mr Bomani attracted a vehement opposition from Mr Kesaria. He submits that since both counsel had agreed to the present contents of issue number 7, there is no need to amend it at this late stage of the proceedings. I am aware of the provisions of Order XIV, rule 5 of the CPC which empower this court (at any time before passing of a decree) to amend or reframe the issues including framing of new ones if it thinks, necessary for the determination of the case. The court is also empowered (by virtue of the same provisions) to

strike out any issues that appear to it to be wrongly framed or introduced. In the present case such a need does not arise. Issue number 7, as framed, is proper and has been covered by evidence currently before me. Therefore I see no need for its amendment.

I will now discuss the issues. I start by considering issues 1, 2 and 3 together. My views on all the three are that the response is in the affirmative. It is not in dispute that the first defendant did receive the sum of TZS. 177 787 000 from the plaintiff. That is admitted in his Written Statement of Defence. That parties are bound by their pleadings is a well settled principle of law. Further, as DW1's evidence quoted *in extenso* above shows, it is clear that he received the money on behalf of the first defendant. A payment voucher of Afritainer (T) Ltd dated 15 October 2001 (Exhibit P2) shows that Michael Joseph received a "Loan A/C of Ilula Company Ltd - the sum of TZS. 177 787 000 being funds advanced for purchasing and supplying cotton lint as per contract". Michael Joseph signed Exhibit P2 in his capacity as "Receiver". He signed as Managing Director of Ilula Company Ltd. Other signatories on Exhibits P2 include an Accountant and "authorizing signature". That payment was followed by Ilula's "official receipts" number 1026 dated 18 October 2001 (Exhibit P3). It acknowledges the following:

> Received from Afritainer (T) Ltd the sum of shs. Millioni mia moja na sabini laki saba semanini na saba elfu tu ... in respect ... advansi kununua pamba TZS. 177 787 000 cash.

It is signed by Michael Joseph. The above considered, there is no need for further evidence required to prove the issuing (on the part of the plaintiff) and the receiving (on the part of the first defendant) of the said sum, technicalities submitted, notwithstanding. The offer and acceptance of the sum of TZS. 177 million constituted a legally binding contract, therefore, enforceable. There was a minor issue raised in submissions as to whether DW1 received the money on 15 October 2001 as pleaded or 18 october 2001 as shown in Exhibit P3. This DW1 seems to mix up the dates. However I consider that

to be a storm in a tea cup. The fundamental issue and which is not controverted is that the plaintiff gave TZS. 177 million and DW1 received it on behalf of the first defendant. Therefore issues 1 to 3 are answered in the affirmative.

I will now consider issue number 4 which concerns the relationship between the defendants. It is not in dispute that the second defendant did issue the performance bond (Exhibit P4) to the first defendant after the latter had complied with all the procedural requirements. DW4 states in his evidence thus:

> I am aware that the second defendant issued a performance bond to the defendant. Our customer therefore was Ilula, not the plaintiff...according to this bond, we were the surety. We issued the bond because the first defendant asked for it as a guarantee to supply to the plaintiff. We issued the bond ... it was merely based on the proposals forwarded by the first defendant. When we issued the performance bond, we were aware of the contract between the plaintiff and the first defendant and the first defendant paid a premium of TZS. 5 million. Therefore the performance bond was properly issued and anybody relying on it has a genuine claim ...

I need not go further on this issue. The foregoing is a clear affirmation that the second defendant issued a performance bond, Exhibit P4. It is dated 15 October 2001.

Issues 5, 6 and 7 are to be considered together. It is proper to state at the outset that a performance bond is contract of insurance. One of the basic principles governing such contracts is the "*uberrimae fidei*". The insured (the first defendant herein) was therefore under obligation to disclose (in his application) to the second defendant openly and in good faith, concealing nothing, all the relevant information as asked for in the relevant application forms. It is equally well settled that where it is subsequently discovered that the insured had materially misrepresented himself or concealed some facts, then such misrepresentation or concealment is fatal. That is what is claimed here by DWs 2, 3 and 4.

According to DW2, if an insurance company discovers an irregularity, it may repudiate the agreement or raise the insurance cover. If a premium has already been paid but then the insurance company discovers the fraud or other irregularity, it can cancel the agreement.

According to DW4, DW1 did not give the correct information concerning the first defendant while filling the proposal forms. It was false because **First,** both the plaintiff and first defendant did not possess licence for purchase or sale of cotton as provided by law. **Second,** that the agreement between the plaintiff and first defendant is not legal in the sense that directors of the plaintiff who signed the Agreement were not authorized to enter such Agreement. **Third,** the information contained in the proposal form and which led the second defendant to issue a performance bond later on was found out to be false.

I do agree with both DW2 and DW4. The following evidence needs to be considered. First, according to the information contained in the proposal forms, it is alleged that the first defendant has been engaged in the business of cotton lint since 1996 while the truth (as per DW3 and Exhibits D2, and D3) Ilula Company Ltd came into existence only on 25 August 1999. Second, the first defendant also stated in the proposal form that it was licenced to deal in cotton lint whereas it was not. Therefore the two intentional mispresentations were aimed at inducing the second defendant to issue the performance bond, I consider the said mispresentations to be fatal to the enforcement of the bond. Further, under Exhibit P4, it was a condition that the second defendant be notified in writing of any non performance or alterations or amendment to the execution. There is no evidence suggesting that the second defendant was notified when first defendant failed to deliver the cotton lint. There is correspondence between the plaintiff and first defendant but the said correspondence is not copied to the second defendant.

Therefore all the above considered, I am of the view that the performance bond was not sought and obtained lawfully. It was sought and obtained through misrepresentation. The principle of *uberrimae fidei* was breached by the first defendant. As such the said bond is unenforceable between the two defendants. The second defendant may repudiate it.

In conclusion, I enter judgment in favour of the plaintiff against the first defendant and order the following:

1. The first defendant pay to the plaintiff the sum of TZS.177 787 000 being the sum advanced.
2. The above to carry an interest at the court's rate of 7% per annum from the date hereof till payment in full.
3. Costs of this suit.

The second defendant is discharged from any liability in respect of this suit. No costs awarded to it, however. In view of the above finding. I find any further discussion as to the admissibility of Exhibits P3 and P4 to be mere academic.

ERIC SIKUJUA NG'MARYO *v.* JOSEPH SINDE WARIOBA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Munuo, Nsekela, and Msoffe, JJ.A.)

CIVIL APPLICATION No. 10 OF 2001

(From the Ruling and Order of the High Court of Tanzania at Dar es Salaam, Kalegeya, J., dated 9 August 2001, in Miscellaneous Civil Cause No. 155 of 1998)

Taxation – Whether judge of the High Court can tax the fees of an advocate – Advocates (Remuneration and Taxation Costs) Rules 1991.

The applicant had rendered services for Fahari Bottlers Ltd as an advocate. He presented a fee note to the Provisional Liquidator of the company who referred the

demand note to the High Court requesting for directions on certain matters. Whereupon the judge taxed the applicant's bill. Aggrieved, the applicant applied to the Court of Appeal for revision of the decision of the judge. The issue before the court was whether a judge of the High Court has power to tax the fees of an advocate.

Held: (i) Under rule 2 of the Advocates (Remuneration and Taxation Costs) Rules 1991 such taxation powers are conferred on taxing officers and a judge of the High Court is not one of them;

Application granted

Case referred to:

(1) *Pro-Chemie v. Wella A.G.* [1996] T.L.R. 269

Statutory provisions referred to:

(1) Advocates (Remuneration and Taxation Costs) Rules 1991, rules 2 and 5(1)

(2) Appellate Jurisdiction Act 1979, section 4(3)

(3) Court of Appeal Rules 1979, rules 3(2) and 45

Dr Nguluma, for the Appellant

Mr Nyanduga, Ms D'Mello and *Ms. Ringo,* for the Respondent

RULING

(Dated 27 January 2005)

Munuo, J.A.: The applicant brought the present Notice of Motion under the provisions of section 4(3) of the Appellate Jurisdiction Act 1979 as amended by section 2 of the Appellate Jurisdiction (Amendment) Act 1993, and rule 3(2) and 45 of the Court of Appeal Rules 1979, moving the court:

(a) to call and examine the proceedings and Ruling in Miscellaneous Civil Cause Number 155 of 1998 in the High Court of Tanzania at Dar es salaam to satisfy itself as to correctness, legality and propriety of the assumption by Kalegeya, J., to tax the advocate's bill of the applicant;

(b) to satisfy itself as to the correctness, legality and propriety of the learned trial judge giving leave to selected parties to address the court on a taxation matter and subsequently issuing a fully fledged Ruling and Order; and

(c) to satisfy itself on the correctness, legality and propriety of the High Court of Tanzania in avoiding to address itself on the question of its powers to tax the applicant advocate's bill, and instead raising other extraordinary grounds and dismissing it.

Before proceeding to determine the revisional application, we first have to satisfy ourselves that the same is competent. Among other authorities laid down by the court on revision, is the case of *Halais Pro-Chemie v. Wella A.G.* (1) in which the court determined when the court's revisional jurisdiction may be invoked. In that case, and unlike in the present revision, the application was time barred because it was instituted ten months after the delivery of the judgment. The court pronounced the conditions for invoking its revisional jurisdiction and held that:

(i) the court can, on its own motion and at any time, invoke its revisional jurisdiction in respect of proceedings in the High Court;

(ii) except under exceptional circumstances, a party to proceedings in the High Court cannot invoke the revisional jurisdiction of the court as an alternative to the appellate jurisdiction of the court;

(iii) in matters which are not appellable with or without leave, a party to the proceeding in the High Court can invoke the revisional jurisdiction of the court;

(iv) where the appellate process has been blocked by the judicial process to the proceedings a party can resort to revision.

The present application is peculiar in that it does not routinely arise from a ruling, order or judgment of the High Court. The Provisional

Liquidator of Fahari Bottlers Ltd referred the demand fee note of the applicant to the High Court in the following terms:

> (b) Mr Eric Ng'maryo has presented a fee note to the amount of 10% of realization from the assets. He bases his claim on the fact that he was the advocate of the petitioners and when the hive-down was overruled the provisional liquidator stepped into the shoes of the Petitioners. I would request directions on whether I have responsibility to pay Mr Ng'maryo's costs and also on the quantum.

We are of the view that since the matter was referred to the High Court for directions by way of request, and as there were no pleadings, the applicant rightly invoked the revisional powers of this court for want of a right to appeal against the ruling of the learned judge. We are satisfied that the application falls under items (ii) and (iii) of the above holding in *Halais Pro-Chemie* case.

The above said, we now turn to the merits of the revision. Representing the applicant, Dr Nguluma, learned advocate, raised two issues namely:

> (a) Whether a judge of the High Court can tax the fees of an advocate; and
>
> (b) Whether the applicant was entitled to fees as liquidator.

Counsel for the applicant maintained that the learned judge lacks taxation powers so he ought to have directed the taxing officer to tax the fee demanded by the applicant. He observed that under rule 2 of the Advocates (Remuneration and Taxation Costs) Rules 1991, the taxing officer is the Registrar or District Registrar or Deputy Registrar of the High Court. The applicant's counsel further submitted that the jurisdiction of the High Court over Taxation of advocates' bills has been ousted by rule 5(1) of the Advocates (Remuneration and Taxation Costs) Rules 1991, under which references from the taxing officer lie to the High Court; so since the High Court would hear appeals from taxation decisions, the same court would not simultaneously have trial powers in the same realm. For want of jurisdiction, therefore, Dr Nguluma urged us to quash the ruling by

Kalegeya, J., so that taxation of the fee demanded by the applicant can take its course under the charge of a taxing officer.

For the respondent, Mr Nyanduga, learned advocate contended that no bill of costs was taxed by the learned trial judge for the Provisional Liquidator referred the matter to him not for taxation but for directions only. This, counsel for the respondent stated, is provided for under paragraph (h) of the Liquidators powers which states:

> (h) The Provisional Liquidator will be at liberty at any time, to apply to the court for directions and guidance on anything he deems proper and which has a bearing to Petitions.

It is the contention of Mr Nyanduga, who was assisted by Ms De Melo and Ms Ringo, learned advocates, that the learned judge acted within his powers under the above paragraph (h) so the application for revision is misconceived and ought, therefore, to be dismissed with costs.

As to whether the learned judge has powers to tax the fees of the applicant advocate, we firmly respond in the negative because as stated above, taxation powers are conferred on taxing officers. Taxation would only reach the learned judge on appeal. This position is provided for under Rules 2 and 5 of the Advocates (Remuneration and Taxation Costs) Rules 1991. We think the learned judge mis-titled the directions to the Provisional Liquidator "Ruling" which implied that he taxed the bill of costs of the applicant, jurisdiction the learned judge did not and does not have.

Under the circumstances we quash and set aside the material ruling. We order that the matter be placed before another judge who shall direct the taxing officer to deal with the same.

In view of the above, the application is allowed with costs.

TANGANYIKA CHEAP STORE *v.* NATIONAL INSURANCE CORPORATION (T) LTD

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Munuo, Nsekela, and Msoffe, JJ.A.)

CIVIL APPEAL No. 37 OF 2001

(From the Judgment and Decree of the High Court of Tanzania at Dar es Salaam, Kileo, J., dated 9 February 2001, in Civil Cause No. 272 of 1998)

Civil Practice and Procedure – Decrees – Signing of decrees Who may sign a decree for purposes of appeal – Order XX, rule 7 and Order XXXIX, rule (1)(d) of the Civil Procedure Code.

Civil Practice and Procedure – Decrees – Signing of decree – Decree is not signed by the judge who made the decision – Effect thereof

Statutory interpretation – Meaning of "judge" and "magistrate"

When the appeal was called for hearing, the court, *suo motu*, invited the learned advocate for the appellant to address the court on the validity or otherwise of the Decree on the record of appeal which had been signed by the Deputy Registrar of the High Court instead of the judge who adjudicated upon the suit. The court discussed the application of the provisions of Order XX, rule 7, Order XXXIX, rule 35(4), and Order XLIII, rule 1 of the Civil Procedure Code 1966, and section 3 of the Civil Procedure Code as well as the Interpretation of Laws and General Clauses Act 1972.

Held: (i) Order XLIII, rule 1 of the Civil Procedure Code vests certain powers which may be exercised by the Registrar of the High Court in any proceeding before the High Court, including the power to sign a decree under Order XX, rule 7 but, under Order XX, rule 7 a decree shall be signed by a judge or magistrate after satisfying himself that the decree has been drawn up in accordance with the judgment.

(ii) Order XX, rule 7 of the code is mandatory; in case the judge concerned was not available, then such decree will be signed by a successor judge, pursuant to Order XX, rule 8 of the Code;

(iii) The Deputy Registrar had no competence to sign the decree under order XX, rule 7 as Deputy Registrar is not a judge; the use of the word "shall" in the provision indicates that there is no room for any other person to sign the decree. The provisions of Order XLIII, rule 1(d) of the Civil Procedure Code do not abrogate the specific power of a judge to sign a decree upon satisfying himself that it has been drawn up in accordance with the judgment.

(iv) A decree in appeal which is not signed by a judge as required by Order 39, rule 35(4) of the Civil Procedure Code is valid.

Order accordingly

Cases referred to:

(1) *Robert John Mugo v. Adam Mollel*, Civil Appeal Number 2 of 1990 (unreported)

(2) *Ndwaty Philemon Ole Saibul v. Solomon Ole Saibul*, Civil Appeal Number 68 of 1998 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Code, section 3, Order XX, rule 7,8 and Order XXXIX, rule (1)(d), 35(4), Order XLIII, rule 1(d)

(2) Interpretation of Laws and General Clauses Act 1972

REASONS FOR RULING

(Dated 27 January 2005)

Nsekela, J.A.: When the appeal was called for hearing, the court invited, *suo motu,* the learned advocate for the appellant, Mr Mnyele, to address the court on the validity or otherwise of the decree on page 130 of the record of appeal which had been signed by the Deputy Registrar of the High Court, Mr F.S.K. Mutungi. The concern of the court was to the effect that the decree, on the face of it, appeared to be incompetent since it was signed by the Deputy Registrar instead of a judge who adjudicated upon the suit. Mr Mnyele conceded that the decree was signed by the Deputy Registrar instead of a judge.

However, he prayed that the court permit him to rectify the error, since, in his view, the Lower Court was also to blame. On his part, Mr Kilindu, learned advocate for the respondent, submitted that since the decree was defective, the appeal before the court was incompetent and was liable to be struck out.

The issue to be resolved which was raised by the court, *suo motu,* is whether or not the Deputy Registrar had competence to sign the decree. The starting point is Order XLIII, rule 1 of the Civil Procedure Code 1966 (Civil Procedure Code). It provides as follows:

> (1) Subject to any general or special direction of the Chief Justice, the following powers may be exercised by the Registrar or any Deputy Registrar of the High Court in any proceedings before the High Court:
>
> (a) ...
>
> (b) ...
>
> (c) ...
>
> (d) to sign decrees under Order XX, rule 7.

Order XX, rule 7 provides:

> (7) The decree shall bear date the day on which the judgment was pronounced and, when the judge or magistrate has satisfied himself that the decree has been drawn up in accordance with the judgment, *he shall sign the decree.* [emphasis supplied]

Order XLIII, rule 1 of the Civil Procedure Code vets certain powers which may be exercised by the Registrar or any Deputy Registrar or District Registrar of the High Court in any proceedings before the High Court, including the power to sign decrees under Order XX, rule 7. However, under Order XX, rule 7 a decree shall be signed by a judge or magistrate after satisfying himself that the decree has been drawn up in accordance with the judgment. Under section 3 of the Civil Procedure Code, judgment means the statement given by the judge or the magistrate of the grounds of a decree or order. It is

this statement which has to be signed by the judge or magistrate. There is no definition of who is a judge or magistrate under the Civil Procedure Code. However, there is a definition in the Interpretation of Laws and General Clauses Act 1972 which provides as under:

> "Judge" means a judge of the High Court, and includes an acting judge;
>
> "Magistrate" in any written law enacted or made on or after the day appointed for the commencement of the Magistrate' Courts Act 1963, means a Resident Magistrate, a District Magistrate and a Primary Court Magistrate.

We are of the settled view that the Deputy Registrar had no competence to sign the decree under Order XX, rule 7. A Deputy Registrar is not a judge for if he was one, he would obviously have signed the decree as judge and not as Deputy Registrar of the High Court. The use of the word "shall" in Order XX, rule 7 indicates that there is no room for any other person to sign the decree. Order XX, rule 7 has specifically designated judges and magistrates to sign decrees as appropriate. We do not read anything in Order XLIII, rule 1(d) as abrogating the specific power of a judge to sign a decree after satisfying himself that the decree has been drawn up in accordance with the judgment.

In Civil Appeal Number 2 of 1990 between Robert John Mugo (Administrator of the Estates of the late John Mugo Maina) and Adam Mollel (unreported) the court had occasion to deal with a defective decree which had not been signed by the judge who adjudicated the case in the High Court where it came on first appeal from a Subordinate Court. A question arose as to whether or not the decree which was signed by the District Registrar was a valid one either under Order XXXIX, rule 35 (4) of the Civil Procedure Code or any other law.

This court stated, *inter alia*, as follows:

> We also agree that a decree in appeal which is not signed by a judge as required by Order 39, rule 35(4) invalidates the purported decree. *This is because such signature by a judge is mandatorily required and it authenticates the decrees.* [emphasis supplied]

In Civil Appeal Number 68 of 1998 between *Ndwaty Philemon Ole Saibul* and *Solomon Ole Saibul* (unreported), the decree was also signed by the Registrar and not the judge who decided the appeal. The decree was found to be invalid and the appeal was incompetent and struck out for that reason. We should point out here that in *Mugo's* case, the decree was under Order XXXIX, rule 35(4), it was a first appeal whereas in *Saibull's* case, it was a second appeal originating from a decision of a Primary Court. In *Saibul's* case the court stated thus:

> The requirement that a decree must be signed by the judge who made the decision is rooted in sound reason, namely, that the judge who decided the case or appeal is in the best position to ensure that the decree has been drawn in accordance with the judgment.

With respect, the same reasoning applies to decrees under Order XX, rule 7. As explained before, we are of the firm view that since Order XX, rule 7 specifically authorizes a judge to sign a decree, the Deputy Registrar was not competent to sign the decree herein. We construe Order XX, rule 7 as being mandatory. In case the judge concerned was not available, then Order XX, rule 8 would come into play and such decree will be signed a successor judge. Our inevitable conclusion therefore is that the decree on page 130 of the record of appeal is invalid. It is for these reasons that we ordered that the appeal be struck out with costs.

In both (CAT) Civil Appeal Number 2 of 1990 and Civil Appeal Number 68 of 1998, the court struck out the respective appeals but permitted the appellants, if they so desired, to re-institute the appeals to this court. The rationale for so doing is perhaps best captured in the following passage in Civil Appeal Number 2 of 1990 which reads as under:

> But bearing in mind the fact that practically all the judges of the High Court have consistently omitted to comply with the requirements of Order 39, rule 35(4), and that the Court of Appeal has also consistently until now failed to notice this omission since it was established over ten years ago, thereby encouraging members of the legal profession to believe that all was in order with the decree in appeal, we think justice demands that the appellant be put in a position to re-institute his appeal easily in this court should he so wish.

We respectively subscribe to these reasons. *Mugo's* case was a wake-up call. We wish to remind all concerned that decrees should be signed according to law. In the result, we direct that the appellant be put in a position whereby he can easily re-institute his appeal in this court if he so desires within fourteen days from the date of obtaining the decree from the High Court. We order accordingly.

SAMWEL OLUNG'A IGOGO AND TWO OTHERS *v.* SOCIAL ACTION TRUST FUND AND OTHERS

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM

COMMERCIAL CASE No. 3 OF 2004

Family Law – Marriage – Acquisition of property by a spouse during the subsistence of marriage – Rebuttable presumption of exclusive ownership by the spouse acquiring the property – Section 60 of the Law of Marriage Act 1971.

Family Law – Matrimonial home – Matrimonial home defined – Section 2(1) of the Law of Marriage Act 1971.

Land Law – Mortgages – Mortagage of property which is a matrimonial home – Consent of spouse of the other spouse is required – Sections 59 of the Law of Marriage Act 1971 and 112(3) of the Land Act 1999.

Land Law – Mortgages – Absence of name of spouse on title deed of the mortgaged property – Effect thereof – Section 161(1) and (2) of the Land Act 1999.

Land Law – Mortgages – Duty of lender to inquire whether consent of the other spouse is obtainied – Effect of lack of such consent.

On 7 August 2002 the first respondent extended a TZS. 100 000 000 loan facility to the second respondent, Trade Goods Limited, which was secured by legal mortgage over rights of occupancy numbered 25617, 49840 and 186252/82 in the names of Joseph Ndege, Mfaume Abdalla Kitimbi and Imani Elinda Msham respectively. The loan was not serviced as required and on 31 January 2004 the first respondent instituted a suit for recovery of a total liability of TZS. 129 084 972-37 and for sale of the mortgaged property and further interest at court rate. The matter was settled through mediation by which the total sum of TZS. 134 986 040 was to be paid by instalments, the last being on 31 March 2005. There was a default clause entitling the first respondent to execute the decree including disposal of charged assets in the debenture and mortgaged properties. When the mortgaged properties were attached in execution proceedings, three objectors filed objection proceedings. The first objector said that he had never been a party to the proceedings and his property should not have been attached, that he had bought the property from Iddi, son of Joseph Ndege, the registed owner of the property who died in 1993 and so could never have executed the guarantee annexed to the plaint. The second objector, Rukia said she was the wife of Kitimbi, the fourth respondent, while Ruth, the third objector, said she was the wife of Masham, the fifth respondent; in their objection they said the attached properties were matrimonial homes and that they had not given their consent, as spouses, to the mortgages. Rukia claimed that she had given a lump sum of TZS. 3 500 000 to her husband as part of the purchase price of the property which was paid for in three instalments. Ruth, on the other hand, said she had contributed TZS. 9 000 000 towards the purchase price of TZS. 15 000 000 although her husband said he was able to contribute more than Ruth because he was Director of Civil Aviation while she was a teacher.

Held: (i) The title deed of the plots which are the subject matter of the objections by the second and third objectors are in the names of their husbands only and so the properties belong absolutely to their respective husbands; however the properties are matrimonial homes as they are occupied by the two objectors and their husbands;

(ii) A lender is now required not only to conduct a search in the Land Registry but also has a duty to make inquiries whether the borrower's spouse has consented to the mortgage;

(iii) The mortgage of a matrimonial home will only be valid if any document or form used in applying for such mortgage is signed or there is evidence from the document that it has been asserted to, by the spouse of the borrower living in the matrimonial home.

(iv) In the present matter the mortgages by the fourth and fifth respondents were not valid as they were not consented to by the respective spouses.

Objections allowed

Cases referred to:

(1) *Idda Mwakalindile v. National Bank of Commerce,* CAT – MBY – Civil Appeal Number 59 of 2000

Statutory provisions referred to:

(1) The Law of Marriage Act 1971, sections 2(1), 59 and 60.

(2) The Land Law Act 1999, sections 112 (3), 161(1), 118 and (2).

Mr Ogunga, for the first Objector

Mr Ntonge, for the second and third Objector

Ms Shio, for the first Respondent (Decree Holder)

RULING

(Dated 22 February 2005)

Kalegeya, J.: I should start by making an observation on the titling of parties. Throughout the documentations filed subsequent to Igogo's application, Rukia and Ruth have been indicated as being first and second objectors/applicants, respectively. However, as Igogo filed the objection first, for consistency in this ruling, I have entitled him first objector to go with the sequence of their respective knocking

at this court's door. Rukia and Ruth are entitled, second and third objector accordingly.

On 7 August 2002, the plaintiffs and the first defendants executed a loan agreement by which the former extended a TZS. 100 000 000 loan facility to the latter. The said loan, among others, was secured by legal mortgages over the rights of occupancy numbers 25617, 49840 and 186252/82 in the names of Joseph Ndiege, second defendant, Mfaume Abdallah Kitimbu third defendant and Imani Elikunda Msham, fourth defendant respectively. The facility was not serviced as required. By 30 January 2004, when this action was instituted, the total liability, inclusive of the principal sum and interest, had reached TZS. 129 084 972-37. The plaintiffs then sued for recovery of the said amount; sale of mortgage properties, further interest at court rate and costs.

On 2 April 2004, the matter was settled through mediation as per terms of the following consent settlement order,

1. That the Plaintiff is entitled to payment of TZS. 134 986 040 by the defendant as of today, 2 April 2004.The said sum is inclusive of the principal sum and accrued interest.

2. That the defendant shall pay the said sum in four installments of TZS. 50 million by 30 June 2004; TZS. 40 million by 30 September 2004; TZS. 30 million by 31 December 2004 and TZS. 14 986 040 by 31 March 2005.

3. That the defendant shall pay the costs on the very date the last instalment is paid

4. That in the invent of default on any of the instalments the Plaintiff to execute the decree including disposal of charged assets in the debenture and mortgage properties in terms of the Loan Agreement.

The defendant having decided to stand miles away from the said consent order, in September 2004, the plaintiffs/decree – holders successfully applied for execution by attaching the mortgage properties.

Attachment warrants jolted Igogo the first objector, Rukia, the second objector and Ruth, the third objector, into action by filing

objection proceedings. Rukia and Ruth charged that they are Kitimbu and Masham's wives respectively; that they have doubled edged interests in the properties – as matrimonial property and matrimonial home, and further that as they did not give their consent to their being mortgaged, the attachment warrants against the said properties should be raised. On the other hand, Igogo urged that he had never been a party to the mortgaging transaction of his house and that therefore it cannot be subjected of attachment in the present transaction.

Mr Ntonge, Advocate, appeared for Ms Rukia and Ruth, the second and third objectors, while Mr Ogunda and Ms. Shio, Advocates appeared for the first objector and respondent/decree – holder respectively.

In my investigations, apart from submissions by Counsel and affidavit by deponents, the latter were also subjected to cross examination.

Starting with Igogo's objection, while I sympathise with the Decree–holders, the obvious is that the application has to be allowed. Notwithstanding Ms Shio's determined cross examination, the investigation has revealed the following.

Joseph Ndiege (not Ndege), the owner of Plot Number 551, Block A part II, Tabata Area, Dar es salaam with titled deed number 25617 died in 1993.

How the deceased's property came to enter the saga, Igogo unchallengedly stated that Iddi, his son, sold the plot to him; that the purchase price was TZS. 1 000 000 but only TZS. 500 000 has so far been paid; that the TZS. 500 000 was paid in two installments of TZS. 300 000 and TZS. 200 000; that Iddi has refused to receive the balance and has instead filed a case at Kisutu Resident Magistrates' Court challenging the sale.

Notwithstanding his death, the Mortgage Deed and the Guarantee and Indemnity Deeds attached to plaint show that these were executed by Joseph Ndiege in person, in August 2002, almost ten years after his death! The obvious is that the said documents were executed by a fictitious person who posed as Joseph Ndiege. This criminal act

can in no way encumber the disputed property because, even if Igogo/Iddi dispute did not exist, the said Iddi himself could not have mortgaged it without changing the title into his name first, as a legal personal representative of the deceased. The criminal doors are not closed: the lender can proceed against whoever played the rough illegal game.

Turning to Rukia and Ruth, although in their oral narrations under cross examination, expanding on their respective affidavits, they tried tooth to nail to show that the properties in question are both matrimonial property and matrimonial homes, I was not convinced of the former. Rukia stated that she contributed TZS. 3 500 000 towards the purchase price but this was just a flat allegation. She insisted that she gave the said sum to her husband and yet urged,

> The house was bought in ... installment ...one million and then 2 million. The balance was paid later and on their understandings (meaning buyer and her husband). She added however that she gave her husband the TZS. 3 500 000 in lumpsum but never made a follow up of its utility!

Although in marriage relations most matters transpire without records, in situation like these, where both husband and wife are fighting to save their roof under – whatever costs, courts have to be very careful with mere flat allegations. More evidence than mere allegations in affidavits or just oral responses under cross examination should be adduced to establish the joint ownership. I am thus not convinced of Rukia's alleged joint contribution towards the purchase of the dispute property.

Same approach and reasoning applies to Ruth who stated that she contributed more – TZS. 9 000 000 out of TZS. 15 000 000 allegedly put into that property, contradicting Masham who said that he contributed more as he was Director of Civil Aviation with more earnings while Ruth was a teacher.

I should pose here and observe that I am quite aware of current law that domestic and related duties performed by wives are recognized as due contributions towards matrimonial properties. But Ruth and Rukia, employees, have not approached the issue from that angle.

And, I should add that not every property acquired during the subsistence of the marriage is joint property as between the husband and wife. Each of the two can acquire his or her own property and it will remain recognized as such. section 60 of The Law of Marriage Act has the following:

> 60. Where during the subsistence of a marriage, any property is acquired:
>
> (a) in the name of the husband or of the wife, there shall be a rebuttable presumption that the property belongs absolutely to that person, to the exclusion of his or her spouse;
>
> (b) in the names of the husband and wife jointly, there shall be a rebuttable presumption that their beneficial interests therein are equal.

Treading on the above analysis, as the titles are only in Kitimbu's and Masham's names and so no joint interests were entered in the land Register by Rukia and Ruth and as they have not proved up to the standard required of any joint contribution, their flat claims of joint ownership stand dismissed.

What about the second leg – matrimonial home? On this, I have been satisfied that indeed the properties are. That they are wives, legally, has not been challenged. So is their occupation of the said premises – that is where the families reside.

The Law of Marriage Act, section 2(1) defines *"matrimonial home"* as follows:

> The building or part of a building in which the husband and wife ordinarily reside together and includes:
>
> (a) where a building and its curtilage are occupied residential purposes only, that curtilage and any outbuildings thereon ...

As regard whether the wives were notified of the mortgaging transactions by the husbands, the latter maintain that they didn't. Again, here, both the husbands and wives may be employing that stand in order to save the matrimonial homes. The wives may have been informed

of the transactions but in the absence of any other evidence the allegations stand unchallenged. What is obvious however is that there is no consent by either Rukia or Ruth.

The second and third objectors urge, making reference to section 59 of The Law of Marriage Act, that the properties could not be encumbered without their consents and so is the case under section 112(3) of the Land Act 1999, and that lack of spouses' names on the titles do not bar recognition of their interests (section 161(1), (2) of the Land Act).

The first respondent launched a challenge by making reference to *Idda Mwakalindile v. NBC,* insisting that there is no way the respondents could have known of the existence of the interests.

Section 59 of The Law of Marriage Act (1971) has the following:

> 59(1) Where any estate or interest in the matrimonial home is owned by the husband or by the wife, he or she shall not, while the marriage subsists and without the consent of the other spouse, alienate it by way of sale, gift, lease, mortgage or otherwise, and the other spouse shall be deemed to have an interest therein capable of being protected by caveat, caution or otherwise under any law for the time being in force relating to the registration of titled to land or of deeds.
>
> (2) Where any person alienates his or her state or interest in the matrimonial home in contravention of subsection (1), the estate or interest so transferred or created shall be subject to the right of the other spouse to continue to reside in the matrimonial home until –
>
> (a) the marriage is dissolved; or
>
> (b) the court on a decree for separation or an order for maintenance otherwise orders,
>
> unless the person acquiring the estate or interest can satisfy the court that he had no notice of the interest of the other spouse and could not by the exercise of reasonable diligence have become aware of it.

On the other hand, section112 (3) of The Land Act 1999 provides:

> A mortgage of a matrimonial home, including a customary mortgage of a matrimonial home shall be valid only if -
>
> (a) any document or form used in applying for such a mortgage is signed by or there is evidence from the document that it has been assented to by the borrower and any spouse of the borrower living in that matrimonial home;
>
> (b) any document or form used to grant the mortgage is signed by or there is evidence that it has been assented to by the borrower living in that matrimonial home ..."

The said Land Act, under s.ection 161 goes further to provide:

> 161(1)Where a spouse obtains land under a right of occupancy for the co – occupation and use of both spouses or where there is more than one wife, all spouse, there shall be a presumption that, unless a provision in the certificate of occupancy clearly states that one spouse is taking the right of occupancy in his or her name only or that the spouses are taking the land as occupiers in common, the spouses will hold the land as occupiers in common and, unless the presumption is rebutted in the manner stated in this subsection the Registrar shall register the spouses as occupiers in common.
>
> (2) Where land held for a right of occupancy is held in the name of one spouse only but the other spouse or spouses contributed by their labour to the productivity, upkeep and improvement of the land, that spouse or those spouses shall be deemed by virtue of the labour to have acquired an interest in that nature of an occupancy in common of that land with the spouse in whose name the certificate of occupancy or customary certificate of occupancy has been registered.
>
> (3) Where a spouse who holds land or a dwelling house for a right of occupancy in his or her name alone undertake a right to disposing for that land or dwelling house, then:
>
> (a) where that disposition is a mortgage, the lender shall be under a duty to make inquiries of the borrower **has or as the case**

may be, have consented to that mortgage in accordance with the provisions of section 59 of the Law of Marriage Act 1971;

(b) where that disposing is an assignment or a transfer of land, the assignee or transferee shall be under a duty to make inquiries of the assignor or transferor as to whether the spouse or spouses have consented to that assignment or transfer in accordance with section 59 of the Law of Marriage Act 1971,

and where the aforesaid spouse undertaking the disposition deliberately misleads the lender or, as the case may be, the assignee or transferee as to answers to the inquiries made in accordance with paragraph (a) and (b), the disposition shall be voidable at the option of the spouse who have not consented to the disposition.

Now, applying the Law of Marriage Act and the Land Act on the facts at hand, again with regrets to the decree – holders who have parted with their money on seemingly bogus securities, the said laws are not in their favour.

While I appreciate that under section 59(2) of the Law of Marriage Act lack of a spouse's consent to a Mortgage where the lender could not have possibly discovered the spouse's interest does not take away the said lender's recovery rights as held by the Court of Appeal of Tanzania in *Mwakalindile's* case, I should hastily add that sections 112 and 161 of the Land Act quoted above have now taken away that levellage.

The mortgage documents were never signed by either Rukia or Ruth nor is there evidence on the face of the documents that they assented as required by section112 (1). This alone makes the mortgage documents invalid.

The transactions sustain another fatal blow under section 161 of the same Land Act.

I consider section 161(1) to be inapplicable because there is no evidence that in obtaining the respective rights of occupancy, Kitimbu

and Masham did so for the **occupation and use** with their spouses. The intention under this provision should not be assumed. It should be proved.

Neither is section 161(2) applicable because, as earlier on held, the wives' contributions have not been established.

Under section 161(3) (a) however the lenders are aptly netted. The buoyance they enjoyed under section 59(2) of the Law of Marriage Act is taken away. They are duty bound to inquire of existence of the spouse's consent or otherwise (although the version of the Act I have, seems to have some words missing in that subsection 161 (3) (a)).

Under section 59(2) of the law of Marriage Act, lenders could simply urge that there was no way they could have been aware of the existence of the spouse's interest as they did not see any incumbrance in the Land Register upon due search. I am satisfied that this was the line of reasoning adopted by the Court of Appeal in *Mwakalindile's* case.

The Court of Appeal did not deal with the provisions of the Land Act in question and I think primarily because it had not effectively been put into operation although legally, as per commencement date, it was.

Now however, search in the Land Register alone is not enough. The lender has to go further and inquire about the existence of spouse and inquire whether due consent has been secured.

And, I should hurriedly add that the provisions of the Land Act on this do not contradict section 59 of the Law of Marriage Act. They simply supplement. But even if they had contradictory elements, section181 of the Land Act provides the cure. The said section states,

181. On and after the commencement of this Act, notwithstanding any other written law to the contrary, this Act shall apply to all land in Mainland Tanzania and any provisions of any other written law applicable to land which conflict or are inconsistent with any of the provisions of this Act shall to the extent of

cease to be applicable to land or any matter connected with land in Mainland Tanzania.

What is obvious therefore is that the lenders did not conduct inquiries regarding Rukia's and Ruth's consent under section 161(3) and this takes us back to section112(3) of The Land Act and section 59(1) of the Law of Marriage Act as read together which make a transaction without spouse's consent invalid.

In the finality, again, I should express my regrets that the securities relied upon by the decree – holders to part with their monies have melted right between their very fingers but that is the law.

For reasons stated, the three objections stand allowed.

However, regard being had to the obvious that the decree – holders stand out as losers as they parted with their monies and as the second and third objectors together with their husbands as per their affidavits clearly ganged up to save their roofs, in the interest of justice to the decree – holders I award them no costs as that would be tantamount to adding salt to injury. Similarly, I award no costs to Igogo because of his inaction since 1996 to make all attempts to transfer the title into his name thus creating fertile ground for fraudulent actions. It is ordered as above.

PAUL BUNDALA AND JULIUS SUNZULA v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Munuo, and Nsekela, JJ.A.)

CRIMINAL APPEAL No. 134 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Mrema, J., dated 15 September 1999, in Criminal Sessions Case No.45 of 1999)

Criminal law – Murder – Presumption of guilt for murder – Deceased and his goats disappear – The goats are proved to have been stolen from deceased – Appellants are later found with the deceased's goats selling them – Whether possession of the stolen goats by the appellants is enough evidence to presume them guilty of the murder of the deceased.

Criminal law – Doctrine of recent possession – Appellants found in possession of deceased's stolen goats after the murder of the deceased – Whether appellants' possession of the goats can lawfully be linked with the theft of the goats and the murder of the deceased.

The appellants were charged with the murder of the deceased contrary to section 196 of the Penal Code. They were convicted as charged, hence, this appeal. In their appeal the appellants raised several grounds including that the trial judge erred in his finding that the persons found with the goats were the thieves who killed the deceased and that the trial judge wrongly invoked the doctrine of recent possession in finding the appellants guilty of the murder of the deceased.

Held: (i) Having regard to the fact that it is not certain when the deceased was killed or when the goats were stolen, it is doubtful that this is a fit case for invoking the doctrine of recent possession to support not only the theft of the goats but also the murder of the deceased;

(ii) So long as the theft of the goats was not linked to the death of the deceased the presumption of guilt against the appellants for the offence of stealing the goats cannot be extended to the charge of murder;

Appeal allowed; Appellants convicted of receiving stolen property

Cases referred to:

(1) *Rex v. Bakari s/o Abdalla* (1949) 16 E.A.C.A. 84

(2) *Manazo Madundu and another v. Republic* [1990] T.L.R. 92

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections196 and 311(1)

(2) Evidence Act 1967, section 33

Mr Ndolezi, for the first Appellant

Mr Rutabingwa, for the second Appellant

Mr Masaju, for the Respondent

JUDGMENT

(Dated 03 March 2005)

Lubuva, J.A.: The appellants, Paul Bundala, Julius Sunzula and another, Richard Clement, who is not a party to this appeal, were charged with the murder of the deceased, Petro Chonza, contrary to section 196 of the Penal Code. The appellants were convicted as charged while Richard Clement was acquitted. From the conviction, this appeal has been preferred.

From the facts as found at the trial, the background of the case is as follows. The deceased was a resident of Pangani Village in Kibaha District. Among other properties, he owned goats. The deceased's sister, Elizabeth Chonza (PW5), also lived near the deceased's homestead. On or about 8 September 1987, the deceased was no longer seen at his house and his goat also disappeared. The body of the deceased

was found buried near a water pond down the valley about 100 paces from the deceased's house. The body was exhumed on 12 September 1987.

On 8 September 1987, the appellants were found with the deceased's 40 goats at Vingunguti Cattle Auction Centre, within the outskirts of Dar es Salaam. Apparently, the appellants were in the process of selling the goats. As a result of the appellants being found in possession of the goats, they were arrested and charged with the murder of the deceased. At the trial, the first appellant, Paul Bundala, and the second appellant, were referred to as the first and third accused respectively. Richard Clement, who, as indicated before, was acquitted, was the third accused.

In their defence at the trial, the appellants denied any involvement in the murder of the deceased. The first appellant, Paul Bundala, admitted that he was arrested at Vingunguti while on his own errand. He claimed that he met the second appellant at Buguruni Police Station. Likewise, the second appellant, Julius Sunzula, denied the charge. He said he was arrested at Vingunguti and taken to Buguruni Police Station from where he, and other suspects he did not know, were driven to Kibaha Police Station. On 12 September 1987, he was taken together with the other suspects to the scene of crime at Pangani Village accompanied by Policemen.

The learned trial judge was satisfied that as the appellants were found in possession of 40 goats, the property of the deceased which were stolen when the deceased was killed, the appellants were presumed to be guilty of the offence of murder. In the event, the appellants were convicted as charged.

Mr Ndolezi, learned counsel, represented the first appellant, Paul Bundala. The second appellant, Julius Sunzula, was advocated for by Mr Rutabingwa, learned counsel. While Mr Ndolezi, for the first appellant, filed an eight-point memorandum of appeal, Mr Rutabingwa, for the second appellant, filed a four-point memorandum of appeal. From the totality of these grounds, it seems to us that the following

are the major points of complaint raised; first, that it was erroneous on the part of the trial judge to find that the appellants were found in possession of the goats at Vingunguti, there was no evidence in support of this finding. Second, the trial judge erred in his finding that the persons found with the goats were the thieves who killed the deceased. Third, the trial judge wrongly invoked the doctrine of recent possession in finding the appellants guilty of the murder of the deceased. Fourth, the trial judge erred in construing section 33 of the Evidence Act 1967 because the second appellant's statement was not a confession. Fifth, that the trial judge erred in finding that the appellants led the way to the place where the body of the deceased was buried.

Mr Ndolezi, learned counsel, for the first appellant, was firmly of the view that there was no cogent and reliable evidence to prove that the first appellant was found either with the goats or the permit, Exhibit P7. According to Mr Ndolezi, one Juma Salum who had brought the appellants together with the goats to PW6, Ahmad Selemani Kayunguya, should have been called as a witness. Failure to call Juma Salum as a witness rendered the evidence of PW6 regarding the circumstances in which the appellants were found with the goats hearsay and unreliable. Likewise, the evidence on Exhibit P7, the permit for transporting the goats which was heavily relied upon by the trial judge was also hearsay. Juma Salum who suspected the authenticity of Exhibit P7 and arrested the appellants should have been called as a witness, Mr Ndolezi urged.

Once the evidence based on Exhibit P7 and the evidence of PW6 regarding the goats is discounted, there was no further reliable evidence to prove that the appellants were found with the goats, counsel added.

In these submissions, Mr Ndolezi was supported by Mr Rutabingwa, counsel for the second respondent. It was the submission of Mr Rutabingwa that unlawful possession of the goats could not be established against the second appellant on the basis of the extrajudicial statement Exhibit P9 was not a confession on the part of the second appellant

as held by the trial judge. The statement, Mr Rutabingwa maintained, was a plausible explanation how the second appellant was asked to escort the first appellant to take the goats (41) to Vingunguti Cattle Auction Centre. He also said that in the process of escorting the first appellant, the appellants were arrested at Vingunguti. In the circumstances, Mr Rutabingwa submitted, the doctrine of recent possession was inapplicable. He further stated that the trial judge misapplied the provisions of section 33 of the Evidence Act 1967.

It is generally not in dispute that the conviction of the appellants turned on the fact that the appellants were found with the goats at Vingunguti. This is the issues, which learned counsel for both appellants have seriously contested. Were the appellants found with the goats at Vingunguti, we pause to consider. The evidence of Ahmad Selemani Kayunguya (PW6), is pertinent on this issue. He was the CCM Ward Secretary of Vingunguti at the time of the incident. From the record, his (PW6) evidence is to the effect that on 8 September 1987 at about 1:30pm one Juma Salum, who did not testify brought to him the appellants together with 41 goats and the permit Exhibit P7. This led to the appellants being arrested and handed over to the police at Vingunguti. This is fully borne out from the evidence of the police officer Cpl. Materu (PW4) to whom the appellants, the goats, an Isuzu 3 Ton lorry and other exhibits were handed over. From the evidence of PW6, which was found by the trial judge truthful and we can find no reason for faulting him, the appellants admitted being found with the goats. They also admitted to have stolen the goats from one Shija in Mtakuja Village whose owner they said had gone to Mwanza. Furthermore, in the extra judicial statement, Exhibit P9 before a Justice of the Peace, the second appellant does not dispute having been found with the goats. He explained how he, together with the first appellant were found with the goats at Vingunguti. This evidence, we are satisfied was sufficient to find, as the learned trial judge did, that the appellants were found in possession of the goats. With respect, we do not agree with Mr Ndolezi that unless, Juma Salum was called to testify, the evidence pertaining to the appellants

being found with the goats at Vingunguti was hearsay. The essence of the evidence of PW6 was that upon information received, the appellants were arrested with the goats, the permit and the Isuzu lorry. This, was not, in our view, hearsay. We therefore dismiss the ground of complaint regarding possession of the goats at Vingunguti.

Having resolved the issue that the first and second appellants were found in possession of the goats at Vingunguti, the next issue relates to the ownership of the goats. We have no difficulty in disposing of this issue. There was paucity of credible evidence to show that the goats belonged to the deceased. For instance, the evidence of Andrew Mathias Moyo (PW2), the Village Chairman of Pangani, where the deceased lived, Elizabeth Chonza (PW5), the sister of the deceased supported by PW4, PW6, PW9 and PW10, sufficiently show that the goats belonged to the deceased. In addition, neither of the appellants laid any claim over the ownership of the goats. In the light of this evidence, we think the learned trial judge was justified in his finding that the goats which were found with the appellants belonged to the deceased.

Next is the central issue in this appeal, namely whether those found in possession of the goats were responsible for the killing of the deceased. Both learned counsel, Mr Ndolezi and Mr Rutabingwa, have vehemently attacked the learned trial judge in his finding that as the appellants who where found in possession of the goats stolen from the deceased, they were presumed to have killed the deceased. Mr Ndolezi, for the first appellant, submitted that the appellants could not be convicted of the murder of the deceased because there was no evidence to link the appellants with the murder of the deceased. He further contented that the offence of murder and that of stealing or being found in possession of goats are two distinct offences. In this case, counsel went on in his submission, there was no evidence to show the time and circumstances in which either the deceased was killed or the goats stolen. Unless the stealing of the goats is linked with the killing of the deceased, it was an error on the part of the trial judge to find that he thieves were also the murderers of the

deceased. On this ground, Mr Rutabingwa for the second appellant, was likewise, critical of the trial judge's finding. He said the ingredients of the offence of murder were not addressed by the trial judge. Instead, the further submitted, the judge directed himself on the application of the doctrine of recent possession which, in his view, did not apply in this case.

In applying the doctrine of recent possession, Mr Rutabingwa and Mr Ndolezi faulted the trial judge in considering the second appellant's extra judicial statement (Exhibit P9) as a confession to the charge of murder. According to both counsel, this statement was nothing but an explanation by the second appellant how he was found with the goats at Vingunguti. As the second appellant had given plausible explanation, Mr Rutabingwa maintained that the doctrine of recent possession could not be invoked in order to find the second appellant guilty of stealing the goats or being in possession of same. He said, the second appellant was merely asked by the first appellant to assist taking the goats to the Cattle Auction Centre at Vingunguti. Had the trial judge properly directed himself on the application of the doctrine of recent possession in this case, we think he would have come to the conclusion that there was no basis upon which to convict the appellants for the offence of murder, counsel urged.

As observed earlier, the learned trial judge convicted the appellants upon the fact that they were found with the goats. According to the judge, since the goats were stolen during the commission of the murder of the deceased, the appellants were presumed to be guilty of murder. In this case, can it positively be said that the goats were stolen during the time when the deceased was killed? On the evidence, it is not established that the goats were stolen in the course of the murder of the deceased.

First, it is not certain when the deceased was killed and the goats stolen as well. This is discerned from the evidence of Andrea Mathias, the Chairman of Pangani Village (PW2) whose evidence was to the effect that on 7 September 1987, at about 5.00 p.m. it was noticed

that theft had taken place at the homestead of the deceased. The deceased and his goats were missing. Similarly, the evidence of Elizabeth Chonza, the sister of the deceased (PW5), does not show when and how the deceased was killed. On 7 September 1987, she learned of the disappearance of the deceased and his goats. The other vital witnesses in the case, namely PW4, PW6, PW9 and PW10 are not helpful either on the crucial question, when and how was the deceased killed.

In the circumstances, we do not think that the evidence in this case was such that it could, with any degree of certainty be said that the appellants stole the goats in the course of which the deceased was killed. Having regard to the fact that it is not certain when the deceased was killed or when the goats were stolen, it is doubtful that this is a fit case for involving the doctrine of recent possession to support not only the theft of the goats but also the murder of the deceased. Going by the evidence of PW5, the goats could have been stolen any time between 10.00 a.m. when he last saw the goats and 5.00 p.m. when the deceased and the goats were reported missing on 7 September 1998. In similar vein, the deceased could possibly have been killed or forcefully taken from his house any time thereafter of before.

It is therefore difficult to link the two incidents, namely the killing of the deceased and theft of the goats as one continuing process which led to the death of the deceased. Here is where we think, the learned trial judge fell into the error in assuming that it was one and the same transaction of stealing the goats that led to the death of the deceased. This, on the evidence, was not the case.

The circumstances in which the doctrine of recent possession can be invoked were succinctly elaborated by the Court of Appeal for East Africa in the case of *Rex v. Bakari s/o Abdalla* (1). In this case the appellant was convicted of arson and entering a dwelling house with intent to commit a felony and stealing. The complainant's house was completely destroyed by fire including his property. Four days after the incident, the appellant was found selling a blanket,

one of the appellant's property which was identified. Dismissing the appeal, the court, *inter alia* held:

> That cases often arise in which possession by an accused person of property proved to have been very recently stolen has been held not only to support a presumption of burglary or of breaking and entering but of murder as well, and if all the circumstances of a case point to no other reasonable conclusion the presumption can extend to any charge however penal. [Emphasis supplied]

In the instant case, so long as the theft of the goats was not linked with the death of the deceased, unlike the case of *Bakari* (1), the presumption of guilt against the appellants for the offence of stealing goats can not be extended to the charge of murder. This is because it can hardly be said that all the circumstances of the case point to no other reasonable conclusion. For instance as said before, in the absence of evidence regarding the circumstances leading to the death of deceased and theft of the goats, the case was open to other reasonable conclusions or possibilities that the deceased could have been killed by other people. This being a criminal charges, the doubt should be resolved in favour of the accused.

Consequently, it seem to us that this is a case in which there was no evidence to show that the deceased was killed so as to effect the stealing of the goats. In *Manazo Madundu and another v. Republic* (2). the appellants were convicted of murder. The appellants were found in possession of stolen property shortly after a watchman of a shop was killed. It was strongly contended that recent possession of stolen property was not alone ground a conviction for murder. The court dismissed the appeal starting among other things:

> In the circumstances it was not wrong to conclude that the appellants were also responsible for killing the deceased, and because we are satisfied that the killing was so as to effect the stealing we are of the view that it is quite proper to infer malice-aforethought.

Quite clearly, the instant case is distinguishable from *Manazo Madunda* (2). The circumstances of the case were such that we think with respect, the learned trial judge was wrong in concluding that the appellants were also responsible for the murder of the deceased. Malice-aforethought could not be inferred against the appellants.

In the final analysis therefore, were are unable to agree with Mr Masaju, learned Senior State Attorney, that there was cogent evidence, to support the trial judge's finding that the appellants killed the deceased. Apart from the fact that the doubtful circumstances in which the deceased was killed, the evidence that the second appellant led to the place where the body of the deceased was buried was not helpful to the prosecution either. Apart from glaring contradictions, it is apparent from the record that on 12 September 1987, when the appellants were taken to the pond are, the villagers had gathered around the place where the body of the deceased was buried. As it was already known where the body was buried, the appellants, if at all, led to the already known place where the body was buried. At any rate, the trial judge did not solely rely on this evidence in conviction the appellants. Because of some discrepancies in the evidence, the judge was prepared to have this aspect of the evidence excluded.

Ultimately, the core evidence on which the murder charge against the appellants was grounded was the possession of the goats by the appellants at Vingunguti. This evidence alone, we think, was not sufficient to lead to an irresistible inference that the appellants killed the deceased. The learned judge was in our view, wrong in convicting the appellants of the offence of murder based on such evidence. It was susceptible to doubts which ought to have been resolved infavour of the appellants.

On the other hand, there can be no doubt that the appellants were found in possession of the goats which were identified as the property of the deceased. The learned trial judge accepted the evidence regarding the circumstances in which the goats were found with the deceased. The defence of the appellants was not accepted as reasonable. On the evidence therefore, the offence of receiving stolen property contrary to section 311(1) of the Penal Code was proved against the appellants.

Consequently, for the foregoing reasons, the appeal is allowed, the conviction of murder quashed and sentence of death set aside. In substitution thereof the appellants are convicted of the offence of receiving stolen property contrary to section 311(1) of the Penal Code. They are each sentenced to ten years imprisonment.

IKINDILA WIGAE v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Samatta, C.J., Msoffe, J.A. and Kaji, J.A.)

CRIMINAL APPEAL No. 60 OF 2000

(Appeal from an order of the High Court of Tanzania at Tabora, Masanche, J., dated 1 February 2000, in Criminal Appeal No. 60 of 2000)

Criminal Practice and Procedure – Bail – Cancellation of Bail – Court grants bail and subsequently cancels it without giving reasons for the cancellation – Whether proper.

Natural Justice – Right to be heard – Court granted bail to the appellant but subsequently cancelled it without hearing the appellant before the cancellation – A breach of natural justice.

The appellant was charged of written threats to murder contrary to section 214 of the Penal Code. On 1 October 1997 he applied for bail and was granted by the High Court. On 2 February 2002, the appellant appeared before the High Court again for the aforementioned charge and the court conducted a preliminary hearing, and then proceeded to cancel the bail it had previously granted, without giving reasons for this decision or availing the appellantant opportunity to be heard on the issue before the decision to cancel the bail.

Held: (i) The power to cancel bail or vary the conditions thereof under section 150 of the Criminal Procedure Act 1985 has to be exercised in accordance with the underlying principle that no one should be condemned without being afforded an opportunity to be heard;

Appeal allowed

Case referred to:

(1) *Tanzania Air Services Ltd v. Minister of Labour and two others* [1996] T.L.R. 217

Statutory provisions referred to:

(1) Penal Code, section 214

(2) Criminal Procedure Act 1985, sections 150, 192

Mr Kabonde, for the Appellant

Mr Mbago, for the Republic

REASON FOR DECISION

(Dated 10 March 2005)

Samatta, C.J.: This was a short appeal, against an order made by the High Court (Masanche, J.) cancelling the order which had been made by the said court several years before whereby the appellant, Ikindila Wigae, was granted bail. On 16 February 2005, at the conclusion of the hearing of the same, we allowed the appeal, quashed the impugned order and restored the order granting bail to the appellant, but we reserved our reasons for so deciding. The following are those reasons.

The background to the appeal may, in the interests of brevity, be stated as follows. On 1 October 1997, the appellant, who was then facing a charge of written threats to murder, contrary to section 214 of the Penal Code, before the District Court of Igunga, successfully applied for bail before Masanche, J. The learned judge couched his order in the following words:

> Applicant is released on bail in the sum of TZS. 500 000 with two sureties in the like sum. The sureties are to be approved by the Igunga District Court. The applicant is to appear in that court thereafter on dates given by that court.

Following this order, the appellant's sureties were approved by the District Court and he was released from prison. On 2 February 2002, he was charged before the High Court with the aforementioned offence, namely, written threats to murder. He pleaded not guilty to the charge. Having entered a plea of not guilty, the learned judge proceeded to conduct a preliminary hearing under section 192 of the Criminal Procedure Act 1985, hereinafter referred to as "the Act". No fact was recorded as being undisputed. Counsel for both sides then gave the court the names and addresses of the witnesses they intended to call at the trial. If the record of the case is a faithful reproduction of what occurred in the courtroom on that day – and we have no reason to doubt its accuracy – immediately after the learned judge had recorded the name and address of the last witness, he proceeded to make an order in the following terms:

> Only the above witnesses are to be called. Case to come for trial in the next session. Accused's bail cancelled. He is remanded in custody till day of trial.

As already indicated, the appellant was aggrieved by the latter part of this order.

Mr Kabonde, counsel for the appellant, attacked that order on one ground only, namely, that the learned judge erred in law and fact in cancelling the bail. He submitted, and Mr Mbago, Principal State Attorney, conceded that since there was nothing to suggest that the appellant had broken any of the bail conditions or that there were new circumstances justifying the cancellation of the bail granted, the learned judge strayed into a serious error in making the impugned order. The learned advocate also contended that, in any case, the failure by the learned judge to give the appellant opportunity to be heard on the question of bail was fatal to the order the learned judge

subsequently made because the procedure he adopted was contrary to the requirements of section 150 of the Act. We entertained no doubt that Mr Kabonde's contentions were answerable. Section 150 of the Act provides:

> 150. Where an accused person has been admitted to bail and circumstances arise which, if the accused person had not been admitted to bail would, in the opinion of a prosecutor or police officer justify the court in refusing bail or in requiring bail of greater amount, the judge or magistrate, as the case may be, on circumstances being brought to his notice by a prosecutor or police officer, issue his warrant for the arrest of the accused person and, after giving the accused person an opportunity of being heard, may either commit him to prison to await trial or admit him to bail for the same or on increased amount as the judge or magistrate may think just.

It leaps to the eye that the power to cancel bail or vary the conditions thereof has to be exercised in accordance with this section. One of the principles underlying this statutory provision is that no one should be condemned without being afforded an opportunity to be heard in his defence. In the instant case the record is patently clear that no new circumstances arose to justify the learned judge revisiting the question of bail, leave alone committing the appellant to prison. In any case, if such circumstances did arise, the appellant was entitled in law to be given the opportunity to show cause why his bail should not be cancelled.

Section 150 of the Act, in so far as the question of cancellation of bail or variation of the terms thereof is concerned, makes recognition of the right to reasons. Contrary to that section, the learned judge gave no reasons for committing the appellant to prison to await trial. This was another serious error on the part of the learned judge in this case. It is a general principle of law of this country that, where the determination of the rights or obligations of a person is involved, a decision maker must give reasons for his decision: see *Tanzania Air Services Limited v. Minister for Labour, Attorney General and the Commissioner for Labour* (1). Why should the law demand this? Some eminent authors have given very persuasive answers to this important question. In his book, **On Justice**, J.R. Lucas writes as follows, at pages 79 – 80:

> If people are to be convinced that decisions are just, they must be able to know the reasons on which they are based. Although many of us often are willing to accept the judgment of a man we respect, that acceptance depends on our sometimes knowing and approving his reasons. It is inherent in the concept of judgment that it is based on reasons, and only if the reasons are sometimes available for independent criticism and assessments, can we ever come to trust a man's judgment at all. Reasons must sometimes be available, or decisions will seem arbitrary, and will not enjoy public confidence. The requirement that reasons should always be available goes further. It is recognizes the parties to be disappointed by an adverse decision, and the need to assuage it. Instead of demanding simply that he trust the judge, it allows that the judge could conceivably be right... wrong, and that the disappointed party could, without irrationality, attribute the adverse decision to an error of judgment on the judge's part, and therefore goes some way to allay this suspicion by exposing the reasons to scrutiny, and enabling everybody concerned to assess them and feel their force for themselves.

In his book, **Emerging Trends in Public Law**, Dr Mario Gomez gives his answer in the following terms, at pages 184 – 185:

> Reasons indicate that the decision maker has brought his or her mind to bear on the subject matter in question. It shows that the decision is not arbitrary or capricious. It boosts the integrity of the decision making process if people are told why they were unsuccessful or why a decision had been made in a certain way. Reasons are strong proof that a decision was made fairly taking into consideration all relevant factors and was not motivated by personal factors. Reasons also facilitate a subsequent legal challenge to that decision.

The learned author goes on to add, at page 232, that:

A lack of reasons may not only leave a person 'disappointed' but also 'disturbed,

It cannot be doubted that reasons enhance public confidence in the decision making process. If a judge or magistrate were to decide a matter before him by tossing a coin, it is quite possible that his decision would be correct, but neither a lawyer nor a layman would regard it as being acceptable. The decision would be unacceptable on the ground of irrationality. Although compliance with the requirement of giving reasons cannot protect parties against all wrong decisions, for the reasons very ably given by the distinguished authors in the passages we have quoted above, the importance of the right to reasons cannot be over-emphasized. A party to a court proceeding is perfectly entitled to tell the judge: "My Lord, make your decision, but let me know the reason or reasons for it." In the instant case no reasons for learned judge's decision were discernible on record. This irregularity was, in our opinion, another ground for faulting the learned judge's decision.

It was for the reasons we have stated above that we allowed the appeal and made the resultant order.

SEKO SAMWEL *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Mroso, and Kaji, JJ.A.)

CRIMINAL APPEAL No. 7 OF 2003

(Appeal from the decision of the High Court of Tanzania at Tabora, Ihema, J., dated 6 April 1999, in Criminal Sessions Case No. 9 of 1999)

Criminal Practice and Procedure – Cautioned Statement – Cautioned statement and record of an interview distinguished – Sections 57 and 58 of the Criminal Procedure Act.

Evidence – Voire dire examination – Whether a trial court should record the question and answer session – Section 127(2) of the Evidence Act 1967.

The appellant was charged with and convicted of murdering her mentally retarded child. Evidence against her was based on the testimony of a child of tender years and a cautioned statement of the appellant. Although it transpired that the trial judge conducted a *voire dire* examination, he did not record the questions and answers. The cautioned statement of the appellant was also recorded by putting questions to the appellant who then answered them.

Held: (i) Under section 58 of the Criminal Procedure Act a cautioned statement must to be written without the writer being led by being asked questions; in this case the cautioned statement was recorded by putting questions to the appellant who then answered them.

(ii) The provisions of section 58 were not complied with.

Appeal allowed

Cases referred to:

(1) *Ali Salehe Msutu v. R.* [1980] T.L.R.

(2) *Pascal Kitigwa v. R.* [1994] T.L.R. 65

Statutory provisions referred to:

(1) Evidence Act 1967, section 127(2)

(2) Criminal Procedure Act, sections 57, 58 10(3) and 53(1)(c).

Mr Mutalemwa, for the Appellant

Mr Masala, for the Respondent

JUDGMENT

(Dated 11 March 2005)

Ramadhani, J.A.: The appellant, Seko Samwel, and her husband, Muninga Lugwisha, were living at Mwamashimba Village, Igunga District, Tabora Region, with their four children. Their first born, Pole Mwininga, the deceased, was mentally retarded and he often went astray to return home after a day or two and was involved in destroying other people's maize fields.

On 20 April 1993, some pupils of Mwanshimba Primary School saw some strange thing thrown in their pit latrine. They reported the matter to their teacher, Paschal Peter (PW1), who in turn alerted the relevant officials. Eventually the strange object was retrieved and was recognized to be the dead body of the deceased. That triggered off investigations which led to the prosecution of the appellant, her conviction by the High Court of Tanzania, Ihema, J., and ultimately this appeal.

There were two pieces of evidence at the trial which formed the basis of conviction of the appellant. There was the testimony of the eyewitness, as it were, a younger brother of the deceased, Kali Mwininga PW2, a child of tender years, who gave evidence after the learned trial judge was satisfied that he possessed sufficient intelligence to know the duty to speak the truth. PW2 in his evidence said that the appellant strangled the deceased with a rope in front of him and his other brothers and that she then put the dead body in a sack which the deceased used to sleep on and took it away to the school's latrine

as PW2 later came to know. He said the appellant left him and his brother in the house. PW2 said that he never told anybody that incident, not even his paternal grandfather and uncle.

In the cautioned Police statement, Exhibit P3, the appellant is recorded to have said that she killed the deceased by strangling him with a piece of *kitenge* cloth. She explained that she did that because of the problems she had concerning the deceased's condition and the complaints she got daily from fellow villagers regarding his mischief. She also said that she was left all alone to take care of the deceased. All others avoided the deceased.

At the trial the learned defence advocate, Mr Kayaga, objected to the admission of the statement on the grounds that the provisions of section 58(8) of the Criminal Procedure Act (CPA) were not complied with and that:

> Secondly, it is the version of the accused that she made her statement under duress.

So, a trial within a trial was conducted and at the end of it the learned judge admitted the statement as having been given freely and that PW3 complied with the provisions of section 58(1) read together with section 10(3) of the CPA.

The appellant made a sworn defence in which she denied killing the deceased and reiterated that she was forced by PW3 to confess to the killing in the cautioned statement, Exhibit P3. She also said that PW2 told lies in court.

Ihema, J., in his judgment said, in relevant parts:

> ... the court is satisfied that the evidence of PW2 clearly corroborates the repudiated confession as such it can be acted upon as was held by the Court of Appeal in the case of *Ali Salehe Msutu v. R.* [1980] T.L.R. 1. Not only that, it is the further view of the court that the cautioned statement of the accused is such that it cannot but be true...I find nothing unusual to fault the testimony of PW2, who indeed is an eye witness as well as a witness of truth in this case.

The court thus convicted the appellant on the basis of those two pieces of evidence and found that the retracted cautioned statement found corroboration from the evidence of PW2, a child of tender years.

Mr Mutalemwa, learned advocate, appeared on behalf of the appellant with a three-ground memorandum of appeal. First, he said that the learned trial judge did not conduct a *voire dire* test to establish that PW2 had sufficient intelligence to know the duty of telling the truth. The complaint of the learned advocate was that the learned judge did not record the questions he had put to PW2 and the answers PW2 gave.

Mr Masala, learned State Attorney, for the respondent/Republic conceded that the learned judge did not record the question-answer session; nevertheless, from the conclusion the learned judge came to, it is obvious that the *voire dire* took place. The learned judge said:

> Witness does not understand the meaning of oath and will give evidence not on oath. He is possessed of sufficient intelligence to understand the need of telling the truth.

We agree with Mr Masala, and it is abundantly clear to us, that the learned judge must have put questions to PW2 and that from his answers the learned judge came to that conclusion. Besides, Mr Mutalemwa has misconstrued section 127(2) of the Evidence Act 1967, which provides:

> Where in any criminal cause or matter any child of tender years called as a witness does not, in the opinion of the court, understand the nature of an oath, his evidence may be received, though not given upon oath or affirmation, *if in the opinion of the court, to be recorded in the proceedings, he is* possessed of sufficient intelligence to justify the reception of his evidence, and understands the duty of speaking the truth [emphasis supplied]

So, what is required to be recorded by that section is the opinion of the court, not the questions and answers. We are not aware of any

authority that a judge should record the questions and answers. Admittedly, it is a healthy practice to be recommended for the Lower Courts as it would assist appellate courts to determine whether or not the evidence was properly admitted.

However, we have some doubts on the age of PW2 at the time of the death of the deceased. The appellant in her evidence in court said that the deceased was 7 years old. The appellant said in the extra-judicial statement, Exhibit D1, that the deceased was ten years old. We are not going to use Exhibit D1 as it has a crop of its own problems which we shall talk about later. It is not in dispute that the deceased was the first born. If the deceased was 7, and if PW2 was the second born, then PW2 would have been about 5 years at the time of the incident. The age of PW2 at the time of the trial was not disclosed. We are not sure whether six years later PW2 would remember in such details what he saw when he was of the age of 5 years.

The learned judge regarded the lucidity of PW2 as the illustration of his credibility:

> And not only that [PW2] gave an impressive narrative of what transpired on the fateful night.

But the appellant in her evidence in court questioned the credibility of PW2 when she said: "if it was true [PW2] would have said so on the same day". And PW2 himself on cross-examination answered:

> I made a statement to the Police after the death of Pole and the statement reflects what I have said here in court...What I have said here in court is not what I told the Police. I did not just say these facts to the Police.

We do not have the statement PW2 gave to the Police after the incident but going by his own reply, it is obvious that what he said in court, six years later, was more detailed than what was contained in the statement he gave immediately after the event! We cannot help wondering with Mr Mutalemwa why PW2 was more lucid six years after the event than immediately after the event.

The second ground of appeal was that the learned judge erred in holding that the evidence of PW2 could corroborate the retracted confession. Mr Masala submitted that if it is found that the evidence of PW2, a child of tender years, was properly admitted under section 127(2) of the Evidence Act, then under the provisions of sub-section (4) of that section, that evidence has corroborative value.

That should be so but we have expressed our doubts on the credibility of PW2 as such we do not think that evidence has any corroborative value. So, this ground succeeds but for different reasons.

The last ground of appeal was that the learned judge erred to have convicted the appellant on a repudiated confession. Mr Mutalemwa argued that the learned judge ought to have warned himself of the dangers of convicting relying on a repudiated confession alone and he referred us to *Ali Salehe Msutu v. R.* (1). Mr Masala submitted that a warning is required only if the repudiated confession was the sole evidence relied upon, and he pointed out that this was not the case here.

What Mr Masala said is true and Mr Mutalemwa himself conceded as much. However, our doubts regarding PW2's evidence have not been cleared. So, actually what remains is the cautioned statement only. Mr Masala submitted, and rightly so, that the conduct of the accused person (appellant) could be used to corroborate. There are a number of authorities to that effect, like *Pascal Kitigwa v. Republic* (2). The learned State Attorney pointed out a number of instances of the conduct of the appellant which could corroborate. However, we do not think this matter need detain us, as well shall demonstrate.

During the trial within a trial one Robert Shillah, a senior Primary Court Magistrate, who recorded the extra-judicial statement of the appellant, gave evidence as PW3. He produced that statement and at the application of the defence the learned judge admitted it as Exhibit D2. With all due respect that was strange because the trial within trial was to determine the admissibility of the cautioned statement and not of the extra-judicial statement, and so, the latter should not

have been produced and admitted at that stage. However, though it was admitted the learned judge did not bring it to the notice of the assessors who were excluded at the time of trial within a trial.

The extra judicial statement was recorded on 10 May 1993, eight days after the cautioned statement was recorded, on 2 May 1993. In the extra-judicial statement the appellant did not say anything about being involved in the death of the deceased. This raises a doubt on whether or not the cautioned statement was really freely given. We do not know what the assessors' opinion would have been had they become seized of this diametrically opposite statement made within a week of the other. Not only so but the learned judge himself did not use it completely.

In addition, Exhibit P 3, the cautioned statement, has another problem. PW3 recorded it by putting questions to the appellant who then answered them instead of leaving her to tell her story without being led. So, in fact what has all along been taken as a cautioned statement, that is, a statement under section 58 of the Criminal Procedure Act, is in fact a record of an interview under section 57. The initiative in a cautioned statement under section 58 comes from the suspect and then there is a requirement for the recording officer to ensure that the suspect has been cautioned as required under section 53(1)(c) of the Criminal Procedure Act.

This is why Mr Kagaya at the trial said that the cautioned statement did not comply with section 58(1) of the Criminanal Procedure Act which provides:

> When a person under restraint informs a police officer that he wishes to write out a statement, the police officer:
>
> (a) shall cause him to be furnished with any writing materials he requires for writing out the statement; and
>
> (b) shall ask him, if he has been cautioned as required by paragraph (c) of subsection (1) of section 53, to set out the commencement of the statement the terms of the caution given to him, so far as he recalls them.

A cautioned statement under section 58 is supposed to be written without the writer being led by being asked questions. That is the import of section 58. On the other hand, a record of an interview under section 57 is required to be recorded in question and answer model. This comes about when a police officer is interviewing a person to ascertain whether he/she has committed an offence and if that person makes a confession. So, in effect the provisions of section 58 were not complied with in respect to Exhibit P3.

All in all we are convinced that both pieces of evidence relied upon by the learned judge are not free of doubts. As such we squash the conviction of murder and set aside the sentence of death and order that the appellant be released immediately unless her further incarceration is lawful. The appeal is allowed.

MANAGING DIRECTOR OF NITA CORPORATION *v.* EMMANUEL L.T. BISHANGA

HIGH COURT TANZANIA
AT BUKOBA
(Luanda, J.)

CIVIL APPEAL No. 7 OF 2003

(From the decision of the Resident Magistrate's Court of Bukoba, R.W. Chaungu, Esq., RM, in Civil Case No.18 of 2003)

Civil Practice and Procedure – Lodging of Pleadings – Time prescribed for lodging written statement of defence – Application for extension of time to file written statement of defence not made before the expiry of the period prescribed for lodging written statement of defence – Whether the application is competent – Proviso to rule 2 of Order 8 of the Civil Procedure Code.

Civil Practice and Procedure – Jurisdiction of courts to entertain suits – Objection to pecuniary jurisdiction – Stage at which the objection may be taken.

Civil Practice and Procedure – Appeals from decisions of Resident Magistrate Court – Whether appeal lies from ex-parte judgement – Order 19, rule 13(2) of the Civil Procedure Code.

The respondent claimed a sum of TZS. 150 million as general damages in a suit he brought against the appellant in the court of the Resident Magistrate. The appellant failed to lodge a written statement of defence within the period prescribed. His application for extension of time to file the pleading was granted, though it was made after the period prescribed. When he failed to present the pleading again, he made another application for further enlargement of time, which was refused. The court proceeded *ex-parte*. In the *ex-parte* judgment rendered, the court awarded the respondent the amount claimed. From that decision the appellant appealed to the High Court, the main issues before the court being: whether the *ex-parte* judgment was appelable; and whether the question of a trial court's lack of pecuniary jurisdiction can be raised in the appeal for the first time.

Held: (i) An appeal does not lie from a judgment of a court passed *ex-parte*, the proper course for the appellant to take was to apply to the Resident Magistrate Court under Order 9, rule 13(1), of the Civil Procedure Code for setting aside the judgment;

(ii) Objection as to the competence of a court with reference to the pecuniary limits of its jurisdiction which is not taken in court of first instance can be allowed to be taken in appeal;

(iii) The order of the court granting the appellant further extension of time to lodge written statement of defence went against the proviso to rule 2 of Order 8 of the Civil Procedure Code.

Order accordingly

Cases referred to:

(1) *Tanzania Harbours Authority v. Mohamed K. Mohamed,* Civil Appeal Number 80 of 1994 (unreported)

(2) *NBC v. Risase Ndema,* (1993) T.L.R. 282

(3) *Michael Lesani Kweka v. John Eliafe,* Civil Appeal Number 51 of 1997 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Code 1966, sections19 and 93, Order 8, rulr 2, Order 9, rule 13(2)

(2) Magistrate Courts Act 1984, sections 40(2)(b) and 44(1) (b)

Mr Kahangwa, for the Appellant

Mr Kabunga, for the Respondent

JUDGMENT

(Delivered 29 April 2005)

Luanda, J.: In the Court of Resident Magistrate of Bukoba sitting at Bukoba, the respondent in this appeal filed a suit against the appellant claiming general damages amounting to TZS. 150 000 000 for abuse of professional integrity and fraudulent use of the respondent's name in obtaining money and services.

Summons to file a defence was issued on 9 May 2003. The summons was duly served upon the appellant on 12 May 2003. The appellant was required to file his Written Statement of Defence within 21 days of service. The appellant was to file the same latest by 2 June 2003. The appellant did not file his defence.

On 17 June 2003, vide ERV 18076218, the appellant filed an application for Enlargement of Time to enable him file the defence. The application was made under Order 8, rule 1(i)(iii)(*sic*) and section 93 of the Civil Procedure Code1996, as amended by G.N. 422/1994.

From the above narration it is crystal clear that that application was filed outside the prescribed time of 21 days as provided under Order 8, rule 2 proviso, which reads:

> Provided that the court may, within twenty one days of expiration of the prescribed period, grant an extension of time for presentation of the written statement of defence on an application by the defendant.

The Court of Appeal of Tanzania in *Tanzania Harbours Authority v. Mohamed R. Mohamed* (1) construed the proviso thus, I quote:

> Here the limitation is imposed on the discretion of the court to extend the time within which the defendant can file a Written Statement of Defence. The application must be made within 21 days of the expiry of the time set for the lodging of the Written Statement of Defence.

In view of the above authority, the trial court ought not to have entertained the application on merits for the same was time barred. It deserved to be dismissed. Be that as it may, the case then proceeded *exparte*. The court awarded the amount claimed. The appellant is dissatisfied, hence this appeal.

Mr Kahangwa who represented the appellant raised three grounds, namely:

1. That the proceedings in the Resident Magistrate's Court were a nullity for want of jurisdiction.
2. That the Lower Court having given the appellant leave to appeal against its ruling delivered on the 11 July 2003, the court abrogated its own order by entertaining an *ex-parte* proceeding before the expiry of the appeal period, i.e. on 25 July 2003, that was a travesty of Justice.
3. That the refusal by the trial court to extend time to the appellant to file their written statement of defence was unjustified in the circumstances of the case.

Mr Kabunga who advocated for the respondent opposed the appeal. As regards ground number one, he said the issue cannot be raised at this stage. He referred to section 19 of the Civil Procedure Code 1966.

Having narrated the above facts the obvious questions:

Is this appeal proper before this court? In law one cannot appeal against an *exparte* judgment without attempting to set aside that judgment first (see Order 9, rule 13(2) of the Civil Procedure Code, 1996). The appellant did not attempt to set aside that judgment which was passed for failure to file the Written Statement of Defence in time.

In view of the foregoing it is my considered opinion that the appeal is incompetent. The same is hereby dismissed with costs.

But there is an error on the face of the record in that the trial court had no jurisdiction by virtue of section 40(2)(b) of the Magistrates' Courts Act 1984, as amended, as the subject matter of the claim is capable of being estimated in monetary terms. Under the above quoted section the trial court is empowered to adjudicate such cases which do not exceed TZS. 100 000 000. The claim exceeded that amount.

Mr Kabunga submitted that the issue of jurisdiction cannot be raised at this stage. He cited *National Bank of Commerce v. Risase Ndama* (2) and section 19 of the Civil Procedure Code, 1996. The section reads:

> 19. No objection *as to the place of suing shall be allowed* by any appellant or revisional court unless such objection was taken in the court of first instance at the earliest possible opportunity and in all cases where issues are settled at or before such settlement, and unless there has been a consequent failure of justice [emphasis supplied]

I think the section does not apply in our case section 19 of the Civil Procedure Code, 1966 is a rule of estoppel. It envisages a situation where there is uncertainty between two or more courts as to a proper place to institute a suit, then one of such court may entertain the matter. So where there is uncertainity within the local limits of jurisdiction of which of two or more courts may entertain the matter, then any such court may adjudicate the suit unless it is objected to at the earliest possible opportunity and the decision so reached as to the place of suing is not subject to challenge by way of appeal or revision, save where there is failure of justice.

In our case there is no uncertainity. The section does not apply. As it can be seen the trial court had no jurisdiction to entertain the matter. Matters of jurisdiction may be raised at any stage, as they go to the root of justice: see *Michael Leseni Kweka v. John Eliafe* (3).

In the exercise of revisional powers of this court as they are conferred under section 44(1)(b) of the Magistrates' Courts Act 1984, I quash the entire proceedings of the trial court and set aside all orders made therein.

The respondent may re-instituted a fresh case in a competent court subject to the law of limitation.

MOHAMED I.A. ABDUL HUSSEIN *v.* PITA KEMPAP LIMITED

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Shangwa, J.)

CIVIL REVISION No. 66 OF 2004

Affidavit – Defective affidavit – Affidavit not showing in the jurat of attestation at what place the affidavit was taken – Such affidavit is defective.

Affidavit – Jurat of attestation of affidavit – Stamp impression of the attesting Notary Public and Commissioner for Oaths placed on the affidavit – Whether that stamp impression is part of the jurat.

Civil Practice and Procedure – Applications – Application supported by a defective affidavit – Whether the application is competent.

The Applicant field an Application on 28 September 2004 for extension of time to apply for leave to appeal to the Court of Appeal of Tanzania. The respondent objected

to the application on the ground that it was incompetent for being supported by an incurably defective affidavit, in that the affidavit did not show, in the jurat, the place where the affidavit was taken.

Held: (i) An affidavit which does not state, in the jurat of attestation, the place where it was taken is defective;

(ii) The stamp impression of the attesting Notary Public and Commission for Oaths placed at the foot of the applicant's affidavit is not part of the jurat of the said Affidavit;

(iii) An Application which is supported by a defective affidavit lacks the necessary support and is incompetent;

Application struck out

Case referred to:

(1) *Fares Munema v. Asha Munema*, Civil Appl. Number 9 of 2003 (unreported)

Statutory provision referred to:

(1) Notaries Public and Commissioners for Oaths Ordinance Chapter 12, section 8

Ms Rwebangira, for the Applicant

Mr Maira, for the Respondent

RULING

(Delivered 10 May 2005)

Shangwa, J.: On 28 September 2004 M/s Rwebangira and Company, Advocates filed an application on behalf of the Applicant Mr Mohamed I.A. Abdul Hussein for extension of time to file an application for leave to appeal to the Court of Appeal of Tanzania against the decision of this court made by Mihayo, J., on 3 September 2004 in Civil Revision Number 66 of 2004.

On 24 February 2005, M/s Maira and Company, Advocates, filed a Notice of Preliminary Objection on behalf of the respondent company,

Pita Kempap Limited, stating that applicant's application is incompetent for being supported by an incurably defective affidavit and prayed the court to strike it out with costs.

The said point of objection was argued by way of written submissions. It was submitted on behalf of the respondent that the affidavit of Mohamed I.A.Abdul Hussein in support of his application does not show in the jurat of attestation at what place the affidavit was taken. It was further submitted that failure to show in the jurat of attestation the place where the affidavit was taken is contrary to section 8 of the Notaries Public and Commissioners for Oaths Ordinance Chapter 12 of the Laws.

It was contended on behalf of the respondent that an affidavit whose jurat does not show the place where it was taken is incompetent and that an application which is supported by such an affidavit is rendered incompetent. In support of his contention, learned counsel for the respondent cited *Fares Munena v. Asha Munena* (1).

It was submitted on behalf of the Applicant that the preliminary objection raised by the respondent against his application has no merit and that it should be dismissed with costs because the jurat of attestation in his affidavit does show that it was taken at Dar es Salaam on 28 September 2004 and that the place where it was taken, name Dar es Salaam, is contained in the stamp impression put on it by the Notary Public and Commissioner for Oaths before whom it was taken. It was contended on behalf of the Applicant that the stamp impression appearing at the foot of the Applicant's affidavit is part of the jurat of attestation in the said affidavit.

I have looked at the affidavit of Mohamed I.A.Abdul Hussein which was filed in support of his application and found that the place where the affidavit was taken is not indicated in the jurat of attestation. Admittedly, the stamp impression of the Notary public and Commissioner for Oaths which was placed at the foot of the Applicant's affidavit does contain the word "Dar es Salaam". However, the said impression is not part of the jurat of the said affidavit.

In practice, a stamp impression is always placed at the foot of an affidavit by the Notary Public and Commissioner for Oaths to show his or her official address and nothing more. In this case, the stamp impression appearing at the foot of the Applicant's affidavit was intended to show the official address of the Notary Public and Commissioner for Oath before whom it was taken, namely Mr J.K. Laswai, Advocate.

In law, the address of the Notary Public and Commissioner for Oaths is not one of the mandatory requirements which he or she has to state in the jurat of attestation. According to section 8 of the Notaries Public and Commissioner for Oaths Ordinance, Chapter 12, which was cited by learned counsel for the Applicant, there are two things which must truly be stated by the Notary Public and Commissioner for Oaths in the jurat of attestation. One, is the place where the affidavit was taken. Two, is the date when the affidavit was taken.

As already stated, the place where the Applicant's affidavit was taken is not stated in the jurat of attestation. The omission to do so renders his affidavit defective and incompetent. An application which is supported by a defective affidavit lacks the necessary support and it becomes incompetent. *Fares Munena v. Asha Munena* (1) which was cited by learned counsel for the Applicant is very much in point. In that case, it was held by the Court of Appeal of Tanzania that an affidavit which does not show at its foot the place where it was taken is defective and incompetent. It was also held that a Notice of Motion which is supported by a defective affidavit is incompetent.

Applying the said authority, I find that the Applicant's application is incompetent and I hereby strike it out for being incompetent. I make no order as to costs because the omission to state in the jurat of attestation the place where the Applicant's affidavit was taken was not occasioned by the Applicant himself. It was occasioned by the Notary Public and Commissioner for Oaths before whom it was taken.

SHIRAZI MOH'D SHARIFF v. MKURUGENZI WA MASHTAKA (DPP) (NUMBER 1)

HIGH COURT OF ZANZIBAR AT VUGA

(Mbarouk, J.)

CRIMINAL APPEAL No. 19 OF 2004

(From the decision of the Regional Magistrate's Court at Vuga, Kayange, RM, dated 12 May 2005, in Criminal Case No. 154 of 2002)

Evidence – Exhibits – Mishandling of exhibits – Effect thereof.

Criminal Practice and Procedure – Drugs – Analysis of sample by Government Chemist "as soon as practicable"— whether one month and a half is a reasonable time of delay – Section 61(1) Dangerous Drugs Act Number 6 of 1986.

The appellant was charged with and convicted of possessing dangerous drugs under the Dangerous Drugs Act in the Regional Magistrates' Court. Among the grounds of his appeal were that the alleged drugs were mishandled from the time they were obtained from the appellant up to the time they were handed over to the government chemist for examination. The appellant also complained of a long delay it took the government chemist to submit his report.

Held: (i) One and a half months is a reasonable time and hence cannot be branded as undue delay by the Government Chemist in submitting his report;

(ii) Mixing up of exhibits, even if it appears as a minor defect, has to be used to the benefit of the accused person.

Appeal allowed

Cases referred to:

(1) *Malik Hassan Suleiman v. S.M.Z.*, HC – ZNZ – Criminal Appeal Number 77 of 2004 (unreported)

(2) *Abdulrasul Sabur v. R.* [1968] EA 126

(3) *Celestine K. Kaziba v. R.* [1984] T.L.R. 269

(4) Moses M. Laurence v. Government of Zanzibar, Criminal Appeal Number 17 of 2002 (unreported)

Statutory provision referred to:

(1) Dangerous Drugs Act Number 6 of 1986, sections 61(1), 25, 23, and 32(1)

Mr Mbwezeleni, for the Appellant

Mrs Mwanamkaa, for the Respondent

JUDGEMENT

(Delivered 12 May 2005)

Mbarouk, J.: The appellant, one Shiraz Mohamed Sharif has filed this appeal through his Advocate Mr Mbwelezini after having been aggrieved by the judgment given by the Hon. Regional Magistrate Yesaya Kayange in the original Criminal Case Number 154 of 2004 where he was charged with the offence of Possessing Dangerous Drugs contrary to section 25 and 32(1) of Act Number 6 of 1986 of the Dangerous Drugs as amended by Act Number 6 of 1991 of the House of Representatives. The appellant was sentenced to serve twenty years (20) in prison without corporal punishment. He is now appealing against the conviction as well as the sentence.

At the trial court, it has been alleged by the prosecution side that in between 7 May 2002 at 7.45 pm and 9 May 2002 at 2.30am at the Police Headquarters Zanzibar, the appellant/accused, unlawfully was found in possession of seventy three (73) pellets (pipi) which were found to be dangerous drugs of the heroine type weighing 661 August 18gm worth about TZS. 11 000 000 of which the appellant/ accused released them from his stomach through his anus by way of stool.

In his amended Memorandum of Appeal, the appellant through his Advocate Mr Mbwezeleni has brought the following grounds, namely:

1. That the Hon. Regional Magistrate erred in law on convicting the appellant basing the same on Government Chemist Report, the same having been reported after undue delay of over two months contrary to the present authorities on the same.
2. That the Hon. Regional Magistrate erred in law on convicting the appellant whose identity is uncertain contrary to the laws.
3. That the Hon. Regional Magistrate erred in law in concluding against the appellant when the alleged drugs lacks chain on its handling since allegedly the same was obtained from the appellant and finally handed over to the government chemist for examination.
4. That the Hon. Regional Magistrate erred in law in deciding against the appellant on a charge which is not proper and on the improper definition of the law to the injury of the appellant.
5. That the Hon. Regional Magistrate erred in law in basing his decision on what he believed of the testimony of the witness rather than basing the same on the laws applicable.
6. That the Honourable Regional Magistrate erred in law in basing the conviction on the weakness of the defence hence shifting the burden of proof to the appellant/rather than the Prosecutor.
7. That generally the Hon. Regional Magistrate erred in law in coming to conclusion without due regard to the procedure and the relevant law hence his conclusions are void of legal basis.

At the hearing of this appeal, Mr Mbwezeleni, Advocate for the appellant started his submission by the analysis of their fifth ground where he said that the principle of the law is that the prosecution must prove the case beyond reasonable doubt, whereas the trial magistrate's judgment lacked analysis, and to make it worse the court itself said that there is a possibility of the mis-management of the exhibits

which makes this judgment to be erroneous, hence through those mistakes which have appeared, it should not be given a room in the judgment of this appeal. Quoting the trial magistrates words, Mr Mbwelezeni said that, the trial magistrate said that he do not rely on minor irregularities, which mean that the magistrate had some doubts and those doubts have to be used to the benefit of the accused person – He cited paragraph 2 of page 7 as the evidence showing those doubts.

He then went on ground number 4 of their appeal where he submitted that the appellant/accused was charged with "*kupatikana na madawa ya kulevya*" whereas the law is about Dangerous Drugs which is not synonymous with "*Madawa ya Kulevya*", hence it would have been proper if it was "*Madawa Hatari*". This means that there is a problem of the language which has been used, and he does not know where the magistrate got the mandate to interpret the legislature's words. He said that the appellant/accused was defending himself against the offence of "*Madawa ya Kulevya*" and not "*Madawa hatari*". Furthermore Mr Mbwelezeni pointed out that the trial magistrate was of the view that the accused defended himself to the possession but it was the possession of what, Mr Mbwelezeni asked. Because of that he said that would lead to a confusion even to an ordinary person.

To worsen the situation, Mr Mbwelezeni contended that the sections which were used were wrong and it has been admitted by the court itself. He insisted that the words "Kulevya"and "Hatari" are two different words.

He then embarked to ground number 2 where he submitted that the court is bound to tell the prosecutor to identify the accused. This is because, if you look at the charge sheet, it reads Shiraz Mohammed Sharif alias Jamal Masoud Ali, whereas in a normal situation this could have been one person but ironically the prosecution went further by saying that these were two persons and they brought the Immigration Officer to testify to that effect. Apart from that, Mr Mbwelezeni

said that the prosecution did not believe that the accused was twenty five years old. Hence he argued that, what they want to submit is that there were two persons, and if that is the case, then who committed the offence was it Jamal Masoud Ali or Shirazi Moh'd Shariff? Furthermore he said that they never brought Jamal Masoud Ali, hence that act of non production of Jamal tantamounted on the part of the prosecution to arrest the actual man who committed the offence.

Mr Mbwelezeni then dealt with ground number 1 and number 3 together, and in so doing he submitted that there are allegations that the appellant/accused was caught on 7 May 2002 and brought before the Police Station where he extricated eight five pellets (pipis) some of them were found to be plainly "wheat flour" – (unga wa ngano) and some of them were Heroin. Because of that, Mr Mbwelezeni argued that that alone is an indicator of tempering, because no body carries "wheat flour" – (unga wa ngano) from Pakistan to Zanzibar in his Stomach.

He went further by saying that it was between 7 May 2002 and 8 May 2002 when those 85 pellets (pipis) were produced, and there after those materials were sent to the Government Chemist on 23 May 2002 which is around two weeks and we are not being told who and where those materials were kept, also there were no records to show the movement of those records.

Due to that uncertainty, and as far as the police station is a busy area, where many people are going and several officers are working, this gave rise to a room for tempering with those records, either deliberately or something may happen to them.

He went on further by submitting that police stations do have Registers of keeping exhibits and safe and officers who keep those records, however the said officer who kept those records was never brought to court to testify.

Mr Mbwelezeni proceeded by pointing out that to worsen the situation those drugs were delivered to the Government Chemist on

23 May 2005 and the report of the Government Chemist was issued on 8 July 2002 which is two months after they have been received. He also pointed out that the records do not show when the Government Chemist examined those (drugs) actually. Also PW1 the Government Chemist who analyzed those exhibits (drugs) has not said anything to show where he kept those records/exhibits and he has not given the reasons as to why he took two months to complete the examination, whereas there are numerous exhibits brought before the Government and that could have given a room for mixing up.

Furthermore, Mr Mbwelezeni pointed out that PW6 Cpl Hamza talks about 13 May 2002 as the date of arresting the accused whereas the charge sheet shows that he was arrested on 7 May 2002. On the other hand PW7 Cpl. Juma as it has been shown that he received from Cpl. Hamza the "pipis" on the 13 May 2002 and these could have been caught from the accused person on 7 May 2002. Hence he said that this brings confusion.

On the issue of tempering of the records/exhibits, Mr Mbwelezeni cited an unreported case of *Malik Hassan Suleiman v. SMZ* (1) where, at page 4 of that judgment, the court touched about the issue of the possibility of tempering between the handling over of the exhibit from Police to the Government Chemist Department. In that case, the Court of Appeal said that because there are doubts of mishandling of the exhibits, hence the benefit of that doubt was given to the appellant.

Lastly, in his submission for their seventh ground of appeal, Mr Mbwelezeni pointed out that the demand of the law of our land says that if there are any discrepancies then they should be given to the benefit of the accused person and if any mischief happens hence the court is required to direct that the Prosecution has failed to prove their case without elaborating further on this point, Mr Mbwelezeni submitted that the trial court has failed to handle this matter according to the laid procedure which is very crucial, hence he suggested that the judgment should be in their favour. He then stressed that the rules of the game should be adhered to and the law of the land should be applied.

Finally, he prayed that their appeal be allowed, sentence quashed and the appellant be released.

Then followed the reaction from Mrs Mwanamkaa, the learned state attorney who represented the respondent who started her reaction by examining ground number 5 where she disagreed with the appellant, because the Regional Magistrate based his decision by taking into consideration other things like exhibits produced before the court e.g. 'pipis' or pellets, Government Chemist Report, the passport tendered and the voluntary statements of accused which was admitted by PW8.

She then preceeded her reaction by submitting that the counsel for the appellant quoted words at page 15 of the judgment, but the fact is that the trial magistrate was referring to the issues framed in his judgment, whereas at page 14 of the judgment he tried to answer the question whether the accused in this case was found in possession of dangerous drugs, and he then analyzed the evidence from the testimony of the witness and that is why after the said analysis the trial Regional Magistrate was making a conclusion on that issue only. Hence she disagreed with Advocate for the appellant that the magistrate relied on the testimonies of the witnesses but on the contrary the said magistrate took into consideration all the facts and finally he reached to a conclusion of convicting the appellant.

Mwanamkaa, the learned state attorney for the respondent proceeded, but disagreed with what have been submitted by the Advocate for the appellant when he referred paragraph number 2 of page 17 of the Judgment which he referred to as the part of the judgment which have shown doubts in the case and the magistrate shifted the burden of proving the case from the side to the defence side. On this issue the learned State Attorney reacted by saying that actually the magistrate has not shifted the burden of proving the case, but she cautioned that we have to know that the prosecution is to prove the case beyond reasonable doubt but not to clear all the doubts, and the court is required to see whether that doubt is reasonable to clear the issue. In this case, she said that the Honourable Regional Magistrate has

convinced himself that the prosecution has proved their case beyond any reasonable doubt.

As to the fourth ground, the learned state attorney disagreed with the contents in that ground of appeal because the charge reads as *"Kupatina na Madawa ya Kulevya K/F 25 na 32 (1) cha Sheria numberi 6 ya 1986 kama ilivyorekebishwa na sheria numberi 6 ya 1991"*. Whereas the Advocate for the appellantargued that it should have been *"Kupatikana na Madawa Hatari"* and not *'Kupatina na Madawa ya Kulevya'* as the real translation of being in possession of Dangerous Drugs as it appears in the Act. On the other hand the learned state attorney argued that the difference here is that that was a mere translation of words in a language, whereas in a language one word may have different meaning and also in translating the word it depends upon the effect of the word as it appears here for a word "dangerous drug" where the people are used dangerous drugs to have the effect of intoxication and fortunately here "Heroin" has that effect of "intoxication". Also the word *"Madawa ya Kulevya"* is the one which frequently used by ordinary people to refer to as Dangerous Drugs. Hence as far as even in the society that word is being used to refer Dangerous Drugs, hence the accused definitely knew that he was caught with *"Madawa ya Kulevya"* as Dangerous Drugs.

She proceeded further by saying that the accused has been charged under Act Number 6 of 1986 which has interpreted the term dangerous drugs and the facts in this case has shown that the accused was caught with "Heroin" and according to the Legal Notice Number 17 of 1991 it has been declared as one among the drugs listed as dangerous, hence she said that the appellant/accused was properly charged under proper law. She than added by saying that the appellant/Accused defended himself properly by knowing what really was the charge against him even with that alleged difference. She then quoted paragraph 3 of page 11 of the judgment as on the point that the accused denied to have given through his anus any dangerous drugs.

In her answer to the second ground, the learned state attorney reacted by saying that the accused was charged under two names after himself has identified, into those two names. At the time of his arrest she said that the appellant/accused was travelling under the passport having the name of Jamal Masoud Ali and he identified himself as Jamal Masoud Ali, she then said that the prosecution tendered as evidence the said passport used by the applicant and it was admitted in court as Exhibit 4, she proceeded by saying that that passport is a major identity to identify a person and it had the photograph of the appellant. However the learned state attorney, said that later on the appellant/accused identified himself as Shirazi Mohamed Shariff. Furthermore she said that according to the witness and Exhibit 4 (passport) it has shown that Jamal Masoud Ali and Shirazi Mohamed Shariff are the same as the appellant. Hence she said that there are no contradictions because all two names were used in the Charge Sheet.

The learned state attorney for the respondent also pointed out that all the witnesses have identified the appellant in person to be the one that they have arrested and the one who gave out the pallets mentioned in the charge sheet and the one referred in this particular case.

Then, the state attorney Mwanamkaa ended her response to ground number 2 by saying that from those arguments, the identity of the accused was well established and there was no contradiction on the part of the accused identity. This is because, the witnesses who arrested him and the eye witnesses had ample time to remove the possibility that he was another person. Also those witnesses identified the accused in person physically as the one they are referring to on their evidence.

As to the third ground of appeal, the learned state attorney disagreed with it because it does not have any base. She then went further by contending that the drugs were obtained from the appellant in the presence of PW1 Sgt. Mbarouk on 5 May 2002 and PW5 Cpl. Khamis Lila. Also the 85 pellets of drugs were handed over to PW6 Cpl.

Hamza from PW5. The drugs were counted and packed and sealed by PW6 in front of the accused and independent witness called Amour and PW5 Cpl. Khamis and D/Sgt. Juma Ameir – PW7 who was an investigator of this case received exhibit from PW6. Cpl. Hamza on 13 May 2002.

She continued by saying that when you look at the dates the drugs pallet were obtained from the appellant on 7 and 8 May 2002 and sealed on 13 May 2002, but the evidence shows that on 13 May 2002 the accused was sent to the Hospital for X-Ray. Hence she said that the delay was in the process of making sure that the accused has no more pallets in his stomach, whereas the 11 and 12 May were weekend days and that is why they were sealed on the 13 May 2002. Furthermore she contended that the exhibits were handed to PW7 on 13 May 2002 and were sent to the Government Chemist on 23 May 2002 and at page 53 of the proceedings PW7 said that they kept the exhibits in the store. On the same issue of mishandling of the exhibits, the learned state attorney reacted by saying that PW6 has said at page 42 of the proceedings at paragraph number 1 that the handling was recorded in the Report Book (R.B.)

As for the point that there was a possibility of tempering, because some of those pallets contained *"ungajwa ngano"* and some are dangerous drugs, the learned state attorney responded by saying that, here the appellant is charged with the offence of the possession of dangerous drugs, and the fact that the accused was found with one pallet does not change that the accused has committed the offence. After all she (the learned State Attorney) said that the accused is not charged with the offence of carrying *"unga wa ngano"* but for being in possession of dangerous drugs. Also the possibility of tempering was not there because even if some of them were found not to be containing dangerous drugs but this does not change the situation because he was caught being in possession of dangerous drugs. Hence the learned state attorney said that there was no tempering because no one will carry the whole lot of *"unga wa ngano"* in his stomach,

and argued that through the testimonies of PW's 1, 4,5,6,and 7 they have established that there was proper handling of exhibits.

As on the issue of the date of arresting the accused mentioned by PW6 Cpl. Hamza as the 13 May 2002, the learned state attorney said that it should be taken as a mere forgetting of the actual date.

In her reaction to the ground number 1, the learned state attorney disagreed, because it was not true that it has been delayed for two months. She said the exhibits were sent to the Government Chemist on 23 May 2002 and delivered after one and a half month only, which is a reasonable time to submit a report. She quoted section 61(1) of Dangerous Drugs Act number 6 of 1986 which states that the Analysts should analyze the exhibit as soon as possible. Hence she argued that, taking into consideration that the Government Chemist had other work and exhibits to be analyzed one and a half month was a reasonable time and not an undue delay as claimed by the appellant. Also PW1 has explained that the time was taken due to the work load.

As on the issue of the unreported case of *Malik Hassan Suleiman v. S.M.Z.* (1) she responded by saying that she wanted to distinguish it with the present case she elaborated by saying that PW7 testified at page 53 of the proceedings that the drugs were kept by a storekeeper, whereas in the cited case PW1 and PW2 have not said how and where the alleged 'bhang' was preserved before given to PW3 and PW4 for the onward transmission to PW5 who is Government Chemist in the cited case. Furthermore, the learned state attorney said that in the cited case PW5 did not mention when he examined and gave the *"bhangi"* to PW1. Neither PW1 said whether he received the "bhangi" if at all from PW5 and assuming when he received it.

In elaborating further, the learned state attorney contended that in the present case, PW1 said that at page 19 of the proceeding he received the drugs on 23 May 2002 and gave the report on 8 July 2002 to PW7. Not only that, PW7 also stated that he did receive the report on 8 July 2002 from PW1. Whereas in the cited case, she (the learned state attorney) said that it was not mentioned at all

by PW5 as to when the said 'bhang' was given to PW1, but in present case it was mentioned clearly that the report was handed over to PW17 from PW1.

Furthermore she said that the only point in the present case as alleged by the appellant that when did the Government Chemist examine the exhibit. On that issue she responded by saying that the date of handling and giving out the report which was from 23 May 2002 – 8 July 2002, whereas in the cited case there was no date given from handling the exhibit.

Hence she concluded by saying that because of the reasons, this means that the there was no undue delay for issuing of report of Government Chemist as alleged by the appellant, and the time was reasonable enough to deliver the report.

As on the sixth ground, the learned state attorney, Mwanamkaa said that the Hon. Regional Magistrate has rightly convicted the appellant on the strength of the prosecutions case and has not shifted the burden of proof as alleged by the appellant. Also in convicting the appellant, the Hon. Regional Magistrate has relied on the whole evidence produced by the prosecution side and that includes the evidence of arresting Police Officers, eye witnesses who saw the taking out from the appellant's anus drugs or pipis who are PW4,5 and PW6. The said magistrate also took into consideration the real evidence tendered in court by PW1 and PW5. She went further by saying that the Hon. Regional Magistrate had time to see the credibility of the witnesses and believed their testimonies, and that is why he was convinced that the case was proved beyond any reasonable doubts and hence he rightly convicted the appellant.

Lastly she opposed the seventh ground of appeal on the ground that the Hon. Regional Magistrate did not errer in law, because he took due regard to the procedure and relevant law, hence she said that his conclusions were valid and have legal basis, because he used relevant and proper law concerning Criminal Procedure and Evidence.

On the issue of misquoting section numbers done by the Hon. Regional Magistrate, the learned state attorney reacted by saying that the accused was charged under section 25 and 32 (1) of Dangerous Drugs Act Number 5 of 1986 as amended by Act Number 6 of 1991 whereas the proper sections were section 23 and section 32(1), hence that was a mere misquotation and that has not caused any injury to the appellant, she said that the defect was not fatal and no miscarriage of justice has been occasioned as far as the particulars of the offence were clear and the accused knew on which offence he was charged with. She cited a case of *Abdulrasul Sabur v. Republic* (2) where it was held that there was no failure of justice because of minor mistake. She also cited a case of *Celestine Kamtambula Kaziba v. Republic* (2) where it was held that though the accused was charged under a wrong section but the irregularity was said to be curable.

Mr Mbwezeleni, then pointed out that the court made a serious error believing that the accused was caught with the drugs by relying on the testimonies of the witnesses which confused themselves, e.g. on the issue of dates. As to the question of reasonable doubt, Mr Mbwelezeni reacted by stressing that the burden is upon the prosecution and not to the defence to prove the case beyond reasonable doubts, and the defence may even remain silent.

He also argued that there is no misquotation which is acceptable in law when he was examining issue number 6. Lastly he submitted that their prayers as they have appeared in their Amended Memorandum of Appeal be awarded as prayed.

After having examined the submissions from both sides in this appeal let me now examine much more closely the arguments in each ground and put my decision thereon. However, instead of mixing up my examination of the grounds of appeal, I will be consistent by examining these grounds from number 1 to number 7 as they have appeared in the amended Memorandum of Appeal.

As for the first ground of appeal which says that the Hon. Regional Magistrate erred in law in convicting the appellant basing the same

on Government Chemist Report which has reported after undue delay of over two months contrary to the present authorities, I am of the view that if you examine the date to which the Government Chemist received those exhibits (drugs) which is 23 May 2002 and the date to which he handed them over to PW7 which is 8 July 2002 making approximately only one a half months and taking into consideration that the Government Chemist had other samples for analysis prior to those sent by PW7 in this case, and taking into consideration that section 61(1) of Dangerous Drugs Act Number 6 of 1986 which states that:

> Section 61(1)
>
> In every case in which a sample or analysis is delivered to the Government Analyst under section 56, the Analyst shall cause it to be analyzed as soon as practicable and shall give to the person who request the analysis to be made a certificate specifying the result of the form prescribed in the Third Schedule to this Act and such certificate shall judicially be noticed.

Due to that reason, I do not see that one and a half months as being undue delay. I am of the view that even an ordinary, reasonable person can interpret the term "as soon as practicable" used in section 61(1) of the Act Number 6 of 1986 as that situation which take into consideration that the Government Chemist has been occupied by the analysis of other exhibits sent for analysis prior to that sent by PW7 concerning other cases hence one and a half months is a reasonable time and hence cannot be branded as undue delay. Hence because of that reason ground number 1 fails. As for ground number 2 which says that the Hon. Regional Magistrate erred in law on convincing the appellant whose identity is uncertain contrary to the laws, I am of the opinion that we have to go back to the Appellant's own testimony at the Regional Magistrate's Court where in his defence he said that at page 78:

> This is the passport I am talking about and it is the real picture of mine in this passport. The name in the passport of Jamal Masoud Ali Al-Maamry and sometimes I do use Jamal Ali Masoud Al-Maamry.

The appellant/accused did admit that he was the one who was arrested at the airport when he was looking for a toilet. Hence as far as the appellant/accused has admitted himself that the passport contained his real picture and the issue that he admitted that he was the one who was arrested at the airport, I do not see that there is a dispute on the issue of his identity, after all the charge sheet has shown both names, that of Shiraz Moh'd Shariff and that of Jamal Masoud Ali by putting *alias* or alias between those two names. The fact is that the meaning of the word 'alias' according the Oxford Student's Dictionary means:

> a name which a person, uses to hide her or his own

Through the available sources we have in this case I am of the view that the appellant might have been hiding his name, but I am satisfied that there is no contradiction in the identity of the appellant/accused in person, because the passport which one among major identity to identify a person contained his photograph which the appellant/accused has not denied and he himself has admitted that he was the one who was arrested at the airport, hence I am of the opinion that the identity of the appellant/accused was established and there was no contradiction.

As far as the third ground of Appeal which is concerning the issue that the Hon. Regional Magistrate erred in law in concluding against the appellant when the alleged drugs lacks chain in its handling, I concur with Mr Mbwelezeni, Advocate for the appellant in the sense that the existence of the drugs itself as to have been in the possession of the appellant/accused is in great doubts. The doubts concerning the possession began at the time when the appellant was sent to Hospital for X-ray examination, where it has shown that PW10 and PW11 who were officers from the X-ray Department at Mnazimmoja Hospital testified that they did an X-ray of the appellants' stomach, but the prosecution failed to submit a doctor who wrote his report in the sick sheet. Hence the chain started to be broken from the beginning.

The second doubt which I have noted on the alleged drugs to have lacked chain in its existence let alone its handling was the failure

on the prosecution side to submit an independent witness who witnessed the appellant/accused passing out those 'pipis' or pallets containing drugs from his stomach through his anus. Even though they mentioned him as being called Amour but the prosecution failed to call that witness which could have improved the quality of proving their case beyond reasonable doubts.

Another concerning mishandling is the failure for the prosecution side to the court Officer who kept those records, he was never brought to court to testify. If this court will assume that there were those drugs, for the reasons which have been stated above, this court too cannot rule, out the possibility of mishandling and that leads me to be convinced that a chain of events has been broken. Apart from that I also concur with Mr Mbwelezeni when he said the police station is a busy area where many people are going and several officers are working, hence as far as there were no records to show the movement of the records (drugs) this gives a room for tampering either a deliberate one or something else may happen, hence it was necessary to submit in court a register concerning the movements of those Exhibits and the Officer who handled them. As it has been said by Justice of Appeal Mroso in the case of *Moses Mukangama Laurance v. The Government of Zanzibar* (4):

> There is need therefore to follow carefully handling of what was seized from the appellant up to the time of analysis by the Government Chemist of what was believed to have been found on the appellant.

If we make a further follow up of the handling of the alleged samples at the Government Chemist, PW1 who was a Government Chemist has failed to show how they handled those drugs and his testimony does not show where he kept those records or exhibits.

All of the issues mentioned herein above have created doubts and I think the vital missing link in the handling of those alleged samples of drugs from the time the appellant/accused has been arrested, then sent to hospital to the time of Chemist analysis has created real doubt.

Now let me go to the forth ground of appeal which says that the Honourable Regional Magistrate erred in law in deciding against the appellant on a charge which is not proper on the improper definition of the law to the injury of the appellant. After having gone through the records at the Regional Magistrate's Court, I have noted that it is a fact that the appellant has been charged under a wrong section of the law and the learned state attorney Mwanamkaa admitted that there was a misquotation of section in the charge sheet but she said that the defect was not fatal and no miscarriage of justice has been occasioned as far as the particulars of the offence were clear and the accused knew on which offence he was charged. In support of her argument she cited the case of *Abdulrasul Sabur v. Republic* (2) where it was held that there was no failure of justice because it was a minor mistake. She also has cited a case of *Celestine Kambambula Kaziba v. Republic* (3) where Justice Msumi held that though the accused was charges under a wrong subsection but the irregularity is curable under section 346 of the Mainland Tanzania Criminal Procedure Code, but basically the accused in that case was said to have known fully the kernel of the case against him.

In view of those authorities I concur with Mrs Mwanamkaa that the misquotation is curable as far as the appellant fully understood the kernel of the case against him through the particulars of the offence which were clear and the accused knew on which offence he was charged.

As for fifth ground of appeal which says that the Hon. Regional Magistrate erred in law in basing his decision of what he believed of the testimony of the witnesses rather than basing the same on the laws applicable, I concur with Mr Mbwelezeni, advocate for the appellant when he said that it is a principle of the law that the Prosecution must prove their case beyond reasonable doubts, whereas according to the record in the judgment, the trial magistrate himself seemed to have doubts and those have to be used to the benefit of the accused person. Quoting the Honourable Regional Magistrate's word as they

have appeared at paragraph 2 of page 17 of his judgment where he said:

> I cannot rule out completely the possibility of mixing up the exhibits, but in the absence of clear evidence, the court cannot merely rely on that omission to record as also it is the view of this court that this is the minor irregularity of which in the absence of clear evidence, the court cannot rely on it that therefore they has been a tempering with the exhibit by the police witnesses.

Time and time again courts decisions have clearly stated that it is the duty of the prosecution side to prove their case beyond reasonable doubt and there is no way that such a burden of proving their case to be narrowed down and be imposed upon the defence. It is a fact through the records in the trial court's judgment that the trial magistrate has been convinced that he cannot rule out completely the possibility of the mixing up of the exhibits, hence even if it has appeared such a minor defect of the possibility of the mixing up, the law directs that it has to be used to the benefit of the accused person. For that reason I am in agreement with what has been stated in ground number 5 of the appeal. As for ground number 6 which says that the Honourable Regional Magistrate erred in law in basing the conviction on the weakness of the defence, hence shifting the burden of proof to the appellant rather than the prosecution, I am of the view that it should be read together with my views in my analysis of ground number 3 and number 5.

Lastly as for the last ground which says that generally the Hon. Regional Magistrate erred in law in coming to conclusion without due regard to the procedure and the relevant law, hence his conclusions are void of legal basis, I agree with what have been said in this ground, because as it has been established herein above there were discrepancies which have caused doubts and as far as the demand of the law of our land says that if there are any discrepancies in criminal cases then they should be used to the benefit of the accused person, and the court is required to state without any hesitation that the prosecution

has failed to prove their case. Hence that leads me to say that the trial court has failed to handle this matter according to the laid down procedure and hence its conclusions are void of legal basis.

For the reasons stated herein above, I am satisfied that this appeal does have merit, and hence it is accordingly allowed, conviction quashed, and sentence set aside. It is also ordered that the appellant is to be released from the education centre unless he is held therein in connection with a lawful cause.

TATU KIUNGWE v. KASSIMU MADAI

HIGH COURT OF TANZANIA
AT DODOMA
(Kaijage, J.)

(PC) CIVIL APPEAL No. 6 OF 2002

(From Singida District Court Civil Appeal No. 77 of 2000, on appeal from Ilongere Primary Court Original Civil Case No. 96 Of 1999)

Torts – Tort of malicious prosecution – Proof of malicious prosecution – Relevance of a criminal case in proving malicious prosecution

The appellant Tatu Kiungwe, complained to village authorities and later to police that her money was stolen from her. The respondent, Kassimu Madai was the suspect. He was prosecuted in a Primary Court but was later acquitted. The respondent in turn sued the appellant for TZS. 462 600 for malicious prosecution. After evaluating the evidence, the trial Primary Court dismissed the respondent's claim on finding that it was not established that the appellant had prosecuted the respondent maliciously. The respondent appealed to the District Court which reversed the decision of the trial court and awarded the respondent TZS. 300 000 as damages. The appellant was dissatisfied hence this appeal.

Held: (i) On the evidence adduced, the trial court was satisfied that the appellant did not act maliciously in setting in motion the criminal proceedings and in reversing the decision of the Lower Court, the first appellate court wrongly allowed itself to be influenced by the decision of a Criminal Court which did not determine the issue whether or not the respondent was maliciously prosecuted by the appellant;

(ii) The decision of a Criminal Court is only relevant to determine the question as to whether or not the respondent was acquitted. Considering the standard of proof required in civil and criminal matters, the first appellate court must have slid into a fundamental error by disregarding the decision of the trial court in the civil matter without assigning reasons.

Appeal allowed accordingly

Statutes refereed to:

(1) 295 of the Penal Code

JUDGMENT

(Delivered 19 May 2005)

Kaijage, J.: In Ilongero Primary Court Civil Case No. 96/1999, the respondent, Kassim Madai, sued the appellant, Tatu Kiungwe, claiming compensation to the tune of TZS. 462 600 following an allegation that the latter maliciously prosecuted the former, vide Criminal Case No. 177/1998 which was earlier filed in the same court. At the conclusion of the trial, respondent's claim was dismissed. Subsequently, the respondent successfully appealed to the District Court of Singida District which overturned the lower court's decision thereby awarding the sum of TZS. 300 000 to the respondent as compensation. Dissatisfied with the decision of the first appellate court, the appellant has now appealed to this court.

Facts constituting the background to the present appeal could be stated, briefly, as follows. Sometimes in 1998, the appellant complained to the village authorities and later to the Police that cash to the tune of TZS. 30 000 was stolen from her. The respondent who was

suspected to have stolen the money, was later taken to court to answer a charged preferred under the provisions of s.295 of the Penal Code. This was Ilongero Primary Court Criminal Case No. 177/1998. Incidentally, the charge was not established on the standard required in criminal cases. Consequently, the respondent was acquitted. Following his acquittal, the respondent instituted civil proceedings giving raise to the present appeal. In its decision, the first appellate court stated the following, among other things:

> The Trial court dismissed appellant's claim on the ground that it was not established that the respondent prosecuted the appellant maliciously vide criminal case No. 177/1998. I have gone through Criminal Case Number 177/1998 judgement and find the following words;
>
> ... Mlalamikaji hakuibiwa fedha zake bali alizua shtaka hili baada ya yeye na mume wake kushindwa kulipa deni alilokubali.

The first appellate court concluded its judgement thus:

> From these words I am satisfied that the prosecution was based on malice and therefore the trial court misled itself that there was no malice and therefore this appeal is allowed and the respondent is to pay appellant compensation of TZS. 300 000 with costs.

It be observed, at this stage, that the first appellate court in its decision, completely disregarded the evidence and the decision of the lower trial court in civil case No. 96/1999. Instead, it relied on and took into account the decision of the same trial court in Criminal Case Number 177/1998. It is, however, interesting to note that both cases were tried and their respective decisions were given by the same magistrate.

Going by the judgement in Civil Case Number 96/1999, the trial court had this to say, among other things;

> — ushahidi wa shauri la jinai Na. 177/1998 unaonyesha kuwa ulikuwa hafifu ukashindwa kumtia hatiani mshtakiwa yaani mdai kwa sasa, lakini ushahidi huo una chembe chembe ya kuonyesha kuwa mdaiwa alikuwa katendewa jambo au tendo la kuingiliwa ndani kwake. Hali hii inadhihirisha

kuwa mdaiwa hakuwa amezua shtaka kwa mdai kwa nia mbaya, hivyo hila kwa mdai haipo pana sababu ya kumshtaki mdai wakati ule kwani alikuwa amepoteza *ushahidi wa kuwahusisha mdai na wenzake moja kwa moja haukupatikana na katika jalada la jinai Na. 177/1998, ndiyo maana mdai hakupatikana na hatia* —- [emphasis supplied].

From the foregoing, it appears that on the basis of the evidence adduced before it and upon evaluation of the same, the trial court was satisfied that the appellant acted reasonably and not maliciously when she set in motion the prosecution of the respondent vide Ilongero Primary Court Criminal Case Number 177/1998.

In disregarding the findings and the decision of the lower trial court, the first appellate court allowed itself to be influenced by the decision of a Criminal Court which did not determine the issue whether or not the respondent was maliciously prosecuted by the appellant. A Criminal Court is not the proper forum for determining the rights of those claiming damages for malicious prosecution. Only a Civil Court, *via* a civil suit, can determine such matters. In the present matter, a decision of a Criminal Court is only relevant to determine the question as to whether or not the respondent was acquitted. Considering the standard of proof required in Civil and Criminal matters, the first Appellate Court must have slid into a fundamental error by disregarding the decision of the trial court (in a civil matter) without assigning reasons.

In my judgement, I find no material upon which to sustain the decision of the first appellate court. Accordingly, the appeal is allowed. Consequently, the decision of the first appellate court is set aside. Costs should follow the event.

SHIRAZI MOH'D SHARIFF *v.* MKURUGENZI WA MASHTAKA (DPP) (Number 2)

HIGH COURT OF ZANZIBAR AT VUGA

(Mbarouk, J.)

CRIMINAL APPEAL No. 19 OF 2004

(From the decision of the Regional Magistrate's Court at Vuga, in Criminal Case No. 154 of 2002)

Criminal Practice and Procedure – Security to appear in the Court of Appeal – High Court allows criminal appeal by an accused person – Whether the High Court can order a person whose appeal it has allowed to provide security to appear in the Court of Appeal at the instance of the DPP – Section 358(2) of the [Zanzibar] Criminal Procedure Act Number 7 of 2004.

After the High Court had allowed the appellant's appeal against conviction and sentence the respondent made an oral application to require the appellant to provide security for him to appear at the Court of Appeal when the Respondent's appeal is called for hearing.

Held: (i) section 358(2) of the Criminal Procedure Act is contradicting the Constitution for the reason that it curtails the freedom of a person who has been released from prison;

(ii) section 358(2) of the Criminal Procedure Act cannot be applied to appeals heard by the High Court to which its decision awaits the hearing of an intended appeal to the Court of Appeal.

Order accordingly

Statutory provisions referred to:

(1) Criminal Procedure Act Number 7 of 2004, section 358(2)

(2) Constitution of Zanzibar 1984, article 14(1)

Mr Mnkonje, for the Appellant

Mrs Mwanamkaa, for the Respondent

REASON FOR THE RULING (ORDER)

(Delivered 17 May 2005)

Mbarouk, J.: After this court had allowed the appellant's appeal which led to the conviction to be quashed and sentence set aside, the respondent initially prayed to submit orally an application to require the appellant to provide security for him to appear at the Court of Appeal when the Respondent's appeal is called for hearing. The respondent's oral application was brought pursuant to section 358 (2) of the Criminal Procedure Act Number 7 of 2004.

For the good reason that section 358 (2) is to make sure that the appellant do appear at the hearing of the intended Respondent's appeal, this court initially without any hesitation granted the Respondent's oral application and ordered the appellant to furnish security as per the following conditions:

1. The appellant to have two reliable sureties based in Zanzibar and they should sign bond.
2. The sureties to have an identity card or any identification which will make sure that they are residents of Zanzibar.
3. One of the sureties to file a title deed of his own house which is to be confirmed by this court.

The problem arose when the appellant who is a resident of Dar es Salaam later during the afternoon claimed that he has failed to acquire sureties as per the initial order of this court, hence through his Advocate they orally moved the court to review the initial order issued by this court. This court then ordered the learned state attorney who represented the respondent in this appeal to be called for the urgency of hearing of the oral application for review of the initial order.

At the time when both the parties were before me, Mr Mnkonje, Advocate for the appellant prayed for a review of the order for the security for appearance of the appellant at the respondents intended appeal at the Court of Appeal.

Mr Mnkonje prayed for a review on the following grounds, that the order is somehow contradicting the constitution which needs the appellant to be released unless there is a lawful order/cause. He said that the constitution provides that a person's freedom should not be curtailed unless there is a law which allow his freedom to be curtailed. He then went on further by saying that section 358 does not provide an alterative if the appellant who has been released fails to furnish such a security required. Also that section does not state whether failure to furnish security will lead to the appellant (the would be respondent in the intended appeal) to be sent to remand prison or not.

Mr Mnkonje then pointed out that there has been an error apparent on the ruling of the security issued earlier by this court which stated that Part XII of Act Number 7 of 2005 is for both High Court and courts subordinate to it.

In pointing out the error, he cited section 351 which shows that the definition of the term "Appellate Court" in that Act has been interpreted to mean those courts subordinate to the High Court having appeals to the High Court only are to be dealt with this Part XII.

He gave the example of section 359(i) which says that the Notice of Appeal to be filed within 15 days and the appeal to be lodged within 45 days, whereas for appeals to the Court of Appeal requires Notice of Appeal to be filed within 14 days and not 15 days and an appeal to the Court of Appeal is required to be lodged within 60 days and not 45 days.

Furthermore, Mr Mnkonje submitted that according to section 360 every appeal is to be made by way of petition whereas at the Court of Appeal, the Rules directs that appeals are to be made by way of Memorandum and not petition.

He also has pointed out that section 361(2) of Part XII says that the petitions of appeal to be lodged to the office of the High Court Registrar who shall forward the said petition to the Chief Justice.

Basically Mr Mnkonje said that the whole of Part XII deals with the issue of appeal which are to be brought to the High Court from Subordinate Court and those appeals from within the Subordinate Courts themselves. Finally he humbly submitted that section 358 is not applicable and this court to review its orders and give such terms for the appellant to enjoy his constitutional right of freedom.

On the other hand the learned state attorney Mwanamkaa responded by saying that the appellant is not held as a convict but he is required to furnish security according to law and failure of which he is to be held as a remandee until he files such a security that he will appear in the intended appeal.

Furthermore, the learned state attorney for the respondent argued that the object of section 358(2) is to make sure that the appellant will appear at the intended appeal and it is not to hinder his freedom but just to furnish security that he will appear a the time of appeal. Mrs Mwanamkaa then pointed out that the section is silent on the conditions which means that the court is free to give any conditions which are reasonable which will ensures that the objectives of this section is fulfilled and that is the appellant should not run away during the time awaiting the appeal.

As to the issue that the said order of remanding the appellant if he fails to furnish the ordered security, the learned state attorney disagreed with that point and maintained that the remand order will be according to law as far as the case has not finished yet unless he is to be released by the Court of Appeal which is the Highest Court where of the point someone may say that the case is over. She then added that if the appellant fails to furnish security and he is ordered to remain in remand custody that order will be lawful.

As to the point that there is no alternative to section 358(a) as to what will follow if the appellant fails to furnish security, the learned

state attorney Mwanamkaa responded by pointing out that logically the only remedy is to remand him even though there is no authority to that effects. This is because she added, if the appellant will not be remanded after his failure to furnish security and he is set free, hence this section 358(2) will become useless and powerless. The learned state attorney also disagreed with her learned brother that the appellant to be given his own recognizance as that will not amount to security to appear at the Court of Appeal. She also disagreed that the appellant to be given other conditions apart from local sureties and security of having local property amongst his sureties, because the purpose of it is to make sure that the sureties be available and answerable if the appellant does not appear at the time of appeal. Also if sureties are not local that will be difficult to trace them and the appellant will not be traced. As concerning the security of local property that will be difficult to know the genuiness of the title deed if it comes from outside Zanzibar.

As to the point that the appellant is not a Resident of Zanzibar, hence she responded by saying that, that leads to the importance of having such a security for him to appear at the time of appeal otherwise he will be at large.

She then reacted by pointing out that section 358(2) refers to the High Court as well and as far as the matter is still at the High Court and not at the stage of the Court of Appeal yet, this is because the judgment was given by this court and it is in this court where the oral Notice has been given. Therefore this court is bound by that section to provide security even though there would be an appeal to the Court of Appeal.

However she conceded with Mr Mnkonje, Advocate for the appellant that those other sections in Part XII do not include the High Court but section 358 has not meant that it cannot be referred at the level of appeal at the High Court. Finally, the learned state attorney Mwanamkaa prayed that the ruling given by this court earlier be stayed and the review should not be allowed.

Then Mr Mnkonje, Advocate for the appellant responded to what have been argued by the learned state attorney who represented the respondent by saying that they argued that section 358 provide for an alternative because if you compare that section with the provisions regarding bail which are sections 150 and 151 of Act Number 7 of 2004 you will find out that when an accused person is given bail those sections provide for an alternative if he fails to meet the conditions of bail, but section 358(2) is silent and it does not provide for alternative.

Mr Mnkonje pointed out further that for a remendee the law directs that an accused is to be brought to court for every 14 days, hence how about the person who is not a remandee but has been kept in custody for his failure to meet security under section 358(2). The section itself is silent on what follows if the appellant fails to furnish security.

As on the issue of logic or mischief of section 358, he pointed out that, that is in relation to matters before the Court Subordinate to the High Court but not at the level where there is an intended appeal to the Court of Appeal. This is because once, a Notice of Appeal has been filed it is regarded that the matter is not in the hands of the High Court anymore.

Mr Mnkonje also argued that, as clearly conceded by his learned friend, hence she cannot then say that section 358 is not part and parcel of part XII and that it does not refer to the matters confined to the High Court and Subordinate Courts. He then submitted that it is his humble submission that the intended appeal goes beyond the High Court, hence section 358(2) cannot be applied in this situation. Finally, Mr Mnkonje prayed for the ruling to be reviewed.

After examining arguments from both sides in this oral review application I remain convinced that section 358(2) is contradicting the constitution for the reason that it curtails the freedom of a person who has been released from prison as it has appeared in this case.

After all as it has been correctly argued by Mr Mnkonje, Advocate for the appellant, section 358(2) is silent on what will follow if the

appellant fails to furnish the security. This gap of what will follow if the appellant fails to furnish security cannot be filled in by implication that the appellant will be remanded. The said section should have been clear on what will follow.

However even if that section had mentioned what will follow if the appellant has failed to furnish security, but there would appear difficulties in its implementation, because on one hand the appellant has been ordered to be set free, whereas on the other hand the court will make an order to remand the appellant/accused. Hence will that be a "just order" to send such a person to remand custody at the time when the same court has already set him free. I am of the considered opinion that courts should not go to the extent of putting a person who has been released by itself to remand. This is because by so doing it will be contrary to article 14(1) of the Zanzibar Constitution, 1984 which requires that every person has a right to freedom, where it says that:

> Kila mtu anayo haki ya kuwa huru na kuishi kama mtu huru
>
> Whereas article 14(2) says that:
>
> > Kwa madhumuni ya kuhifadhi haki ya mtu kuwa huru na kuishi kwa uhuru, itakuwa ni marufuku kwa mtu yeyote kukamatwa, kufungwa; kufungiwa, kuwekwa kizuizini, kuhamishwa kwa nguvu au kunyang'anywa uhuru wake vinginevyo isipokuwa tu.
> >
> > (a) Katika hali na kwa kufuata utaratibu uliowekwa na sheria; au
> >
> > (b) Katika kutekeleza hukumu, amri au adhabu iliyotolewa na mahakama kutokana na sheria au kosa la jinai ambalo mtu amekuwa na hatia ya kulitenda.

The situation in this case as we have already seen is that the judgment on appeal has set the appellant free, hence according to the Constitution the said appellant is required to enjoy his freedom.

Apart from that as correctly pointed out by Mr Mnkonje, there has been an error apparent to the ruling delivered by this court on the issue of security based on Part XII of Act No. 7 of 2004 to

which according to section 351 the situation which has appeared at the appeal in this court does not include the High Court decisions awaiting the hearing at the Court of Appeal. This is because section 359(i) which is also under Part XII talks about Notice to be filed within 15 days and appeals to be lodged within 45 days whereas this intended appeal which is to be sent to the Court of Appeal of Tanzania requires the Notice of Appeal to be filed within 14 days and not 15 days and appeal to be lodged within 60 days and not 45 days. This already shows section 358(2) of Act Number 7 of 2004 cannot be applied to appeals heard by the High Court to which its decision await the hearing of the intended appeal at the Court of Appeal after Notice of Appeal has been filed.

Apart from that according to section 360 of Act Number 7 of 2004 every appeal is to be made by way of petition whereas the Court of Appeal Rules directs that appeal to the Court of Appeal as the one which is to be filed by the respondent in this appeal are to be made by way of Memorandum and not petition.

Also under section 361(2) says that the petitions of appeal are to be lodged to the office of the Registrar High Court who shall then forward them to the Zanzibar Chief Justice. However the intended appeal in this case is not to be forwarded to the Zanzibar Chief Justice but to the Registrar Court of Appeal and then to the Union of Tanzania Chief Justice.

This shows clearly that section 358(2) has no intension of including appeals to be sent to the Court of Appeal of Tanzania but only appeals which ends a the High Court of Zanzibar. For those reasons this court is convinced that section 358 is not applicable and that gives rise to the entertainment of this urgent oral review application.

In the upshot, because of the aforementioned this court was led to order the appellant to be released from the Education Centre as per this court's judgment dated 12 May 2005 without any security conditions attached to the appellant.

GOZIBERT RWAMULELWA v. PRISCA RWAMULELWA

HIGH COURT OF TANZANIA AT BUKOBA

(Luanda, J.)

(PC) CIVIL APPEAL No. 86 OF 1996

(From Muleba District Court, C.J. Kanyatta, Esq., DM, in Civil Appeal No. 20/96, from original Civil Case No. 51/1995, Kashasha Primary Court)

Evidence – Hearsay evidence – Hearsay evidence in Primary Courts – Whether hearsay evidence is admissible in Primary Courts.

Civil Practice and Procedure – Representation in Primary Courts – Representation by a relative or member of the family – Person representing the other adduces hearsay evidence – Proper course of action to be taken by the court.

The respondent was represented by her daughter in a suit filed in a Primary Court. The daughter adduced hearsay evidence. An appeal to the District Court was partly successful. On further appeal the High Court considered whether or not it was proper for the court to act on hearsay evidence adduced by a representative in disregard of the rules of evidence.

Held: (i) Rules of evidence applicable in Primary Courts do not allow hearsay evidence to be adduced;

(ii) It was wrong to adduce hearsay evidence in the Primary Court in disregard of the rules of evidence, and it was equally wrong for the court to act on such evidence;

(iii) Where a party to a suit has been allowed by a Primary Court to be represented by a relative or any member of a household and the representative adduces hearsay evidence, the court should adjourn the case and direct the party to the case to appear in person so as to enable him to give evidence.

Proceedings quashed

Statutory provisions referred to:

(1) Magistrate's Courts Act 1984, section 33(2)

(2) Rules of Evidence, rule 10(2)

JUDGMENT

(Delivered 20 May 2005)

Luanda, J.: This PC Civil Appeal raises a very interesting point of law. But before I discuss the point of law involved, let me give a brief summary of the case.

In the Primary Court of Muleba sitting at Kashasha, the respondent in this appeal, one Prisca Rwamulerwa, filed a civil suit against Gosebert Rwamulerwa (hereinafter referred to as the appellant) for a recovery of a shamba, house and households. According to the respondent's case, the above items were bequeathed to the respondent by her late husband through an oral will.

But the person who testified to that effect was one Winfrida Rwamulerwa (PW1) daughter of the respondent who represented her mother, the respondent. This is what she said in her evidence in Chief, I quote:

> Baada ya hapo *mume wangu alifariki*, wanaukoo waliuliza kama alikuwa ameacha wosia lakini wosia haukupatikana, lakini *aliwaeleza jinsi mume wake alivyomuusia akasema:*
>
> Nyumba hii pamoja na shamba mume wangu aliniachia. Kwamba banda la ng'ombe lenye bati alimrithisha mdaiwa (kwa sababu baba yake na mdaiwa ndiye aliyetangulia kufariki). Baada ya wanaukoo ... [emphasis supplied]

The quoted passage no doubt is hearsay evidence and you can see how difficult Winfrida was getting to testify. The trial Primary Court considered this hearsay evidence and arrived at a decision; but the

respondent lost. She appealed to the District Court of Muleba. The District Court partly allowed the claim, hence this appeal.

I am much aware that in Primary Courts a party to a suit may be represented by a relative or a member of the household. This is provided for under section 33(2) of the Magistrates' Courts Act 1984, which reads:

> 33(2) Subject to the provisions of subsection (1) and (3) of this section and to any rules of court relating to the representation of parties, a Primary Court may permit any relative or any member of the household of any party to any proceeding of a civil nature, upon the request of such party, to appear and act for such party.

The interesting question is: Is it proper in law for a court to act on hearsay evidence adduced by a representative to a civil suit in disregard of the rules of evidence: This suit was tried by Primary Court. The rules of Evidence G.N. 22/1964 which are applicable in those courts do not allow such evidence to be adduced. Rule 10(2) provides in Kiswahili thus:

> 10(2) Tukio halithibitishwi na shahidi anayeiambia mahakama jambo aliloambiwa na mtu mwingine kuhusu tukio hilo, na kwa hiyo asitoe ushahid wa matukio ambayo amehadithiwa.

In view of the above observation, I am of the settled mind that it is wrong to give such evidence in our courts in disregard of the rules of evidence. It is equally wrong for the court to act on such evidence. The evidence of Winfrida ought not to have been received and acted upon. Her evidence is hereby expunged from the record.

But one may pose a question as to what course should a trial court take when faced with such situation. I think in the interest of justice the solution is this: Where a party to a suit has been allowed to be represented by a relative or any member of a household by a trial Primary Court and adduced hearsay evidence, the court should adjourn the case and direct the party to the case to appear in person so as to enable him give his evidence.

In our case I propose to make the following order. Since the trial court took that evidence, among others, in arriving at a decision and since that evidence ought not to have been adduced by Winfrida, I think in the interest of justice, the proper course to take is to quash the proceedings of both the trial court and the District Court which I hereby do so that the administrator of respondent's estate – the respondent is reported dead; she died on 16 January 1998 - to commence a fresh by filing a suit in the said Primary Court if he wishes. It is so directed.

Each party to bear its own costs.

REPUBLIC *v.* TWALIB UMBWA

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Shangwa, J.)

CRIMINAL REVISION No. 13 OF 2003

(Originating from Criminal Case No. 150 of 2003, in the District Court of Temeke)

Criminal Practice and Procedure – Delay – Delay in criminal trials – Whether delay in criminal trial may be basis of acquittal of an accused person.

Criminal Practice and Procedure – Discharge of accused person – Rationale for such discharge – Section 225(5) of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Inherent powers of the court – When such powers may be invoked.

In a case in which the accused person was charged with burglary and stealing the trial magistrate, invoking inherent powers of the court, acquitted the accused person on the ground that the case had taken a long time in court. On revision the High Court considered whether the acquittal was correct and proper.

Held: (i) In order to restrict unnecessary adjournments of criminal trials section 225(5) of the Criminal Procedure Act 1985 empowers Subordinate Courts to discharge an accused person in respect of certain offences where the prosecution, after a specified period of time, is unable to proceed with the hearing without having filed a certificate in court stating the need and grounds for adjourning the case;

(ii) Such discharge does not operate as a bar to a subsequent charge against the accused for the same offence or offences;

(iii) Sections 222, 230 and 235(1) of the Criminal Procedure Act 1985 provide for circumstances under which an accused person can be acquitted; namely where the complainant has not appeared on the date fixed for hearing or where there is no case to answer or where there is no evidence upon which to base a conviction;

(iv) Since inherent powers are usually invoked where there is no enabling provisions for doing justice and since in this case there were enabling provisions, the inherent power of the court were wrongly invoked by the trial magistrate in acquitting the respondent.

Order accordingly

Statutory provisions referred to:

(1) Criminal Procedure Act 1985, sections 222, 230, 235(1) and 225(5)

(2) Section 294(1) and 265 of the Penal Code

Mr G.D. Mdemu, State Attorney, for the Applicant

RULING

(Delivered 27 May 2005)

Shangwa, J.: In this case, there is only one issue to be resolved by this court. That is whether or not the acquittal of the respondent Twalib Ubwa by the District Court of Temeke made on 27 May 2003 in Criminal Case Number 150 of 2003 was correct and proper.

Going through the trial court's record, it will be seen that before his acquittal, the respondent stood charged with the offences of burglary

and stealing contrary to sections 294(1) and 265 of the Penal Code respectively. It will also be seen that the trial magistrate Mtinginjola, DM acquitted the respondent on ground that the case had taken a long time in court. The following is what was recorded on the day when he was acquitted and I quote:

> 27 May 2003
>
> Coram: 1. Mtinginjola – Dm
>
> PP: A/Insp. Wilson
>
> CC: Fatuma
>
> Acc:
>
> P.P: We don't have witness.
>
> Court: As the matter has long time before this court, under the inherent power this court has I hereby acquit the accused forthwith.
>
> Sgd: 1. Mtinginjola – DM
>
> 27 May 2003.

Learned State Attorney for the applicant Mr G.J. Mdemu submitted that the trial court's action for acquitting the respondent was unfounded. He contended that there was no delay in prosecuting the respondent and that his acquittal was irregular. On the other side, the respondent submitted that there was a delay of justice in his case. His argument is that as there was such a delay, the trial court was justified in acquitting him.

Let me state at once that in actual fact, the trial court's action of acquitting the respondent was quite wrong both in fact and law. The record clearly shows that he was taken before the trial court on 3 March 2003. The charges were read over and explained to him. He denied them. He was released on bail. Thereafter, his case kept on being adjourned until when he was acquitted on 27 May 2003. If one may count from the date when he was charged in the trial court to the date when he was acquitted by the same court, it is a period of

two months and twenty four days only. To be realistic, in criminal trials, the said period cannot be said to be a long one. But, even if it were to be a long one, the trial court would not have been justified in acquitting the respondent as it did on the sole ground that the case had taken a long time.

It is common knowledge in the whole of East Africa that a delay in criminal trials does not form the basis of acquittal of an accused person. In Tanzania, Subordinate Courts are only empowered to discharge the accused in respect of certain offences including the one with which the respondent was charged, where the prosecution, after a specified period of time, is unable to proceed with the hearing without having filed a certificate in court stating the need and grounds for adjourning the case. The aforesaid courts are so empowered under section 225(5) of the Criminal Procedure Act 1985 in order to restrict unnecessary adjournments of criminal trials before such courts.

I am of the view that in this case, the inherent powers of the court were wrongly invoked by the trial magistrate in acquitting the respondent. Such powers are usually invoked in cases where there is no enabling provisions for doing justice. In this case, the said powers were arbitrarily invoked in favour of the respondent in order to defeat the ends of justice as the respondent was acquitted in the presence of the complainant A/Insp. Wilson who was not able to proceed with the hearing for lack of witnesses who had not turned up on that particular day to testify on behalf of the prosecution.

Under the provisions of the Criminal Procedure Act 1985, an accused can be acquitted in cases where the complainant has not appeared on the date fixed for hearing or where there is no case to answer or where there is no evidence upon which to base a conviction as provided for under sections 222, 230 and 235(1) of the Act respectively. This case did not fall under any of such circumstances.

Let me add that under the circumstances of this case, it was not necessary for the applicant to file an appeal in this court against the trial court's order of acquittal as argued by the respondent. It was

quite proper for the applicant to file this application for revision of the trial court's order which appears to be quite irregular on the face of the said court's record.

Therefore, I allow this application and order that Criminal Case file Number 150 of 2003 should immediately be returned to the District Court of Temeke to continue with the Criminal proceedings against the respondent in respect of the charges with which he was facing before his acquittal. The trial should continue before another magistrate with competent jurisdiction. It is so ordered.

ISIDORE NSANGU TUSEVO *v.* ANNETE ALTVATER AND ANOTHER

HIGH COURT OF TANZANIA AT ARUSHA

(Rutakangwa, J.)

CIVIL APPEAL No. 13 OF 2002

(Originating from Civil Case No. 38 of 2001 before the Resident Magistrate's Court of Arusha)

Evidence – Facts in issue – Need to prove all facts in issue by evidence – Section 7 of the Evidence Act 1967.

Evidence – Judicial notice – Facts not requiring proof – Section 58 of the Evidence Act 1967.

Evidence – Foreign Law – Proof of foreign law – Foreign law needs to be proved by evidence by an expert in such law – Section 47(1) of the Evidence Act 1967.

The appellant, a Congolese national, and the first respondent, a German citizen, were married in Guatemala City. The appellant sued the first respondent and one Majid Raza, the second respondent, for general damages and for wrongful detention, alleging in his plaint that when he came to Tanzania in October, 2000 he found his wife cohabiting with the said second respondent. He approached and asked his wife to desist from continuing with the adulterous association to no avail. In his attempt to talk over the matter he went to see the first respondent but instead she called the police who detained him without bail for six consecutive days. The respondents filed two separate written statements of defence. In her defence the first respondent admitted the marriage; that she was a German citizen and that she was residing in Tanzania. She raised two points of preliminary objection: that the appellant had no cause of action against the two respondents because under German law adultery was not actionable, and that the marriage contract barred the relief sought by the appellant. She annexed a duly authenticated copy of the German law and a copy of the marriage contract to her written statement of defence. This was reiterated in the submission in support of the preliminary objections. The advocate of the appellant argued that the question of whether the marriage was governed by German law was a matter of evidence. The trial resident magistrate upheld the preliminary objection on the ground that the appellant was bound by German law and the suit was struck out. Aggrieved the appellant appealed to the High Court on four grounds but argued only one ground challenging the finding of the magistrate that the suit was incompetent because German law was applicable. The advocate of the appellant argued that no evidence had been tendered. He further cited provisions of the Law of Marriage Act 1971 which empower the courts in Tanzania to entertain matters pertaining to marriage notwithstanding that the marriage was contracted outside Tanzania.

Held: (i) German law is a foreign law and its existence must be proved by evidence before any court of law in this country could act on it to determine the rights and liabilities of the parties in and legal proceedings;

(ii) The annexure to the pleading was not legal proof of the law;

(iii) ***Obiter:*** The Trial court ignored the fact that the appellant had another separate and distinct claim: the claim of damages for wrongful confinement.

Appeal allowed; case remitted for trial

Statutory provisions referred to:

(1) The Evidence Act 1967, sections 7, 47(1) and 58

(2) The Law of Marriage Act 1971

Mr Mwale for the appellant

Mr Kimomogoro for the respondents

JUDGMENT

(Delivered 30 May 2005)

Rutakangwa, J.: It has been aptly observed and I wholly subscribe to that observation that:

> The object of legal proceedings is the determination of the rights and liabilities which depend on facts: see **Evidence in East Africa**, H.F. Morris, at pg.24.

These facts are either facts in issue or facts relevant to the facts in issue and these are the only facts which need be proved in legal proceedings. This, in my opinion, is the tenor of section 7 of the Tanzania Evidence Act 1967 (or the Act hereinafter). "Facts in issue" are defined in section 3(1) of the Act to be:

> any fact from which, either by itself or in connection with facts, the existence, non-existence, nature or extent or any right, liability or disability, asserted or denied in any suit or proceedings, necessarily follows.

It is a trite rule of evidence, generally, that all facts in issue and relevant facts must be proved by evidence. However, as the old English adage goes, there is no rule without an exception.

To the above cited rule of evidence, there are two accepted exceptions. These are:

(a) No fact of which the court shall take judicial notice need be proved (by evidence): section 58 of the Act.

(b) Facts admitted by the parties to the proceedings need not be proved: See section 60 of the Act.

Section 59 of the Act partly provides, in clear terms, in sub-section (1) as follows:

(1) The court shall take judicial notice of the following facts:

(a) all written laws, rules, regulations, proclamations, orders, or notices having the force of law now or heretofore in force or hereafter to be in force, in any part of the United Republic.

By any canon of statutory construction it would require considerable temerity to suggest, let alone to hold, that this provision of the Act, covers foreign law having no force in Tanzania. It is now elementary knowledge that in Tanzania foreign law if it is a fact in issue or relevant fact has to be proved by evidence. On this, my stance is fortified by section 47 of the Act, which provides as follows:

47(1) When a court has to form an opinion upon a point of foreign law, or of science, or art, or as to identify of handwriting or finger or other impressions, opinions upon that point, persons possessing special knowledge, skill, experience or training in such foreign law, science or art or question as to identify of handwriting or finger or other impressions are relevant facts.

(2) Such person are called "*expert*" (emphasis is mine). Such expert opinion should be formally given in evidence. At this juncture it is incumbent upon me to show the relevancy of (or justify) this seemingly long preface to this judgment.

The appellant herein was the Plaintiff in Civil Case Number 13 of 2001 of the Court of Resident Magistrate in Arusha (or the trial court). The proceedings in that suit never went beyond the pleadings stage because of some legal technicalities, which I shall presently unveil. The appellant went before the trial court claiming general damages from the two respondents herein who were joint defendants in the said suit. The claim for damages was based on these pleaded facts:

(a) That the appellant was lawfully married to the first respondent herein on 10 January 1996 through a Civil Marriage contracted in Guatemala City.

(b) That while the appellant is a citizen of the Democratic Republic of Congo (DRC), the first respondent is a citizen of the Federal Republic of Germany residing in Tanzania.

(c) That when the appellant came to Tanzania from Germany, in October, 2000 he found his wife cohabiting with the first respondent and therefore committing adultery, which he neither consented to nor connived to.

(d) That he made every effort to dissuade her "from continuing to involve herself in that unholy and adulterous style of life" but all was to no avail.

(e) That when he attempted to follow her "for holding discussions for purpose and grounds of putting back in order all that had gone wrong", she called the police who arrested him, and detained him in police custody for six consecutive days without granting him bail.

He was accordingly claiming damages for wrongful detention at the instigation of the first respondent only and for adultery against the two respondents jointly. The two respondents filed two separate written statements of defence but both through Mr Kimomogoro, learned counsel from Imboru Chambers, Advocates. The defence of the second respondent was a general denial of only points (c) and (e) above. In her written statement of defence, the first respondent admitted points (a) and (b) above but vehemently denied points (c), (d) and (e) above. In the same written statement of defence, the first defendant raised two points of preliminary objection alleging that the appellant had no cause of action against the two respondents on the basis of:

(a) German Law which provides that adultery is not actionable.

(b) The marriage contract between the plaintiff and first defendant which bars reliefs sought by the former in this suit.

The first respondent attached photocopies of the alleged German Law and Marriage contract. The alleged German Law is alluded to in a 'ANNEX A.A1 to the first respondent's written statement of defence.

Armed with the said A.A1, counsel for the respondents convinced himself that he had no uphill struggle to sustain his preliminary objection. In his submission in support of the same before the trial court, the learned counsel said:

> Among other things, the contract provides under sub-title "Choice of Law" and we quote:
>
> > For the legal rights on property and the general effect of our marriage, we are herewith choosing German Law for our marriage, valid from the date of marriage ... As far as possible the choice of law should also be applied outside Germany. [emphasis supplied]
>
> The next point for consideration is what does German Law provide on the issue of adultery or infidelity?
>
> Your honour annexture "A.A1" to the Written Statement of defence of first defendant is an official translation of the relevant provisions of German law. According to the said document adultery is not actionable save that the aggrieved spouse is entitled to petition the court for divorce.
>
> Your honour, this brief submission disposes of the relief claimed by the Plaintiff under paragraph 17(a), (e) and (d) of the plaint.

In response, Mr Buhoma, learned counsel for the appellant (the plaintiff then) from Kamara and Associates, Advocates, had this pertinent submission to make:

> *That their marriage is governed by German Law is an argument that came up in the first defendants Written Statement of Defence (it features nowhere in the Plaint). Besides whether or not this is the Law applicable or whether Plaintiff is party to annexture A.A.2 are questions of evidence.* [emphasis supplied]

Annexture A.A.2 is a photocopy of the alleged contract of marriage.

This submission of Mr Buhoma on the issue was found wanting in cogency by the learned trial Resident Magistrate who upheld Mr Kimomogoro.

In striking out the suit on the basis of this point of preliminary objection only, she at first said:

> As it is, the issue of whether the plaintiff has a cause of action against the defendant is a matter of evidence. It is to be resolved in the merits of the case.

But, within the same breath she held:

> The issue is posed at this stage because of the nature of the objection raised, it is on the law applicable. A suit cannot stand without having the law upon which it is based. .... The cause of action is adultery ....
>
> As long as the Plaintiff chose to be bound by German Law wherever he is in as far as the marriage between him and the defendant is concerned, he cannot sue on adultery as it is not actionable. That being the case then, the preliminary point of objection is upheld; in the result the suit is struck out with costs.

It is this order which gave rise to this appeal. The appellant personally filed a memorandum of appeal containing four grounds of appeal. He eventually engaged Mr M. Mwale, learned counsel, to prosecute the appeal. The respondents retained the same counsel as in the trial court. The appeal was argued by way of written submissions.

In his submission learned counsel Mwale chose to submit on one ground of appeal, namely:

> 1. THAT, the learned Trial Magistrate erred in Law and Fact to rule that the marriage between the appellant and first respondent is governed by German (*sic*) Law while marriage was done (*sic*) in Guatemala according to Guatemala Law.

Counsel submitted at length in support of this ground of complaint. The bottom-line of his submission, however, is that the learned trial Resident Magistrate "misdirected herself through speculative ideas which influenced her decision to the effect that the plaintiff chose to be bound by German Law where-ever he is in as far as the marriage between him and the first defendant is concerned". Relying on S.77 of the Law of Marriage Act 1971, the learned counsel for the appellant was of a firm opinion that the trial Magistrate misdirected herself because "there was no evidence which was tendered before the trial court so as to determine the law applicable". Section 77 of the Law of Marriage Act generally governs the right to invoke the Tanganyika Court's jurisdiction for a declaratory decree, a decree of separation, or to apply for maintenance, custody of children or for any other matrimonial relief. Sub-section (5) in particular, provides in no uncertain terms that our courts shall have jurisdiction to entertain any of these proceedings notwithstanding that the marriage was contracted outside Tanganyika.

Learned counsel for the respondents reiterated his earlier submission before the trial court to the effect that under German Law the only remedy for an aggrieved party is to petition the court for divorce but not suing for damages for adultery.

The only issue in this appeal is whether or not the learned trial Resident Magistrate was correct, in law, in striking out the suit on the basis of the allegation that under German Law adultery by one of the spouses or even both, to a valid marriage cannot be a cause of action for damages, as is the case here, under section 72 of the Law of Marriage Act 1997, when there was no evidence to prove the said law and if it is true that the appellant had chosen to be bound by German law "wherever he is" in relation to all affairs of his marriage with the first respondent. I shall begin with the second limb of this issue.

The learned trial magistrate appears to have been very resolute in her holding that the appellant had chosen to be so bound by German

Law where ever he might be. Having carefully gone through the said Annexure A.A.2, I have the audacity to say with confidence that she was wrong. It is true that in the said document it is shown that the spouses chose German Law to govern their marriage relationship. But the same goes further to provide that:-

> .... *As far as possible* the choice of Law should also be applied outside Germany [emphasis supplied].

To an objective mind the language used here conveys the unmistakable impression that so long as they are in Germany, the spouses chose German law to govern their marriage relationship in every aspect. Whether that Law was to follow them while outside the boundaries of Germany this is governed by the phrase "as far as possible". Given its natural and plain meaning this phrase, which is open-ended, simply means that to the extent that is acceptable in the circumstances of the case that choice of law should also be applied outside German. So long as the parties thought it worthwhile to this circumscribe the applicability of their chosen Law, it goes without saying therefore, that German Law did not automatically apply to them while outside Germany. The party seeking to rely on this provision to buttress his/her case ought to give evidence to establish to the required standard that given the particular circumstances of that specific case German Law was to apply outside Germany. This is not the type of issue which could be resolved without evidence. The situation could have been different if this particular provision was reading:

> Under all circumstances, the choice of Law should also be applied outside Germany.

In view of this, I hold that the trial court was wrong in striking out the suit on this basis.

Coming to the other limb of the issue, I am equally settled in my mind that the learned trial magistrate erred in law in relying exclusively on "Annex AA1" as establishing the position of German Law on the issue. What the trial magistrate did was in effect taking judicial notice

of the existence of the alleged German Law. Even if such law exists this is not one the Laws covered by section 59(1) of the Act. It is not even evident from Annex. A.A.1 when the alleged German Law, No. 1556, came into force and whether it has had in the past any force of law in Tanganyika or Tanzania. To be quite honest, it is my decided opinion, that German Law is a foreign Law in terms of section 47(1) of the Act and its existence has to be proved in accordance with the provisions of the Act, before any court of law in this country could act on it to determine the rights and liabilities of the parties in any legal proceedings. On this basis, I hold that it was incurably fatal for the learned trial magistrate to strike out the appellant's suit on the basis of a foreign law whose existence was yet to be proved or established. Annex. A.A.1 is a mere annexture to the pleading and not legal proof of the law.

For the purposes of completing the record, I only wish to comment in passing that the good magistrate struck out the entire suit on the basis if the alleged German Law which does not permit suing for damages in cases of adultery. She totally ignored the fact that the appellant had another separate and distinct claim: the claim of damages for wrongful confinement. For certain, this claim is not governed by German Law No. 1556.

All in all, I hold that the ruling of the trial court is totally unsustainable. The same is hereby quashed and set aside. The case should proceed to trial in accordance with the provisions of the Civil Procedure Code, 1966 from the stage it had reached. The appeal is accordingly allowed with costs.

KIWI EUROPEAN HOLDINGS BV *v.* SAJAD ALI LIMITED

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM

(Nsekela, J.)

COMMERCIAL CASE No. 26 OF 2001

Intellectual Property – Trade Mark – Infringement of trade mark – Cumulative effect of sections 31 and 32(1)(a) of the Trade and Service Marks Act 1986

Intellectual Property – Trade Mark – Infringement of trade mark – Whether trade mark so resembling a registered trade mark as likely to deceive or cause confusion – Duty of the trial judge to decide whether the trade mark complained of so resembles a registered trade mark as to be likely to deceive or cause confusion

Evidence – Burden of proof – Burden of satisfying the court that there has been infringement of trade mark – The party that alleges has the burden to prove

The Plaintiff was the registered proprietor in Tanzania of the trade mark "KIWI". One day, a Product Development Representative of the plaintiff whose functions included monitoring "KIWI" shoe product and monitoring, counterfeit products in the market, bought from the defendant's shop a KIWI shoe polish which turned out not to be a true "KIWI" product although it had many features of one, including the logo on it, but the year of its manufacture was missing and the motto on it was slightly different from the true KIWI's. The Plaintiff then sued the defendant for infringement of the plaintiff's registered trade mark and calculated to cause confusion and passing off. The defendant admitted that they had been importing "KIWI" products from Dubai since 2001 but denied that the KIWI bought from their shop was part of those goods.

Held: (i) In general, proof of a single act of infringement by the defendant is sufficient to justify the plaintiff in bringing his action;

(ii) The cumulative effect of sections 31 and 32(1)(a) of the Trade and Service Marks Act 1986 is that the right to exclusive use upon registration of a trade mark cannot be infringed unless it is proved that the offending mark is either identical with the registered trade mark or it so resembles the registered trade mark as to be likely to deceive or cause confusion in relation to the goods in respect of which the mark is registered;

(iii) The burden of satisfying the court that there has been an infringement of trade mark is on the party who alleges the infringement; it is for him to pursue that there is a resemblance between the two marks and that such resemblance is deceptive;

(iv) It is the duty of the judge to decide whether the trade mark complained of so resembles the registered mark as to be likely to deceive or cause confusion in the minds of the public;

(v) In deciding the question of similarity between two marks, one has to approach it from the point of view of a man of average intelligence and of imperfect recollection, and that an ordinary purchaser is not gifted with immense powers of observation;

(vi) The use of the plaintiff's logo on the product bought from the defendant's shop that was likely to deceive or cause confusion in the trade.

Judgment for Plaintiff

Cases referred to:

(1) *Acktibolget Jonkeping Vulcan Industricts – fabriksatebolag v. East African Match Co.* [1964] E.A. 64.

Statutory Provisions referred to:

(1) Sections 31 and 32(1)(a)(i) of the Trade and Service Marks Act 1986

JUDGMENT

(Delivered 03 June 2005)

Nsekela, J.: The plaintiff, Kiwi European Holdings B.V. was the registered proprietor in Tanzania of the trademark "KIWI" as detailed in paragraph 4(I) to (II) of the plaint. The plaintiff instituted this

suit against the first defendant, Sajjad Ali Limited, for infringement of trademark and passing off. The allegations underpinning the action are contained in paragraphs 4 to 12 of the plaint. The essence of the plaintiff's case is to be found in paragraphs 9 and 10 of the plaint which are in the following terms:

> 9. The use by the first defendant of the word "KIWI" on the said shoe polish and on the packaging not of the plaintiff's manufacture or merchandise is an infringement of the plaintiff's Registered Trade Marks and is calculated to lead to deception and to the belief that the first defendant's shoe polish marked "KIWI" are the shoe polish of the plaintiff and it is further calculated to cause, and must have caused, the said shoe polish; not of the plaintiff's manufacture or merchandise, to be passed off as, and to be believed to be, the "KIWI" shoe polish of the plaintiff.
>
> PARTICULARS
>
> The plaintiff will rely on the similarity of the goods bought from and imported by the first defendant with the genuine goods bearing the Registered Mark of the plaintiff, as in itself establishing the probability of deception and/or confusion. Specimen of the plaintiff's genuine products and those imported and sold by the first defendant will be produced at the hearing.
>
> 10. The plaintiff will further contend that the said mark and packaging of the first defendant's goods were designed and adopted with the object of enabling the shoe polish of the first defendant to be deliberately mistaken for the well known product of the plaintiff.

At the commencement of the trial, two issues were framed and recorded by the court as follows

> (1) Whether or not the first defendant has infringed the plaintiff's trade mark "KIWI" as alleged in paragraph 5 of the plaint.
>
> (2) To what reliefs are the parties entitled to."

To establish its case, the plaintiff called two witnesses. PW1 was one Chalo Kassim, who at the material time was working in Tanzania as a Product Development Representative. His functions included monitoring Kiwi shoe products and monitoring counterfeit products in the market. He testified that the plaintiff was the registered trademark owner of KIWI in Tanzania as evidenced by Exhibit P1, which was admitted in evidence without objection from Mr Mngoya, learned advocate for the first defendant. PW2 also tendered in evidence Exhibit P2, Kiwi shoe polish. He then described the distinctive features of Exhibit P2 which include a Kiwi logo and below that logo was the year 1906; there was a motto for the polish "nourishes protects and shines;" it had a distinctive bar code; a country of origin and the address of the manufacturer. In the course of his duties, PW1 came across Exhibits P3, which was also admitted in evidence with objection. PW1 found it at Sajjad Ali's Shop. PW1 then made a comparison of Exhibits P2 and P3. He testified that the kiwi logo was the same, but Exhibit P3 did not have the year when the shoe polish was first manufactured; the motto on Exhibit P3 is "water resistant, leather nourishing;" in Exhibit P3 the contents are indicated on top whereas on Exhibit P2, it is on the side; Exhibit P3 does not have a bar code. PW1 added that Exhibit P3 is made in Kenya by Kiwi Brands Ltd, P.O. Box 30477 Nairobi.

When opened inside it had an aluminium foil, the base was not even and had paraffin smell. PW1 also testified that selling Exhibit P3 was cheating the public into believing that it was Exhibit P2. When cross-examined by Mr Mngoya, PW1 stated that the plaintiff was the only company manufacturing Kiwi. Their competitors were Dragon Shoe Polish from China; Lude from China and Golden Shine from Kenya and that they had not encountered any other person infringing the kiwi traded mark apart from the first defendant. PW2 was one Joyce Sojo, an employee of the Tanzania Revenue Authority (TRA) since 1996. PW2 testified to the effect that an informer tipped Tanzania Revenue Authority that the defendant company had imported goods from Tanga Port and were on their way to Dar es Salaam to be off-

loaded. The goods were then intercepted at Ubungo. The aim was to verify whether or not taxes had been paid. The boxes when opened were found to contain a variety of goods including cell batteries, pencils, shoes polish. The shoe polish found looked like Exhibits P2 and P3. PW2 then proceeded to explain the differences between the two exhibits, for instance in one there is a year indicated but not in the other; the presence of a bar code in one and its absence in another; the names of the manufacturers were also different. She added that all the taxes had been duly paid and that was the end of their business.

The defendant called two witnesses as well. DW1 was Sajjad Gulamali a businessman dealing in sundry items. He testified that in 2001, they imported kiwi products from Dubai through Tanga Port. The goods were in containers. One container was opened and Tanzania Revenue Authority officials sealed the container and did not take any samples. There was a second visit by TRA officials excluding PW1 and PW2 and that PW2 never saw any goods in boxes. The TRA officials wanted to verify payment of taxes. DW1 also testified that he imported kiwi because customers wanted them and that he was not aware of any counterfeit kiwi products. The kiwi he imported resembled Exhibit P2.

The first issue framed and recorded was whether or not the first defendant has infringed the plaintiff's trademark "KIWI". This is the crux of the matter. Before considering this issue, let me first reproduce in part paragraph 5 of the first defendant's written statement of defence. It reads as under:

> 5. That further to the preceding paragraph, the first defendant states that the amount imported is insignificant – about 600 cartons only – which has not been motivated by any deception on the part of the first defendant ..."

Paragraph 5 above shows at the very minimum, the first defendant had imported "600 cartons only". In his evidence DW1 said in part:

> Exhibits P2 and P3 were not part of the goods.

It will be recalled that Exhibit P3 was tendered in evidence by PW1. This was the counterfeit shoe polish – PW1 bought from the first defendant's shop. DW1 is not telling the truth. Exhibit P3 was part of the goods that DW1 had imported. Indeed, in his evidence DW1 stated thus –

> Since 2001 we imported KIWI products. We import our goods from one supplier in Dubai.

There is no doubt that PW1 went to the first defendant's shop to purchase the counterfeit Kiwi shoe polish in order to procure evidence in proof of the alleged infringement of the plaintiff's registered trade mark. There is also the evidence of PW2 who testified to the effect that the boxes when opened were found to contain a variety of goods including Kiwi shoe polish resembling Exhibits P2 and P3. The learned authors of **Kerly's Law of Trade Marks and Trade Names** (12 ed 1986) have this to say at page 340 paragraph 15 – 116.

> In general, proof of a single act of infringement by the defendant is sufficient to justify the plaintiff in bringing his action, and the evidence relied on is frequently the sale by the defendant of the spurious goods to the plaintiff or his agent, who has bought them merely for the purpose of procuring evidence. Though orders of this sort, generally referred to as "trap orders" have not infrequently been the subject of unfavourable comment, they are often the only means by which evidence can be obtained, and if they are fairly given, there is no impropriety in adopting this procedure.

I have no hesitation at all in believing the evidence of PW1 that the first defendant sold Exhibit P3 and issues Exhibit P4. As the plaintiff's trade mark is registered under the provisions of the Trade and Service Marks Act 1986 (the Act), I hold that the plaintiff is entitled to the protection conferred on them by section 31 of the Act which provides –

> 31 Subject to the provisions of this Act and any limitations or conditions entered in the register, the registration of a trade or service mark

shall, if valid, give or be deemed to have given to the registered proprietor the exclusive right to the use of a trade mark in relation to any goods including sale, importation and offer for sale or importation.

In an action based on an alleged infringement of a trade mark, the central question to be answered is whether the right conferred on the proprietor or the mark by registration thereof has been infringed or not. Trade mark infringement is governed by section 32(1) of the Act. It provides as follows.

1. The exclusive right referred to in section 31 shall be deemed to be infringed by any person who, not being the proprietor of a trade mark or registered user thereof using by way of the permitted use, uses a sign either:

(a) identical with or so nearly resembling it as to be likely to deceive or cause confusion, in the course of trade or business, in relation to any goods in respect of which it is registered or in relation to any closely related goods and in such manner as to render the use of the sign likely to be either -

(i) as being used as a trade mark or business or company name, or

The cumulative effect of section 31 and 32(1)(a) of the Act is to the effect that the right to exclusive use upon registration can not be infringed unless it is proved that the offending mark is either (i) identical with the registered trade mark or (ii) it so nearly resembles the registered trade mark as to be likely to deceive or cause confusion in the course of trade in relation to the goods in respect of which the mark is registered. It is not the case for the plaintiff that Exhibit P3 is identical with the trade mark on plaintiff. The sole question of fact which has now to be decided is whether it is possible to hold on the evidence on record that the alleged infringing mark so nearly resembles the registered trade mark or the plaintiff in the course of trade in relation to the KIWI shoe polish. It is trite law that the burden of satisfying the court that there has been an infringement

of trade mark is on the party who alleges the infringement and that it is for him to prove that there is a resemblance between the two marks and that such resemblance is deceptive. In the case of *Acktibolget Jonkeping Vulcan Industrictsfabriksatebolag v. East African Match Co* (1964) EA 64, Udo Udoma, C. J. stated thus at page 67:

> As a general proposition of law, I think I am right in stating that the burden of satisfying the court that there has been an infringement of its trade mark is on the plaintiff company. It is for the plaintiff company to prove that there is a resemblance between the two marks, and that such resemblance is deceptive. (It is also a well established principle of law that is the duty of the judge to decide whether the trade mark complained of so resemble the registered mark as to be likely to deceive or cause confusion in the minds of the public. From that duty the judge cannot abdicate).

It will be recalled that PW1 testified at considerable length on the distinctive features of Exhibits P2 and P3, making a detailed comparison between them. What is essential however are the broad essential features of the two marks. The basis idea of the plaintiff's mark is the KIWI logo. From the evidence of PW1, it is the same logo which appears in Exhibits P2 and P3. The use of the plaintiff's logo in Exhibit P3 is likely to deceive or cause confusion in the trade. It has often been stated that in deciding the question of similarity between the two marks, one has to approach it from the point of view of a man of average intelligence and of imperfect recollection, and that an ordinary purchaser is not gifted with the power of observation of a Sherlock Holmes.

In the result, I hold that the first defendant had infringed the registered trademark of the plaintiff. I therefore enter judgment against the defendant with costs excepting prayers (c) and (d). It is so ordered.

PRESIDENTIAL PARASTATAL SECTOR REFORM COMMISSION *v.* AZANIA BANCORP LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Munuo, Nsekela and Kaji, JJ.A.)

CIVIL APPEAL No. 117 OF 2004

(Appeal from the decision of the High Court of Tanzania (Commercial Division) at Dar es Salaam, Kalegeya, J., dated 23 July 2004, in Commercial Case No. 277 of 2002)

Civil Practice and Procedure – Proving or establishing a case – Parties granted leave to make submissions on points of law only instead of calling witnesses – Court orders counsel to first draw up and file a joint memorandum of facts not disputed – Whether court order was tenable – Order XIV, rule 2, Order XII, rule 3 of the Civil Procedure Code 1966

Civil Practice and Procedure – Proof of matters of both fact and law – Counsel pray for and are granted leave to submit on points of law only instead of calling witnesses – Court orders Counsel to first draw up and file a joint memorandum of facts not disputed followed by written submissions – Joint memorandum not filed but all facts disputed in the written submissions – Whether proceedings were regular

The plaintiff/respondent extended credit facilities to BHESCO, a specified public corporation amounting to TZS. 300 000 000. As security, BHESCO executed a mortgage of a Right of Occupancy, Certificate of Title Numbers 186066/76 and 186066/70 Plot Numbers 70 and 76 Gerezani Industrial Area, Dar es Salaam. BHESCO defaulted in the repayment of the credit facility, and the respondent filed a summary suit under Order XXXV of the Civil Procedure Code 1966. Before the hearing of the suit Counsel for the parties prayed that instead of calling witnesses they be allowed to submit on points of law only as the facts of the case were not in dispute. The court granted the prayer and ordered the Counsel to first draw up and file a joint memorandum

of facts not in dispute before the filing of the written submissions. The Counsel did not file the joint memorandum but in their written submissions all the facts were disputed. On appeal:

Held: (i) In the absence of evidence, disputed matters of mixed fact and law cannot be resolved by considering written submissions of learned advocates only;

(ii) The procedure adopted by the trial judge of dispensing with witnesses was highly irregular and, in the result, the proceedings of the court from 30 March 2004, and the judgment of the court were null and void.

Hearing of the case to resume before another judge

Cases referred to:

(1) *Abualy Alibhai Aziz v. Bhatia Brothers Limited*, Misc. Civil Appeal [2000] T.L.R. 288

(2) Board of Internal Trade v. M/s G.B.L. and Associates Limited Civil Appeal Number 4 of 1983 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Code 1966, Order XXV; Order VIIIB, rule 3(4); Order XIV, rule 2; and Order XVII, rule 3

(2) Public Corporations Act 1992, section 40A(1)(g) and (m)

Mr Fungamtama, for the Appellant

Mr Chipeta, for the Respondent

JUDGMENT

(Dated 07 June 2005)

Nsekela, J.A.: This is an appeal against the judgment of Kalegeya, J., in Civil Appeal Number 277 of 2002 in which he entered judgment jointly and severally against the first defendant, Building Hardware and Electrical Supplies Limited (BHESCO) and the second defendant, Presidential Parastatal Sector Reform Commission (now appellant).

BHESCO did not prefer any appeal. The facts leading to this appeal may be briefly stated as follows. The plaintiff/respondent, Azania Bancorp Limited extended credit facilities to BHESCO a specified public corporation who purportedly accepted an offer from the respondent amounting to TZS. 250 000 000 on the 6 February 2001. There was an additional credit facility dated the 8 March 2001 for TZS. 50 000 000 thus making a total of TZS. 300 000 000. To secure this credit facility, BHESCO executed a mortgage of a Right of Occupancy, Certificate of Title Numbers 186066/76 and 186066/70 Plot Numbers 70 and 76 Gerezani Industrial, Dar-es-Salaam. BHESCO defaulted in the repayment of the credit facility leaving an outstanding liability of TZS. 352 798 513-40 due and owing to the respondent. Consequently, the respondent filed a summary suit under Order XXXV of the Civil Procedure Code 1966. The High Court, Commercial Division, (Dr S. J. Bwana, J.) granted to both the defendants leave to appear and to defend the suit.

The decision of the High Court was challenged on three grounds, namely that:

1. The court erred in law in holding that the credit facility agreement between the plaintiff and the 1st defendant was valid and therefore enforceable in law;

2. The court erred in law in finding that the lack of the defendant's approval was incapable in itself of vitiating the transaction executed between the plaintiff and the 1st defendant.

3. The court erred in law in holding that the second defendant had given consent to the mortgage transaction impliedly.

At the hearing of the appeal Mr Fungamtama, learned advocate for the appellant, argued the three grounds of appeal generally rather than arguing one ground after another. The cornerstone of the appeal however seemed to revolve around section 40A(1)(g) and (m) of the Public Corporations Act 1992 as amended (the Act). The learned advocate contended that under the Act, a specified public corporation

is debarred from doing certain prescribed transactions without the approval of the appellant. He added that the learned judge did not specifically refer to section 40A(1)(g) of the Act in his judgment. The learned advocate was of the opinion that the use of the word "**express**" in this provision indicated that it was mandatory for BHESCO to seek and obtain such approval before entering into the prescribed transactions, which are the subject matter of this appeal. Furthermore, the learned advocate submitted that when the Letter of Offer and Acceptance; Mortgage of a Right of Occupancy were executed, Act Number 17 of 1999 had already been enacted and so the respondent was well aware of the requirements of the Act.

Mr W. Chipeta, learned advocate for the respondent, strongly countered Mr Fungamtama's contentions. He was of the view that the learned judge correctly found that the appellant had impliedly consented to BHESCO entering into the disputed transactions. BHESCO did not ask for the necessary approvals but the agreement between BHESCO and the respondent remained intact. The anchor of Mr W. Chipeta's submissions, was the decision of this Court in Misc. Civil Appeal Number 1 of 1999, *Abualy Alibhai Aziz v. Bhatia Brothers Limited* (1). In conclusion, the learned advocate submitted that the appellant as Official Receiver, was jointly and severally liable to settle the liability of BHESCO.

Before we proceed to consider and determine the merits or otherwise of the appeal, we think that it is desirable that we should first examine the sequence of the proceedings upon which the judgment of the High Court was founded. On the 26 March 2003, an amicable settlement of the dispute was not achieved during the final pre-trial and scheduling conference. Then Order VIIIB, rule 3(4) came into play and the High Court framed and recorded issues according to the provisions of Order XIV of the Civil Procedure Code. The following four issues were framed and recorded, namely:

1. Whether the credit facility agreement between the plaintiff and the first defendant is valid and thus enforceable in law.

2. Whether the plaintiff had a duty to ascertain that the approval of the second defendant had been sought and actually obtained before entering any agreement with the first defendant.

3. Whether upon being declared a specified public corporation the firstdefendant became incapable of owning property as the property was vested onto the second defendant, and thus had no property to offer as security.

4. To what reliefs are the parties entitled to.

By consent of the parties hearing of the case was scheduled to be held on the 13- 4 May 2003. For various reasons, hearing of the case did not take place as scheduled until the 30 March 2004. We take the liberty to reproduce the proceedings on this date.

30 March 2004

Coram: L. B. Kalegeya, J.

For the Plaintiff: Mr Baravuga

For the first Defendant: Mr Ngasala

For the second Defendant: Mr Nassor

CC: Kanyochole, S.H.

Mr Nassoro: We are agreed that the factual situation is not disputed. We pray that instead of calling witnesses, we submit on points of law with the 4 issues so far drawn up in mind.

Mr Ngasala: That is our consensus

Mr Baravuga: I am on all fours with my learned friends.

L.B. Kalegeya

Judge

Court: As the dispute stands, I am satisfied that the Counsel are very correct in their proposition. However, for record purposes, the Counsel should first draw up and file a joint memorandum of facts not disputed.

L. B. Kalegeya

Judge

Order:

· By consent, joint memorandum to be filed by 2 April 2004

· Defendants to file their written submissions by 16 April 2004

· Plaintiffs to file their written submissions by 30 April 2004

· Rejoinder, if any, by 7 May 2004

· Judgment on notice

L.B. Kalegeya

Judge

30 March 2004"

The learned judge did not indicate in this Order upon what provision of the Civil Procedure Code he derived powers for the parties to file a joint memorandum of facts not in dispute, then skip the taking of evidence from witnesses. Instead, the parties were required to file their respective written submissions, on the basis of which judgment was pronounced by the learned judge. The learned advocates duly complied with the time frame as prescribed by the court. However, the first document to be filed, that is, the joint memorandum, was not filed. This meant that the purported agreed facts not in dispute were not before the court. Obviously, as night follows day, all the facts were then in dispute!

Order XII, rule 3 of the Civil Procedure Code provides as follows:

3. Any party may by notice in writing at any time not later than nine days before the day fixed for hearing, call on any other party to admit, for the purposes of the suit only, any specific fact or facts mentioned in such notice; and in case of refusal or neglect to admit the same within six days after service for such notice, or within such further time as may be allowed by the Court, the costs of

> proving such fact or facts shall be paid by the party so neglecting or refusing, whatever the result of the suit may be, unless the court otherwise directs!
>
> (Proviso omitted)

We have not been able to find on the record that any party to this suit, by notice in writing, did call on any party to admit for the purposes of this suit any fact or facts. In any event, Order XII, rule 3 above does not provide a procedure of jointly filing a memorandum of agreed facts by the parties. Even then, the learned advocates did not file any joint memorandum as per court order. This means that there were no agreed facts before the court.

We now come to Order XIV, rule 2 of the Civil Procedure Code. It provides as under:

> 2. Where issues both of law and fact arise in the same suit, and the court is of the opinion that the case or any part thereof may be disposed of on the issues of law only, it shall try those issues first, and for that purpose may, if it thinks fit, postpone the settlement of the issues of fact until after the issues of law have been determined.

The question is, what were the issues of law that the court wanted to dispose of first? It will be recalled that on the 30 March 2004 the learned advocates for the parties put forth an intriguing proposal to the court that the facts before the court were not in dispute and so based on the issues framed, the court should decide the issues of law. We however now know for a fact that there were no such issues of fact agreed upon. The issues of law were apparently the four issues framed and recorded by the Court on the 30 March 2004. Issues 1 and 2 are at the core of the dispute. The question of approval of the agreements in dispute is a very contentious issue in the pleadings. These issues cannot in our considered view, be decided as purely legal issues without recording the evidence. The court was enjoined to make findings of fact first and then apply the law to the facts as established by evidence. The issue of whether or not the appellant

gave approval to BHESCO goes to the root of the case and this cannot be disposed of as an issue of law only under Order XIV, rule 2 of the Civil Procedure Code. In the absence of evidence, disputed matters of mixed law and fact cannot be resolved by considering written submissions of learned advocates only (see: (CAT) Civil Appeal Number 4 of 1983, *Board of Internal Trade v. M/S G.B.L. and Associates Limited* (2)

In the course of his judgment, the learned judge proceeded to answer the question, what is meant by "approval of the Commission". After seeking inspiration on the meaning of the words "approval, confirmation," "consent" and "implied consent" from **Black's Law Dictionary,** (6 ed) the learned judge had this to say namely:

> The term "approval" therefore has very wide ambit and in my view, the extent thereof differs from one usage to another. In our case however, the underlined wording in sections 42 and 40A enjoins the Boards of specified public corporations to seek and obtain approval of the second defendant for various intended actions as outlined including entering agreements and charging assets/properties. *In this case, it is beyond doubt there is no evidence of any formal approval by the seconddefendant regarding the transactions forming the basis of this action.* [emphasis supplied]

With respect, we are in total agreement with the learned judge that there was no evidence of any formal approval by the appellant. The question we ask ourselves, is, where could the learned judge get such evidence when on the 30 March 2004, he inexplicably acceded to the learned advocates' prayer that witnesses were not necessary even after framing the issues. On our part, we are not persuaded in the least that the resolution of the suit involved questions of law only. We fully appreciate that the words "without approval" will give rise to interesting questions of law, but it is clear to us that the issues framed by the court cannot be answered without ascertaining the factual background and surrounding circumstances.

We are of the settled view that the procedure adopted by the learned judge of dispensing with witnesses was highly irregular. Now

A the issue for consideration and decision is whether or not the findings and judgment of the High Court are valid in law. With respect, we do not think so. We have already stated that the learned judge made findings on disputed matters of mixed law and fact without evidence.
B In the absence of evidence such disputed matters cannot be determined on the basis of written submissions by learned advocates. Yet in his judgment, the learned judge was freely referring to "evidence" when there was none both oral and documentary.

C In the result, we have no option but to declare the proceedings of the court from the 30 March 2004 and the judgment of the court a nullity. The omission to call witnesses was a fundamental procedural error. We order the hearing of the case to resume before another
D judge. Since no party is really the winner in this appeal, we make no order as to costs.

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